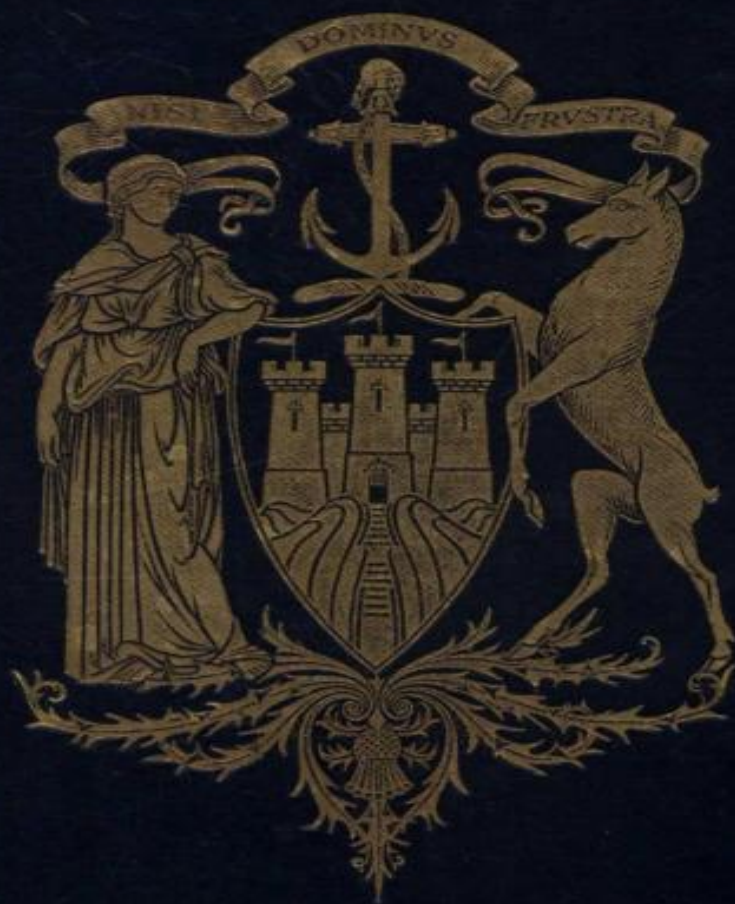


EDINBURGH

UNDER SIR WALTER SCOTT



W. T. FYFE

EDINBURGH
UNDER SIR WALTER SCOTT



W. T. FYFE

The Project Gutenberg eBook of Edinburgh Under Sir Walter Scott

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Edinburgh Under Sir Walter Scott

Creator: W. T. Fyfe

Author of introduction, etc.: Robert S. Rait

Release date: December 9, 2014 [eBook #47617]

Language: English

Other information and formats: www.gutenberg.org/ebooks/47617

Credits: Produced by Al Haines

*** START OF THE PROJECT GUTENBERG EBOOK EDINBURGH
UNDER SIR WALTER SCOTT ***

EDINBURGH

UNDER SIR WALTER SCOTT

BY
W. T. FYFE
WITH AN INTRODUCTION BY
R. S. RAIT

LONDON
ARCHIBALD CONSTABLE
AND COMPANY, LTD.
1906

Edinburgh: T. and A. CONSTABLE, Printers to His Majesty

INTRODUCTION

In the end of the eighteenth century and the beginning of the nineteenth—from, approximately, the death of Samuel Johnson in 1784 to that of Walter Scott in 1832—Edinburgh, rather than London, was the intellectual centre

of the kingdom. It would, of course, be easy to show that London has never lacked illustrious men of letters among her citizens, and, in this very period, the names of Sheridan, Bentham, Blake, Lamb, and Keats at once occur to memory as evidence against our thesis. It must also be admitted that Edinburgh shares some of her great names with London, and that many of the writers of the time are associated with neither capital. The name of William Cowper recalls the village of Olney; the English Lakes claim their great poets; and Byron and Shelley call to mind Greece and Italy, as, in the earlier part of our period, Gibbon is identified with Lausanne. But the Edinburgh society which Scott remembered in his youth or met in his prime included a long series of remarkable men. Some of them, like Robertson the historian; Hugh Blair; John Home, the author of *Douglas*; Henry Mackenzie, 'The Man of Feeling'; John Leyden; Dugald Stewart; and John Wilson, 'Christopher North,' were more or less permanent residents. Others, like Adam Smith, Thomas Campbell, Lady Nairne, Thomas De Quincey, Sir James Mackintosh, and Sydney Smith, spent a smaller portion of their lives in Edinburgh. Not only was the city full of great writers; it produced also a series of great publishers—the Constables and the Blackwoods. The influence of the *Edinburgh Review* can scarcely be realised in these days of numberless periodicals, and it was from Edinburgh that its great rival, the *Quarterly*, drew much of its early support, and one of its great editors, John Gibson Lockhart. Edinburgh, moreover, was still a national metropolis, for the railway systems had not yet brought about the real union of England and Scotland, and it possessed a society not less distinctively Scots than the Established Church or the code of law. The judges who administered that law add still further to the interest of the scene. Some were men of great intellectual force, whose names still live in the history of English thought. Lord Hailes, the antagonist of Gibbon, and Lord Monboddo, who, in some

sense, anticipated a discovery of Mr. Darwin, lived on to the close of the eighteenth century, and, in the early nineteenth, their reputation was sustained by Lord Woodhouselee, Lord Jeffrey, and Lord Cockburn. Others of the judges were notable for force of character, like Lord Braxfield, now familiar as 'Weir of Hermiston,' or for mere eccentricity, like Lord Eskgrove, one of the strangest beings who ever added to the gaiety of mankind.

The natural centre of this remarkable society is the great figure of Sir Walter Scott, who dominated Edinburgh during a large portion of the period, and the story of whose life has made so many Edinburgh names household words for all time. Lockhart's *Life of Scott* gives an interesting, though by no means a complete, picture of this society. There are many other sources of information: the *Scots Magazine*, the *Annual Register*, and so forth. Most important of all are the autobiographies of Alexander Carlyle and Lord Cockburn, two books which it is becoming more and more difficult to obtain. 'Jupiter' Carlyle of Inveresk was born in 1722, and lived until 1805. He could thus recollect the Porteous Mob; he had seen Prince Charlie in Edinburgh, and, from the garden of his father's manse at Prestonpans, he had watched the flight of General Cope's defeated troops. He had been the friend of David Hume, who died just before our period begins, of Smollett, and of Robertson and Adam Smith. Such a man had much to tell, and, fortunately for posterity, he chose to tell it. Not less interesting or important is the volume known as *Memorials of his Time*, by Henry Cockburn, who, from 1834 to his death in 1854, was a Scottish judge. He was born in 1779, and had been a member of a famous Edinburgh debating society—the 'Spec'—along with Henry Brougham, Francis Horner, Walter Scott, and Francis Jeffrey. He shared Jeffrey's politics, aided him in defending Radicals charged with sedition, and wrote his biography. His

Memorials are by far the best source of our knowledge of social life in Scotland in the early years of the nineteenth century. Carlyle and Cockburn both wrote freely and without reserve, and each possessed an accurate memory and an appreciation of the picturesque. From these and similar materials Mr. W. T. Fyfe, an Edinburgh citizen, who possesses a wide and affectionate knowledge of his home and its history, has skilfully drawn his picture of Edinburgh under Sir Walter Scott. His book is no mere addition to the numerous lives of Sir Walter. It takes the well-known incidents of his career as affording some guiding lines for the grouping of the varied details, and the reader of Lockhart will find here fresh light upon some familiar names. The personality of the best-loved Scotsman who ever lived dominates this book as it dominated the real life of which it tells. The cords of a man and the bands of love still bind us to the Shirra o' the Forest, and even to the Laird of Abbotsford; there is none other among the mighty dead whose ways and whose home we know so well as those of the Great Unknown. He is not to be envied who can resist the personal spell of the Wizard:—

'O great and gallant Scott,
True Gentleman, heart, blood, and bone,
I would it had been my lot
To have seen thee, and heard thee, and known.'

Even those who are wise enough to read their Lockhart and the *Letters* and the *Journals* once a year will learn something about Scott from this book, and much about the friends whom he has immortalised in some of the sweetest strains that friendship ever inspired.

ROBERT S. RAIT.
NEW COLLEGE, OXFORD,
September 1906.

DESCRIPTION OF EDINBURGH

(From *The Abbot*, Chapter XVII.)

'The principal street of Edinburgh was then, as now, one of the most spacious in Europe. The extreme height of the houses, and the variety of Gothic gables and battlements, and balconies, by which the skyline on each side was crowned and terminated, together with the width of the street itself, might have struck with surprise a more practised eye than that of young Graeme. The population, close packed within the walls of the city, and at this time increased by the number of the lords of the King's party who had thronged to Edinburgh to wait upon the Regent Murray, absolutely swarmed like bees on the wide and stately street. Instead of the shop-windows, which are now calculated for the display of goods, the traders had their open booths projecting on the street, in which, as in the fashion of the modern bazaars, all was exposed which they had upon sale. And though the commodities were not of the richest kinds, yet Graeme thought he beheld the wealth of the whole world in the various bales of Flanders cloths, and the specimens of tapestry; and, at other places, the display of domestic utensils, and pieces of plate, struck him with wonder. The sight of cutlers' booths, furnished with swords and poniards, which were manufactured in Scotland, and with pieces of defensive armour, imported from Flanders, added to his surprise; and at every step, he found so much to admire and to

gaze upon, that Adam Woodcock had no little difficulty in prevailing on him to advance through such a scene of enchantment.

'The sight of the crowds which filled the streets was equally a subject of wonder. Here a gay lady, in her muffler, or silken veil, traced her way delicately, a gentleman-usher making way for her, a page bearing up her train, and a waiting gentlewoman carrying her Bible, thus intimating that her purpose was towards the church. There he might see a group of citizens bending the same way, with their short Flemish cloaks, wide trowsers, and high-caped doublets, a fashion to which, as well as to their bonnet and feather, the Scots were long faithful. Then, again, came the clergyman himself, in his black Geneva cloak and band, lending a grave and attentive ear to the discourse of several persons who accompanied him, and who were doubtless holding serious converse on the religious subject he was about to treat of.'

DESCRIPTION OF EDINBURGH

(From *Marmion*, Canto IV.)

'Still on the spot Lord Marmion stay'd,
For fairer scene he ne'er surveyed.
When sated with the martial show
That peopled all the plain below,
The wandering eye could o'er it go,
And mark the distant city glow
With gloomy splendour red;
For on the smoke-wreaths, huge and slow,

That round her sable turrets flow,
The morning beams were shed,
And tinged them with a lustre proud,
Like that which streaks a thunder-cloud.
Such dusky grandeur clothed the height
Where the huge Castle holds its state,
And all the steep slope down,
Whose ridgy back heaves to the sky,
Piled deep and massy, close and high,
Mine own romantic town!'

CONTENTS

CHAPTER I

Edinburgh in 1773—General Features of the Old City—Its Site and Plan—Flodden Wall—Nor' Loch
—'Meadows'—Old Suburbs—Canongate—Portsburgh—'Mine own romantic Town'—College Wynd,
Birthplace of Scott—Improvements in the Old Town

CHAPTER II

The Scotts in George Square—Walter's Lameness—Sandyknowe—Bath—Edinburgh—Changes in
the City, 1763-1783—Migrations to the New Town—The Mound—New Manufactures and Trades—
The first Umbrella

CHAPTER III

School-days—The High School—Old Methods of Teaching—Luke Fraser—Tone of the School—Brutal Masters—Schoolboy's Dress—Boyish Ideas—Scott's Pride of Birth—The 'Harden' Family—'Beardie'—The Dryburgh Lands

CHAPTER IV

Dr. Adam, Rector of High School—Walter Scott's first Lines—Influence of Adam—Persecution by Nicol—Death-scene of the Rector—Home Life in George Square—Walter Scott the 'Writer'—Anecdotes of his Character

CHAPTER V

At Edinburgh University—Holidays at Kelso—Home—First University Class—Professor Hill—Professor Dalzell—The 'Greek Blockhead'—Anecdotes of Dalzell—His History of Edinburgh University

CHAPTER VI

Scott's University Studies—The old Latin Chronicles—Dugald Stewart, His Success described—His elegant Essays—Popular Subjects—Picture of Stewart by Lord Cockburn—His Lectures—Anecdote of Macvey Napier—Meets Robert Burns—The Poet's 'Pocket Milton'

CHAPTER VII

Old Edinburgh Society—Manners of the older Generation—St. Cecilia's Hall—Buccleuch Place Rooms—Rules of the Assemblies—Drinking Customs—Recollections of Lord Cockburn

CHAPTER VIII

Description of St. Cecilia's Hall—Concerts—Old-fashioned Contempt for 'Stars'—Former Assembly Rooms—The George Street Rooms—Scott and the old Social Ways—Simplicity and Friendliness—His Picture of the Beginnings of Fashion in the New Town

CHAPTER IX

Manners and Social Customs—Cockburn's Sketches—The Dinner-hour—The Procession—The Viands—Drinking—Claret—Healths and Toasts—Anecdote of Duke of Buccleuch—'Rounds' of Toasts—'Sentiments'—The Dominie of Arndilly—Scott's Views of the old Customs—Decline of 'friendly' Feeling

CHAPTER X

Religious Observances—Sunday Attendance at Church—Sunday Books—Breakdown of the System—Alleged Infidelity among Professors—Low State of Morality—Increase of mixed Population—Provincialism

CHAPTER XI

Scott apprenticed to the Law—Copying Money and *menus plaisirs*—Novels—Romances—Early Attempts—John Irving—Sibbald's Library—Sees Robert Burns—The Parliament House—The 'Krames'

CHAPTER XII

Topics of Talk—Religion—Scott's Freedom from Fanaticism—Dilettantism of the 'liberal young Men'—Politics—Basis of Scott's Toryism—Cockburn's Anecdote of Table-talk—Men of the Old School—Robertson the Historian—His *History of Charles V.*—His noble Generosity—Closing Years—Anecdotes

CHAPTER XIII

More Men of the Old School—Dr. Erskine—Scott on Church Disputes—His Admiration of Erskine's Character—Anecdote of Erskine's Walk to Fife—Professor Ferguson—His *History of Rome*—Abstainer and Vegetarian—Picture of Ferguson's Appearance—Odd Habits—Travels to Italy

CHAPTER XIV

'Jupiter' Carlyle—Noble Looks—Friend of Robertson and John Home—The Play of Douglas—Anecdote of Dr. Carlyle—Dr. Joseph Black—Latent Heat—His personal Appearance—Anecdote of last Illness—His *History of Great Britain*—Forerunner of the Modern School

CHAPTER XV

The 'Meadows' one Hundred Years ago—A Resort of great Men—*Vixerunt fortes*—Their Intimacy and Quarrels—Hume and Ferguson—Home, the happy—His boundless Generosity—Sympathy with Misfortune—Home and Edinburgh Society—Sketch by Scott—'The Close of an Era'

CHAPTER XVI

Ladies of the Old School—Anecdotes told by Scott, Dr. Carlyle, and Lord Cockburn—Their Speech—'Suphy' Johnston—Anecdote of Suphy and Dr. Gregory—Miss Menie Trotter—Her Dream—Views of Religion

CHAPTER XVII

Scott's Contemporaries in Edinburgh—Local 'Societies'—The Speculative—Scott's Explosion—Visit of Francis Jeffrey to the 'Den'—Anecdote of Murray of Broughton—General View of the youthful Societies

CHAPTER XVIII

The Scottish Bar—Two Careers open—Walter's Choice—Studies with William Clerk—The Law Professors—Hume's Lectures—Hard Study—Beginnings of social Distinction—Influence of Clerk—Early Love-story—Description of Walter Scott at Twenty

CHAPTER XIX

The Advocate's 'Trials'—Scott and Clerk admitted to the Bar—Walter's first Fee—Connection of the Scotts with Lord Braxfield—Scottish Judges—Stories of Braxfield

CHAPTER XX

Stories of the Judges—Lord Eskgrove—His Appearance—The Trials for Sedition—Anecdotes of Circuit Dinners—'Esky' and *the Harangue*—The Soldier's Breeches—Esky and the Veiled Witness—Henderson and the Fine—The Luss Robbers—Death of Eskgrove

CHAPTER XXI

Scott's Anecdote of Lord Kames—Judicial Cruelty—Lord Meadowbank's Marriage—'Declaim, Sir'—Judges and Drinking—Hermand and the Pope—Bacchus on the Bench—Hermand and the Middy

CHAPTER XXII

Political Lawyers—Politics an 'accident' in Scott's History—Early Days at the Bar—Peter Peebles—*The Mountain*—Anecdote of Scott and Clerk—The German Class—Friendship with William Erskine—German Romance—Seniors of the Bar—Robert Blair—Greatest of Scottish Judges—Anecdote of Hermand and Henry Erskine

CHAPTER XXIII

Seniors (*continued*)—Charles Hope—His Voice—Tribute by Cockburn—Robert Dundas, Nephew of Henry, Lord Melville—His Manner and Moderation—Anecdote of Lords Blair and Melville—Lord Melville's Son—Scott's Project of Emigration

CHAPTER XXIV

Henry Erskine—His Ability and Wit—Tributes to his Character—Dismissal as Dean of Faculty—John Clerk—Reputation at the Bar—His Private Tastes—Art and Literature—Odd Habits—

Anecdotes of Clerk and his Father

CHAPTER XXV

Scott's Border 'Raids'—Shortreed—Scott's Circuit Work—Jedburgh Anecdotes—Edinburgh Days—Fortune's—The Theatre Royal—Oyster Parties—Social Functions—General Reading

CHAPTER XXVI

The Edinburgh Environment—Talk of French Revolution—The 'Jacobins'—The Volunteers—Irish Row in the Theatre—Mrs. Barbauld's Visit—Taylor's Lenore—Scott's Version—Anecdote of the Skull—End of Love Affair—Reference in *Peveril of the Peak*

CHAPTER XXVII

Friendship with Skene of Rubislaw—Skene's Account of the Edinburgh Light Horse—'Earl Walter'—Marriage of Walter Scott and Charlotte Carpenter—The Edinburgh Home—Edinburgh Friends—The Cottage at Lasswade

CHAPTER XXVIII

The Mercantile Class in Edinburgh—The Town Council—Political Corruption—Petty Tyranny—The Town Clerk—James Laing, Head of the Police—His Methods with Disturbers of the Peace—Anecdotes of Laing and Dugald Stewart

CHAPTER XXIX

Public Condition of Edinburgh in 1800—Ostracism of Dugald Stewart—The Whigs—Their Struggle for Power—The Infirmary Incident—Dr. Gregory—His Pamphlets—Characteristics—Family Connection with Rob Roy

CHAPTER XXX

Strongest 'Impressions' from the Waverley Novels—Special Charm of Death of the old Lawyer in Chrystal Croftangry's Recollections—Death of Walter Scott the Elder—The 'very scene' described—Scott appointed Sheriff—Independence from Court Work

CHAPTER XXXI

Scott settled in Edinburgh—Defacement of City—Wrytte's House—Gillespie the Snuff-seller—Erskine's Joke—The Woods of Bellevue—Scott's ideal *rus in Urbe*

CHAPTER XXXII

Richard Heber in Edinburgh—Friendship with Scott—'Discovers' John Leyden—Leyden's Education—His Appearance, Oddities—Love of Country—His Help in *Border Minstrelsy*—Anecdote told by Scott—Leyden a Man of Genius

CHAPTER XXXIII

The 'Young Men of Edinburgh'—Their Whiggery—Anecdote of Jeffrey and Bell—James Graham, Author of *The Sabbath*—Sydney Smith—His Liking for Scotland—Whig Dread of Wit—Lord Webb Seymour—Horner's Analysis of him—Friendship with Playfair—His Anecdote of Horner

CHAPTER XXXIV

M. G. Lewis—Seeks out Scott—*The Monk*—Translation by Scott of *Goetz*—Anecdote of Lewis—James Ballantyne—Prints *Apology for Tales of Terror*—William Laidlaw—James Hogg—Character and Talents

CHAPTER XXXV

Failure of Lewis's *Tales*—Scott's *Border Minstrelsy*—Ballantyne's Printing—His Conceit—Removal of Chief Baron from Queensberry House—His odd Benevolence—Anecdote of Charles Hope—The

Schoolmasters Act

CHAPTER XXXVI

Anecdotes of R. P. Gillies—His Picture of Scott—'Border Press' at Abbeyhill—Britain armed for Defence—Scenes in Edinburgh—'Captain' Cockburn

CHAPTER XXXVII

Enthusiasm of Volunteers—Drill and Sham Fights—Scott's Letters—Quartermaster—Anecdote by Cockburn—Recruiting for the Army—Indifference to Fear of Invasion—Greatness of the Danger—War Song of 1802

CHAPTER XXXVIII

Ashestiel—39 Castle Street—'Honest Tom Purdie'—Associations of Scott's Work with Edinburgh Home—First Lines of the *Lay*—Abandons the Bar for Literature—Story of Gilpin Horner—Progress of the Poem

CHAPTER XXXIX

Edinburgh Literary Society—The Men of 1800-1820—Revelation of Scott's Poetical Genius—Effect in Edinburgh—Local Pride in his Greatness—Anecdote of Pitt—Success of *Lay of the Last Minstrel*—Connection with Ballantyne—Secrecy of the Partnership

CHAPTER XL

Scott and Jeffrey—Founding of *Edinburgh Review*—Impression in Edinburgh—Its Political and Literary Pretences—Review of *Lay* by Jeffrey—Strange Mistake—Beautiful Appreciation by Mr. Gladstone quoted—The *Dies Irae*

CHAPTER XLI

Town and Country—Scott's Ideal—Reversion of Clerkship—Impeachment of Lord Melville—Acquittal—The Edinburgh Dinner—Scott's Song of Triumph—Nature of his Professional Duties—Social Claims and Literary Industry

CHAPTER XLII

Colleagues at the Clerks' Table—Morritt on Scott's Conversation—His Home Life—Treatment of his Children—Ideas on Education—Knowledge of the Bible—Horsemanship, Courage, Veracity—Success of the Training

CHAPTER XLIII

Marmion—Published by Constable—Misfortunes of Thomas Scott—George Ellis on *Marmion*—Hostile Review by Jeffrey—Charge of Want of Patriotism—Mrs. Scott and Jeffrey—Extraordinary Success of the Poem

CHAPTER XLIV

John Murray—Share in *Marmion*—Reverence for Scott—*The Quarterly Review*—The 'Cevallos' Article—Jeffrey's Pessimism—Contemplated Flight to America—Anecdotes of Earl of Buchan

CHAPTER XLV

The Gallon Jail—Opening of Waterloo Place—Removal of Old Tolbooth—Scott purchases Land at Abbotsford—Professional Income—Correspondence with Byron—Anecdote of the 'Flitting' from Ashestiel

CHAPTER XLVI

Scott and the Actors—Kemble, Siddons, Terry—Terry's Imitation of 'the Shirra'—Anecdote of Terry and C. Mathews—Mathews in Edinburgh—'The Reign of Scott'—Anecdotes of his Children—

Excursion to the Western Isles

CHAPTER XLVII

Waverley laid aside—*Rokeby*—Excitement at Oxford—Ballantyne's Dinner—Scott's Idea of Byron as a Poet—Ballantyne's Mismanagement—Aid from Constable—Loan from the Duke—Scott decides to finish *Waverley*

CHAPTER XLVIII

Success of the Allies—Address to the King—Freedom of Edinburgh—Edition of Swift—Printing of *Waverley*—Mystery of Authorship—Edinburgh Guesses—Excellent Review by Jeffrey—Scott's 'gallant composure'—Success of the Novel

CHAPTER XLIX

The Lord of the Isles—*Guy Mannering*—Universal Delight—Effects of Peace in Scotland—Awakening of Public Opinion in Edinburgh—'Civic War'—Professor Duncan—Sketch by Lord Cockburn

CHAPTER L

The New Town of Edinburgh in 1815—Effects of the 'Plan'—The Earthen Mound—Criticisms by Citizens after the War—The New Approaches—Destruction of City Trees—Lord Cockburn's Lament

CHAPTER LI

The 'Jury Court'—Chief-Commissioner Adam—His Work and Success—Friendship with Scott—Character of Adam by Scott—The Blairadam Club—Anecdotes—Death of Lord Adam

CHAPTER LII

1816—The *Antiquary*—Death of Major John Scott—The Aged Mother—Buying Land—The Ballantynes—The *Black Dwarf* and Blackwood—Scott and a Judgeship—Anecdote of Authorship of *Waverley*

CHAPTER LIII

1817—Overwork and Illness—Kemble's 'Farewell Address'—The Kemble Dinner—*Blackwood's Magazine* and the Reign of Terror in Edinburgh

CHAPTER LIV

Personal Anecdotes of Scott—Washington Irving—The Minister's Daughter—J. G. Lockhart—His Introduction to Scott—*Annual Register*—39 Castle Street—Scott's 'Den'—Animal Favourites

CHAPTER LV

Scott and Edinburgh Society—Lockhart's Opinion—Scott's Drives in Edinburgh—Love of Antiquities—The Sunday Dinners at 39 Castle Street—The Maclean Clephanes—Erskine, Clerk, C. K. Sharpe, Sir A. Boswell, W. Allan,—Favourite Dishes

CHAPTER LVI

The National Monument—Still incomplete—The Salisbury Crags—Danger of their Destruction—The Path impassable—Construction of the Radical Road—National Distress—Trials for Sedition—Anecdote of John Clerk—The City Guard

CHAPTER LVII

Scott and the Ballantynes—James in the Canongate—Ceremonies at the 'Waverley' Dinners—Reading of Scenes from the New Volume—John at Trinity—His 'Bower of Bliss'—Anecdote by C. Mathews

CHAPTER LVIII

Anecdotes of Constable—"The Czar"—Plans the *Magnum Opus*—Anecdote of Longmans and Co.—Constable's House and Equipage—John Ballantyne's Habits—Horses and Dogs—Anecdote by Scott of his Liberality—Scott's Sorrow at his Death

CHAPTER LIX

The Baronetcy—Reasons for accepting—Marriage of Sophia Scott to John Gibson Lockhart—Charles Scott and Archdeacon Williams—Improvements in Edinburgh—The 'Water Caddies'—Drama of *Rob Roy*—The Burns Dinner—Henry Mackenzie

CHAPTER LX

The Commercial Disaster—Ruin of Ballantyne (Scott) and Constable—Scott's Feeling—Universal Sympathy—Offer of Help—Brave Reply—Cheerful Spirit—Constable—The Agreement—Removal from Castle Street—Death of Lady Scott—The Visit to Paris

CHAPTER LXI

House in Walker Street—Ill-health—Extraordinary Labours—Article on Hoffman—Kindness to Literary People—Murray's Party—Theatrical Fund Dinner—*Life of Napoleon*—Payment of £28,000 to Creditors—The Lockharts at Portobello—Grandfather's Tales—Domestic Happiness—Visit of Adolphus

CHAPTER LXII

Incident of Gourgaud—Expected Duel—Scott's Preparations—Tired of Edinburgh—Changing Aspect of New Town—The 'Markets' superseded by Shops—The Female Poisoner—Scott's Opinion of 'Not Proven'—Points in its Favour

CHAPTER LXIII

Visit of Richardson and Cockburn to Abbotsford—Sir Walter at Home—Anecdote of Cranstoun—Patterson's Anecdotes—The Burke and Hare Murders—Anecdote of Cockburn—Dr. Knox—Catholic Emancipation Bill—Meeting in Edinburgh—Death of Terry and Shortreed—Severe Illness of Scott—Death of Tom Purdie

CHAPTER LXIV

Last Winter in Edinburgh—The *Ayrshire Tragedy*—Apoplectic Stroke—Retirement from the Clerkship—Visit to Edinburgh—Refusal to stop Literary Work—John Nicolson—Scott at Cadell's House—His Will

CHAPTER LXV

The Paralytic Stroke—The Last Novels—Election Meetings—Disgraceful Conduct of Radical Gangs—Scott's Journey for Health—The Return—Collapse and Stupor—The Last Stay in Edinburgh—Death of Sir Walter Scott

EDINBURGH UNDER SIR WALTER SCOTT

CHAPTER I

Edinburgh in 1773—General Features of the Old City—Its Site and Plan—Flodden Wall—Nor' Loch—'Meadows'—Old Suburbs—Canongate—Portsburgh—'Mine own romantic Town'—College Wynd, Birthplace of Scott—Improvements in the Old Town.

The Edinburgh of Walter Scott's infancy was still the old, romantic, medieval city. It was almost wholly confined within the city wall, a result of the adherence to customs sanctioned by tradition, long after the causes which first established them have ceased to operate. The constantly recurring danger from English invasions was, in early times, a full and sufficient reason for dwelling inside the fortification. Of course, from the earliest times there was a tendency, especially among the leading and wealthy families, to build dwelling-houses and lay out gardens among the fields. Yet, on the whole, the increasing population sought its accommodation within the limits of the town. This is why Edinburgh citizens, following the old fashion of Paris, built their houses of an enormous height, some of them as high as twelve stories or more. The ground space available was, of course, limited by the extent of the wall, and on one side by the water of the Nor' Loch. Hence the necessity for making good use of every possible site. Social arrangements of a singular and quaint simplicity were the not unnatural result. In each gigantic barrack might be found ever so many different families, each occupying its own independent dwelling, sometimes consisting of only two or three rooms. The social dignity of the tenant increased with the height of his quarters. In the cellars and on the street floor were the humble members of the business and manual-working classes; professional persons went a story higher; and the nobility and gentry overlooked the whole from the upper half of the mansion. In modern times these houses, so far as they still exist, have been handed over almost entirely to the lower orders: they are, in fact, the slums of Edinburgh. But the quaint old arrangements had hardly been impaired even up to the year of *Marmion* and 'mine own romantic town.'

The site of the old city is as singular a site as could have been chosen, but it was selected with the one view of enjoying the very necessary

protection of its citadel, the Castle. Its main street extends over the long backbone of the famous ridge which slopes from the Castle to Holyrood. The steep northern side of the ridge was bounded by the long sheet of water called the Nor' Loch, which formed a natural defence from the Castle Hill to a point called Halkerston's Wynd. The contour of the city has been compared to the figure of a turtle, the Castle being taken for the head, the High Street for the ridge of the back, and the numerous wynds and closes for the ribs: the analogy being completed by adding Canongate and Holyrood Palace for the tail. In similar figure, Carlyle graphically presents the sloping street and its wynds as 'covering like some rhinoceros skin, with many a gnarled embossment, church steeple, chimney head, Tolbooth and other ornament or indispensability, back and ribs of the slope.' The old city wall, built by James II., had fallen into ruin and disrepair by the year of Flodden, 1513. On that disastrous occasion there was built in hot haste and panic, of which even the surviving fragments give proof, the famous 'Flodden Wall,' which formed the city boundary till the time of Scott. The north side being almost entirely defended by the Nor' Loch, the wall extended from the Castle round the south and east sides of the city. Beside the Castle rock the first entrance to the city was the West Port, a gate which stood at the foot of the Grassmarket. We may judge how greatly the presence of the walls affected the life of the citizens from the fact that a small wicket-gate had to be constructed in the wall some distance from this Port in the year 1744. Twenty-two years before this, Thomas Hope of Rankeillor had drained the Borough Loch, and planted trees, made a walk, and laid down turf on its side, thus forming the park known as 'The Meadows.' It was to afford 'a more commodious egress to the elegant walks in the meadows' that the wicket was eventually opened. From the West Port the wall ran half-way along the east side of the steep lane called the Vennel,

where a portion of it is still existent, thence turning south-east to Bristo Port. The next gate eastward was the Potterrow Port, originally Kirk-of-Field Port, at the head of the Horse Wynd, a lane leading down into the Cowgate. The Horse Wynd was, in fact, the principal access to the town in this quarter, and got its name from being, unlike the others, safe for horses. By the line of Drummond Street the wall proceeded to the Pleasance and the foot of St. Mary Wynd, which the Nether Bow joined to Leith Wynd. The Nether Bow, which was not built till 1616, was the chief entrance of the city, separating it from the Burgh of Canongate. The part of the wall which ran from the Nether Bow to the point at which Leith Wynd crossed the Nor' Loch was added in the year 1540.

Such were the walled boundaries of Edinburgh, within which the city made shift to contain its increasing population during a period of about two hundred and fifty years. Practically the Edinburgh of these centuries lay between the Castle and Holyrood lengthwise, and in breadth between the Nor' Loch and some distance beyond the Cowgate on the south. There was no lack, however, at any period of persons who preferred to live outside the city walls. In fact, old writers are continually remarking on such a strange and perverse disposition, for which they cannot account, especially in those old days when the danger from England was a very grim reality. The propensity led to the gradual growth of a few suburban hamlets, and the only wonder is that they were not larger and more numerous. Of these outside regions the Canongate was the largest, but it was really at first an independent ecclesiastical burgh, established by David I. in 1128 under the Abbey of Holyrood. It did not come under the jurisdiction of the city till the year 1636, when the Town Council bought it from the Earl of Roxburgh. Another 'burgh' of ancient fame was 'Portsburgh' at the other end of the city, extending from the West Port to Toll Cross. Straggling houses belonging to

citizens were also to be found farther afield on the Glasgow Road, and in the district now named Dairy. The suburb of Bristo Street, as we have seen, adjoined one of the city gates, and beyond it were the grounds of Ross House, which about 1764 supplied a site for George Square, named after the reigning monarch, George III.

Within these bounds, then, is all that Scott meant when he wrote the words, 'mine own romantic town.' And indeed it was full of romance in every quarter. To him the New Town was but an appendage, a fast-growing appendage of the city itself—a fringe which set off the beauty of the general view. From his Castle Street mansion he looked across to the city of his imagination, and had he lived to see the beginning of the twentieth century, he might have gone farther afield. The city improvements of a large and important provincial centre could hardly have consoled his outraged spirit for the ruthless and needless destruction of priceless relics of the past in which he lived.

Edinburgh University, that is, the old University building, stands in a busy street, without any 'grounds' to remove it from the outside noise and distinguish it from the line of shops and shabby houses. The city of Edinburgh has always been celebrated for its unhappiness in the matter of selecting 'sites.' Why, therefore, the University was put in this unfortunate corner, need not be discussed. The Town Council, it seems, was responsible for the building, and the architect employed was Robert Adam. This edifice, according to a contemporary, was considered by many 'as the masterpiece of Mr. Adam,' but for lack of money the original plans were modified by W. H. Playfair. To make way for this great city improvement, one of the most characteristic 'bits' of old Edinburgh was cleared away. This was College Wynd, now known as Guthrie Street. The picturesque medieval lane, with its jutting balconies, battlemented roofs and charming old windows, had for

nearly two centuries been a kind of University, or College, 'Close,' practically reserved for the residence of the learned Regents or Professors from generation to generation. One of the houses at the top of the Wynd demolished on this occasion belonged to Mr. Walter Scott, W.S., who resided in it with his family. Here happened the greatest event in the history of Edinburgh, the birth of *our* Walter Scott, on the 15th of August 1771.

The locality was not even at that time considered quite a desirable one, but socially it was regarded as satisfactory, even for a family of gentle birth. The fact is that about this time certain new ideas regarding health and fresh air were beginning to excite attention among the inhabitants of the old city. The rate of infant mortality was frightfully high, and the doctors began to ascribe it to the closeness and damp of the nurseries. In the lofty old mansions these were frequently located, for obvious reasons of convenience, in the 'laigh rooms' or sunk floors below the level of the street. The time was ripe for a great change. Building had already been begun on the site of Princes Street and George Street. Plans for a New Town had been approved in 1761, the architect being Mr. James Craig, who was a nephew of Thomson the poet. The North Bridge, which was to connect the New Town with the Old, was finished in 1772. At the same time a more conservative policy led others to try to confine the desired improvement to the Old Town. Brown's Square, part of which still may be seen at the top of Chambers Street, was built, and this was for the time the exclusively fashionable quarter of the city. It was to Brown's Square, as we read in *Redgauntlet* (*Letter II.*), that the Fairfords removed, when, as Alan relates to his friend Darsie Latimer, 'the leaving his old apartments in the Luckenbooths was to him' (the elder Fairford) 'like divorcing the soul from the body; yet Dr. R—— did but hint that the better air of this new district was more favourable to my health, as I was then suffering under the

penalties of too rapid a growth, when he exchanged his old and beloved quarters, adjacent to the very Heart of Midlothian, for one of those new tenements [entire within themselves] which modern taste has so lately introduced.'

CHAPTER II

The Scotts in George Square—Walter's Lameness—Sandyknowe—Bath—Edinburgh—Changes in the City, 1763-1783—Migrations to the New Town—The Mound—New Manufactures and Trades—The first Umbrella.

To the good people of Edinburgh who had for many years the privilege of seeing Walter Scott daily in their streets, his robust and manly form must have emphasised his unfortunate lameness. It is a defect very painful to a man of bold and active spirit. But Scott had to bear with it all his life through. It began when he was an infant of eighteen months.

The touching little family tradition was often repeated to him afterwards, how one night he was racing about the room in an access of childish high spirits, refusing to go to bed. With difficulty he was caught at last and conveyed to his crib. Next morning he was found to be suffering from fever, and on the fourth day it was discovered that he had lost the use of the right leg. There appeared to be no dislocation or sprain; but the remedies devised by Dr. Rutherford and the other specialists from the University were of no avail. Walter was, in fact, doomed to be lame for life. He tells with a touch of melancholy humour how his parents in their anxiety eagerly made trial of every remedy offered by the sympathy of old friends or by the self-interest of empirics, and some of them were eccentric enough.

On Dr. Rutherford's advice, however, the very sensible plan was adopted of sending the child to the country, where, with perfect freedom for open air life, he might have the chance of all the benefit that might gradually be obtained from the natural exertion of his limbs.

He was sent immediately to his grandfather Scott's residence at Sandyknowe, and here, to use his own words, 'I, who in a city had probably been condemned to hopeless and helpless decrepitude, was now a healthy, high-spirited, and, my lameness apart, a sturdy child—*non sine diis animosus infans*.' This gratifying improvement was quite confirmed by the time he was four years of age, but his parents were only the more anxious in their efforts after a complete cure. At this time it was suggested to his father that the waters at Bath might have some effect on the child's lameness. He was sent to Bath, going first by sea to London. Here he was taken to see the Tower, Westminster Abbey, etc., of which he took with him an impression so strong, complete, and accurate, that, on visiting the same scenes twenty-five years afterwards, he found nothing to correct in the mental pictures which his powerful memory had so long retained. The residence at Bath had no effect on his lameness, but it was here he learned to read, partly at a dame school, and partly at his aunt's knee. 'But I never' (he says) 'acquired a just pronunciation, nor could I read with much propriety.' After a year of Bath, he returned to Edinburgh. A short interval at home was followed by another season at beloved Sandyknowe. Sea-bathing was next recommended for his lameness, and after a few weeks of this at Prestonpans, he was finally taken home to George Square, which continued to be his dwelling-place till his marriage in 1797. He was, of course, too young to appreciate the changes which were going on in the city, but in later years no one realised more keenly than he the revolutionary effects, both concrete and social, of those same years of his childhood. His unfortunate

lameness no doubt debarred Walter from seeing as much of the great extensions then proceeding as his brothers may have examined, but they must have been the one unfailing and constant topic of conversation everywhere, and were no doubt of special interest to one who could not even then have been unduly impressed by the vast cost and supposed magnificence of all that was new. The description just given of the city as contained within the old 'Flodden Wall' will help the reader at once to understand how the Edinburgh of Scott's single life differed from the Modern City, and how very considerable were the additions already to the ancient town. Some curious facts have been preserved in an old annual publication called the *Picture of Edinburgh*. In it we find a quaint 'comparative view' of Edinburgh as it was in 1763 and Edinburgh in the year 1783. In this period there were added on the south side Nicolson Street and Square, most of Bristo Street, George Square, and other streets: all of which took the place of gardens and open fields. The New Town had risen as if by magic. Progressive shopkeepers and bailies were already boasting of George Street as the most splendid street in Europe,[1] and Princes Street as the most elegant terrace. It was computed that over two millions sterling had been spent in these extensions. Wholesale migrations followed from the Old Town to the New, and many grand old mansions passed into unexpected hands. Oliver Cromwell's former lodgings were occupied by a mere sheriff-clerk. The house that at the time of the Union was inhabited by the Duke of Douglas fell to a wheelwright, and Lord President Craigie's mansion was transferred to a seller of old furniture. So great, in fact, was the change of habits and ideas, that we are told a common chairman, or porter, who had got into the apartments once used by Lord Drummore, complained of defective accommodation! The year 1783 also saw a new passage opened between the Old Town and the New. This was effected by

means of the huge heap of earth collected from the excavations made in digging so many foundations. By agreement with the contractors, all this earth was conveyed, free of charge, to the space between the foot of Hanover Street and the Old Town ridge. It is also stated that in this period the number of four-wheeled carriages in Edinburgh increased from 396 to 1268. Coach-building became one of the most important industries, if it be true that about 1783 an Edinburgh coachmaker received an order from Paris for one thousand coaches. It seems that before this time the operation of trade was exactly the reverse, Paris being reputed to make carriages superior to any in Europe. Other trades, which had been wholly unknown to the old city, now sprang into existence, indicating great change of manners as well as increase of wealth. Amongst those, drapers' shops became the most numerous in the city, and hairdressers vastly increased in number. Oyster-cellars also became numerous, and are noted as being frequented by people of fashion, who sometimes held their private dancing-parties in these places. It was now that umbrellas came into general use. Before 1763, it would appear that an umbrella was regarded in Edinburgh as a rare phenomenon.

[1] But to Scott, of course, the old High Street always was 'the principal street of Edinburgh.' It is to it he refers with pride in *The Abbot* as being 'then, as now, the most spacious street in Europe.'

CHAPTER III

School-days—The High School—Old Methods of Teaching—Luke Fraser—Tone of the School—Brutal Masters—Schoolboy's Dress—Boyish Ideas—Scott's Pride of Birth—The 'Harden' Family—'Beardie'—The Dryburgh Lands.

It was in 1778 that Walter Scott began to attend the Grammar School, or High School of Edinburgh. The High School building stood at the foot of Infirmary Street, in what was called the High School Wynd. The name 'High School Yards' is still attached to a neighbouring lane. The 'Yards' would be the boys' playground. Like other Grammar Schools in Scotland the High School was managed by the Town Council,[1] by whose authority, at a date so early as 1519, the citizens were charged to send their boys to it and to no other school. In 1777 the Town Council erected a new schoolhouse, as the rapidly increasing numbers required more extensive accommodation. It seems that in the eighteenth century the reputation of the school stood very high, and, of course, it had then no rivals in the city. The number of pupils about this time is stated to have been six hundred. The teaching staff consisted of the Rector and four masters.

[1] The school was transferred in 1873 to the School Board of Edinburgh.

The classes were, of course, very large, and the method of teaching was necessarily very simple. Short tasks in Latin, set purely for repetition, were rhymed over by each boy in the same words and the same way. One Henry Cockburn, who joined the school in 1787, says it drove him stupid. 'Oh! the bodily and mental wearisomeness of sitting six hours a day, staring idly at a page, without motion and without thought.' He says the school was notorious for its severity and riotousness, and recalls his feelings of trembling and dizziness when he sat down amidst above a hundred new faces. His master he characterises as being as bad a schoolmaster as it is possible to fancy. Walter Scott was more fortunate. His class was taught by

Mr. Luke Fraser, a good Latin scholar and a very worthy man. Walter seems to have enjoyed his school life. In Mr. Fraser's class he was not distinguished as one of the brilliant pupils. To the latter, especially the dux, James Buchan, he pays a warm tribute, and of himself he says: 'I glanced like a meteor from one end of the class to the other, and commonly disgusted my kind master as much by negligence and frivolity as I occasionally pleased him by flashes of intellect and talent. Among my companions, my good-nature and a flow of ready imagination rendered me very popular.... In the winter play-hours, when hard exercise was impossible, my tales used to assemble an admiring audience round Lucky Brown's fireside, and happy was he that could sit next to the inexhaustible narrator. I was also, though often negligent of my own task, always ready to assist my friends; and hence I had a little party of staunch adherents and partisans, stout of hand and heart, though somewhat dull of head—the very tools for raising a hero to eminence. So, on the whole, I made a brighter figure in the yards than in the class.' In speaking of his education, it must be remembered that he always underrates his attainments. There is no doubt that he had a gift for acquiring languages and was a remarkable pupil in every class. But because he was a little behind the others at the start, he seems to have fancied himself somewhat in that position all through. As to the manners and morals of the boys, Scott has left no criticism. Of their outside fun and adventures he has given a lively sketch in the episode of Green-Breeks in the third Appendix to the General Preface of his novels. We learn from Lord Cockburn that in his time and in his opinion, the tone of the school was vulgar and harsh. Among the boys (he states) coarseness of language and manners was the only fashion. An English boy was so rare, that his language was openly laughed at. No lady could be seen within the walls. Nothing evidently civilised was safe. Two of the masters, in

particular, were so savage, that any master doing now what they did every hour, would certainly be transported.

The same writer mentions that the boys had to be at school during summer at seven in the morning. Here is his interesting description of his dress as a schoolboy: 'I often think I see myself in my usual High School apparel, which was the common dress of other boys. It consisted of a round black hat; a shirt fastened at the neck by a black ribbon, and except on dress days, unruffled; a cloth waistcoat, rather large, with two rows of buttons and of button-holes, so that it could be buttoned on either side, which, when one side got dirty, was convenient; a single-breasted jacket, which in due time got a tail and became a coat; brown corduroy breeks, tied at the knees by a showy knot of brown cotton tape; worsted stockings in winter, blue cotton stockings in summer, and white cotton for dress; clumsy shoes made to be used on either foot, and each requiring to be used on alternate feet daily; brass or copper buckles. The coat and waistcoat were always of glaring colours, such as bright blue, grass green, and scarlet. I remember well the pride with which I was once rigged out in a scarlet waistcoat and a bright green coat. No such machinery as what are now termed braces or suspenders had then been imagined.'

There was plenty of pride among the High School boys. The roughness of manners and coarseness of speech which they shared with the lower orders never impaired the strong feeling of caste which they imbibed at home. Among the baser spirits it was, of course, selfish and conceited, but it had a better and healthier effect on the finer natures of the few. Even as a boy, Walter Scott, as we have seen, lived much in an ideal world of his own creation. It was largely peopled with the romantic figures of the adventurous past, and the boy must have delighted greatly in the knowledge that many of his heroes of the past were ancestors of his own. Pride of birth

was certainly one of his earliest ideals, and it continued to influence him, in a manly and noble spirit, all through life. It colours, as we know, every page of his romantic writings, both verse and prose. It is united always with the ideas of truth, honour, and courage, and strongly allied with a beautiful sentiment of chivalry and grace.

Though he never boasted of his own lineage—vulgarity being alien to his nature—he was always conscious of it, and always lived up to the ideal standard it created in his mind. His pedigree was one in which a romantic antiquary could not but rejoice. On the mother's side he was a lineal descendant of the Swintons of that ilk, a family which (as he records) produced many distinguished warriors in the Middle Ages, and which, for antiquity and honourable alliances, may rank with any in Britain. His father's family, the Scotts of Harden, were still more after his poetical heart. 'Wat of Harden, who came with speed,' was a typical Border chief, the sturdy hero of many a minstrel's lay. For among these rude Borderers not only had every dale its battle, but every river its song. And this attachment to music and song, together with the 'rude species of chivalry in constant use' among the Border clans, raises them to a level amply sufficient for romance. The grandson of Wat of Harden was another Walter Scott, who, not being his father's eldest son, was employed as Factor on the estate of Makerston. It is strange to think of Wat of Harden's grandson in a quasi-legal post and noted as a gentleman of literary leanings. Such he was, however, and a favourite friend of that great physician and elegant Latinist, Archibald Pitcairn. The two used to meet together in Edinburgh, and talked treasonable sentences in majestic Latin. This Walter, indeed, had proved his Jacobite loyalty in a manner worthy of his name. He had fought, 'with conquering Graham,' at Killiecrankie, and now testified his sorrow for the

exile of the Stuarts by letting his beard grow, untouched by razor or scissors, as a symbol of mourning, and a visible protest.

This eccentricity gained for him the nickname of 'Beardie,' and it would have been well (says Sir Walter) that his zeal had stopped there. But he took arms, and intrigued in their cause, until he lost all he had in the world. His second son, Robert, was intended for the sea, but a shipwreck, which unfortunately occurred in his first voyage, gave him such a dislike for the salt water, that he refused to go back for a second trial. His father, displeased with his son's perversity, now left him to his own resources. It was the best thing that could have happened, for the youth had grit and character, as his grandson's amusing account of his proceedings sufficiently shows. 'He turned Whig upon the spot, and fairly abjured his father's politics and his learned poverty. His chief and relative, Mr. Scott of Harden, gave him a lease of the farm of Sandyknowe, comprehending the rocks in the centre of which Smailholm or Sandyknowe Tower is situated. He took for his shepherd an old man called Hogg, who willingly lent him, out of respect to his family, his whole savings, about thirty pounds, to stock the new farm. With this sum, which it seems was at that time sufficient for the purpose, the master and the servant set off to purchase a stock of sheep at Whitsun-Truste, a fair held on a hill near Wooler in Northumberland. The old shepherd went carefully from drove to drove, till he found a *hirsell* likely to answer their purpose, and then returned to tell his master to come and conclude the bargain. But what was his surprise to see him galloping a mettled hunter about the racecourse, and to find he had expended the whole stock in this extraordinary purchase!—Moses' bargain of green spectacles did not strike more dismay into the Vicar of Wakefield's family, than my grandfather's rashness into the poor old shepherd. The thing, however, was irretrievable, and they returned without the sheep. In the course of a few

days, however, my grandfather, who was one of the best horsemen of his time, attended John Scott of Harden's hounds on this same horse, and displayed him to such advantage that he sold him for double the original price. The farm was now stocked in earnest, and the rest of my grandfather's career was that of successful industry.'

The wife of this Robert Scott was Barbara Haliburton, daughter of a Berwickshire laird, whose brother was proprietor of part of the lands of Dryburgh, including the ruins of Dryburgh Abbey. Thus this rare old-world relic, unequalled in its beauty and its hallowed associations, was likely to fall into the hands of the father of Sir Walter Scott. It happened, however, that the old laird, Robert Haliburton, had a weakness for dabbling in trade, and so came to ruin himself. His Dryburgh possessions were sold, and passed for ever out of the hands of the novelist's relations. Scott seems to have felt considerable regret over this incident in his family history. There is a touching note of pathos in the remarks with which he sums it up in his Autobiography: 'And thus we have nothing left of Dryburgh, although my father's maternal inheritance, but the right of stretching our bones where mine may perhaps be laid ere any eye but my own glances over these pages.'

CHAPTER IV

Dr. Adam, Rector of High School—Walter Scott's first Lines—Influence of Adam—Persecution by Nicol—Death-scene of the Rector—Home Life in George Square—Walter Scott the 'Writer'—Anecdotes of his Character.

Very special honour, on the part of all lovers of Scott, is due to Alexander Adam, the Rector of the High School. Adam, whose text-book of *Roman Antiquities* continued for over a century to be used in the Scottish Grammar Schools and Universities, was not only a scholar, but a man of literary tastes and sympathies. He was ever ready to detect and encourage any sign of talent or character among the boys. It was his custom to encourage them to attempt poetical versions of Horace and Vergil. These were purely voluntary efforts, never set as tasks. Of course, such attempts had a strong attraction for Scott. Though he might not understand the Latin so well as some of his comrades, the Rector himself declared that *Gualterus Scott* was behind few in following and enjoying the author's meaning. His versions therefore often gained discriminating praise, and Adam ever after took much notice of the boy. It is a pleasure to find in the pages of Lockhart one of these juvenile efforts. No wonder that Adam had faith in the boy of twelve who could turn Vergil in language like this:

'In awful ruins Ætna thunders nigh,
And sends in pitchy whirlwinds to the sky
Black clouds of smoke, which, still as they aspire,
From their dark sides there bursts the glowing fire;
At other times huge balls of fire are toss'd,
That lick the stars, and in the smoke are lost;
Sometimes the mount, with vast convulsions torn,
Emits huge rocks, which instantly are borne
With loud explosions to the starry skies,
The stones made liquid as the huge mass flies,
Then back again with greater weight recoils,
While Ætna thundering from the bottom boils.'

This little piece, it seems, written in a weak, boyish scrawl, within pencilled marks still visible, had been carefully preserved by his mother; it was folded up in a cover inscribed by the old lady—'*My Walter's first lines, 1782.*'

Scott does full justice to the excellent influence of Dr. Adam on his character. 'I saw I was expected to do well, and I was piqued in honour to vindicate my master's favourable opinion. I climbed, therefore, to the first form; and, though I never made a first-rate Latinist, my school-fellows, and, what was of more consequence, I myself, considered that I had a character for learning to maintain. Dr. Adam, to whom I owed so much, never failed to remind me of my obligations when I had made some figure in the literary world.... He remembered the fate of every boy at his school during the fifty years he had superintended it, and always traced their success or misfortunes entirely to their attention or negligence when under his care. His "noisy mansion," which to others would have been a melancholy bedlam, was the pride of his heart; and the only fatigues he felt, amidst din and tumult, and the necessity of reading themes, hearing lessons, and maintaining some degree of order at the same time, were relieved by comparing himself to Cæsar, who could dictate to three secretaries at once:—so ready is vanity to lighten the labours of duty.' Another great man who testified the same kindly feeling towards Adam was Francis Jeffrey, who passed through his hands a few years later than Scott.

An incident in Adam's career must now be mentioned which throws a strong light on a rather seamy side of Edinburgh character at the time. Very naturally, though he had no sympathy or even acquaintance with the party politics then current, the Rector would occasionally make comparisons between the French Revolution and the events of ancient history. This led to some hostility on the part of the pupils. Then the parents took offence, and

the Town Council, as patrons of the school, persecuted the good man by encouraging Nicol, one of the masters, to insult and defy him. This is the 'Willie' who was a friend of Burns, and who sorely tried the poet's patience during their tour in the Highlands. He seems to have been a good classical scholar, an 'admirable convivial humorist,' but in other respects a downright blackguard. The savage brute, taking advantage of his influence with the Council, went so far as actually to attempt the life of his chief, waylaying and attacking the poor man after dark. Nicol is one of the two masters whom Lord Cockburn mentions as the curse of the school, 'whose atrocities young men cannot be made to believe, but old men cannot forget.'

We pass from the High School and its memories with the beautiful and touching picture drawn by Scott of the death of his old master and friend: 'This (unpleasant incident) passed away with other heats of the period, and the Doctor continued his labours till about a year since, when he was struck with palsy while teaching his class. He survived a few days, but becoming delirious before his dissolution, conceived he was still in school, and after some expressions of applause or censure, he said, "But it grows dark—the boys may dismiss,"—and instantly expired.'

The home life during these school-days was very strict, but tempered by the natural outbreaks of youthful vitality. In later years it is clear that Walter regretted two things—the unnecessary gloom of Sunday at home, and the want of sympathy on the part of his father—more correctly the failure of giving expression to the feelings which were certainly there, and very deep and strong. But all the same he loved his father, and recognised to the full his splendid character. Walter Scott, the eldest son of Robert of Sandyknowe, was born in 1729. He was bred to the law, and in due time became a Writer to the Signet. Though not perhaps well fitted by nature for such a profession, he was a hard, conscientious worker, and took a special

interest 'in analysing the abstruse feudal doctrines connected with conveyancing.' In fact, his high principles and earnest attachment to religion made it impossible for him to devote his whole mind to mere bargain-driving, whether for himself or others. Anything like sharpness in employing the necessities, wants, and follies of men for his own pecuniary advantage was entirely foreign to his nature. Of fighting the knaves and dastards with the petty weapons of an ignoble warfare he was as little capable as ever was his magnanimous son. In all such affairs, in that son's opinion, 'Uncle Toby himself could not have conducted himself with more simplicity than my father.' No quainter proof of this admirable simplicity could be imagined than the fact that he made a personal matter of the honour of his clients, and often embarrassed by his zeal for their credit persons whose sense of honour and duty was anything but keen. However, in those days character and honesty were still appreciated by men who did not imitate them. Mr. Scott rose to eminence in his profession, and enjoyed at one time an extensive practice. Somewhat formal in manner and a rigid Calvinist in religion, he had many little peculiarities of the rural rather than the city Scot. Thus, though very abstemious in his habits, he was fond of sociability and grew very merry over his sober glass of wine. Moderate in politics, he had a natural leaning to constitutional principles, and was jealous of modern encroachments on the royal prerogative. His weakness for established forms made him a stickler for points of etiquette at marriages, christenings, and funerals. The sweetness of his temper, the dignity and purity of his life, and the charm of his distinguished personality inspired those who knew him with singular affection for this Scottish Thomas Newcome. The best of all this might stand for the picture of the younger Walter Scott, but it is interesting to know that in features there was no resemblance between the father and the son. By a striking but not

unusual freak of heredity, the latter's face was an almost perfect replica of that of his ancestor 'Beardie.'

CHAPTER V

At Edinburgh University—Holidays at Kelso—Home—First University Class—Professor Hill—Professor Dalzell—The 'Greek Blockhead'—Anecdotes of Dalzell—His History of Edinburgh University.

Walter Scott was a boy of thirteen when he entered the University. After leaving the High School he had been sent to spend half a year with his aunt, Miss Janet Scott, at Kelso. Here, while keeping up his Latin with a tutor, he was free to indulge in miscellaneous reading. Amongst other treasures he came upon Percy's *Reliques*, about which he declared he had never read a book half so frequently or with half the enthusiasm. It confirmed him in the love for legendary lore, which had begun in infancy. To this period also he traces the awaking of his feeling for the beauties of nature, 'more especially when combined with ancient ruins.' It became, as he says, an insatiable passion, and indeed goes far to account for his eager pursuit of territory at Abbotsford. Returning to Edinburgh in October, he joined the class of Humanity, under Mr. Hill, and the first Greek class, under Mr. Dalzell. Unfortunately for his Latin, Hill's class seems for the time to have been the rowdiest in the University. No work was done in it. Lord Cockburn, speaking of 1793, bitterly complains that the class was a scene of unchecked idleness and disrespectful mirth. Scott says that Hill was beloved by his students, but that he held the reins of discipline very loosely. In fact, the boy, as might have been expected of his lively nature, took his part in

the fun and forgot much of the Latin he had learned under Adam and Whale (the Selkirk tutor). But his loss in the Greek class was greater still. The first class, in those days, was engaged on the mere elements, but Walter had not even the smattering which was necessary to keep up with this humble attempt. He therefore resolved not to learn Greek at all, and professed a contempt for the language, as a method of braving things out. He was known in the class as the *Greek Blockhead*, and at the end of the session he wrote an essay to prove the inferiority of Homer to Ariosto. This whimsical idea he defended with such force as to rouse Professor Dalzell's indignation, but while reproving the foolish presumption of the young critic, he honestly expressed his surprise at the quantity of out-of-the-way knowledge which the boy had displayed. It was like Samuel Johnson quoting Macrobius to the Oxford dons. But Dalzell, instead of complimenting and flattering the genius, denounced him, saying that dunce he was and dunce he would remain. The good judge, however, handsomely reversed and recalled this verdict in after-years 'over a bottle of Burgundy, at our literary club at Fortune's, of which he was a distinguished member.' Cockburn, like Scott, entered Dalzell's class without any knowledge of Greek. He has left a charming picture of the Professor, with whose ways and ideas he seems to have been in full sympathy. 'At the mere teaching of a language to boys, he was ineffective. How is it possible for the elements, including the very letters, of a language to be taught to one hundred boys at once, by a single lecturing professor? To the lads who, like me, to whom the very alphabet was new, required positive *teaching*, the class was utterly useless. Nevertheless, though not a good schoolmaster, it is a duty, and delightful to record Dalzell's value as a general exciter of boys' minds. Dugald Stewart alone excepted, he did me more good than all the other instructors I had. Mild, affectionate, simple, an absolute enthusiast about learning—

particularly classical, and especially Greek—with an innocence of soul and of manner which imparted an air of honest kindness to whatever he said or did, and a slow, soft, formal voice, he was a great favourite with all boys, and with all good men. Never was a voyager, out in quest of new islands, more delighted in finding one, than he was in discovering any good quality in any humble youth.... He could never make us actively laborious. But when we sat passive and listened to him, he inspired us with a vague but sincere ambition of literature, and with delicious dreams of virtue and poetry. He must have been a hard boy whom these discourses, spoken by Dalzell's low, soft, artless voice, did not melt.'

Dalzell was clerk to the General Assembly, and was long one of the curiosities of that strange place, for which Cockburn quaintly says he was too innocent. The last time he saw Dalzell was just before his death, of the near approach of which the old man was quite aware. He was busy amusing his children by trying to discharge a twopenny cannon; but his alarm and awkwardness only terrified the little ones. At last he got behind a washing-tub, and then, fastening the match to the end of a long stick, set the piece of ordnance off gloriously. He seems to have held the opinion strongly that the seventeenth century was responsible for the defects of classical learning in Scotland. Sydney Smith declared that one dark night he had overheard the Professor muttering to himself on the street, 'If it had not been for that confounded Solemn League and Covenant, we would have made as good longs and shorts as they' (the English Episcopalians).

Professor Dalzell compiled a History of the University of Edinburgh from its foundation to his own time. His own election to the Greek chair took place in 1772, and he was at the time acting as tutor to the sons of the Earl of Lauderdale. From 1785 he appears to have acted as joint Secretary

and Librarian, thus obtaining access to all the materials necessary for his elaborate History.

CHAPTER VI

Scott's University Studies—The old Latin Chronicles—Dugald Stewart, His Success described—His elegant Essays—Popular Subjects—Picture of Stewart by Lord Cockburn—His Lectures—Anecdote of Macvey Napier—Meets Robert Burns—The Poet's 'Pocket Milton.'

Certainly Edinburgh University cannot claim to have contributed much, if anything at all, to the training of the future poet, novelist, and man of letters. In his second session he fell ill, and was sent again to Kelso to recruit. He had now lost all taste for the Latin classics, and his reading at this time was almost entirely without aim or system, except that his taste led him to make a special point of history. He read George Buchanan's Latin History of Scotland, Matthew Paris, and various monkish chronicles in Latin, but Greek he now gave up for ever. He had forgotten the very letters of the Greek alphabet; a loss, as he says, never to be repaired, considering what that language is, and who they were who employed it in their compositions. His knowledge of mathematics was, by his own account, never more than a superficial smattering. He seems, however, to have won some distinction in the study of ethics, having been one of the students selected in this class for the distinction of reading an essay before the Principal. The great ornament of the Arts Faculty was at this time Dugald Stewart, of whom some account must now be given as representing in its best and typical aspects the characteristic Edinburgh culture of the period. Stewart had succeeded his father as Professor of Mathematics in 1775, and

had obtained the chair of Moral Philosophy in 1785 by exchanging with a colleague. He occupied this chair for twenty-five years, during which time, by his lectures and writings, he gained the very highest distinction, not only for the importance of his philosophical speculations, but on account of the high literary merits of his style. There is no doubt that his reputation was greatly exaggerated, for his technical work was really of no value; but in his own time he maintained a foremost place, and his celebrity shed honour alike on his University and his native country. In fact, Dugald Stewart is the most remarkable example we know of the great possibilities that lie open to men of ordinary or even meagre capacities, who know how to make effective use of the commonplace. His merits were such as may belong to any man: he mastered the details of his subject with thorough care, he read much and drew upon literature for illustrative quotations, he supported moral theories by an elaborate sentimental rhetoric, he was most careful in his personal conduct, and, above all, he studiously maintained great formal dignity of both speech and manners. In short, he cultivated all the prudential and external methods of success, and he obtained it full and overflowing. He might have reversed the lines of Cato, and said:

"Tis not in mortals to deserve success:

But I'll do more, my subjects, I'll command it.'

In his college lectures his method was to expatiate on the popular aspects of moral themes, studiously avoiding repulsive technicalities and brain-taxing discussions. Thus, by judiciously limiting his topics to those in which it was possible to exercise the embellishments of rhetoric, he succeeded in his aim of always preserving the appearance of dignity and greatness. He never deviated from the great style in language or manner, and it is not surprising

that his matter temporarily passed for great. The man who is never seen other than faultlessly attired in the height of fashion is bound to be considered a well-to-do gentleman. Walter Scott, however, does not seem to have been carried away by the prevailing current of enthusiasm. He merely mentions that he was further instructed in Moral Philosophy by Mr. Dugald Stewart, whose striking and impressive eloquence riveted the attention even of the most volatile students.

To Lord Cockburn's essentially different nature Stewart was the ideal of academic greatness, the correctness of Stewart's taste striking him with a certain awe. Stewart's elegant essays, 'embellished by the happiest introduction of exquisite quotations,' on such subjects as the obligations of patriotism and affection, the cultivation and the value of taste, the charms of literature and science, etc., appeared to him not only fascinating, which they were, but always great, which certainly they were not.

Lord Cockburn describes Dugald Stewart as 'about the middle size, weakly limbed, and with an appearance of feebleness which gave an air of delicacy to his gait and structure. His forehead was large and bald, his eyebrows bushy, his eyes grey, and intelligent, and capable of conveying any emotion, from indignation to pity, from serene sense to hearty humour: in which they were powerfully aided by his lips, which, though rather large perhaps, were flexible and expressive. The voice was singularly pleasing; and, as he managed it, a slight burr only made its tones softer. His ear, both for music and for speech, was exquisite; and he was the finest reader I have ever heard. His gesture was simple and elegant, though not free from a tinge of professional formality; and his whole manner that of an academical gentleman....

'He lectured, standing, from notes which, with their successive additions, must, I suppose, at last have been nearly as full as his spoken

words. His lecturing manner was professorial, but gentlemanlike; calm and expository, but rising into greatness, or softening into tenderness, whenever his subject required it. A slight asthmatic tendency made him often clear his throat; and such was my admiration of the whole exhibition, that Macvey Napier told him, not long ago, that I had said there was eloquence in his very spitting. "Then," said he, "I am glad there was at least one thing in which I had no competitor...." To me his lectures were like the opening of the heavens. I felt that I had a soul. His noble views, unfolded in glorious sentences, elevated me into a higher world. I was as much excited and charmed as any man of cultivated senses would be, who, after being ignorant of their existence, was admitted to all the glories of Milton, Cicero, and Shakespeare. They changed my whole nature. In short, Dugald Stewart was one of the greatest of didactic orators. Had he lived in ancient time, his memory would have descended to us as that of one of the finest of the old eloquent sages. But his lot was better cast. Flourishing in an age which requires all the dignity of morals to counteract the tendencies of physical pursuits and political convulsion, he has exalted the character of his country and his generation. No intelligent pupil of his ever ceased to respect philosophy or was ever false to his principles, without feeling the crime aggravated by the recollection of the morality that Stewart had taught him.'

This last tribute to Stewart is a very fine idea. It recalls Persius' noble line:

'Virtutem videant, intabescantque relictæ.'

Stewart had the great honour and felicity of meeting Burns on his first visit to Edinburgh in 1786. A more singularly contrasted pair could hardly have been brought together from any corners of the earth. Burns looked up to the

celebrated professor with genuine admiration, for rhetoric was the great poet's besetting weakness. He speaks of Stewart personally always with respect and esteem, but the stateliness of the patricians in Edinburgh almost disgusted him with life. He was obliged to buy a pocket Milton, so that he might be able, whenever he recalled it, to study the sentiments of courage, independence, and noble defiance, 'in that great personage, SATAN,' as an antidote to the poisoned feeling of disgust.

CHAPTER VII

Old Edinburgh Society—Manners of the older Generation—St. Cecilia's Hall—Buccleuch Place Rooms—Rules of the Assemblies—Drinking Customs—Recollections of Lord Cockburn.

The great transformation process of Edinburgh life and society was a striking feature of the years during which Walter Scott grew from boyhood to manhood. The rise of the New Town, with the consequent rapid migration of the much greater part of the well-to-do population, was naturally the most active factor in the change. There was a general alteration of habits. Families changed their style of living. Old arrangements, necessitated by the lofty old houses, disappeared. Old peculiarities, which gave character and Scottish individuality to the city, were obliterated as if by magic. As might be expected, such sweeping changes were disliked and denounced by many who looked upon the whole movement as a vulgarising of the old gentilities. The social habits of the older generation were a strange mixture of coarseness and extreme decorum, based upon artificial rules. The latter side is seen in the delightful sketches which Lord Cockburn has left us of the old concert-rooms and

assembly-rooms which were maintained by the fashionable class for their own exclusive use.

'Saint Cecilia's Hall was the only public resort of the musical, and besides being our most selectly fashionable place of amusement, was the best and the most beautiful concert-room I have ever yet seen. And there have I myself seen most of our literary and fashionable gentlemen, predominating with their side curls and frills, and ruffles, and silver buckles; and our stately matrons stiffened in hoops and gorgeous satin; and our beauties with high-heeled shoes, powdered and pomatumed hair, and lofty and composite head-dresses. All this was in the Cowgate! the last retreat nowadays of destitution and disease. The building still stands, though raised and changed, and is looked down upon from South Bridge, over the eastern side of the Cowgate Arch. When I last saw it, it seemed to be partly an old clothesman's shop, and partly a brazier's.[1] The abolition of this Cecilian temple, and the necessity of finding accommodation where they could, and of depending for patronage on the common boisterous public, of course, extinguished the delicacies of the old artificial parterre.

[1] It is now part of the bookbinding premises of George Cooper and Co., Niddry Street. The Hall itself is now used as a store for paper.

'Our balls, and their manners, fared no better. The ancient dancing establishments in the Bow and the Assembly Close I know nothing about. Everything of the kind was meant to be annihilated by the erection (about 1784) of the handsome apartments in George Street. Yet even against these, the new part of the old town made a gallant struggle, and in my youth the whole fashionable dancing, as indeed the fashionable everything, clung to George Square; where (in Buccleuch Place, close by the south-eastern

corner of the square) most beautiful rooms were erected, which, for several years, threw the New Town piece of presumption entirely into the shade. And here were the last remains of the ballroom discipline of the preceding age. Martinet dowagers and venerable beaux acted as masters and mistresses of ceremonies, and made all the preliminary arrangements. No couple could dance unless each party was provided with a ticket prescribing the precise place in the precise dance. If there was no ticket, the gentleman, or the lady, was dealt with as an intruder, and turned out of the dance. If the ticket had marked upon it—say, for a country dance, the figures 3, 5, this meant that the holder was to place himself in the third dance, and fifth from the top; and if he was anywhere else, he was set right or excluded. And the partner's tickets must correspond. Woe to the poor girl who, with ticket 2, 7, was found opposite a youth marked 5, 9! It was flirting without a licence, and looked very ill, and would probably be reported by the ticket director of that dance to the mother. Of course, parties, or parents, who wished to secure dancing for themselves or those they had charge of, provided themselves with correct and corresponding vouchers before the ball day arrived. This could only be accomplished through a director: and the election of a pope sometimes requires less jobbing. When parties chose to take their chance, they might do so; but still, though only obtained in the room, the written permission was necessary; and such a thing as a compact to dance, by a couple, without official authority, would have been an outrage that could scarcely be contemplated. Tea was sipped in side-rooms, and he was a careless beau who did not present his partner with an orange at the end of each dance; and the orange and the tea, like everything else, were under exact and positive regulations. All this disappeared, and the very rooms were obliterated, as soon as the lately raised community secured its inevitable supremacy to the New Town. The aristocracy of a few

predominating individuals and families came to an end; and the unreasonable old had nothing for it but to sigh over the recollection of the select and elegant parties of their youth, where indiscriminate public right was rejected, and its coarseness awed.

'Yet in some respects there was far more coarseness in the formal age than in the free one. Two vices especially, which have been long banished from all respectable society, were very prevalent, if not universal, among the whole upper ranks—swearing and drunkenness. Nothing was more common than for gentlemen who had dined with ladies, and meant to rejoin them, to get drunk. To get drunk in a tavern seemed to be considered as a natural, if not an intended consequence of going to one. Swearing was thought the right, and the mark, of a gentleman. And, tried by this test, nobody, who had not seen them, could now be made to believe how many gentlemen there were. Not that people were worse tempered then than now. They were only coarser in their manners, and had got into a bad style of admonition and dissent. And the evil provoked its own continuance, because nobody who was blamed cared for the censure, or understood that it was serious, unless it was clothed in execration; and any intensity even of kindness or of logic, that was not embodied in solid commination, evaporated, and was supposed to have been meant to evaporate, in the very uttering. The naval chaplain justified his cursing the sailors, because it made them listen to him; and Braxfield apologised to a lady whom he damned at whist for bad play, by declaring that he had mistaken her for his wife. This odious practice was applied with particular offensiveness by those in authority towards their inferiors. In the army it was universal by officers towards soldiers; and far more frequent than is now credible by masters towards servants.'

CHAPTER VIII

Description of St. Cecilia's Hall—Concerts—Old-fashioned Contempt for 'Stars'—Former Assembly Rooms—The George Street Rooms—Scott and the old Social Ways—Simplicity and Friendliness—His Picture of the Beginnings of Fashion in the New Town.

A few additional details can still be given of the places thus described by Lord Cockburn. St. Cecilia's Hall was seated, in the manner of an amphitheatre, for five hundred persons, with a large open space in the centre. The orchestra was at the upper end of the room, where there was also 'an elegant organ.' It was managed by a great society of musical gentlemen, a society which, it seems, originated from a weekly club-meeting, as was then usual, in a tavern. The landlord, Steil, was extremely fond of music, and was regarded as an excellent singer of Scottish songs. The concerts given in St. Cecilia's Hall, besides their fashionable aspect, seem to have been of high musical merit. One writing about the beginning of last century laments most feelingly its neglect and decay. He describes the great doings of its palmy days, when the best compositions of the old school took the lead in the plans of the concerts; when the sublime compositions of Handel, and the enchanting strains of Corelli, were ably conducted under the direction of a Pinto, a Puppo, a Penducci, and a Kelly. He declares that genuine taste for music has decayed in Edinburgh; that the rage of the present day is only to be captivated by those intricate capriccios in execution which excite no passion but surprise; and that the sweet sounds which enchanted the ears of our forefathers are now laid aside for those which amaze rather than delight. It is true (he continues) we may be *occasionally* honoured with a visit by a Braham or a Catalani; but, like

birds of passage, scarcely have they *feathered their nests*, when they wing their way to milder climes. How different and how disagreeable, in fact, must modern arrangements have appeared to old-fashioned worthies. The 'stars' of the old time were paid only by results, that is, by benefit nights whose success was, of course, in proportion to the singer's merits.

The first Assembly Rooms were at the West Bow, opened in 1760. The Assemblies were removed to new rooms in the High Street (Assembly Close) some ten years later. They were weekly meetings for dancing and card-playing, kept up by a charge of five shillings for admission. At first the Assemblies were managed entirely by private individuals, but a change was made in 1746, when they were transferred to the charge of seven persons connected with the Royal Infirmary and the Charity Workhouse. A lady of fashion was always associated with this committee, to look after points of etiquette and decorum. The surplus funds were always given to the two institutions named. The George Street Rooms were erected to supply defects of accommodation and to shift the centre of fashion into the New Town. Sir Walter pictures the veterans of his generation as recollecting with a sigh the Old Assembly Rooms, or Dun's Rooms, or the George Street Rooms, when first opened, as a place of public amusement, where all persons, of rank and fashion entitling them to frequent such places, met upon easy and upon equal terms, and without any attempt at intrusion on the part of others; where the pretensions of every one were known and judged of by their birth and manners, and not by assumed airs of extravagance, or a lavish display of wealth. His conclusion was that, upon the whole, the society of the higher classes in Edinburgh was formerly select, the members better known to each other, and therefore more easy in intercourse than at a later day (say after the beginning of the nineteenth century). Evidently what charmed Scott was the family charm of the old

system, and the mild assertion of the aristocratic caste which was doomed to give way before the claims of mere wealth. The Scottish aristocracy were not rich. The old Edinburgh therefore suited at once their purses and their prejudices. The ladies were content to entertain their friends at tea. Then after some wine-drinking by the gentlemen, the carpets would be lifted, and a homely and happy evening spent in dancing. Thus there was abundance of sociability at little expense; and friendships were warmer because of this admission to the intimacies of the ordinary daily life. Families met more frequently, when the only preparation necessary was 'a social and domestic meal of plain cookery, with a glass of good port-wine or claret.' Scott is never severe on the drinking customs, of which the purely social aspect appealed so strongly to his warm heart and kindly nature. He admits that the claret was sometimes allowed to circulate too often and too long, but the tea-table and the card-party claimed their rights sooner or later, and perhaps the young ladies might thank the claret for the frequent proposal of rolling aside the carpet and dancing to the music of the pianoforte.

Contrast with these happy and home-like revels the beginnings of the modern system as pictured by Scott. 'Certainly he who has witnessed and partaken of pleasures attainable on such easy terms, may be allowed to murmur at modern parties, where, with much more formality and more expense, the same cheerful results are not equally secured. When, after a month's invitation, he meets a large party of twenty or thirty people, probably little known to him and to each other, who are entertained with French cookery and a variety of expensive wines offered in succession, while circumstances often betray that the landlord is making an effort beyond his usual habits; when the company protract a dull effort at conversation under the reserve imposed by their being strangers to each other, and reunite with the ladies, sober enough, it is true, but dull enough

also, to drink cold coffee, he expects at least to finish the evening with dance and song, or the lively talk around the fire, or the comfortable, old-fashioned rubber. But these are no part of modern manners. No sooner is the dinner-party ended, than each guest sets forth on a nocturnal cruise from one crowded party to another; and ends by elbowing, it may be, in King Street, about three o'clock in the morning, the very same folks whom he elbowed at ten o'clock at night in Charlotte Square, and who, like him, have spent the whole night in the streets, and in going in or out of lighted apartments.'

CHAPTER IX

Manners and Social Customs—Cockburn's Sketches—The Dinner-hour—The Procession—The Viands—Drinking—Claret—Healths and Toasts—Anecdote of Duke of Buccleuch—'Rounds' of Toasts—'Sentiments'—The Dominie of Arndilly—Scott's Views of the old Customs—Decline of 'friendly' Feeling.

We shall now give Lord Cockburn's very interesting picture of the evenings which Scott dwelt upon with such sympathetic regret:—

"The prevailing dinner-hour was about three o'clock. Two o'clock was quite common, if there was no company. Hence it was no great deviation from their usual custom for a family to dine on Sundays "between sermons"—that is, between one and two. The hour, in time, but not without groans and predictions, became four, at which it stuck for several years. Then it got to five, which, however, was thought positively revolutionary; and four was long and gallantly adhered to by the haters of change as "the good old hour." At last even they were obliged to give in. But they only

yielded inch by inch, and made a desperate stand at half-past four. Even five, however, triumphed, and continued the average polite hour from (I think) about 1806, or 1807, till about 1820. Six has at last prevailed, and half an hour later is not unusual. As yet this is the furthest stretch of London imitation.... Thus, within my memory, the hour has ranged from two to half-past six o'clock; and a stand has been regularly made at the end of every half-hour against each encroachment; and always on the same grounds—dislike of change and jealousy of finery.'

Mr. Oldbuck of Monkbarns, it will be remembered, who flourished *circa* 1804, invited his guests to the famous 'coenobitical symposion' *at four o'clock precisely*. It may be presumed that the Antiquary in this matter, however, lingered a little in the rear of the fashion. The dishes at the symposion comprehended 'many savoury specimens of Scottish viands now disused at the tables of those who affect elegance'—hotch-potch, 'the relishing Solan goose,' fish and sauce, crappit-heads, and chicken-pie. The Antiquary's beverage was port, a wine highly approved of by the clerical friend who so ably disposed of the relics of the feast intended for the worthy host's supper.

'The procession from the drawing-room to the dining-room was formerly arranged on a different principle from what it is now. There was no such alarming proceeding as that of each gentleman approaching a lady, and the two hooking together. This would have excited as much horror as the waltz at first did, which never showed itself without denunciations of continental manners by correct gentlemen and worthy mothers and aunts. All the ladies first went off by themselves, in a regular row, according to the ordinary rules of precedence. Then the gentlemen moved off in a single file; so that when they reached the dining-room, the ladies were all there, lingering about the backs of the chairs, till they could see what their fate

was to be. Then began the selection of partners, the leaders of the male line having the advantage of priority; and of course the magnates had an affinity for each other.

'The dinners themselves were much the same as at present. Any difference is in a more liberal adoption of the cookery of France. Ice, either for cooling or eating, was utterly unknown, except in a few houses of the highest class. There was far less drinking during dinner than now, and far more after it. The staple wines, even at ceremonious parties, were in general only port and sherry. Champagne was never seen. It only began to appear after France was opened by the peace of 1815. The exemption of Scotch claret from duty, which continued (I believe) till about 1780, made it till then the ordinary beverage. I have heard Henry Mackenzie and other old people say that, when a cargo of claret came to Leith, the common way of proclaiming its arrival was by sending a hogshead of it through the town on a cart, with a horn; and that anybody who wanted a sample, or a drink under pretence of a sample, had only to go to the cart with a jug, which, without much nicety about its size, was filled for a sixpence. The tax ended this mode of advertising; and, aided by the horror of everything French, drove claret from all tables below the richest.

'Heaths and toasts were special torments; oppressions which cannot now be conceived. Every glass during dinner required to be dedicated to the health of some one. It was thought sottish and rude to take wine without this—as if forsooth there was nobody present worth drinking with. I was present about 1803, when the late Duke of Buccleuch took a glass of sherry by himself at the table of Charles Hope, then Lord Advocate; and this was noticed afterwards as a piece of ducal contempt. And the person asked to take wine was not invited by anything so slovenly as a look combined with a putting of the hand upon the bottle, as is practised by near neighbours

now. It was a much more serious affair. For one thing, the wine was very rarely on the table. It had to be called for; and in order to let the servant know to whom he was to carry it, the caller was obliged to specify his partner aloud. All this required some premeditation and courage. Hence timid men never ventured on so bold a step at all, but were glad to escape by only drinking when they were invited. As this ceremony was a mark of respect, the landlord, or any other person who thought himself the great man, was generally graciously pleased to perform it to every one present. But he and others were always at liberty to abridge the severity of the duty by performing it by platoons. They took a brace, or two brace, of ladies or of gentlemen, or of both, and got them all engaged at once, and proclaiming to the sideboard—"A glass of sherry for Miss Dundas, Mrs. Murray, and Miss Hope, and a glass of port for Mr. Hume, and one for me," he slew them by coveys. And all the parties to the contract were bound to acknowledge each other distinctly. No nods or grins or indifference, but a direct look at the object, the audible uttering of the very words—"Your good health," accompanied by a respectful inclination of the head, a gentle attraction of the right hand towards the heart, and a gratified smile. And after all these detached pieces of attention during the feast were over, no sooner was the table cleared, and the after-dinner glasses set down, than it became necessary for each person, following the landlord, to drink the health of every other person present, individually. Thus, where there were ten people, there were ninety healths drunk. This ceremony was often slurred over by the bashful, who were allowed merely to look the benediction; but usage compelled them to look it distinctly, and to each individual. To do this well required some grace, and consequently it was best done by the polite ruffled and frilled gentlemen of the olden time.

"This prandial nuisance was horrible. But it was nothing to what followed. For after dinner, and before the ladies retired, there generally began what were called "*Rounds*" of toasts; when each gentleman named an absent lady, and another person was required to match a gentleman with that lady, and the pair named were toasted, generally with allusions and jokes about the fitness of the union. And, worst of all, there were "sentiments." These were short epigrammatic sentences, expressive of moral feelings and virtues, and were thought refined and elegant productions. A faint conception of their nauseousness may be formed from the following examples, every one of which I have heard given a thousand times, and which indeed I only recollect from their being favourites. The glasses being filled, a person was asked for his, or her, sentiment, when this, or something similar, was committed—"May the pleasures of the evening bear the reflections of the morning," Or, "May the friends of our youth be the companions of our old age." Or, "Delicate pleasures to susceptible minds." "May the honest heart never feel distress." "May the hand of charity wipe the tear from the eye of sorrow." "May never worse be among us." There were stores of similar reflections; and for all kinds of parties, from the elegant and romantic to the political, the municipal, the ecclesiastic, and the drunken. Many of the thoughts and sayings survive still, and may occasionally be heard at a club or a tavern. But even there they are out of vogue as established parts of the entertainment; and in some scenes nothing can be very offensive. But the proper *sentiment* was a high and pure production; a moral motto; and was meant to dignify and grace private society. Hence, even after an easier age began to sneer at the display, the correct thing was to receive the sentiment, if not with real admiration, at least with decorous respect. Mercifully, there was a large known public stock of the odious commodity, so that nobody who could screw up his

nerves to pronounce the words, had any occasion to strain his invention. The conceited, the ready, or the reckless, hackneyed in the art, had a knack of making new sentiments applicable to the passing accidents, with great ease. But it was a dreadful oppression on the timid or the awkward. They used to shudder, ladies particularly—for nobody was spared when their turn in the *round* approached. Many a struggle and blush did it cost; but this seemed only to excite the tyranny of the masters of the craft; and compliance could never be avoided except by more torture than yielding. There can scarcely be a better example of the emetical nature of the stuff that was swallowed than the sentiment elaborated by the poor dominie of Arndilly. He was called upon, in his turn, before a large party, and having nothing to guide him in an exercise to which he was new, except what he saw was liked, after much writhing and groaning, he came out with—"The reflection of the moon in the cawm bosom of the lake." It is difficult for those who have been born under a more natural system, to comprehend how a sensible man, a respectable matron, a worthy old maid, and especially a girl, could be expected to go into company only on such conditions.'

Different men, different minds. Even from this picture, which is taken from the point of view of one who was by nature critical and prone to dissent, one can see how jolly and amusing such parties must often have been made. Scott liked them; enjoyed them thoroughly. What would one not give to have seen him presiding at one of those 'grave annual dinners of the Bannatyne Club,' where he always insisted on rounds of ladies and gentlemen, and of authors and printers, poets and kings, in regular pairs. The custom, in spite of its drawbacks, fulfilled the great end and aim of sociability: it brought every individual guest into active participation in the evening's proceedings. Nowadays, 'annual' banquets almost always fail in this; being only, as a rule, occasions for more or less falsetto speechifying

by a temporary clique of self-regarded notables and their complacent secretary. The toast-system was also favourable to loyalty and patriotism, the health of the King never being neglected at the family dinner-table, even when no guests were present. That custom, we fear, has now fallen away, along with that other and nobler one immortalised in 'The Cotter's Saturday Night.'

CHAPTER X

Religious Observances—Sunday Attendance at Church—Sunday Books—Breakdown of the System—Alleged Infidelity among Professors—Low State of Morality—Increase of mixed Population—Provincialism.

The externals of religion in Edinburgh underwent a radical change during the boyhood of Walter Scott. The generation that was then retiring from the scene was a generation devoted, in all externals at least, to the cultivation of the religious duties. Rich and poor, old and young, they attended church with unfailing regularity. They held to the strict Puritanic idea of the Sabbath Day. That is, they thought devotion the only proper employment of that day, and considered even a casual appearance on the street during the hours of worship as a disgrace. With them family worship was a general and honoured practice. The reading of any but definitely religious books on Sunday was forbidden in every respectable family. In fact, the Sunday at home in such a family as Scott's was a day of discipline, of which even his good-nature was inclined to complain. What vexed his young soul was 'the gloom of one dull sermon succeeding to another.' The Sunday books were to him a relief and a delight. He retained all his life a favour for Bunyan's

Pilgrim, Gesner's Death of Abel, Rowe's Letters, and a few others. Still, in his opinion, the tedium of the day did the young people no good. The scene soon changed. Even in the early eighties we find it noted as 'ungenteel' to go to church in a family capacity. Amusements and idle recreation began to be common. The streets were now crowded during the hours of service. On Sunday evenings they became scenes of noise and disorder. Family worship was abandoned, even, as was whispered, by the clergy themselves. And, as a striking evidence of this rapid declension, it is recorded that church collections had fallen from £1500 to £1000 a year. Critical seniors loudly wailed, but their outcry was as useless as it was earnest. Old times were changed, old manners gone, never to return. The decent, staid, and dignified generation was being hustled from the scene by a flippant, noisy crowd of loose and licentious innovators. Conduct which the elders would have regarded and punished as criminal was no longer atoned for even by the blush of shame.

Such a view of Edinburgh's religious state at the end of the eighteenth century was at all events maintained by certain praisers of the past. It has also been stoutly asserted that infidelity was rampant, under the ægis of the redoubtable David Hume. The University especially was accused of being tainted with infidelity, but the charge is denounced by Lord Cockburn as utterly false. 'I am not aware (he says) of a single professor to whom it was ever applied, or could be applied, justly. Freedom of discussion was not in the least combined with scepticism among the students, or in their societies. I never knew nor heard of a single student, tutor, or professor, by whom infidelity was disclosed, or in whose thoughts I believed it to be harboured, with perhaps only two obscure and doubtful exceptions. I consider the imputation as chiefly an invention to justify modern intolerance.'

As to the comparative religiousness of the present and the preceding generation, any such comparison is very difficult to be made. Religion is certainly more the fashion than it used to be. There is more said about it; there has been a great rise, and consequently a great competition, of sects; and the general mass of the religious public has been enlarged. On the other hand, if we are to believe one-half of what some religious persons themselves assure us, religion is now almost extinct. My opinion is that the balance is in favour of the present time. And I am certain that it would be much more so, if the modern dictators would only accept of that as religion, which was considered to be so by their devout fathers.'

On the whole, with due heed paid to possible qualifications, it is clear that the standard of life and conduct must have been low between, say, 1780 and 1820. We have Scott's express statement that domestic purity was in general maintained in Edinburgh society, but scandalous exceptions were by no means unknown. Among the lower classes the freedom from wholesome, if irksome, restraints was, of course, marked by greater lapses. Among them a generation grew up, practically ignorant of the elementary ideas of religion. As a contemporary quaintly puts it, they were as ignorant as Hottentots, and as little acquainted with the decalogue as with repealed Acts of Parliament. The streets, which formerly a lady might have traversed in perfect safety at any hour, now became notoriously unsafe. Doubtless all this was increased, and to some extent occasioned, by the constant influx of a new and shifting population, attracted by the rapid extension of the city. The vices and easy manners of a modern city soon concealed what remained of the old Scottish habits and character. In short, Edinburgh in those years passed from the state of a national capital to that of a big provincial centre, such as Colonel Mannering beheld it, 'with its noise and

clamour, its sounds of trade, of revelry and licence, and the eternally changing bustle of its hundred groups.'

CHAPTER XI

Scott apprenticed to the Law—Copying Money and *menus plaisirs*—Novels—Romances—Early Attempts—John Irving—Sibbald's Library—Sees Robert Burns—The Parliament House—The 'Krames.'

About 1785-86, Walter Scott, acceding to his father's wish, was indentured in his father's office, and 'entered upon the dry and barren wilderness of forms and conveyances.' Boy as he was, he felt even then that he was not cut out for this career, but family circumstances and the necessary intimacy with so many representatives of the profession no doubt prevented him from making any very serious objection, though he felt in a general way that his 'parts ill-suited law's dry, musty arts.' His warm affection and respect for his father was also a determining motive. For this reason, and indeed with the honest desire to excel, he made up his mind to work hard. But he was never enthusiastic over deeds and quills. He mentions as no trifling incentive to labour, the copying money, an allowance which supplied him with funds for going to the theatre and subscribing to a library. [1] One of his feats was to copy one hundred and twenty folio pages with no interval either for food or rest. But when there was no call for toil, he would spend his time in reading. His desk was filled with books of every kind, except manuals of law. His supreme delight was in works of fiction, of which he must have read an enormous number. He was not, however, entirely uncritical in his choice. Only the 'art of Burney, or the feeling of

Mackenzie,' could make him read a domestic tale. He therefore realised early enough that the field of novel-writing was unoccupied. His fondness for adventure led him to devour every romance he came across without much discrimination. 'I really believe (he says) I have read as much nonsense of this class as any man now living.' Of the exploits of knight-errantry he never tired, and he soon began to make attempts at imitating the stories he loved. These early efforts were not in verse.

[1] See General Preface to Waverley Novels.

A quaintly interesting glimpse into the life of this most notable of law apprentices is given in the General Preface of 1829, where he describes himself and a chosen friend as delighting, on a holiday, to escape from the town and in some solitary spot to recite alternately such adventures as each had been able to invent. 'These legends, in which the material and the miraculous always predominated, we rehearsed to each other during our walks, which were usually directed to the most solitary spots about Arthur's Seat and Salisbury Crags.... Whole holidays were spent in this singular pastime, which continued for two or three years, and had, I believe, no small effect in directing the turn of my imagination to the chivalrous and romantic in poetry and prose.' This companion of Scott's was Mr. John Irving, W.S., whose mother seems also to have been very sympathetic with the boy. She would recite ballads to him, which he easily learned by heart, and which helped him in making the collection in six volumes which he had thus early begun.

Such being his tastes, he was naturally more interested in literary characters than in the notable men of the legal profession. In the course of frequenting Sibbald's circulating library in Parliament Square, where he

must have spent a good deal of time in rummaging the dusty shelves for rare old songs and romances, he had occasionally 'a distant view' of some of the literary celebrities of the time. Among them was the unfortunate Andrew Macdonald, author of *Vimonda*, and also from this library vantage-ground he saw, at a distance, 'the boast of Scotland, Robert Burns.' [2] The Parliament House itself was less interesting to Scott than his beloved library, but he must by this time have been very familiar with it, and often have seen the 'Lords' of the old generation, whose pictures have been so quaintly sketched by Lord Cockburn. Edinburgh, like any other collection of three hundred thousand people, has amongst its numbers persons possessed of some æsthetic conscience, persons who lament the past orgies of Vandalism, and who do not admire the present triumphs of commercial architecture. But such men are naturally not as a rule to be found in Town or Parish Councils, and seldom indeed in public posts of any kind. Thus the population has always seemed wholly given over to the worship of the æsthetic Baal, and as a consequence the name of Lord Cockburn shines in almost solitary splendour as that of a dignitary who protested against the incredible doings of ignorance and avarice dressed in the authority of municipal rank. Cockburn bitterly regretted the destruction of the old Parliament House, which, he says, was, both outside and in, a curious and interesting place. 'The old building exhibited some respectable turrets, some ornamented windows and doors, and a handsome balustrade. But the charm that ought to have saved it was its colour and its age, which, however, were the very things that caused its destruction. About one hundred and seventy years had breathed over it a grave grey hue. The whole aspect was venerable and appropriate; becoming the air and character of a sanctuary of Justice. But a mason pronounced it to be all *Dead Wall*.' [3] The officials to whom, at a period when there was no public taste in Edinburgh, [4] this was

addressed, believed him; and the two fronts were removed in order to make way for the bright free-stone and contemptible decorations that now disgrace us.... I cannot doubt that King Charles tried to spur his horse against the Vandals when he saw the profanation begin. But there was such an utter absence of public spirit in Edinburgh then, that the building might have been painted scarlet without anybody objecting.'

[2] 'I saw him one day at the late venerable Professor Ferguson's, where there were several gentlemen of literary reputation, among whom I remember the celebrated Mr. Dugald Stewart. Of course, we youngsters sat silent, looked and listened. The only thing I remember which was remarkable in Burns's manner was the effect produced upon him by a print of Bunbury's, representing a soldier lying dead on the snow, his dog sitting in misery on the one side, on the other his widow, with a child in her arms. These lines were written beneath:

"Cold on Canadian hills, or Minden's plain,
Perhaps that parent wept her soldier slain;
Bent o'er her babe, her eye dissolved in dew,
The big drops mingling with the milk he drew,
Gave the sad presage of his future years,
The child of misery baptized in tears."

Burns seemed much affected by the print, or rather by the ideas which it suggested to his mind. He actually shed tears. He asked whose the lines were, and it chanced that nobody but myself remembered that they occur in a half-forgotten poem of Langhorne's, called by the unpromising title of "The Justice of the Peace." I whispered my information to a friend present, who mentioned it to Burns, who rewarded me with a look and a word, which, though of mere civility, I then received and still recollect with very great pleasure.'—*Letter to J. G. LOCKHART.*

[3] This means, when translated, that it was plain wall, without any architectural or æsthetic value.

[4] Observe the delightful ambiguity.

Among the most vivid childish memories of Scott and his contemporaries was that of the Krames. It is described in the *Heart of Midlothian* as a narrow, crooked lane, winding between the Old Tolbooth and the Luckenbooths on the one side, and the buttresses and projections of St.

Giles's Cathedral on the other. At one time, as Scott mentions, the narrow court, with its booths plastered against the sides of the Cathedral, was occupied by the hosiers, hatters, glovers, mercers, milliners, and drapers, who removed, however, to the South Bridge as soon as it was opened. The Krames then fell into the hands of the toy-merchants, and became the paradise of childhood. Its glories were maintained all the year round, but at New Year time especially it was the enchanted ground of the city youngsters. To the youthful Cockburn it was like one of the Arabian Nights' bazaars in Bagdad, and there is a touch of personal recollection, too, in Scott's picture (*Heart of Midlothian*, chap. vi.) of the little loiterers in the Krames, 'enchanted by the rich display of hobby-horses, babies, and Dutch toys, yet half-scared by the cross looks of the withered pantaloons, or spectacled old lady, by whom those tempting wares were watched and superintended.' The Krames disappeared, on the demolition of the adjacent Tolbooth, in 1817.

CHAPTER XII

Topics of Talk—Religion—Scott's Freedom from Fanaticism—Dilettantism of the 'liberal young Men'—Politics—Basis of Scott's Toryism—Cockburn's Anecdote of Table-talk—Men of the Old School—Robertson the Historian—His *History of Charles V.*—His noble Generosity—Closing Years—Anecdotes.

In all probability Walter Scott was not very greatly interested or influenced by the general conversation. Neither by nature nor by circumstances was he ever in danger of being seduced into fanaticism of any kind. As regards religion, his was the simple faith of one who revered God as the

Omnipotent whose power meant justice, goodness, truth and love, and who loved his fellow-men, content to be happy himself and to try to pour out happiness on all around him. His mind did not hanker after theories on the mystery of existence. In fact, he was a 'moderate' of the best kind, whose only anxiety was that his life should be in the right. They seek in vain who search his volumes for philosophical wisdom or prophetic gleams. He never posed as preacher or as sage. He accepted the religion of his time, and felt himself at home in the Episcopal Church of Scotland rather than in the Calvinistic temples, whose services always repelled him by their gloom and dryness. Still less was he attracted by anything intellectually fanatical. His mind naturally rejected humbug. He was not one of the dilettante young gentlemen whose talk was of chemistry because Lavoisier had made it fashionable. Nor was he one of Cockburn's 'liberal young men of Edinburgh,' who lived upon Adam Smith, a sound enough, but for them apt to be windy, diet. I have no doubt he appreciated the greatness and good sense of the author of the *Wealth of Nations*, and the value of the brilliant work of Lavoisier, but the direction of his intellectual interests was determined by his heart. And his heart was in the story of the Past, glowing over the old ballads, songs, and romances of the age of chivalry and glory. He was not a party politician any more than he was a chemist or an economist. He was a Tory only because his sympathies were with the kind of people who composed that party. He identified the party with the gallantry and loyalty of the Cavalier, with the free, wholesome life of the country as opposed to the grasping selfishness and coarse materialism of the town, and with the generous sense of honour which made himself the truest and sweetest of gentlemen. His Toryism was a sentiment as far above the actual existing politics of his party as Milton's ideal republicanism was above the practice of his Puritan contemporaries, whom he styles 'owls and

cuckoos, asses, apes, and dogs.' Scott's saving gift of humour saved him from sharing the painful impression of which Lord Cockburn speaks. He was not so easily pained. When worthy people talk nonsense in the bosom of the family, they should not be taken too seriously even by boys. 'My father's house (Lord Cockburn says) was one of the places where the leaders and the ardent followers of the party in power were in the constant habit of assembling. I can sit yet, in imagination, at the small side-table, and overhear the conversation, a few feet off, at the established Wednesday dinner. How they raved! What sentiments! What principles! Not that I differed from them. I thought them quite right, and hated liberty and the people as much as they did. But this drove me into an opposite horror; for I was terrified out of such wits as they left me at the idea of bloodshed, and it never occurred to me that it could be avoided. My reason no sooner began to open, and to get some fair-play, than the distressing wisdom of my ancestors began to fade, and the more attractive sense that I met with among the young men into whose company our debating societies threw me, gradually hardened me into what I became—whatever this was.' Fortunately Cockburn, though he became a Whig and a political lawyer, did not let his mind become narrowed against the larger human interests. His sketches of some of the representative men of the older generation are as warm and appreciative as could be wished. He speaks of the pleasure he felt in having seen them, though it was at a time when he could only judge of their qualities from the respect which they commanded even among the young. One of these was Dr. William Robertson, described in *Guy Mannering* by Mr. Pleydell, with some pride, as 'our historian of Scotland, of the Continent, and of America.' Robertson's long and illustrious career was almost wholly connected with Edinburgh. He was educated at the University there, and about 1760 became minister of Old Greyfriars, which

had been his father's charge before, and where Pleydell conducts Colonel Mannering to hear him preach. He was greater as a church leader and a man of letters than as a preacher. Lord Brougham, who was his grand-nephew, says that he preferred moral to gospel subjects, in order to discountenance the fanaticism of the evangelicals. As a church leader, he may be called the Lord North of the Church of Scotland. The 'moderatism' of Robertson led, after other secessions, eventually to the Disruption of 1843. But in spite of his professional activities, Robertson was essentially a literary artist. Conscientious and prolonged research gave a value to his historical works, which largely atoned for the monotony of his somewhat too ornate and dignified style. He has the glory—and that too, when Samuel Johnson was at his zenith—of having established a record in literary remuneration. For his history of Charles V. he received £4500, the largest sum which had till then been paid for a single work. No one will grudge the reward to the man who, at the age of twenty-two, with a country clergyman's income of less than £100 a year, took into his charge his orphaned brother and six sisters, and postponed his marriage for several years that he might give them education. In the last two years of his life, 1791-93, he was taken to reside at Grange House, a rare old mansion, the seat of the family of Dick Lauder, of Grange and Fountainhall. Here the enfeebled old man, quite broken down by disease of the liver, spent his time as much as possible in the garden. The Cockburn family, who lived close by at Hope Park, were intimate friends, and thus young Henry came to see a great deal of the Principal in the last summer of his life. He describes the historian as 'a pleasant-looking old man, with an eye of great vivacity and intelligence, a large projecting chin, small hearing-trumpet fastened by a black ribbon to a button-hole of his coat, and a rather large wig, powdered and curled.' For all his feebleness, with deafness superadded, he seems up to the last to have

been able to take an animated part in conversation, whenever a favourite subject happened to be started at his table.

CHAPTER XIII

More Men of the Old School—Dr. Erskine—Scott on Church Disputes—His Admiration of Erskine's Character—Anecdote of Erskine's Walk to Fife—Professor Ferguson—His History of Rome—Abstainer and Vegetarian—Picture of Ferguson's Appearance—Odd Habits—Travels to Italy.

When Colonel Mannering and Mr. Pleydell went to Greyfriars Church to hear Dr. Robertson, they found, somewhat to their disappointment, that the great historian was not to be the preacher that morning. 'Never mind,' said the counsellor, 'have a moment's patience, and we shall do very well.' The preacher they actually did hear was that distinguished and excellent man, Dr. John Erskine, who was Robertson's colleague in the pastoral charge of Greyfriars. Scott describes his external appearance as not prepossessing: 'A remarkably fair complexion, strangely contrasted with a black wig without a grain of powder; a narrow chest and a stooping posture; hands which, placed like props on either side of the pulpit, seemed necessary rather to support the person than to assist the gesticulation of the preacher—no gown, not even that of Geneva, and a gesture which seemed scarce voluntary. "The preacher seems a very ungainly person," said Mannering. "Never fear, he's the son of an excellent Scottish lawyer—he'll show blood, I'll warrant him." The learned counsellor predicted truly.' They listen, in fact, to a typical specimen of Scottish pulpit eloquence, and Mannering is fain to admit that he had seldom heard so much learning, metaphysical acuteness, and energy of argument, brought into the service of Christianity.

There is no doubt that in this most delightful chapter (xxxvii.) of *Guy Mannering* we have Scott himself in the person of Mr. Paulus Pleydell. And in the remarks of the witty counsellor we get some light here and there on how Scott regarded some of those questions which by our Whigs and philosophical Radicals and suchlike are regarded as so much more important and dignified than old ballads and mere human questions of noble courage, love, kindness, fun, and truth. Speaking of Robertson and Erskine's notorious difference in regard to church government, Mannering asks the advocate what he thinks of these points of difference: 'Why, I hope, Colonel, a plain man may go to heaven without thinking about them at all.' That was Walter Scott, God bless his memory! He was too much a living soul to waste his time or his brain power on the pitiful, dry, deadening rubbish of polemics in religion or in affairs of state. He had warm blood in his veins and a warm heart in his breast, and therefore could not waste his manhood on the marvellous speculations of the 'liberal young men of Edinburgh.' Therefore, to pervert a sentence of Carlyle, he became Walter Scott of the Universe, instead of drying up into a fossil Chancellor or Judge. What interested Scott in Erskine and Robertson, as it did in all such human beings whom he ever knew, was the beautiful, simple goodness of heart, which was so much finer a thing than the fleeting glory of eloquence or power. He tells with gusto how, in spite of differences of opinion the greatest possible in their sphere, the two good men never for a moment lost personal regard or esteem for each other, or suffered malignity to interfere with their opposition. Erskine was indeed very generally esteemed even by his opponents for his candour and kindliness, and his personal qualities went more to make his high reputation than the marked ability displayed in his works on Divinity. Cockburn, who, like Scott, used to attend his church, says he was all soul and no body; and compares the stooping figure of the

old man, as he walked along, with his hands in his sides, and his elbows turned outwards, to a piece of old china with two handles. He also mentions the interesting fact that Erskine, as well as Robertson, habitually spoke 'good honest natural Scotch.' To illustrate his assertion that there was nothing this good man would not do for truth or a friend, Cockburn relates a characteristic anecdote: 'His friend Henry Erskine had once some interest in a Fife election, but whether as a candidate or not I can't say, in which the Doctor had a vote. Being too old and feeble to bear the motion of a carriage or of a boat, he was neither asked nor expected to attend; but loving Henry Erskine, and knowing that victories depended on single votes, he determined to walk the whole way round by Stirling Bridge, which would have taken him at least a fortnight; and he was only prevented from doing so, after having arranged all his stages, by the contest having been unexpectedly given up. Similar sacrifices were familiar to the heroic and affectionate old gentleman.' Dr. Erskine died at Edinburgh in 1803. His father was the famous lawyer, John Erskine, whose great work the *Institutes of the Law of Scotland* is understood to be still the leading authority on its subject.

In the list of the young friends with whom Walter Scott chiefly associated about 1788-89 occurs the name of Adam Ferguson, who continued to be a cherished intimate, and became, in 1818, Scott's tenant and neighbour at Huntley Burn on the lands of Abbotsford. His father was the venerable and famous Professor Adam Ferguson, who, taken all round, was probably the ablest of the many remarkable men who signalled Edinburgh in this period. From about 1745 to 1757 he had been chaplain to the 42nd Highlanders, or Black Watch, and it is mentioned that no orders could keep him in the rear during an action. He was next appointed Keeper of the Advocates' Library in succession to David Hume. He remained in this

post for less than a year, and soon after began his connection with Edinburgh University, first as Professor of Natural Philosophy, and then, in 1764, as Professor of Moral Philosophy. The latter subject was his favourite study, and he filled the chair for twenty years. During this time he wrote his great work, the *History of the Roman Republic*. He was a man of original mind, and had a rare faculty of extempore lecturing, for which his practical experience in the world and his extensive travels in Europe and America must have supplied him with a rich and varied fund of striking illustrations. In his personal habits he was an exception to his generation, being a strict abstainer from both wine and animal food. In consequence of this peculiarity he seems to have refrained from dining out, except with his relative Dr. Joseph Black, a kindred spirit; and his son used to say it was delightful to see the two philosophers rioting over a boiled turnip! 'When I first knew him (says Lord Cockburn), he was a spectacle well worth beholding. His hair was silky and white; his eyes animated and light blue; his cheeks sprinkled with broken red, like autumnal apples, but fresh and healthy; his lips thin, and the under one curled. A severe paralytic attack had reduced his animal vitality, though it left no external appearance, and he required considerable artificial heat. His raiment, therefore, consisted of half-boots lined with fur, cloth breeches, a long cloth waistcoat with capacious pockets, a single-breasted coat, a cloth greatcoat also lined with fur, and a felt hat commonly tied by a ribbon below the chin. His boots were black; but with this exception the whole coverings, including the hat, were of a Quaker grey colour, or of a whitish brown; and he generally wore the fur greatcoat within doors. When he walked forth, he used a tall staff, which he commonly held at arm's-length out towards the right side; and his two coats, each buttoned by only the upper button, flowed open below, and exposed the whole of his curious and venerable figure. His gait and air were

noble; his gesture slow; his look full of dignity and composed fire. He looked like a philosopher from Lapland. Domestically he was kind, but anxious and peppery. His temperature was regulated by Fahrenheit; and often, when sitting quite comfortably, he would start up and put his wife and daughters into commotion, because his eye had fallen on the instrument, and discovered that he was a degree too hot or too cold. He always locked the door of his study when he left it, and took the key in his pocket; and no housemaid got in till the accumulation of dust and rubbish made it impossible to put the evil day off any longer; and then woe on the family. He shook hands with us boys one day in summer 1793, on setting off, in a strange sort of carriage, and with no companion except his servant, James, to visit Italy for a new edition of his history. He was then about seventy-two, and had to pass through a good deal of war; but returned in about a year, younger than ever.'

From this time, however, his remarkable figure ceased to be seen in Edinburgh. His last years were spent mostly in rural retirement, and he died at St. Andrews in 1816.

CHAPTER XIV

'Jupiter' Carlyle—Noble Looks—Friend of Robertson and John Home—The Play of Douglas—Anecdote of Dr. Carlyle—Dr. Joseph Black—Latent Heat—His personal Appearance—Anecdote of last Illness—His *History of Great Britain*—Forerunner of the Modern School.

Of the other eighteenth-century Edinburgh worthies in Cockburn's little gallery, the best-known name is that of 'Jupiter' Carlyle, the minister of Inveresk. Carlyle's fame, or notoriety, what you will, came from his

intimate relations with the eminent characters of his time, such as Hume, Blair, Home, and Adam Smith. If he was not great himself, his wise counsels aided his friends to achieve greatness. The charm of his manners was extraordinary, and his countenance and bearing so nobly imposing as to suggest the classical eke-name of Jupiter. While he lived, Carlyle and culture were synonymous. Cockburn, who scarcely appreciated his value, admits the grace and kindness of his manner, and says that he was one of the noblest-looking old gentlemen he almost ever beheld. Carlyle was a conspicuous figure in the General Assembly. He was a firm ally of Principal Robertson, whose moderate policy was exactly to the mind of the extremely 'Broad' minister of Inveresk. Great excitement was aroused by his open support of his friend Home in producing the play of Douglas. It is said that he took part in the private rehearsal of the play, and made a distinct hit as Old Norval. At the third public representation he was present in the theatre, and witnessed the extraordinary success of Home's piece. The play was received by crowded audiences for many successive nights with universal and vociferous applause. 'Where's your Shakespeare *noo*?' was the triumphant shout of a patriotic but uncritical admirer. The play of *Douglas*, though rejected by the keen judgment of Garrick as 'totally unfit for the stage,' has passages of fine rhetoric, and shows at least an easy mastery of elegant language. The author Home was suspended by the General Assembly for his audacity in writing a play while he was a minister of the Church of Scotland. A few years after, he received a pension of £300 a year, which enabled him to spend the remainder of his life in happiness and peace. Carlyle, his neighbour and constant friend, has done full justice to the amiable qualities of Home, who was the liberal friend of struggling merit in the hour of need. Carlyle died in 1805 at the age of eighty-four, and Home in 1808, aged eighty-six.

Dr. Carlyle was a famous *bon vivant*. His physical powers were fortunately adequate to carry him through in any company. It is strange and amusing in these days to think of a man like him sitting through the prolonged convivialities of his clubs and parties. For Carlyle, both as a divine and an aristocrat, was the very pink of propriety. He would have deplored excess in himself as he did in others. He was, in fact, a very temperate gentleman, and his conduct was admirable and exemplary. The respect that was paid to his merits was only increased by the fact that he could drink his four or five bottles of wine with impunity—nay, with advantage. He was often the better, never the worse, of his wine. One evening he was leaving Pinkieburn House, where he had dined, and wending his way home with all his usual Olympian dignity. An old woman-servant stood at the side-door, beholding the minister with reverent admiration. 'Ay,' she was heard to say, 'there goes Dr. Carlyle, the good man—as steady as a wall, and he's had his ain share o' four bottles o' port.'

Dr. Joseph Black, the eminent chemist, lived in Edinburgh from 1766 to his death in 1799. He was Professor of Chemistry in the University, but his delicate health seems to have disabled him from continuing the researches so fruitfully pursued in Glasgow (1756-66). His fame rests on the discovery of Latent Heat, and he seems to have been the first to apply hydrogen gas in raising balloons. Looking at his portrait, one realises the remarkable truth and felicity of Cockburn's word-picture: 'A striking and beautiful person; tall, very thin, and cadaverously pale; his hair carefully powdered, though there was little of it except what was collected into a long thin queue; his eyes dark, clear, and large, like deep pools of pure water. He wore black speckless clothes, silk stockings, silver buckles, and either a slim green silk umbrella, or a genteel brown cane. The general frame and air were feeble and slender. The wildest boy respected Black. No lad could

be irreverent towards a man so pale, so gentle, so elegant, and so illustrious. So he glided like a spirit through our rather mischievous sportiveness unharmed. He died seated with a bowl of milk on his knee, of which his ceasing to live did not spill a drop; a departure which it seemed, after the event happened, might have been foretold of this attenuated philosophical gentleman.' We shall not omit the companion picture to this touching scene, the even more tranquil death of Dr. Robert Henry, the historian. Four days before his death, he wrote to Sir Harry Moncrieff the strange message: 'Come out here directly. I have got something to do this week, I have got to die.' Moncrieff obeyed the summons, and sat with him alone for what turned out to be the last three days of his life. During this time, as he sat in his easy-chair, now dozing, now conversing, a neighbouring minister, who was a notorious and much-dreaded bore, came to call. 'Keep him out,' cried the doctor, 'don't let the cratur in here.' It was too late, the cratur entered, but when he came in, behold the doctor to all appearance fast asleep. Moncrieff at once taking in the situation, signed to the intruder to be silent. The visitor sat down, apparently to wait till Dr. Henry might awake. Every time he offered to speak, he was checked by solemn gestures from Moncrieff or Mrs. Henry. 'So he sat on, all in perfect silence, for above a quarter of an hour; during which Sir Harry occasionally detected the dying man peeping cautiously through the fringes of his eyelids to see how his visitor was coming on. At last Sir Harry tired, and he and Mrs. Henry pointing to the poor doctor, fairly waved the visitor out of the room; on which the doctor opened his eyes wide, and had a tolerably hearty laugh; which was renewed when the sound of the horse's feet made them certain that their friend was actually off the premises. Dr. Henry died that night.' His one work, a remarkable pioneer production, was the *History of Great Britain*. Though severely criticised at the time of its publication, the work certainly deserves

Cockburn's praise of 'considerable merit in the execution.' Its author, however, has the credit, apart from the intrinsic value of his own attempt, of having discovered the new and fruitful idea of making history display the internal growth of the nation as well as its political development. In short, Henry was the forerunner of Macaulay and Green.

CHAPTER XV

The 'Meadows' one Hundred Years ago—A Resort of great Men—Vixerunt fortes—Their Intimacy and Quarrels—Hume and Ferguson—Home, the happy—His boundless Generosity—Sympathy with Misfortune—Home and Edinburgh Society—Sketch by Scott—'The Close of an Era.'

Time's changes have altered the state of the 'Meadows.' This park is now surrounded by houses, a tramway line passes half-way down its south side, and a constant stream of passengers between north and south makes its Middle Walk a busy thoroughfare. The privacy is gone for ever that made it in the eighteenth century 'so distinctly the resort of our philosophy and our fashion.' It is now a noisy playground for the flannelled fools at the wicket and the muddled oafs at the goal. In the corners are swings, parallel bars, etc., for the use of little children. But in the days of Scott's boyhood, it was possible to enjoy a quiet, meditative stroll in these still suburban fields. And the great learned and legal luminaries made the Meadows their resort for talk or for quiet meditation. The lofty yet simple character of the men of this great generation, but still more their strong nationality, combined with their graceful manners and extraordinary benevolence, made a strong impression on the imagination of Scott. The brilliance of the succeeding era, which he himself created, never quite made up to his mind for what

was lost. The change was inevitable, but to him the men whom as a boy he had seen in the Meadows or on the streets of Edinburgh, the geniuses whose works and reputation had then only been known to him by name, remained always the ideal figures of Scotland's literary and scientific greatness. He was struck also by the breadth of mind which they had, almost without exception, and which he, almost alone, carried over into the next century: for those great men were like a family of amiable brothers, free from jealousy and eagerly ready to make common cause of each individual's fame. In reviewing Mackenzie's Life of Home for the *Quarterly* in 1827, he speaks of them in this touching strain: "There were men of literature in Edinburgh before she was renowned for romances, reviews, and magazines:

"Vixerunt fortes ante Agamemnona";

and a single glance at the authors and men of science who dignified the last generation will serve to show that, in those days, there were giants in the North. The names of Hume, Robertson, and Ferguson stand high in the list of British historians. Adam Smith was the father of the economical system in Britain, and his standard work will long continue the text-book of that science. Dr. Black as a chemist opened the path of discovery which has since been prosecuted with such splendid success. Of metaphysicians Scotland boasted perhaps but too many; to Hume and Ferguson we must add Reid, and, though younger, still of the same school, Dugald Stewart. In natural philosophy Scotland could present Professor Robison, James Watt, and Clerk of Eldin, who taught the British seamen the road to assured conquest. Others we could mention, but these form a phalanx whose reputation was neither confined to their narrow, poor, and rugged native country, nor to England and the British dominions, but known and respected

wherever learning, philosophy, and science were honoured.' In regard to the personal friendship of these great men, be it remembered, to the honour of the excellent 'Jupiter' Carlyle, that he was a great peacemaker among them. So was John Home, the happy. Ferguson, it would seem, had the defects of his virtues. Sir Walter, indeed, who never minimised the merits of any man except himself, says he kept his passions and feelings in strong subjection to his reason, but there were occasions when the 'passions and feelings' refused to be controlled. In fact, he was a constant thorn in the patient side of Carlyle; being jealous of his rivals and indignant against any assumption of superiority. However, Home and Carlyle kept Adam Smith, Ferguson, and Hume on very good terms; while Robertson's good-nature was so great, that it disarmed Ferguson's weakness without the aid of the peacemakers. Thus they all dwelt in unity, and 'held their being on the terms—each aid the others.' And so Carlyle remarks, as if the assumption were the only possible one, 'David Hume did not live to see Ferguson's History, otherwise his candid praise would have prevented all the subtle remarks of the jealous or resentful.' Very probably, after all, for Hume always regarded Ferguson as the master spirit of the group. He was certainly the most masterful, for, as Cockburn records, though a most kind and excellent man, he was as fiery as gunpowder. The darling of the fraternity was of course John Home. Famed in his youth for sprightliness and wit, he simply charmed every company in which he mingled. He was joyous himself, and the cause of joy in others. 'Such was the charm of his fine spirits in those days (says Carlyle, who knew and loved him like a very brother), that when he left the room prematurely, which was but seldom the case, the company grew dull, and soon dissolved.' To praise his works was a sure passport to his favour, and after once conferring his esteem there was nothing he would not do or say to attest it. For the sake of the poor he made himself a beggar, and was thus

able to dispense constantly, not in charity but in friendly kindness to the struggling and unfortunate, many times the amount of his modest pension. For this his name should stand above all Greek, above all Roman fame, save that of Cimon or of Donatello. After all, the cultured and refined poor are the greatest sufferers in our modern civilisation. They suffer, without betraying it, the same privations of want and cold as the more favoured inhabitants of the slums, and they suffer in addition unspeakable agonies of mind, beholding themselves daily sinking in the struggle to climb up the slippery side of the pit of poverty. Their very work is spoiled and depreciated by the ceaseless haunting of the spectre of ruin, and the absolute certainty that the struggle is hopeless. Such persons were happy to be near John Home. He was their Providence. He sought them out, made their acquaintance, gained their confidence, guessed the needs they would not tell, and never failed to put the poor wretches in the way of hope. When shall we see his like again? Probably when another Donatello ruins himself for his friends, and when another youthful de Medici bestows a second fortune on the ruined old artist, to maintain the credit of his father's name. No wonder that Scott saw Home as the object of general respect and veneration. The kindly old man mingled in society to the very last. He died in 1808. 'There was a general feeling (Scott adds) that his death closed an era in the literary history of Scotland, and dissolved a link, which, though worn and frail, seemed to connect the present generation with that of their fathers.'

CHAPTER XVI

Ladies of the Old School—Anecdotes told by Scott, Dr. Carlyle, and Lord Cockburn—Their Speech—'Suphy' Johnston—Anecdote of Suphy and Dr. Gregory—Miss Menie Trotter—Her Dream—Views of Religion.

Speaking of the society manners of the old generation, Scott more than hints that the upper classes in Scotland had only just emerged from a very rough and socially ignorant condition. He tells an anecdote of 'a dame of no small quality, the worshipful Lady Pumphraston, who buttered a pound of green tea, sent her as an exquisite delicacy, dressed it as a condiment to a rump of salt beef, and complained that no degree of boiling would render those foreign greens tender.' One of the most extraordinary passages in Carlyle's book is a description of a tour he made in his boyhood—it was in the summer of 1733—with his father and another clergyman, Jardine, minister of Lochmaben. They visited Bridekirk, the family seat of the Carlyles. The laird was from home, but the lady came to the door, and with boisterous hospitality ordered the party to alight and come in. She is described as a very large and powerful virago, about forty years of age. Her appearance naturally startled the boy. A gentlewoman like this he had never seen, and the picture fixed itself in his memory for life. 'Lady Bridekirk (he says) was like a sergeant of foot in women's clothes; or rather like an overgrown coachman of a Quaker persuasion. On our peremptory refusal to alight, she darted into the house, like a hogshead down a slope, and returned instantly with a pint bottle of brandy—a Scots pint, I mean—and a stray beer-glass, into which she filled almost a bumper. After a long grace said by Mr. Jardine—for it was his turn now, being the third brandy-bottle we had seen since we left Lochmaben—she emptied it to our healths, and made the gentlemen follow her example: she said she would spare me as I was so young, but ordered a maid to bring a ginger-bread cake from the cupboard,

a luncheon of which she put in my pocket. This lady was famous, even in the Annandale border, both at the bowl and in battle: she could drink a Scots pint of brandy with ease; and when the men grew obstreperous in their cups, she could either put them out of doors, or to bed, as she found most convenient.' In the latter half of the century, however, the typical lady of rank was a very great improvement on Lady Bridekirk. Like that hospitable virago, she was distinctly Scottish in speech and in dress. 'They all dressed (says Cockburn), and spoke, and did, exactly as they chose; but without any other vulgarity than what perfect naturalness is sometimes mistaken for. They were a delightful set; strong-headed, warm-hearted, and high-spirited; the fire of their tempers not always latent; merry even in solitude; very resolute; indifferent about the modes and habits of the modern world; and adhering to their own ways, so as to stand out, like primitive rocks, above ordinary society.'

There is no doubt they had an individuality and distinction, which the universal adoption of Southern customs and speech has since made impossible. They were, like Scott's Mrs. Bethune Baliol, of 'real old-fashioned Scottish growth,' and their dialect was the same. 'It was Scottish, decidedly Scottish, often containing phrases and words little used in the present day. But the tone and mode of pronunciation were as different from the usual accent of the ordinary Scotch *patois*, as the accent of St. James's is from that of Billingsgate. The vowels were not pronounced much broader than in the Italian language, and there was none of the disagreeable drawl which is so offensive to modern ears. In short, it seemed to be the Scottish as spoken by the ancient court of Scotland, to which no idea of vulgarity could be attached.' The Countess of Eglinton, to whom Allan Ramsay dedicated his *Gentle Shepherd*, was the ideal type of this generation in Scott's estimation (see Note G to *Highland Widow*).

Miss Sophia, or 'Suphy,' Johnston, of the family of Hilton, was perhaps even more deserving of the choice. Her picture has been drawn by Lady Anne Barnard and by Lord Cockburn, who as a boy knew 'Suphy' in her old age. Her character was just as independent as is possible. She had 'her own proper den' in Windmill Street. One female servant was all the attendance she required. This privileged person generally left her alone all the Sunday, when by Miss Suphy's orders she locked the door upon her mistress and carried away the key. Thus the old lady was saved the trouble of rising to admit visitors, but she had a hole through which she could easily see who was at the door and even have a little talk when she felt inclined; with this very considerable advantage that, whenever she had had enough, she could tell the caller to go away. This remarkable woman, owing to her father's eccentricity, had been brought up without education and passed her youth 'in utter rusticity.' She made herself a good carpenter and smith, and even when past middle age she would still occasionally shoe a horse. Lady Anne calls her a droll, ingenious fellow, and says she was by many people suspected of being a man. She was a great reader, having taught herself to read and write after she came to woman's age. Cockburn, who saw her first at Niddrie, the house of the Wauchopes, near Edinburgh, when she was about sixty, did not think her 'Amazonian,' but his description of her appearance seems to suit the epithet. 'Her dress was always the same—a man's hat when out of doors and generally when within them, a cloth covering exactly like a man's greatcoat, buttoned closely from the chin to the ground, worsted stockings, strong shoes with large brass clasps.' Such peculiarities, in those simpler and more natural times, did not affect her welcome in society. She was prized by the most fashionable and aristocratic persons for her excellent disposition and her rare intellectual powers, for her racy talk, spiced with anecdote and shrewd, often sarcastic observation;

and for the originality of her views, which she never hesitated to express with refreshing pith and freedom of speech. Her natural cheerfulness was never impaired either by the loneliness of her life or by the narrowness of her fortune. When shall we find again in a noble lady's drawing-room so picturesque a figure 'sitting, with her back to the light, in the usual arm-chair by the side of the fire, in the Niddrie drawing-room, with her greatcoat and her hat, her dark wrinkled face, and firmly pursed mouth, the two feet set flat on the floor and close together, so that the public had a full view of the substantial shoes, the book held by the two hands very near the eyes?'

Suphy and her contemporaries were all as stout of heart as some of them were strong of arm. They had no fear of death, and, though they enjoyed life and took a deep interest in affairs around them, they had no hankering concern to ward off the inevitable. When Suphy's strength was giving way, the famous Dr. Gregory cautioned her to leave off animal food, saying she must be content with 'spoon meat' unless she wished to die. 'Dee, Doctor; odd! I'm thinking they've forgotten an auld wife like me up yonder.' Next day the doctor called, and found her at the spoon meat—supping a haggis!

Of a little later date was Miss Menie Trotter, of the Mortonhall family, with whom Lord Cockburn's sketches end:—

'She was of the agrestic order. Her pleasures lay in the fields and long country walks. Ten miles at a stretch, within a few years of her death, was nothing to her.... One of her friends asking her, not long before her death, how she was, she said, "Very weel—quite weel. But, eh, I had a dismal dream last nicht; a fearful dream!" "Ay, I'm sorry for that; what was it?" "Ou, what d'ye think? Of a' places i' the world, I dreamed I was in heaven! And what d'ye think I saw there? Deil hae 't but thoosands upon thoosands,

and ten thoosands upon ten thoosands, o' stark naked weans! That wad be a dreadfu' thing, for ye ken I ne'er could bide bairns a' my days."

The great memoirist concludes his sketches of the old Scottish ladies with a criticism on their religion which has an interest now as revealing the religiosity that characterised his own time. He declares that from the freedom of their remarks and their free use of religious terms, they would all have been deemed irreligious in his day. We are happily far removed now from the time when cheerfulness and freedom of expression on sacred subjects would excite the horror of the pious.

CHAPTER XVII

Scott's Contemporaries in Edinburgh—Local 'Societies'—The Speculative—Scott's Explosion—Visit of Francis Jeffrey to the 'Den'—Anecdote of Murray of Broughton—General View of the youthful Societies.

How deeply Scott's imagination was affected, how richly his memory filled, how strongly his inestimable natural qualities confirmed and developed by his long and intimate association with such pricelessly rare and noble specimens of the old Scottish national character as have flitted through the last few chapters, it requires no help of ours to convince any reader of the Scotch Novels. There is more danger perhaps of exaggerating any influence that may have been exercised upon him by his equals in age and juniors with whom he came in contact in general society, and particularly in the 'literary societies' of the city. There have been at all periods, we believe, many societies of this kind for the young aspirants at Edinburgh University. Naturally the young bloods of the law are the most anxious to shine in such

arenas. Naturally also the prize of reputation usually falls to the glib and fluent speaker, especially if he has some real ability and learning to second his tongue. The better the society is attended, the more genuine is the mettle required in its leaders. It is, however, perhaps safe to assert the general principle that success in these meetings implies talent rather than genius, forensic skill rather than learning or intellect. Thus we can quite believe, as stated in his *Life*, that for Francis Jeffrey his entrance into the Speculative Society did more than any other event in the whole course of his education, though such a statement about Scott would be ludicrous. We can quite agree with Cockburn that the same society has trained more young men to public speaking, talent, and liberal thought than all the other private institutions in Scotland. At the same time we do not in the least regret that it did not effect all this for Walter Scott. He says with his usual unconscious self-depreciation that he never made any great figure in these societies. He was a member, however, of several in succession, and took some part in their proceedings. He would have preferred to be silent, but the rules of the societies compelled him at times to contribute an essay. In his own opinion his essays were but very poor work. This they may have been from a critic's point of view. But they had the quality of genius. They were at least utterly different and distinct from all others. They astonished and delighted the fortunate hearers. We can gather some idea of this even from his own statement: 'I was like the Lord of Castle Rack-rent, who was obliged to cut down a tree to get a few faggots to boil the kettle; for the quantity of ponderous and miscellaneous knowledge which I really possessed on many subjects, was not easily condensed, or brought to bear upon the object I wished particularly to become master of. Yet there occurred opportunities when this odd lumber of my brain, especially that which was connected with the recondite parts of history, did me, as Hamlet says, "yeoman's

service." My memory of events was like one of the large, old-fashioned stone cannons of the Turks—very difficult to load well and discharge, but making a powerful effect when by good chance any object did come within range of its shot. Such fortunate opportunities of exploding with effect maintained my literary character among my companions, with whom I soon met with great indulgence and regard.' It was in January, 1791, that Scott became a member of the Speculative, the most ambitious of the literary societies. On the 11th of December, 1792, Francis Jeffrey was admitted. On that evening one of Scott's happy explosions occurred. He delivered an essay on Ballads, which so interested the future critic that he sought and obtained Scott's acquaintance, a circumstance which pleasantly revives the memory of Jeffrey now that his works, once so formidable, have fallen into the wallet where Time stores alms for Oblivion. Jeffrey called on Scott the very next evening, and found him 'in a small den, on the sunk floor of his father's house in George's Square surrounded with dingy books,' from which, Lockhart records, they went to a tavern and supped together. In this snug den of Walter's his character and interests were visibly and quaintly to be traced. It was full to overflowing of books, and a small painted cabinet contained old Scottish and Roman coins. A little print of Bonnie Prince Charlie was guarded by a claymore and a Lochaber axe, which had been given him by old Stewart of Invernahyle, a Jacobite client of his father's, who had been 'out' in both the 'Fifteen' and the 'Forty-five.' Below the picture a china saucer was hooked up against the wall. This was 'Broughton's saucer,' the memorial of a very striking incident in the domestic life of the Scotts. One autumn Mr. Scott senior had a client who came regularly every evening at a certain hour to the house, and remained in the Writer's private room usually till long after the family had gone to bed. The little mystery of the unknown visitor excited Mrs. Scott's curiosity,

and her husband's vague statements increased it. One night, therefore, though she knew it was against her husband's desire, she entered the room with a salver in her hand, and offered the gentlemen a dish of tea. Mr. Scott very coldly refused it, but the stranger bowed and accepted a cup. Presently he took his leave, and Mr. Scott, lifting the empty cup he had used, threw it out on the pavement. His wife was astonished at first, but not when she heard the explanation: 'I may admit into my house, on business, persons wholly unworthy to be treated as guests by my wife. Neither lip of me nor of mine comes after Mr. Murray of Broughton's.' It was actually the traitor Secretary Murray, who bought off his life and fortune by giving evidence against his gallant associates. The saucer belonging to the traitor's cup was appropriated by Walter for his collection. Lockhart gives an additional anecdote which equally brings out the disgust felt by the loyal-hearted Scots towards the traitor. 'When Murray was confronted with Sir John Douglas of Kelhead (ancestor of the Marquis of Queensberry), before the Privy Council in St. James's, the prisoner was asked, "Do you know this witness?" "Not I," answered Douglas; "I once knew a person who bore the designation of Murray of Broughton—but that was a gentleman and a man of honour, and one that could hold up his head!"' A great deal of pardonable nonsense has been spoken and written by distinguished persons regarding the literary societies of their youth. We shall conclude with Scott's own general remarks, which are much more sensible and only exaggerated in depreciating himself. 'Looking back on those times, I cannot applaud in all respects the way in which our days were spent. There was too much idleness, and sometimes too much conviviality; but our hearts were warm, our minds honourably bent on knowledge and literary distinction; and if I, certainly the least informed of the party, may be permitted to bear witness,

we were not without the fair and creditable means of obtaining the distinction to which we aspired.'

CHAPTER XVIII

The Scottish Bar—Two Careers open—Walter's Choice—Studies with William Clerk—The Law Professors—Hume's Lectures—Hard Study—Beginnings of social Distinction—Influence of Clerk—Early Love-story—Description of Walter Scott at Twenty.

Of the two branches of the legal profession, the bar offered the greatest attractions to young men ambitious of distinction. For mere financial success Walter Scott might have been tempted to take to the Writer's career. His father offered to take him at once into partnership, which would have meant 'an immediate prospect of a handsome independence.' But Walter was never very fond of money, and had then no expensive plans in view to make the acquisition of it a necessity. In all other respects he preferred the Advocate's life. It was the line of ambition and liberty. When he saw that his father also would prefer it, he hesitated no longer. Four arduous years of preparation (1789 to 1792) were devoted to the necessary legal studies. This period was utterly different from his Arts course. He studied with the greatest zeal and perseverance, giving his whole heart to the one aim. The companion of his studies was his cherished friend, William Clerk, whom he describes as 'a man of the most acute intellects and powerful apprehension, and who, should he ever shake loose the fetters of indolence by which he has been trammelled, cannot fail to be distinguished in the highest degree.' At this time the Civil Law chair might be considered 'as in *abeyance*,' the Professor being almost in a state of dotage. It was different with the class of

Scots Law. Under Professor David Hume, an enormous amount of legal learning had to be got up. Jeffrey, who attended the class in 1792, 'groaned over Hume's elaborate dulness,' but on Scott the subject seemed to exercise a charm. He considered Hume's prelections an honour to himself and an advantage to his country. He copied them over twice, which would mean the writing of four or five hundred closely packed pages. He speaks of Hume as having imported plan and order to the ancient and constantly altered structure of Scots Law by 'combining the past state of our legal enactments with the present, and tracing clearly and judiciously the changes which took place, and the causes which led to them.'

Upon these years of legal study Scott could always look back with satisfaction. 'A little parlour (he tells in his fragment of Autobiography, referring to the 'den' where Jeffrey found him) was assigned me in my father's house, which was spacious and convenient (for a modest student), and I took possession of my new realms with all the feelings of novelty and liberty. Let me do justice to the only years of my life in which I applied to learning with stern, steady, and undeviating industry. The rule of my friend Clerk and myself was, that we should mutually qualify ourselves for undergoing an examination upon certain points of law every morning in the week, Sundays excepted.... His house being at the extremity of Princes Street, New Town, was a walk of two miles. With great punctuality, however, I beat him up to his task every morning before seven o'clock, and in the course of two summers, we went, by way of question and answer, through the whole of Heineccius's *Analysis of the Institutes and Pandects*, as well as through the smaller copy of Erskine's *Institutes of the Law of Scotland*.'

At this time, as a natural consequence of advancing years, his parents had given over entertaining company, unless in the case of near relations.

Walter, however, though he was thus left in a great measure to form connections for himself, found no difficulty in making his way into good society. He scarcely ever refers to his social triumphs, but from other sources we can gather that he soon became a notable and a favourite figure. Before he had achieved any literary reputation, he had conquered local fame by the charm of his personality and the freshness of his conversation. Cockburn, speaking of the year 1811, has recorded that 'people used to be divided at this time as to the superiority of Scott's poetry or his talk. His novels had not yet begun to suggest another alternative. Scarcely, however, even in his novels was he more striking or delightful than in society, where the halting limb, the bur in the throat, the heavy cheeks, the high Goldsmith-forehead, the unkempt locks, and general plainness of appearance, with the Scotch accent and stories and sayings, all graced by gaiety, simplicity, and kindness, made a combination most worthy of being enjoyed.'

His early cultivation of society, which was of course a wholesome thing for a youth of twenty, was greatly favoured by his friendship with William Clerk. We have Lockhart's authority for the opinion that 'of all the connections he formed in life there was no one to whom he owed more.' Clerk's influence helped to decide him to take to the bar, the line of ambition and liberty. He then, as we have seen, by his very physical inertia, supplied Scott with a stimulating object during their legal studies. His influence on Scott's personal habits even was good and great. Walter's modesty and kind good-nature had perhaps made him a trifle more free and easy with his father's apprentices than was quite desirable for either him or them. They were, of course, his professional equals and the sharers in his daily pursuits, but their ideas and manners were not calculated to promote ambition so much as liberty. Walter, during his apprenticeship, was

intentionally careless of appearances, and apt to be slovenly in his dress. He condescended to the clubs and festive resorts of the apprentices, a most dangerous thing for a genius, as Ferguson's blasted career had just proved. It was a fortunate enough and useful episode for the future author of *Guy Mannering*, but it was not a good school of manners or academy of habits for Walter Scott. Fortunately William Clerk, with his West-end prejudices, came just at the right time, to chaff his friend out of his slovenliness and to show him the way to a more wholesome and not less interesting society. Finally, of course, it was his own sound sense that made this amiable change in his habits so easy. To this period, that is, about 1790, belongs the most romantic episode of Walter Scott's life, his unrequited love for Margaret Stuart.[1] He had made her acquaintance in the Greyfriars churchyard on a wet Sunday afternoon, when she accepted his offered umbrella and his escort home, for 'young Walter Scott,' a Duchess of Sutherland at this time said, 'was a comely creature.' And here we may give Lockhart's description of Scott as seen by Clerk and Margaret and the rest of his Edinburgh friends:—

'His personal appearance at this time was not unengaging.... He had outgrown the sallowness of early ill-health, and had a fresh, brilliant complexion. His eyes were clear, open, and well-set, with a changeful radiance, to which teeth of the most perfect regularity and whiteness lent their assistance, while the noble expanse and elevation of the brow gave to the whole aspect a dignity far above the charm of mere features. His smile was always delightful; and I can easily fancy the peculiar intermixture of tenderness and gravity with playful, innocent hilarity and humour in the expression, as being well calculated to fix a fair lady's eye. His figure, excepting the blemish in one limb, must in those days have been eminently handsome; tall, much above the usual standard, it was cast in the very

mould of a young Hercules; the head set on with singular grace, the throat and chest after the truest model of the antique, the hands delicately finished; the whole outline that of extraordinary vigour, without as yet a touch of clumsiness.... I have heard him, in talking of this part of his life, say, with an arch simplicity of look and tone, which those who were familiar with him can fill in for themselves—"It was a proud night with me when I first found that a pretty young woman could think it worth her while to sit and talk with me, hour after hour, in a corner of the ballroom, while all the world were capering in our view."

[1] Scott's youthful love-dream lasted through several years. The lady eventually married Sir William Forbes of Pitsligo, who was a banker in Edinburgh. Sir William acted a very friendly part during Scott's financial disaster of 1826-27.

CHAPTER XIX

The Advocate's 'Trials'—Scott and Clerk admitted to the Bar—Walter's first Fee—Connection of the Scotts with Lord Braxfield—Scottish Judges—Stories of Braxfield.

The trials set to candidates for admission into the Faculty of Advocates were duly passed by Scott and his friend Clerk on the same days. They were formally admitted to the fraternity on the 11th of July, 1792.

There is always some story of the young Advocate's first fee. When the ceremony of 'putting on the gown' was completed, Scott said to Clerk, putting on the air and tone of some Highland lassie waiting at the Cross to be 'fee'd' for the harvest, 'We've stood here an hour by the Tron, hinny, an'

deil a ane has speir'd our price.' The friends were about to leave the Outer Court, when a friend, a solicitor, came up and gave Scott his first guinea fee. As he and Clerk went down the High Street, they passed a hosier's shop, and Scott remarked, 'This is a sort of wedding-day, Willie; I think I must go in and buy me a new nightcap.' Thus he 'warded' his guinea, but it is pleasing to know that his first big fee was spent on a silver taper-stand for his mother, which (Lockhart tells) the old lady used to point to with great satisfaction, as it stood on her chimney-piece five-and-twenty years afterwards.

Scott's 'thesis'—no doubt, like Alan Fairford's, a very pretty piece of Latinity—was dedicated to the terrible Lord Braxfield, 'the giant of the bench,' as Cockburn calls him, 'whose very name makes people start yet.' Braxfield was a friend and near neighbour of the Scotts, his house being No. 28 George Square. It is said that he was rather kind to nervous young advocates at their first appearance in a case, so long as they were not 'Bar flunkies'—his term for brainless fops. Braxfield lives in popular tradition as a monster of rough and savage cruelty, and the sketch of the man by Cockburn bears out the character only too well. The sketch may be quoted in full, for its intrinsic interest, and for the vivid light it throws on the character and manners of Scottish judges in the century following the Union.

'Strong-built and dark, with rough eyebrows, powerful eyes, threatening lips, and a low growling voice, he was like a formidable blacksmith. His accent and his dialect were exaggerated Scotch; his language, like his thoughts, short, strong, and conclusive.... Within the range of the Feudal and the Civil branches, and in every matter depending on natural ability and practical sense, he was very great; and his power arose more from the force of his reasoning and his vigorous application of

principle, than from either the extent or the accuracy of his learning.... He had a colloquial way of arguing, in the form of question and answer, which, done in his clear, abrupt style, imparted a dramatic directness and vivacity to the scene.

'With this intellectual force, as applied to law, his merits, I fear, cease. Illiterate, and without any taste for refined enjoyment, strength of understanding, which gave him power without cultivation, only encouraged him to a more contemptuous disdain of all natures less coarse than his own. Despising the growing improvement of manners, he shocked the feelings even of an age which, with more of the formality, had far less of the substance of decorum than our own. Thousands of his sayings have been preserved, and the substance of them is indecency; which he succeeded in making many people enjoy, or at least endure, by hearty laughter, energy of manner, and rough humour. Almost the only story I ever heard of him that had some fun in it without immodesty, was when a butler gave up his place because his lordship's wife was always scolding him. "Lord!" he exclaimed, "ye 've little to complain o'; ye may be thankfu' ye 're no married to her."

'It is impossible to blame his conduct as a criminal judge too gravely, or too severely. It was a disgrace to the age. A dexterous and practical trier of ordinary cases, he was harsh to prisoners even in his jocularity, and to every counsel whom he chose to dislike.... It may be doubted if he was ever so much in his element as when tauntingly repelling the last despairing claim of a wretched culprit, and sending him to Botany Bay or the gallows with an insulting jest; over which he would chuckle the more from observing that correct people were shocked.[1] Yet this was not from cruelty, for which he was too strong and too jovial, but from cherished coarseness....

[1] His remark to Margaret, one of the 'Friends of the People,' who made a speech in his own defence, was, 'Ye're a very clever chiel, man, but ye wad be nane the war o' a hanging.'

'In the political trials of 1793 and 1794 he was the Jeffreys of Scotland. He, as the head of the court, and the only very powerful man it contained, was the real director of its proceedings. The reports make his abuse of the judgment seat bad enough: but his misconduct was not so fully disclosed in formal decisions and charges, as it transpired in casual remarks and general manner. "Let them bring me prisoners and I'll find them law" used to be openly stated as his suggestion, when an intended political prosecution was marred by anticipated difficulties. Mr. Horner (father of Francis), who was one of the juniors in Muir's case, told me that when he was passing, as was often done then, behind the bench to get into the box, Braxfield, who knew him, whispered—"Come awa', Mr. Horner, come awa', and help to hang[2] ane o' thae damned scoondrels." The reporter of Gerald's case could not venture to make the prisoner say more than that "Christianity was an innovation." But the full truth is, that in stating this view he added that all great men had been reformers, "even our Saviour himself." "Muckle he made o' that," chuckled Braxfield in an under voice; "he was hanget." Before Hume's *Commentaries* had made our criminal record intelligible, the form and precedents were a mystery understood by the initiated alone, and by nobody so much as by Mr. Joseph Norris, the ancient clerk. Braxfield used to quash anticipated doubts by saying—"Hoot! just gie me Josie Norrie and a gude jury, an' I'll doo for the fallow." He died in 1799, in his seventy-eighth year.'

[2] *Hang* was his phrase for all kinds of punishment.

CHAPTER XX

Stories of the Judges—Lord Eskgrove—His Appearance—The Trials for Sedition—Anecdotes of Circuit Dinners—'Esky' and *the Harangue*—The Soldier's Breeches—Esky and the Veiled Witness—Henderson and the Fine—The Luss Robbers—Death of Eskgrove.

Stories about one or other of the judges were apparently the leading feature of conversation in Edinburgh society at the end of the eighteenth century. Lord Eskgrove, who, almost in his dotage at the age of seventy-six, was appointed to succeed Braxfield as head of the Criminal Court, was about the most ludicrous and childishly eccentric of the race. For a time it seemed the whole occupation of the wits to relate anecdotes about old Eskgrove. To give these anecdotes with a recognisable mimicry of his voice and manner was, in Cockburn's phrase, 'a sort of fortune in society.' And Scott, he adds, in those days was famous for this particularly. It was not the wit or the humour of Eskgrove which amused. He seems to have had neither. It was simply his personal oddity, and the utter incongruity of such an incredible creature elevated to a position such as his. His face is described as varying from a scurfy red to a scurfy blue. His nose was prodigious: the under lip enormous, and supported on a huge clumsy chin, which moved like the jaw of a Dutch toy. He walked with a slow, stealthy step—something between a walk and a hirple, and helped himself on by short movements of his elbows, backwards and forwards, like fins. His voice was low and mumbling. His pronunciation seems to have been fantastic in the extreme, especially in the way of cutting even short words into two. The following anecdotes from Cockburn, who knew him, 'when he was in the zenith of his absurdity,' bring 'Esky' very vividly before us.

At the trial of Fysche Palmer for sedition, he made one of the very few remarks he ever made which had some little merit of their own. It was a retort to Mr. John Haggart, one of the prisoner's counsel, who, in defending his client against the charge of disrespect to the king, quoted Burke's statement that kings are naturally lovers of low company. "Then, sir, that says very little for you or your client! for if kinggs be lovers of low company, low company ought to be lovers of kinggs!"

'Nothing disturbed him so much as the expense of the public dinner for which the judge on the circuit has a fixed allowance, and out of which the less he spends the more he gains. His devices for economy were often very diverting. His servant had strict orders to check the bottles of wine by laying aside the corks. Once at Stirling his lordship went behind a screen, while the company was still at table, and seeing an alarming row of corks, got into a warm altercation, which everybody heard, with John; maintaining it to be "impossibill" that they could have drunk so much. On being assured that they had, and were still going on—"Well, then, John, I must just protect myself!" On which he put a handful of the corks into his pocket, and resumed his seat.

'Like the poor man in the story, Lord Eskgrove was "sair hauden doon by yon turkey cock." The plague of his life for more than a year was Henry Brougham. In revenge the judge used to sneer at Brougham's eloquence by styling it or him *the Harangue*. "Well, gentle-men, what did the Harangue say next? Why, it said this" (mis-stating it); "but here, gentle-men, the Harangue was most plainly wrong, and not intelligibill."

'Everything was connected by his terror with republican horrors. I heard him, in condemning a tailor to death for murdering a soldier by stabbing him, aggravate the offence thus: "And not only did you murder him, whereby he was bereaved of his life, but you did thrust, or push, or

pierce, or project, or propell, the le-thall weapon through the belly-band of his regimen-tal breeches, which were his Majes-ty's!"

'In the trial of Glengarry for murder in a duel, a lady of great beauty was called as a witness. She came into court veiled. But before administering the oath Eskgrove gave her this exposition of her duty—"Young woman! you will now consider yourself as in the presence of Almighty God and of this High Court. Lift up your veil; throw off all modesty, and look me in the face."

'Sir John Henderson of Fordell, a zealous Whig, once came before the court, their lordships having to fix the amount of some discretionary penalty which he had incurred. Eskgrove began to give his opinion in a very low voice, but loud enough to be heard by those next him, to the effect that the fine ought to be £50; when Sir John, with his usual imprudence, interrupted him and begged him to raise his voice, adding that if judges did not speak so as to be heard, they might as well not speak at all. Eskgrove, who never could endure any imputation of bodily infirmity, asked his neighbour, "What does the fellow say?" "He says that, if you don't speak out, you may as well hold your tongue." "Oh, is that what he says? My lords, what I was sayingg was very simpell. I was only sayingg that in my humbell opinyon, this fine could not be less than two hundred and fifty pounds sterlingg"—this sum being roared out as loudly as his old angry voice could launch it.

'His tediousness in charging juries was most dreadful, and he was the only judge who insisted on the old custom of making juries stand during the judge's address. Often have I gone back to the court at midnight, and found him, whom I had left mumbling hours before, still going on, with the smoky unsnuffed tallow candles in greasy tin candlesticks, and the poor despairing jurymen, most of the audience having retired or being asleep; the wagging

of his lordship's nose and chin being the chief signs that he was still *charging*.

'A very common arrangement of his logic to juries was this:—"And so, gentle-men, having shown you that the pannell's argument is utterly impossibill, I shall now proceed for to show you that it is extremely improbabil."'

'He rarely failed to signalise himself in pronouncing sentences of death. It was almost a matter of style with him to console the prisoner by assuring him that, "whatever your religi-ous persua-shon may be, or even if, as I suppose, you be of no persua-shon at all, there are plenty of rever-end gentle-men who will be most happy for to show you the way to yeternal life."

'He had to condemn two or three persons to die who had broken into a house at Luss, and assaulted Sir James Colquhoun and others, and robbed them of a large sum of money. He first, as was his almost constant practice, explained the nature of the various crimes, assault, robbery, and hamesucken—of which last he gave them the etymology; and he then reminded them that they attacked the house and the persons within it, and robbed them, and then came to this climax—"All this you did; and God preserve us! joost when they were sitten doon to their denner!"'

In concluding his reminiscences of Eskgrove Lord Cockburn says: 'He was the staple of the public conversation; and so long as his old age lasted, he nearly drove Napoleon out of the Edinburgh world.... A story of Eskgrove is still preferred to all other stories. Only, the things that he did and said every day are beginning to be incredible to this correct and fiat age.' Lord Eskgrove died in 1804, at the age of eighty.

CHAPTER XXI

Scott's Anecdote of Lord Kames—Judicial Cruelty—Lord Meadowbank's Marriage—'Declaim, Sir'—Judges and Drinking—Hermand and the Pope—Bacchus on the Bench—Hermand and the Middy.

When Scott dined at Carlton House in 1815, the Prince Regent is said to have been particularly delighted with his guest's anecdotes of the old Scottish judges and lawyers. The following story was considered among the best, and it is one which Scott was fond of telling: 'Lord Kames' (described by Cockburn as 'an indefatigable and speculative but coarse man'), 'whenever he went on the Ayr circuit, was in the habit of visiting Matthew Hay, a gentleman of good fortune in the neighbourhood, and staying at least one night, which, being both of them ardent chess players, they usually concluded with their favourite game. One spring circuit the battle was not concluded at daybreak, so the judge said—"Well, Matthew, I must e'en come back this gate in the harvest, and let the game lie ower for the present"; and back he came in September, but not to his old friend's hospitable house; for that gentleman had in the meantime been apprehended on a capital charge, and his name stood on the *Porteous Roll*, or list of those who were about to be tried under his former guest's auspices. The laird was indicted and tried accordingly, and the jury returned a verdict of *Guilty*. The judge forthwith put on his cocked hat (which answers to the black cap in England), and pronounced the sentence of the law in the usual terms—"To be hanged by the neck until you are dead; and may the Lord have mercy upon your unhappy soul!" Having concluded this awful formula in his most sonorous cadence, Kames, dismounting his formidable beaver, gave a familiar nod to his unfortunate acquaintance, and said to him in a sort of

chuckling whisper—"And now, Matthew, my man, that's checkmate to you." The Regent laughed heartily at this specimen of judicial humour; and, "I'faith, Walter," said he, "this old big-wig seems to have taken things as coolly as my tyrannical self. Don't you remember Tom Moore's description of me at breakfast—

"The table spread with tea and toast,
Death warrants and the *Morning Post*"?"

This gruesome story, incredible as it appears and repulsive in its bare and uncalled-for cruelty, is an attested fact. Lord Cockburn, in referring to the above incident, says: 'Besides general and uncontradicted notoriety, I had the fact from Lord Hermand, who was one of the counsel at the trial, and never forgot a piece of judicial cruelty which excited his horror and anger.'

To pass to a more agreeable subject, there was Lord Meadowbank, who disappeared from the festive party an hour or two after his marriage. Search was made, and the oblivious Benedick was found busily engaged in writing a profound thesis on the subject of 'Pains and Penalties.'

He was a most versatile man, and his fondness for discussion made him often highly diverting. Referring to his power of discovering principles and tracking out their consequences, Jeffrey said that while the other judges gave the tree a tug, Meadowbank not only tore it up by the roots, but gave it a shake which dispersed the earth and exposed all the fibres.

One day Mr. Thomas Walker Baird was, in a dull technical way, stating a dry case to Lord Meadowbank, who was sitting single. This did not please the judge, who thought that his dignity required a grander tone. So he dismayed poor Baird, than whom no man could have less turn for burning

in the Forum, by throwing himself back in his chair and saying, 'Declaim, sir, why don't you declaim? Speak to me as if I were a popular assembly.'

In the lively story of Mr. Pleydell and his clerk Driver, Scott has immortalised the convivial habits of the Scottish Bar. The actual incident, as stated in the note, occurred to Dundas of Arniston at the time he was Lord Advocate. How ably the judges comported themselves at the table is well proved in Cockburn's description of Lord Hermand, who, he says, 'had acted in more of the severest scenes of old Scotch drinking than any man at least living. Commonplace toppers think drinking a pleasure; with Hermand it was a virtue. It inspired the excitement by which he was elevated, and the discursive jollity which he loved to promote. But beyond these ordinary attractions, he had a sincere respect for drinking, indeed a high moral approbation, and a serious compassion for the poor wretches who could not indulge in it; with due contempt for those who could, but did not. He groaned over the gradual disappearance of the *Feriat* days of periodical festivity, and prolonged the observance, like a hero fighting amidst his fallen friends, as long as he could. The worship of Bacchus, which softened his own heart, and seemed to him to soften the hearts of his companions, was a secondary duty. But in its performance there was no violence, no coarseness, no impropriety, and no more noise than what belongs to well-bred jollity unrestrained. It was merely a sublimation of his peculiarities and excellences; the realisation of what poetry ascribes to the grape. No carouse ever injured his health, for he was never ill, or impaired his taste for home and quiet, or muddled his head: he slept the sounder for it, and rose the earlier and the cooler. The cordiality inspired by claret and punch was felt by him as so congenial to all right thinking, that he was confident that he could convert the Pope if he could only get him to sup with him. And

certainly his Holiness would have been hard to persuade if he could have withstood Hermand about the middle of his second tumbler.'

The Bacchic religion of Lord Hermand sometimes found expression even on the Bench. On one occasion a young man was convicted of culpable homicide. In a wrangle with a friend, with whom he had been drinking all night, he had stabbed him and caused his death. The case being little more than a sad accident, the youth was sentenced to only a short imprisonment. At this Lord Hermand, who regarded the case as a discredit to the cause of drinking, was highly indignant at his colleagues' softness. He would have transported the homicide: 'We are told that there was no malice, and that the prisoner must have been in liquor. In liquor! Why, he was drunk! And yet he murdered the very man who had been drinking with him! They had been carousing the whole night; and yet he stabbed him! after drinking a whole bottle of rum with him! Good God, my Laards, if he will do this when he's drunk, what will he not do when he's sober?'

A somewhat similar case shows Lord Hermand in a different light. His love for children was a great feature in his character. A little English midshipman, being attacked by a much bigger lad in Greenock, defended himself with his dirk, and somehow killed his assailant. 'He was tried for this in Glasgow, and had the good luck to have Hermand for his judge; for no judge ever fought a more gallant battle for a prisoner. The boy appeared at the bar in his uniform. Hermand first refused "to try a child." After this was driven out of him, the indictment, which described the occurrence, and said that the prisoner had slain the deceased "wickedly and feloniously," was read; and Hermand then said, "Well, my young friend, this is not true, is it? Are you guilty or not guilty?" "Not guilty, my Lord." "I'll be sworn you're not!" In spite of all his exertions, his young friend was convicted of

culpable homicide; for which he was sentenced to a few days' imprisonment.'

With his mind filled with the sayings and doings of the Braxfields and the Eskgroves, Walter Scott could scarcely nourish many illusions regarding his chosen profession. Fortunately he went 'where his own nature would be leading.'

CHAPTER XXII

Political Lawyers—Politics an 'accident' in Scott's History—Early Days at the Bar—Peter Peebles—*The Mountain*—Anecdote of Scott and Clerk—The German Class—Friendship with William Erskine—German Romance—Seniors of the Bar—Robert Blair—Greatest of Scottish Judges—Anecdote of Hermand and Henry Erskine.

In speaking of Scottish politics in 1792—it was in 1792, November, that Scott and Clerk began their regular attendance at the Parliament House—it is desirable to repeat that Scott is not to be regarded as ever having been in any circumstances a politician. It is absurd even to mention his name among the crowd of Tory juniors seeking to push their way to preferment by party services and loud-mouthed partisan zeal. This crowd, of which Lord Cockburn speaks, 'produced several most excellent men and very respectable lawyers, but not one person, except Walter Scott, who rose to distinction in literature.' Scott was in no sense a 'product' of so ignoble a school. There is perhaps nothing in creation so utterly mean and odious as the person who deliberately engineers his course to legal office by excessive partisanship. Meanness and narrowness of mind must be born in the creature who does it. Who would expect literary distinction from such?

If there be any instances on record—and there is most unfortunately that of Francis Bacon—of genius united with such a career, they are distinguished by their singularity, and operate as exceptions. Walter Scott was one of the junior bar, but he was never one of these political aspirants. His conscience, not the main chance, was the ruling principle with him. Party was a small thing to Scott: not the be-all and the end-all of existence as it was to many others of his contemporaries. It was natural for Cockburn and the Whigs, who were struggling for existence against very real oppression and injustice, to exaggerate to themselves the importance of the whole wretched business.

'They took the rustic murmur of their bourg
For the great wave that circles round the world.'

Scott's good sense and utter lack of conceit preserved him from falling into their mistake. Like most other men of culture and honour, both then and now, he frankly took a side in politics rather than be always posing as an independent and as if he were the only conscientious man in a neighbourhood. Historical sentiment, the glamour of romance and the tradition of great names, made him prefer the Tory side. That was all. But he retained his independence complete and unsullied. Whenever at any time he took an active part in militant politics, it was not to curry favour and gain the spoils, but because his whole heart and soul were with the cause.

Scott certainly started life with the idea of making his career in the law. Work gradually came to him. Friendly solicitors were pleased to put certain kinds of business in the young man's hands, chiefly at first, as was natural, for his father's sake. 'By and by,' says Clerk, 'he crept into a tolerable share of such business as may be expected from a Writer's

connexion.' That is, of course, from his father's connection, and the business would consist of long written *informations* and other papers for the Court, on which young counsellors of the Scottish Bar were expected to bestow a great deal of trouble for very scanty pecuniary remuneration, and with scarcely any chance of displaying their ability or making a name. Another part of every young advocate's work, even less important in fees or in fame, was that of acting for pauper litigants, as Alan Fairford did in the famous case of Poor Peter Peebles. In the note Scott says that he himself had at one time the honour to be counsel for the actual Peter.

On the whole, Scott in these early days had probably plenty of leisure time on his hands. He spent some of it at all events among the 'unemployed' of the Bar. They were in the habit of congregating at a particular spot at the north end of the Outer House, which, according to Lockhart, was called by a name which easily recalls the date—*the Mountain*. From Cockburn's account it would appear that the loungers of the Mountain were all Whigs, separated into a sect of their own and all branded with the same mark. As he mentions among them Thomas Thomson, who we know was at this time one of Scott's most intimate daily associates, we must infer that the separation was not quite absolute. The following story of Clerk's shows that he also was one of the group. One morning finding them all convulsed with laughter, he complained that *Duns Scotus* had been forestalling him in a good story which he had told him privately the day before—adding, moreover, that his friend had not only stolen it, but disguised it. 'Why,' answered Scott, skilfully waiving the main charge, 'this is always the way with the *Baronet*. He is continually saying that I change his stories, whereas in fact I only put a cocked hat on their heads, and stick a cane into their hands—to make them fit for going into company.' About Christmas of this eventful year, Scott, Clerk, Thomson, and William Erskine (afterwards Lord

Kinnedder) joined a German class; and all the four soon qualified themselves to read Schiller and Goethe. Erskine was a Tory: Scott's other young advocate friends were by descent and connection Whigs. From the time of the German class Erskine and Scott drew closer together, and Erskine became by and by, as we learn from Lockhart, 'the nearest and most confidential' of all Scott's Edinburgh associates. We also know that, though politics never shook the mutual regard of the others, 'the events and controversies of the immediately ensuing years could not but disturb, more or less, the social habits of young barristers who adopted opposite views on the French Revolution and the policy of Pitt. His friendship exercised an influence which Lockhart rates very high, on Scott's literary tastes. Along with a sincere love of the classics, Erskine had cherished from boyhood a strong passion for Old English literature, especially the Elizabethan dramatists. He sympathised with, and understood the real value of, Scott's taste for antiquity and national lore. He delighted in the bold and picturesque style, the strength and originality, of the native English school, but he warned Scott of the necessity of paying some deference to modern taste. In short, he knew how to "sift and sunder," and understood that the absurdities and extravagances of great works form no part of their greatness, though they are exactly the parts most likely to be selected for imitation.' Lockhart, in pointing out that Scott was mainly influenced in his first literary attempts by the founders of German drama and romance, states the opinion that he ran at first no trivial risk of adopting some of their extravagances both of idea and expression. Erskine's vigorous condemnation of the mingled absurdities and vulgarities of German detail, coming from one who so enthusiastically admired their great qualities, and who approved of their new departure in choosing romantic subjects, had no

doubt full weight in guiding the judgment of so sane and sound a genius as Scott.

The seniors of the Bar about this time were, on the Government or Tory side, Robert Blair, Charles Hope, and Robert Dundas. Of Blair it has been said by Cockburn that he was a species of man not very common in Scotland: he might have said in any country, if his own description is correct. 'He had a fine manly countenance, a gentleman-like, portly figure, a slow dignified gait, and a general air of thought and power. Too solid for ingenuity, and too plain for fancy, soundness of understanding was his peculiar intellectual quality. Within his range nobody doubted, or could doubt, Blair's wisdom. Nor did it ever occur to any one to doubt his probity. He was all honesty. The sudden opening of the whole secrets of his heart would not have disclosed a single speck of dishonour. And all his affections, personal and domestic, were excellent and steady.'

If not indolent, Blair seems to have been strongly averse to letting himself be bothered with mean details or drudgery. He maintained, as few can do, a noble independence of small and mean interests. But with his great love of rest, repose, and ease he combined a fiery and excitable disposition. The combination is said to be rare. It is always noble.

Blair is a splendid example of this truth. He was absolutely indifferent to preferment. Lord Melville says that George III. used to speak of him as 'the man who would not go up.' Literally as well as morally he kept his own way. There was a line, it is said, in the Outer House, which was kept clear for him whenever he was present. Even his official superiors, and the judges themselves, stood in awe of him. He was, by preference and practice, a silent man. He was one who could play a long game with a dozen people, and yet not speak. In politics he was a loyal party man, but as void of malignity as he was free from self-seeking. He was one of the few who

'have greatness thrust upon them,' having been made Lord President of the Court of Session a few years before his death. His memory is still revered as that of the greatest of Scottish judges. His character and the marvellous clearness of his judicial 'opinions' made him the pride of Edinburgh during his all too short reign, which closed in 1811. His death was very sudden, and affected the whole population like the unexpected loss of a dear personal friend. Lord Cockburn has described the scene: 'It overwhelmed us all. Party made no division about Blair. All pleasure and all business were suspended. I saw Hermand that night. He despised Blair's abstinence from the pollution of small politics. He did not know that he could love a man who neither cared for claret nor for whist; but, at near seventy years of age, he was crying like a child. Next day the Court was silent, and adjourned. The Faculty of Advocates, hastily called together, resolved to attend him to his grave. Henry Erskine tried to say something, and because he could only try it, it was as good a speech as he ever made.' From his grave in Greyfriars Churchyard to the edge of the Castlehill, the vast concourse of spectators stood silent and uncovered when the sod was laid.

CHAPTER XXIII

Seniors (*continued*)—Charles Hope—His Voice—Tribute by Cockburn—Robert Dundas, Nephew of Henry, Lord Melville—His Manner and Moderation—Anecdote of Lords Blair and Melville—Lord Melville's Son—Scott's Project of Emigration.

Charles Hope may be considered one of the very best representatives of his profession. He had an extensive practice as an advocate, and afterwards filled successively, with great distinction, the offices of Lord Advocate,

Lord Justice-Clerk, and Lord President. But his great forte was public speaking. For this his qualifications were great: a tall figure, commanding presence, natural manner, great command of language, and a magnificent voice, which Cockburn describes as 'surpassed by that of the great Mrs. Siddons alone, which, drawn direct from heaven and worthy to be heard there, was the noblest that ever struck the human ear.'

Few men, surely, have ever received or deserved such an encomium from a political opponent as Cockburn has left us of Lord President Hope: —'It is a pleasure to me to think of him. He was my first—I might almost say my only, professional patron, and used to take me with him on his circuits; and in spite of my obstinate and active Whiggery has been kind to me through life. When his son, who was Solicitor-General in 1830, lost that office by the elevation of the Reform Ministry, and I succeeded him, his father shook me warmly by the hand, and said, "Well, Harry, I wish you joy. Since my son was to lose it, I am glad that your father's son has got it." It was always so with him. Less enlightened than confident in his public opinions, his feelings towards his adversaries, even when ardently denouncing their principles, were liberalised by the native humanity and fairness of his dispositions.'

Perhaps the most interesting public character in Scotland at the beginning of the nineteenth century was Robert Dundas of Arniston. He was the son of a Lord President Dundas, whose father had also occupied that high position. His uncle was Henry Dundas, Lord Melville, the famous friend of Pitt. The uncle, it is supposed, greatly influenced the policy of the nephew, whose power in Scotland was for a time almost unlimited. At all events, in a position almost certain to provoke jealousy and enmity on all hands, he was able to maintain a character for moderation and fairness even in the cases of political prosecution which his office of Lord Advocate

required him to conduct. In those troublous times the powers given to the Lord Advocate were extravagant and arbitrary. Dundas seems to have been a man of moderate abilities and ordinary acquirements, but Cockburn's lively picture sufficiently explains his remarkable success in his trying and difficult duties. 'He had two qualifications which suited his position, and made him not only the best Lord Advocate that his party could have supplied, but really a most excellent one. These consisted in his manner, and in his moderation. He was a little, alert, handsome, gentleman-like man, with a countenance and air beaming with sprightliness and gaiety, and dignified by considerable fire; altogether inexpressibly pleasing. It was impossible not to like the owner of that look. No one could contemplate his animated and elegant briskness, or his lively benignity, without feeling that these were the reflections of an ardent and amiable heart. His want of intellectual depth and force seemed to make people like him the better. And his manner was worthy of his appearance. It was kind, polite, and gay; and if the fire did happen to break out, it was but a passing flash, and left nothing painful after it was gone.'

Dundas had his town residence at No. 57 George Square. His uncle, Lord Melville, had come here on the 26th of May 1811, with the intention of attending the funeral of Lord Blair next day. He retired to rest apparently in his usual health, but was found next morning dead in bed. Thus, strange to say, the two friends, who had both been alive and active a week before, were lying dead with but a wall between them, for Blair's house was No. 56, next door to that of Dundas. A strange incident is related by Lord Cockburn, which he says he was inclined to regard as true: viz., that a letter written by Lord Melville was found on his table, or in a writing-case after his death, in which he drew a moving picture of his feelings at the funeral of Lord Blair. Little had he imagined that he himself would be dead before that funeral

took place. The letter was addressed to a member of the government, with a view to obtain some public provision for Blair's family. 'Such things,' adds Lord Cockburn, 'are always awkward when detected; especially when done by a skilful politician. Nevertheless an honest and a true man might do this. It is easy to anticipate one's feelings at a friend's burial; and putting the description into the form of having returned from it is mere rhetoric.'

Scott enjoyed the personal friendship of Viscount Melville, and still more of the younger members of the Dundas family. Robert Dundas was Lord Advocate at the time of Scott's appointment to the sheriffship of Selkirk. Another Robert Dundas, Lord Melville's son, had been one of Scott's admirers in the story-telling days of the High School, and their intimacy continued later on. In fact Arniston and Melville supplied Walter Scott with quite a troop of warm friends. An anecdote which connects Lord Melville and Scott may be given here, though it belongs to the end of the next decade (1810). Great changes had at that time been proposed in the Scottish law and judicature. They did not commend themselves to Scott's judgment. In fact, he wrote a remarkable essay in the *Edinburgh Annual Register* against the rash attempt at a general innovation. He was at the same time uneasy in regard to the affairs of his Ballantyne publishing business, and fretting a little at the drudgery of his clerkship, which as yet yielded him no income. It was a crisis very like that in the life of Burns when he proposed to emigrate to Jamaica. Scott indeed seriously entertained the idea of going to India, as is clear from his letter to his brother Thomas in November 1810. 'I have no objection to tell you in confidence, that, were Dundas to go out Governor-General to India, and were he willing to take me with him in a good situation, I would not hesitate to pitch the Court of Session and the booksellers to the Devil, and try my fortune in another climate. But this is strictly *entre nous*.' Dundas, it

seems, had on several occasions been spoken of as likely to be appointed Governor-General of India, and he had hinted at taking Scott with him. Fortunately the opportunity never occurred, the genius was not driven into exile, and the Court of Session and the booksellers obtained a temporary reprieve.

CHAPTER XXIV

Henry Erskine—His Ability and Wit—Tributes to his Character—Dismissal as Dean of Faculty—
John Clerk—Reputation at the Bar—His Private Tastes—Art and Literature—Odd Habits—
Anecdotes of Clerk and his Father.

The Hon. Henry Erskine, the acknowledged leader of the Scottish Bar, and one of the ablest and wittiest of men, was a son of the fifth Earl of Buchan, who died in 1767, and was succeeded in the title by his eldest son David. A younger brother of Henry's was equally illustrious at the English Bar as the undaunted defender first of Captain Baillie, who was indicted for libel at the instigation of Lord Sandwich in 1778: next in 1792 of Tom Paine, 'victorious needleman,' indicted for publishing the *Rights of Man*: and then in 1794 of Hardy, Horne Tooke, and Thelwall, accused of high treason. This was Thomas Erskine, who became Lord Chancellor of England and was raised to the peerage as Baron Erskine of Restormel in 1806. All the brothers were strongly attached to the Whig party. Under the coalition government of North and Fox in 1783 Henry Erskine was for a short time Lord Advocate, an office which he held again in 1806. His fame was spread throughout Scotland as the constant and disinterested defender of the helpless in distress.

'And all the oppress'd who wanted strength
Had his at their command.'

Like his brother, he was absolutely fearless in the exposure of wrong, and his name became the terror of every high-handed 'petty tyrant' in the land. It is said that a poor man in a remote part of the country, who was threatened with the law by his landlord for the purpose of compelling him to submit to some injustice, at once turned upon him with bold indignation and said, 'Ye dinna ken what ye're sayin', maister; there's no a man in a' Scotland need want a friend or fear an enemy sae lang as Harry Erskine is to the fore.' In his *Life of Jeffrey* Lord Cockburn says of Erskine: 'His name can no sooner be mentioned than it suggests ideas of wit, with which, in many memories, the recollection of him is chiefly associated. A tall and rather slender figure, a face sparkling with vivacity, a clear sweet voice, and a general suffusion of elegance, gave him a striking and pleasing appearance.... He was the only one of the marked Edinburgh Whigs who was not received coldly in the private society of their opponents. Nothing was so sour as not to be sweetened by the glance, the voice, the gaiety, the beauty, of Henry Erskine.' Scott speaks of him in the same affectionate strain—'Henry Erskine was the best-natured man I ever knew: thoroughly a gentleman, and with but one fault—he could not say No. His wit was of the very kindest, best-humoured, and gayest sort that ever cheered society.' It is a matter for deep regret that the public career of so rare and eminent a man should have been dependent upon the ups and downs of politics. Even the post of Dean of the Faculty of Advocates, to which he had been elected for eight years in succession, was taken from him in 1796. He had presided at a public meeting to protest against the war with France. Such a defiance could not at such a time be overlooked, and the more powerful party employed their

large majority to displace him. But even this was done without malevolence: the motion for dismissal—moved by Charles Hope—in no way disturbed the personal friendship between the two men.

John Clerk, raised to the Bench as Lord Eldin in his old age, was a worthy compeer of Erskine in his steadfast adherence to Whiggery at the cost of professional advancement. He was Solicitor-General in 1806, when Erskine was Lord Advocate. His fame was, therefore, won while he was at the Bar, of which, after his friend's retirement, he became the acknowledged leader. But his powerful sarcasm and his great gift of humour, combined with his remarkable appearance and popular principles, laid hold of the imagination of men and gained him quite a national reputation. It is of him that Cockburn says that the conditions of his private and his professional life almost amounted to the possession of two natures.

'A contracted limb, which made him pitch when he walked, and only admitted of his standing erect when he poised it in the air, added to the peculiarity of a figure with which so many other ideas of oddity were connected. Blue eyes, very bushy eyebrows, coarse grizzly hair, always in disorder, and firm, projecting features, made his face and head not unlike that of a thorough-bred shaggy terrier. It was a countenance of great thought and great decision.'

He was fond of literature, and his love of the fine arts grew to be a passion. He had great knowledge of painting, drew and etched cleverly, and occasionally modelled. His consulting-room was an extraordinary scene: 'Walls covered with books and pictures, of both of which he had a large collection; the floor encumbered by little ill-placed tables, each with a piece of old china on it; strange boxes, bits of sculpture, curious screens and chairs, cats and dogs (his special favourites), and all manner of trash, dead and living, and all in confusion;—John himself sitting in the midst of this

museum,—in a red worsted nightcap, his crippled limb resting horizontally on a tripod stool,—and many pairs of spectacles and antique snuffboxes on a small table at his right hand; and there he sits,—perhaps dreaming awake,—probably descanting on some of his crotchets, and certainly abusing his friends the judges,—when recalled to the business in hand; but generally giving acute and vigorous advice.'

The peculiarities which made him a 'character' in the court are analysed at some length by Lord Cockburn. One was a habit of discussing, enforcing, and lauding his own virtues, quite without vanity or ostentation, but with quiet assurance, as if it were something he had no concern in. In the end he became fiercely resentful of opposition and suspicious of all who contradicted him. But what most of all made Clerk unique was his extraordinary zeal for his client. The public hugely enjoyed his passionate displays, when he defied and insulted not only his opponent in the case, but even the judges themselves when he found them adverse. Of course in this respect he was a privileged person: his fiery onslaughts being regarded as part of the show, and invariably relieved by some quaint bit of humour.

When he heard a lady on the street behind him point him out as the lame lawyer, he wheeled round and said, 'Nay, nay, madam, lame man if ye like, but not a lame lawyer, as the Fifteen (*i.e.* the Judges) know to their cost.' This ready retort happily illustrates all his peculiarities.

His father, John Clerk of Eldin, was the author of a celebrated work on Naval Tactics. In his old age he is reported to have said of himself and his son: 'I remember the time when people, seeing John limping on the street, used to ask, "what lame lad that was?" and the answer would be, "that's the son of Clerk of Eldin." But now, when I myself am passing, I hear them saying, "what auld, grey-headed man is that?" And the answer is, "that's the father o' John Clerk."'

CHAPTER XXV

Scott's Border 'Raids'—Shortreed—Scott's Circuit Work—Jedburgh Anecdotes—Edinburgh Days—Fortune's—The Theatre Royal—Oyster Parties—Social Functions—General Reading.

For many years after his first donning of the gown, Scott made use of every holiday for those 'raids' into Liddesdale and rambles through various parts of Scotland which long caused his father anxiety and vexation. It was not given to the old man, eager to see his son immersed in what he considered far more important pursuits, to foresee the marvellous results of these erratic tours. There were some, however, who could, and one of these was Robert Shortreed, Sheriff-Substitute of Roxburghshire, who was his guide and companion in all his Border raids. His remark will serve very well to sum up our reference to these expeditions, which are 'outwith' the limits of his Edinburgh life. 'He was *makin' himsell* a' the time,' was Shortreed's emphatic comment; 'but he didna ken maybe what he was about till years had passed. At first he thought o' little, I daresay, but the queerness and the fun.'

Of his circuit work one or two anecdotes will suffice. He made his first appearance as counsel in a criminal case at the Jedburgh assizes, where he successfully defended a veteran poacher. When the verdict was pronounced, Scott whispered to his client, 'You're a lucky scoundrel.' 'I'm just o' your mind,' quoth the desperado, 'and I'll send ye a maukin (a hare) the morn, man.' Shortly after he defended a certain notorious housebreaker, who, however, in spite of counsel's strenuous efforts, was found guilty. The man, knowing that he could not escape, the evidence of his guilt being clear, yet

felt grateful, in his way, to the young lawyer who had stood by him manfully and seen fair play. He requested the advocate to visit him in his cell, and Scott complied. When they were alone together in the *condemned cell*, the poor outcast said, 'I am very sorry, sir, that I have no fee to offer you—so let me beg your acceptance of two bits of advice which may be useful, perhaps, when you come to have a house of your own. I am done with practice, you see, and here is my legacy. Never keep a large watch-dog out of doors—we can always silence them cheaply—indeed if it be a *dog*, 'tis easier than whistling—but tie a little tight yelping terrier within; and secondly, put no trust in nice, clever, gimcrack locks—the only thing that bothers us is a huge old heavy one, no matter how simple the construction,—and the ruder and rustier the key, so much the better for the housekeeper.' Lockhart heard Scott tell the story some thirty years after at a Judge's dinner at Jedburgh, and he summed it up with a rhyme—'Ay, ay, my Lord,' (addressing Lord Meadowbank)—

'Yelping terrier, rusty key,
Was Walter Scott's best Jeddart fee.'

If his life in Edinburgh was not quite as enjoyable as the summer wanderings or the spring and autumn circuits, it certainly had its compensations. There was a good deal, no doubt, of what he describes in *Redgauntlet* as 'sweeping the boards of the Parliament House with the skirts of his gown.' But then there was the consolation of the merry men of the Mountain, with mirth and youthful jollity, to which he could always contribute more than his share. There was plenty of claret-drinking at Bayle's, Fortune's, Walker's, the favourite resorts of the Bar. Claret was still

the only drink, in spite of the growing enmity to France. It is a curious fact, however, that this feeling caused the Edinburgh Town Council in 1798 to pass a resolution that claret should not be drunk either at the King's Birthday orgy or any other civic feast. This 'self-denying ordinance' was not observed. In spite of conviviality and amusements a young man's expenses in Edinburgh in those days did not require to be great, when a good dinner at Fortune's would cost half-a-crown, and a bottle of claret a shilling. Fifty years before, in the days when a man brought his own fork and knife, and glass if he wanted one for his own separate use, one dined at an 'ordinary' in Edinburgh for fourpence, which even included all the small beer that was called for till the cloth was removed. Scott was a frequent visitor at the old Theatre Royal—'his dressing-table with old play-bills, etc.' This building stood in Shakespeare Square, a site now occupied by the General Post Office. It was eventually purchased by Mr. Henry Siddons, and there, under his management, the admirers of the drama 'had the satisfaction to witness the exertion of the unparalleled talents of Mrs. Siddons, Mrs. Jordan, Mr. Braham, Mr. John Kemble, and others.' Oyster-parties were now very fashionable. They were quite decorous affairs, though not over-formal, and were attended and enjoyed by ladies as well as gentlemen.

One of these oyster-parties is described from a stranger's point of view by Topham in his *Letters from Edinburgh*: 'The shrine of festivity is nothing more than an oyster-cellar, and its votaries the first people in Edinburgh.... I was ushered into a large and brilliant company of both sexes, most of whom I had the honour of being acquainted with. The table was covered with dishes full of oysters, and pots of porter. By and by the table was cleared, and glass introduced. The ladies were now asked whether they would choose brandy or rum punch. I thought this question an odd one, but I was soon informed that no wine was sold here. The ladies, who always love

what is best, fixed upon brandy punch, and a large bowl was immediately introduced. The conversation now became general and lively. A thousand things were hazarded and met with applause, to which the oddity of the scene gave propriety and which could have been produced in no other place.... In this little assembly there was more real happiness and mirth than in all the ceremonies and splendid meetings at Soho. When the company were tired of conversation, they began to dance reels, their favourite dance, which they perform with great agility and perseverance. One of the gentlemen, however, fell down in the most active part of it, and lamed himself. The dance was at an end. The ladies retired, and with them went all the mirth.'

Such scenes as these, along with attendance at 'assemblies,' concerts, and the general round of social engagements, filled up, without great fear of dulness, the leisure part of Scott's existence when in town. His duties were but light, and so was his income.[1] There is ample proof too that he found time to continue his literary studies, and kept himself, as the phrase is, 'abreast of current literature.' 'On his desk the new novel most in repute lay snugly intrenched beneath Stair's *Institutes*, or an open volume of *Decisions*.'

[1] The particulars given by Lockhart are: first year's practice, £24, 3s.; second year's, £57, 15s.; third, £84, 4s.; fourth, £90; and in his fifth year, that is from November 1796 to July 1797, he made £144, 10s.; of which £50 were fees from his father's chamber.

CHAPTER XXVI

The Edinburgh Environment—Talk of French Revolution—The 'Jacobins'—The Volunteers—Irish Row in the Theatre—Mrs. Barbauld's Visit—Taylor's *Lenore*—Scott's Version—Anecdote of the Skull—End of Love Affair—Reference in *Peveril of the Peak*.

To understand the environment of Scott about 1794, it is necessary to remember that people's minds and conversation were almost wholly occupied with the French Revolution. It affected every one, and met one everywhere. Of real sympathy with the French Republic there never was much anywhere in Britain. In Edinburgh, as in several other towns, there were a few persons who affected an admiration for the Republic and for everything French. These were called *Jacobins*, but they soon disappeared from public view. The name, however, continued to be used as a political nickname, and was applied freely to all who showed sympathy with the idea of reform. There was a belief, more or less vague, among the Tories and the wealthier class generally, that the working men were hostile to the Constitution. Altogether the feelings of loyal men, young and old, were strongly excited. In spring of 1794 Scott wrote to friends in Roxburghshire exulting in the 'good spirit' shown by the upper classes in Edinburgh. He was much excited over the enrolment of a regiment of volunteers, in which his brother Thomas was a grenadier, and from which he himself was excluded by his lameness. We can imagine him chafing in soul to be 'a mere spectator of the drills.' It was more than his hot, impulsive nature could endure. At last the happy inspiration came to him to propose the formation of a corps of volunteer light horse. The idea was popular, but some time was required to get it carried out.

Meantime an incident happened which vividly illustrates the highly-charged atmosphere of the time and Scott's romantic excess of loyalty. Some Irish medical students had set themselves to annoy the loyal people in

the theatre by calling for seditious tunes and howling down the National Anthem. This foolish conduct was, of course, strongly resented by the audience, and especially by the young Tory lawyers. It was determined to give the Irishmen a lesson, and put a stop to the scandal. 'Scott' (says Lockhart) 'was conspicuous among the juvenile advocates and solicitors who on this grand night assembled in front of the pit, armed with stout cudgels, and determined to have *God save the King* not only played without interruption but sung in full chorus by both company and audience. The Irishmen were ready at the first note of the anthem. They rose, clapped on their hats, and brandished their shillelaghs; a stern battle ensued, and after many heads had been cracked, the lawyers at length found themselves in possession of the field.' From a letter of Scott's written a few days after, it appears that five of the loyal youths had been bound over to keep the peace, and that he personally had knocked down three of the Democrats. His friends said he had 'signalised himself splendidly in this desperate fray.' On the occasion of the riots which took place in the course of this troubled year he was active among the special constables sworn in to guard the town.

In the autumn of 1795 Mrs. Barbauld was on a visit to Edinburgh. One evening this distinguished writer read to a party in the house of Dugald Stewart an unpublished poem by William Taylor, a translation of Burger's ballad of *Lenore*. Scott was not one of the company. He seems to have been away on one of his usual tours, but on his return in the course of a few weeks, a friend gave him, as best he could, an account of the performance. Scott was deeply interested, and never rested till he had procured a copy of the original German. After reading the poem, he told his friend, Miss Cranstoun, that he was going to write a translation of it himself. He was greatly excited over the matter, and finished his task at one sitting the same night. In the morning, before breakfast, he took his production to Miss

Cranstoun, who was not only delighted but astonished. Lockhart quotes from one of her letters, 'Upon my word, Walter Scott is going to turn out a poet—something of a cross, I think, between Burns and Gray.' Sir Alexander Wood, to whom also he showed the poem the same day, retained a vivid recollection of the high-strung enthusiasm to which he had worked himself up by dwelling on the wild, unearthly imagery of the ballad. He tells how Scott must needs provide himself with symbols, a skull and cross-bones, which they procured from Dr. John Bell, and which Scott set up as trophies on the top of his little book-case. When Wood visited him, after many years of absence from this country, he saw them again similarly placed in his dressing-room at Abbotsford.

Miss Cranstoun, afterwards Countess of Purgstall, told Captain Basil Hall on her deathbed that she and William Erskine got a few copies of the *Lenore* printed. She was doing her best for Scott in his courtship of Miss Stuart, and thought the verses might work in his favour. She sent a copy, 'richly bound and blazoned,' to Scott, who was in the country at a house where Miss Stuart was also a visitor. This was really Scott's first publication. The verses were much admired by his friends, but this was all. His pursuit of Miss Stuart presently came to an end, on the announcement of her engagement to Forbes. A most interesting glimpse into the real inwardness of this affair is afforded in *Peveril of the Peak*, written twenty-six years after. The poet thus soberly moralises, *non sine desiderio*:—"The period at which love is formed for the first time, and felt most strongly, is seldom that at which there is much prospect of its being brought to a happy issue. The state of artificial society opposes many complicated obstructions to early marriages; and the chance is very great that such obstacles prove insurmountable. In fine, there are few men who do not look back in secret to some period of their youth, at which a sincere and early affection was

repulsed, or betrayed, or became abortive from opposing circumstances. It is these little passages of secret history which leave a tinge of romance in every bosom, scarce permitting us, even in the most busy or the most advanced period of life, to listen with total indifference to a tale of true love.'

CHAPTER XXVII

Friendship with Skene of Rubislaw—Skene's Account of the Edinburgh Light Horse—'Earl Walter'—Marriage of Walter Scott and Charlotte Carpenter—The Edinburgh Home—Edinburgh Friends—The Cottage at Lasswade.

Scott's German studies brought him at this time one of the most valued friendships of his life. Mr. Skene of Rubislaw, having resided several years in Saxony, and having a similar fondness for the fresh and natural literature of Germany, entered into Scott's ideas with zest, and assisted him in his struggles with the language. The two soon drew together, and became intimate friends. Skene wrote afterwards with pride of this friendship, which during nearly forty years 'never sustained even a casual chill,' and he testified, like all others who knew him, that 'never in the whole progress of his varied life, could I perceive the slightest shade of variance from that simplicity of character with which he impressed me on the first hour of our meeting.' Skene was one of those who joined heartily in promoting the volunteer cavalry movement, and of this affair he has given some interesting particulars. 'The London Light Horse had set the example, but in truth it was to Scott's ardour that this force in the North owed its origin. Unable, by reason of his lameness, to serve amongst his friends on foot, he

had nothing for it but to rouse the spirit of the moss-trooper with which he readily inspired all who possessed the means of substituting the sabre for the musket.' In February 1797 a meeting was held, and an offer was sent to the Government which was at once accepted. The organisation of the corps was then begun. The Major-Commandant was Maitland of Rankeillor. Skene was a cornet: Scott was quartermaster. 'The part of quartermaster was purposely selected for him, that he might be spared the rough usage of the ranks; but, notwithstanding his infirmity, he had a remarkably firm seat on horseback, and in all situations a fearless one: no fatigue ever seemed too much for him, and his zeal and animation served to sustain the enthusiasm of the whole corps, while his ready *mot à rire* kept up, in all, a degree of good-humour and relish for the service, without which the toil and privations of long *daily* drills would not easily have been submitted to by such a body of gentlemen. At every interval of exercise, the order *sit at ease* was the signal for the quartermaster to lead the squadron to merriment; every eye was intuitively turned on "Earl Walter," as he was familiarly called by his associates of that date, and his ready joke seldom failed to raise the ready laugh.... His habitual humour was the great charm, and at the daily mess that reigned supreme.' The gallant squadron continued its daily drills all the spring and summer of 1797, and even spent some weeks under canvas at Musselburgh. Most of the troopers being professional men, they had their drill at five in the morning,—an act of heroic self-denial which speaks volumes for the spirit evoked by 'haughty Gaul's' threats of invasion. By the end of the year England had established her supremacy on sea, all fear of an invasion was dissipated, and the volunteers' occupation for the time was gone.[1]

[1] See, in connection with the volunteer episode, Scott's 'War Song of the Royal Edinburgh Light Dragoons,' written in 1802: also Introduction to Canto v. of *Marmion*.

On the 24th of December of this year Scott was married in St. Mary's Church, Carlisle, to Charlotte Margaret Carpenter, whom he had met for the first time when on a tour during that autumn among the English Lakes. She was the daughter of Jean Charpentier, a French royalist, who had died about the beginning of the Revolution. The widow and her daughter took refuge in England, where Charpentier had, in his first alarm at the outbreak of the revolution, invested a sum of £4000. In a letter to his mother Scott speaks of his wife's fortune as then £500 a year, but precarious as to the amount, being partly dependent on her brother, who held a high office in Madras. With this added to his own earnings, he says, 'I have little doubt we will be enabled to hold the rank in society which my family and situation entitle me to fill.' Their married life in Edinburgh began in a lodging in George Street, from which they removed, as soon as it was ready for their reception, to a house in South Castle Street. Mrs. Scott, who was lively and fond of society, soon found herself the centre of a most interesting social life. Indeed 'those humble days' were perhaps the happiest of all. 'Mrs. Scott's arrival' (says Lockhart) 'was welcomed with unmingled delight by the brothers of *the Mountain*. The officers of the Light Horse, too, established a club among themselves, supping once a week at each other's houses in rotation. The lady thus found two somewhat different, but both highly agreeable circles ready to receive her with cordial kindness; and the evening hours passed in a round of innocent gaiety, all the arrangements being conducted in a simple and inexpensive fashion, suitable to young people whose days were mostly laborious, and very few of their purses heavy. Scott and Erskine had always been fond of the theatre; the pretty bride was

passionately so—and I doubt if they ever spent a week in Edinburgh without indulging themselves in this amusement. But regular dinners and crowded assemblies were in those years quite unthought of.'

In the summer of 1798 began the series of summer sojourns at Lasswade, on the Esk, which brought to Scott important additions to his list of friends. Among his neighbours in this romantic district, which had been his favourite haunt in boyish rambles, were Henry Mackenzie, the 'Man of Feeling,' the Clerks of Pennycuik, and Lord Woodhouselee, with all of whom he was already familiar. But it was at Lasswade that he first 'formed intimacies, even more important in their results, with the noble families of Melville and Buccleuch, both of whom have castles in the same valley.'

'Who knows not Melville's beechy grove,
And Roslin's rocky glen;
Dalkeith, which all the virtues love,
And classic Hawthornden?'

It is of the Esk that he says in the same poem, *The Grey Brother*,

'Thro' woods more fair no stream more sweet
Rolls to the eastern main.'

An interesting notice appeared recently in a local paper regarding Scott and his family's connection with St. George's Episcopal Church in York Place, Edinburgh. He seems to have become a member of what he (in the person of Paulus Pleydell) calls 'the suffering and Episcopal Church of Scotland—the shadow of a shade now' after his marriage had set him free from the

customs of George Square. The Scott family pew in St. George's was No. 81, afterwards No. 85, and the article states that this fact is attested on a brass plate fixed on the pew, as well as by a written statement contained in a closed glass case hung inside the church porch. It was the incumbent of St. George's that officiated at the marriage of Sophia Scott to John Gibson Lockhart. The worshippers in the quaint old church to this day, it is said, take great pride in the memory of the most illustrious member of their historic flock.

CHAPTER XXVIII

The Mercantile Class in Edinburgh—The Town Council—Political Corruption—Petty Tyranny—The Town Clerk—James Laing, Head of the Police—His Methods with Disturbers of the Peace—Anecdotes of Laing and Dugald Stewart.

At the end of the eighteenth century there was no social intercourse between the aristocratic, which was, generally speaking, the educated, class and the mercantile portion of the community. Wealth had not yet become a passport into 'society.' Birth and ancestry, on the contrary, were so, however poor the possessor of an old name might be. The professions, especially that of law, were still mainly recruited from noble or gentle families. As yet also, no traders in Edinburgh had made great fortunes or could afford social display. As individuals, therefore, business people were of no account. Politically, having no votes they had no direct power, and in all public matters their general attitude was one of complete subserviency to their betters. This, of course, was looked upon by both classes as the natural state of things, and explains the humble place occupied by the shopkeeping

characters in the Waverley Novels. Lord Cockburn, speaking of the city government, records that everything of that kind was managed by the town council: light, water, education, trade, the Port of Leith, the streets, the poor, the police. He describes the Council Chamber as a low, dark, blackguard-looking room, entering from a covered passage, on the site of the present Signet Library. The chamber was a low-roofed room, very dark and very dirty, with some small dens off it for clerks. 'Within this Pandemonium sat the town council, omnipotent, corrupt, impenetrable. Nothing was beyond its grasp; no variety of opinion disturbed its unanimity, for the pleasure of Dundas was the sole rule for every one of them. Silent, powerful, submissive, mysterious, and irresponsible, they might have been sitting in Venice.' Speaking of Scottish town councils in general, our authority uses even stronger language. 'Many of the small ones were in the lowest possible condition of public and private morality. In general, they were sinks of political and municipal iniquity, steeped in the baseness which they propagated, and types and causes of the corruption that surrounded them.' This is just the picture that one would draw, if inclined to be censorious and not yielding to any sense of humour, from the very interesting series of facts recorded in John Galt's book, *The Provost*. Depend upon it, there was a good deal of human nature even in an 'unreformed' town council. Of their corrupt subservience to the powers in place there can be no doubt, but they had at least as much of the great quality of efficiency as their reformed successors. Such as they were, they were generally the best men of the best class in each community, and few men of the same type could now be got to enter the popularly elected body. And what would we not give now for the old peace and quietness? The silence would indeed be cheaply bought at the price of the mystery and irresponsibility. Conscience is the only guarantee against corruption, which may flourish like a green bay-tree under popular

election. In 1799, it seems, Mr. Smith, a councillor of Edinburgh, electrified the city by a pamphlet in which he showed that the burgh was bankrupt. What subjects would Mr. Smith not have found for his financial genius if he had lived in 1899? What pamphlets might Mr. Smith have printed on 'the Edinburgh Cable Tramways and their cost,' or on 'the Usher Hall Sinking Fund.' Verily, life in a city might be tolerable but for our town councils.

The old town council had a very simple method of getting their work done. They just left everything to the town clerk and the manager of police. This seems to be the modern method, *minus* the vulgar talk and reports in the newspapers. The town-clerk was Mr. John Gray. Would he were here to-day: a man who could hold his tongue and do jobs quietly! Peace to the ashes of the good Gray: a judicious man, with a belly, white hair, and decorous black clothes; famous for drinking punch; a respectable and useful officer, devoted to his superiors, and chock-full of municipal wisdom. The manager of police was James Laing, about whom we have anecdotes which endear him to the heart of every lover of quiet. James was a hater of noise at untimely hours. He may have been prevented from writing his reminiscences by the rowdy din and uproar which seems to have been then, as it is now, at all hours of the night (constant up to midnight, in the small hours sporadic) as remarkable a feature of residential Edinburgh as its deadly east wind. Fortunately, James had the power, now defunct and obsolete, of making the police operate. One evening the usual demoniac orgy of noise was proceeding, driving peaceful citizens to profanity and despair. The whole devil's tattoo was caused by a mere handful of tipsy hooligans—six or eight baker lads, it seems, of respectable though humble parentage. James set the police in motion, the lads were promptly arrested, and next morning, when the master baker growled 'Ubi est ille apprentice?' echo answered promptly, 'Non est inventus.' A lawyer, however, who took

an interest in the family of one of them, went that morning, greatly daring, to James Laing to inquire, when he was told he need give himself no trouble; 'they are all beyond Inchkeith by this time.' With a promptness of device only equalled by his firmness of purpose, this benefactor of suffering humanity had sent the disciples of Din to exert their demoniac disturbances on the high seas! They had, in fact, been shipped on board a tender in Leith Roads, which James knew was to sail that very morning. After this, one is not astonished to learn that the great Laing was a philosopher and entertained an immense reverence for Dugald Stewart. Stewart used to tell an anecdote which proves that Laing, besides discovering the best means of preserving quiet in the streets, had also solved the problem of finding healthy employment for the police in their 'hours of idleness.' The Professor was walking very early one morning in the Meadows, when he saw a band of men within the enclosure busily engaged apparently in turning up the turf. Upon going up to them, he found his friend Laing commanding the operations, who explained that in these short light nights there was nothing going on with the blackguards, 'and so, ye see, Mr. Professor, I've just brought oot the constables to try our hands at the moudieworts.' They were catching moles.

CHAPTER XXIX

Public Condition of Edinburgh in 1800—Ostracism of Dugald Stewart—The Whigs—Their Struggle for Power—The Infirmary Incident—Dr. Gregory—His Pamphlets—Characteristics—Family Connection with Rob Roy.

Youthful friendship and their simple, kindly way of life counteracted the effects of political feeling as concerned Scott and his Whig friends. Under his humble roof the happiness of the little household was never apparently marred by the intrusion of the soul-poisoning virus of party spite. Had the conditions been reversed, had his political friends been out of power, the difference would not have been great—to him or his. His saving gift of humour would always have prevented him from exaggerating the miseries of the losing side into horrors and persecution. Occupied intellectually with the fascinating vistas of romantic literature and blessed with the sympathy of a charming, brave-hearted wife, and too diffident of his merits to resent the slow advent of professional success, he could never have been chilled and narrowed into a political prig wailing over the injustice of the times. For all that, it was a bad time for many of his professional compeers. From their (that is, the Whig) point of view, the public condition in 1800, and for the preceding ten years, was at once painful and humiliating. Their very political creed subjected them to the suspicion of disloyalty. Their cry of Reform was ill-timed, for who will trouble with repairs to his house when his next-door neighbour's house is being plundered and set on fire? Distrust begot dislike, and dislike grew to detestation. 'The frightful thing,' says one who lived through it, 'was the personal bitterness. The decent appearance of mutual toleration, which often produces the virtue itself, was despised, and extermination seemed a duty. This was bad enough in the capital; but far more dreadful in small places, which were more helplessly exposed to persecution. If Dugald Stewart was for several years not cordially received in the city he adorned, what must have been the position of an ordinary man who held Liberal opinions in the country or in a small town, open to all the contumely and obstruction that local insolence could practise, and unsupported probably by any associate cherishing kindred thoughts? Such

persons existed everywhere; but they were always below the salt.' One may admire the pertinacity of such men, the forerunners of Reform, while regretting the bitterness of feeling engendered on both sides. The great mistake of the Tory party lay in blindly confounding these theoretical politicians with the great mass of the people. In snubbing their opponents they insulted the people, and created a store of hatred against themselves which a century has not exhausted. To this day the 'practical' Liberal politician knows that a hundred clever speeches will have less effect in a Scottish constituency than simply getting his opponent well saddled with the epithet of 'Tory.' The 'regeneration' for which the Whigs of 1800 waited, and which their successors of 1832 thought they had accomplished, turned out to be the institution of a plutocracy. The twentieth century will perhaps experiment in pure democracy, now that the manual workers have begun to *feel* the power which they owe to the tireless efforts of the Whigs.

That public opinion was not altogether powerless even in 1800, is proved by the 'Infirmary' incident. At that time a wellnigh incredible arrangement prevailed in the hospital. Dr. Sangrado held sway for one month, and then Dr. Cuchillo got his turn. The members of the Colleges of Physicians and of Surgeons were the medical officers, and they attended the hospital by a monthly rotation, so that the treatment of the patients was liable to be totally altered every thirty days. A proposal was now made to put an end to the absurdity. The change was advocated by Dr. James Gregory, the celebrated professor, who was then the acknowledged head of his profession in Scotland. He wrote a pamphlet, strongly worded and personal, as was his nature, but convincing. In spite of the opposition of the colleges and the majority of the doctors, Gregory prevailed. The public was unanimous, the managers were convinced, and a resolution was passed that there should henceforth be permanent medical officers.

Dr. Gregory was a great fighter. He came of a remarkable family, the Gregories of Aberdeen, originally an offshoot of the MacGregor clan, and proprietors of Kinardie in Banffshire. His great-grandfather was James Gregory, inventor of the 'Gregorian' reflecting telescope. His grandfather and his father were both distinguished medical professors. It was his father Dr. John Gregory, who counted kin with Rob Roy and entertained the bold outlaw more than once at Aberdeen. On one occasion MacGregor proposed to carry James, then a boy of eight or nine, to the Highlands and 'make a man of him.' The story is told in the Introduction to *Rob Roy* of 1829. Scott there describes James Gregory as 'rather of an irritable and pertinacious disposition'; and says that his friends were wont to remark, when he showed symptoms of temper, 'Ah! this comes of not having been educated by Rob Roy.' Lord Cockburn calls Gregory 'a curious and excellent man, a great physician, a great lecturer, a great Latin scholar, and a great talker; vigorous and generous; large of stature, and with a strikingly powerful countenance. The popularity due to these qualities was increased by his professional controversies, and the diverting publications by which he used to maintain and enliven them. The controversies were rather too numerous; but they were never for any selfish end, and he was never entirely wrong. Still, a disposition towards personal attack was his besetting sin.'

CHAPTER XXX

Strongest 'Impressions' from the Waverley Novels—Special Charm of Death of the old Lawyer in Chrystal Croftangry's Recollections—Death of Walter Scott the Elder—The 'very scene' described—Scott appointed Sheriff—Independence from Court Work.

A boy of ten in a quiet country parish forty years ago took a pride in being able to say—'I have read *all* Shakespeare, *all* Byron, *all* the Waverley Novels,' and so on. The pursuit of this hobby was not entirely fortunate. It tended to omnivorous rather than critical reading—to the pursuit of enjoyment in reading rather than anything else. It had, however, its obvious advantages, and gained him at the University some first prizes, and a certain kindly consideration among his fellows as one whose literary opinions were founded on first-hand knowledge. His experience confirms a well-known opinion of Sir Walter Scott's that children prefer, and on the whole understand quite sufficiently, if they are encouraged to read it, the same literature which fascinates their fathers. 'I am persuaded both children and the lower class of readers hate books which are written *down* to their capacity, and love those that are composed more for their elders and betters. The grand and interesting consists in ideas not in words.' [1] At all events our 'impressionist' testifies that, having read *all* the Waverley Novels in the summer of his tenth year, he now recalls forty years after, from that first reading, chiefly one general impression and three special souvenirs which lived with him and have haunted his imagination ever since. The general impression is an intense interest in History (chiefly, of course, Scottish History) and Antiquities, imbibed from the charming Introductions and

Notes to the Novels. These were read again and again, and always laid aside with a vivid sense of regret that the Notes were so short. The special recollections are of Henry Bertram returning to Ellangowan and recalling the old ballad of 'the bonnie woods o' Warroch Head': of Count Robert of Paris in the dungeon: and, above all, of the death of Chrystal Croftangry's friend in the 'Chronicles of the Canongate.' He still considers Bertram's return the finest touch of romance since Homer pictured the old hound recognising his long-lost master, Ulysses, in the beggar man. Count Robert scarcely affects the man so strongly as he did the boy. But Chrystal Croftangry has still the old charm—a charm trebled by the associations which a knowledge of Scott's life attaches to these inimitable chapters. Lockhart has revealed that 'in the portraiture of Mrs. Murray Keith, under the name of Mrs. Bethune Baliol, he has mixed up various features of his own beloved mother, and in the latter a good deal was taken from nobody but himself.' The pathetic picture of the death of Chrystal's old friend and legal counsellor, drawn with such vigour and intense realism, is without doubt the death-scene of the old 'writer,' Walter Scott, the original of that 'one true friend, who knew the laws of his country well, and, tracing them up to the spirit of equity and justice in which they originate, had repeatedly prevented, by his benevolent and manly exertions, the triumphs of selfish cunning over simplicity and folly.'

[1] *Diary*, June 5, 1827.

The worthy and good old man died in 1799. He had suffered a succession of paralytic attacks, under which mind as well as body had been laid quite prostrate. From the lips of a near relation of the family Lockhart gives the following touching statement made to himself on the publication of the first

'Chronicles of the Canongate'—'I had been out of Scotland for some time, and did not know of my good friend's illness, until I reached Edinburgh, a few months before his death. I saw the very scene that is here painted[2] of the elder Croftangry's sickroom—not a feature different—poor Anne Scott, the gentlest of creatures, was treated by the fretful patient exactly like this niece.' And the biographer adds—'I have lived to see the curtain rise and fall once more on a like scene.'

[2] 'Chronicles of the Canongate,' chap. I. Note that the house is in Brown's Square, where old Fairford dwelt.

The old man's business was continued by his son Thomas, and the property he left, though less than had been expected, was sufficient to make ample provision for his widow, and a not inconsiderable addition to the resources of those among whom the remainder was divided.

On the 16th December 1799, Walter Scott was made Sheriff-Depute of Selkirkshire, with a salary of £300. Probably, had Scott been an avowed Whig, he would never have been offered the post, but beyond the mere fact that he was *not* a Whig, politics had no part in the appointment. Personal friendship no doubt aided his other claims. The strongest efforts were made on his behalf by both Robert and William Dundas, nephews of Henry Dundas (Lord Melville), in whose hands was the general control of all Crown patronage. The same was done by his (Henry Dundas's) son Robert, and Lord Dalkeith and Lord Montague, sons of the Duke of Buccleuch—all ardent volunteers. The result was that the Duke and Dundas, both of whom knew and liked Scott, though neither was at all 'addicted to literature,' had no choice. Neither imagined that in appointing the young advocate to be a sheriff-depute, he was making his best bid for immortality. This very

innocent 'job' was most happily timed. It crowned the modest fortune of the young poet's little household. The duties were light, and though the income was small, it was sufficient to make him independent of the precarious prospects of a profession for which he had never acquired any real liking. He spoke of it himself in the words of Slender about Anne Page—'There was no great love between us at the beginning; and it pleased Heaven to decrease it on further acquaintance.' The end of the century, therefore, saw Scott placed by fortune in the position which was his own ideal—free to devote his best energies to literature, without depending on its results for his own and his family's daily bread.

CHAPTER XXXI

Scott settled in Edinburgh—Defacement of City—Wrytte's House—Gillespie the Snuff-seller—Erskine's Joke—The Woods of Bellevue—Scott's ideal *rus in urbe*.

Scott's public career in literature practically began with the new century. His new duties did not require a change of dwelling-place. Edinburgh continued to be his home, and the centre of his deepest personal interests. The defacement of the city was proceeding merrily, and we cannot doubt that Scott was one of the few who disapproved. An anonymous writer in the *Scots Magazine* for July 1800 refers to the neglect of the Chapel Royal at Holyrood and the destruction of the Nunnery at Sciennes, and protests against the demolition of the old building Wrytte's House, which had just been begun. It consisted of a keep presiding over a group of inferior buildings, most of it as old as the middle of the fourteenth century, and all delightfully picturesque. The writer gives some details which are worth

quoting: 'This magnificent building is adorned with a profusion of sculptured figures, especially above the windows. Above the main door, in beautiful workmanship, are blazoned the arms of Great Britain, with the inscription, J. 6. M. B. F. E. H. R. etc., ... there is a rough but curious piece of sculpture, reminding Nobility of her origin;—Adam digging the ground and Eve twirling the distaff, with the old rhyme beneath:

When Adam delv'd and Eva span,
Quhar war a' the gentiles than?'

Other figures represented the Virtues and the Five Senses. There was a head in bas relief of Julius Cæsar. This, says the writer, is going to be preserved because it has been thought to bear some resemblance to the visage of the celebrated tobacconist whose pious bequest has eventually produced so woful a revolution!

The execrable Vandals who did it were the Trustees of Gillespie's Hospital.

'Duke Luke did this:
God's ban be his!'

But lest we should be tempted to imprecate upon these long-departed Dogberries the curses thundered by Dr. Slop upon the head of poor Obadiah, listen now to Lord Cockburn: 'If I recollect right, this was the first of the public charities of this century by which Edinburgh has been blessed, or cursed. The founder was a snuff-seller, who brought up an excellent young man as his heir, and then left death to disclose that, for the vanity of

being remembered by a thing called after himself, he had all the while had a deed executed by which this, his nearest, relation was disinherited.'

One of Henry Erskine's jokes was at the expense of this double-minded old snuff-seller. He suggested for Gillespie's carriage panels the motto, 'Quid rides,' and beneath it:

'Wha wad hae thocht it,
That noses wad hae bocht it?'

After briefly describing the old castle, Cockburn goes on: 'Nothing could be more striking when seen against the evening sky. Many a feudal gathering did that tower see on the Borough Moor; and many a time did the inventor of logarithms, whose castle of Merchiston was near, enter it. Yet it was brutishly obliterated, without one public murmur.... The idiot public looked on in silence. How severely has Edinburgh suffered by similar proceedings, adventured upon by barbarians, knowing the apathetic nature, in these matters, of the people they have had to deal with. All our beauty might have been preserved, without the extinction of innumerable antiquities, conferring interest and dignity. But reverence for mere antiquity, and even for modern beauty *on their own account*, is scarcely a Scotch passion.'

Another case. In the *Scots Magazine* for May appeared, among the odd scraps of news, this paragraph—'The elegant villa of Bellevue, the property of the late Mrs. General Scott, in the neighbourhood of this city, has been purchased by the Town Council; the terms, we understand, are a feu-duty of £1050 per annum, with the privilege of buying it up, within seven years, for £20,200. The pleasure ground is to be laid out for building conformable to a plan.'

The grounds of Bellevue were practically the whole space between the east end of Queen Street and Canonmills, now fully covered with streets and houses. The site of the villa was about the centre of the Drummond Place enclosure, and on it was erected a custom-house which the old guide-book calls 'another splendid appendage to this flourishing city, which is now so rapidly enlarging its dimensions.' Such was the idea of the unspeakable Philistines who destroyed this unmatched scene of beauty, and transformed it into a commonplace urban corner. The desecration does seem, however, to have been lamented, if not more actively resented. Lord Cockburn speaks of people 'shuddering when they heard the axes busy in the woods of Bellevue, and furious when they saw the bare ground. But the axes, as usual, triumphed.' The old woodcut, stiff and hard in its lines, showing the three-storied barracks of Queen Street, commanding a free view west, north, and east, upon an open sylvan scene, is enough to make one weep; and pathetic, too, in the same way is Cockburn's story: 'No part of the home scenery of Edinburgh was more beautiful than Bellevue.... The whole place waved with wood, and was diversified by undulations of surface, and adorned by seats and bowers and summer-houses. Queen Street, from which there was then an open prospect over the Firth to the north-western mountains, was the favourite Mall. Nothing certainly, within a town, could be more delightful than the sea of the Bellevue foliage, gilded by the evening sun, or the tumult of blackbirds and thrushes sending their notes into all the adjoining houses in the blue of a summer morning. We clung long to the hope that, though the city might in time surround them, Bellevue at the east, and Drumsheugh (Lord Moray's place) at the west, end of Queen Street, might be spared.... But the mere beauty of the town was no more thought of at that time by anybody than electric telegraphs and railways; and perpendicular trees, with leaves and branches, never find

favour in the sight of any Scotch mason. Indeed in Scotland almost every one seems to be a "foe to the Dryads of the borough groves." It is partly owing to our climate, which rarely needs shade; but more to hereditary bad taste. So that at last the whole spot was made as dull and bare as if the designer of the New Town himself had presided over the operation.'

There are many allusions in the works of Scott to 'the rage of indiscriminate destruction which has removed or ruined so many monuments of antiquity.' With special reference to Edinburgh, showing how little the barbarous 'improvements' of the new commercial generation were to his mind, Chrystal Croftangry, coming back to his native city after long absence, decides to choose his dwelling-place not in George Square—nor in Charlotte Square—nor in the old New Town—nor in the new New Town—but in the Canongate—'Perhaps expecting to find some little old-fashioned house, having somewhat of the *rus in urbe*, which he was ambitious of enjoying.'

CHAPTER XXXII

Richard Heber in Edinburgh—Friendship with Scott—'Discovers' John Leyden—Leyden's Education—His Appearance, Oddities—Love of Country—His Help in *Border Minstrelsy*—Anecdote told by Scott—Leyden a Man of Genius.

Scenes sung by him who sings no more!
His bright and brief career is o'er,
And mute his tuneful strains;
Quench'd is his lamp of varied lore,

That loved the light of song to pour;
A distant and a deadly shore
Has LEYDEN'S cold remains!'

Richard Heber, king of bibliomaniacs, being in Edinburgh in the winter of 1799-1800, was warmly welcomed by the cultured society of the city, and finding in Scott a kindred spirit, was soon drawn 'into habits of close alliance' with the young antiquary whom he found at that time so absorbed in a congenial task. Scott was busy in research for his edition of the Border ballads, and Heber was delighted to enter into his plans, assisting him with advice and with free access to the vast stores of rare books which he had already collected. Their pleasant friendship is celebrated in that delicious Christmas piece which introduces the sixth canto of *Marmion*:—

'How just that, at this time of glee,
My thoughts should, Heber, turn to thee!
For many a merry hour we 've known,
And heard the chimes of midnight's tone.

Cease, then, my friend! a moment cease,
And leave these classic tomes in peace!
Of Roman and of Grecian lore,
Sure mortal brain can hold no more.

Heber used to prowl about among the old book-shops, wherever he might come upon MSS. or books that might be of use for the *Minstrelsy*. One day he was searching in the small shop kept by a young bookseller named Archibald Constable, when his attention was attracted 'by the countenance

and gestures of another daily visitant, who came not to purchase, evidently, but to pore over the more recondite articles—often balanced for hours on a ladder with a folio in his hand like Dominie Sampson.' Some casual talk led Heber to the discovery that his odd-looking acquaintance was 'a master of legend and traditions—an enthusiastic collector and skilful expounder of these very Border ballads.' He introduced the young man to Scott, who soon learned that this was the 'J.L.' whose verses in the *Edinburgh Magazine* had often much excited his curiosity, as showing that their author was a native of the Scottish Borders. Thus commenced the friendship between Scott and Leyden, two poets who were at least equal in that intense love of Scotland which is expressed with natural charm in the verses of both.

John Leyden, then twenty-five years of age, was a man who rivalled, in his extraordinary powers of acquiring knowledge, the almost fabulous records of the Admirable Crichton and Pico di Mirandola. The son of a shepherd, he was born at Denholm, a village of Roxburghshire, in 1775. After learning what he could at a small country school and getting some help in Latin from a neighbouring minister, the boy set to work to educate himself, making even then a special study of old Scottish works, such as the rhyming chronicles of Wallace and Bruce, Sir David Lyndsay's poems, and the ballads of Teviotdale. When he came to Edinburgh University in 1790, it is said he astonished all by his odd manners and speech, and confounded his teachers 'by the portentous mass of his acquisitions in almost every department of learning.' 'He was'—this is Cockburn's description—'a wild-looking, thin, Roxburghshire man, with sandy hair, a screech voice, and staring eyes—exactly as he came from his native village of Denholm; and not one of these not very attractive personal qualities would he have exchanged for all the graces of Apollo. By the time I knew him he had made himself one of our social shows, and could and did say whatever he

chose. His delight lay in arguments ... always conducted on his part in a high shrill voice, with great intensity, and an utter unconsciousness of the amazement, or even the aversion, of strangers. His daily extravagances, especially mixed up, as they always were, with exhibitions of his own ambition and confidence, made him be much laughed at even by his friends. Notwithstanding these ridiculous or offensive habits, he had considerable talent and great excellences. There is no walk in life, depending on ability, where Leyden could not have shone. Unwearying industry was sustained and inspired by burning enthusiasm. Whatever he did, his whole soul was in it. His heart was warm and true. No distance, or interest, or novelty could make him forget an absent friend or his poor relations. His physical energy was as vigorous as his mental; so that it would not be easy to say whether he would have engaged with a new-found eastern manuscript, or in battle, with the more cordial alacrity. His love of Scotland was delightful. It breathes through all his writings and all his proceedings, and imparts to his poetry its most attractive charm. The affection borne him by many distinguished friends, and their deep sorrow for his early extinction, is the best evidence of his talent and worth. Indeed, his premature death was deplored by all who delight to observe the elevation of merit, by its own force and through personal defects, from obscurity to fame. He died in Batavia at the age of thirty-six. Had he been spared, he would have been a star in the East of the first magnitude.'

Leyden's work on the *Border Minstrelsy* deserves more than casual notice, and was most warmly and amply acknowledged by Scott. The Dissertation on Fairies, which introduces the second volume, 'although arranged and digested by the editor, abounds with instances of such curious reading as Leyden only had read, and was originally compiled by him.' Leyden was equally enthusiastic in collecting the ballads, and was

determined from the first to make the collection a big thing—to turn out three or four volumes at least. 'In this labour,' says Scott, 'he was equally interested by friendship for the editor, and by his own patriotic zeal for the honour of the Scottish borders; and both may be judged of from the following circumstance. An interesting fragment had been obtained of an ancient historical ballad; but the remainder, to the great disturbance of the editor and his coadjutor, was not to be recovered. Two days afterwards, while the editor was sitting with some company after dinner, a sound was heard at a distance like that of the whistling of a tempest through the torn rigging of the vessel which scuds before it. The sounds increased as they approached more near; and Leyden (to the great astonishment of such of the guests as did not know him) burst into the room, chanting the desiderated ballad with the most enthusiastic gesture, and all the energy of what he used to call the saw-tones of his voice. It turned out that he had walked between forty and fifty miles and back again, for the sole purpose of visiting an old person who possessed this precious remnant of antiquity.'

Only men of the warm-blooded species could thoroughly appreciate John Leyden. His absurdities had nothing akin to foolishness. They were the inevitable accompaniments of genius operating, Alexander-like, towards what appeared impossible.

CHAPTER XXXIII

The 'Young Men of Edinburgh'—Their Whiggery—Anecdote of Jeffrey and Bell—James Grahame, Author of *The Sabbath*—Sydney Smith—His Liking for Scotland—Whig Dread of Wit—Lord Webb Seymour—Horner's Analysis of him—Friendship with Playfair—His Anecdote of Horner.

The name of Leyden suggests the remarkable 'concentration of conspicuous young men' of which Lord Cockburn speaks so often with pride. They were mostly Whigs, drawn together by political sympathy and speculative tastes. Most of them attained the high distinction to which their talents well entitled them to aspire, and several of them achieved high literary fame. Jeffrey, Cockburn, and Brougham were at the centre of this group, which also for a time included Leyden, Sydney Smith, Thomas Campbell, Francis Horner, and John Allen. Scott, as we know, was on terms of warm intimacy with some of these, but he was not one of their society, though he used to say he seemed never to enjoy an evening so much as when spent among his Whig friends. To the same set belonged George Joseph Bell, author of the *Commentaries on the Law of Bankruptcy*, and afterwards Professor of Law in Edinburgh University. From the *Life of Jeffrey* it is evident that Bell's influence on the future Reviewer was great and invaluable. The sight of Bell's tireless assiduity at his great work made Jeffrey exclaim—'Since I have seen you engaged in that great work of yours, and witnessed the confinement and perspiration it has occasioned you, I have oftener considered you as an object of envy and reproachful comparison than ever before.... I have wished myself hanged for a puppy.' He was constantly exhorting Jeffrey to exertion, and really inspired him with the hope and confidence that led to success.

Another estimable Whig ('but with him Whig principles meant only the general principles of liberty') was James Grahame, best known from his poem *The Sabbath*. Professor Wilson greatly esteemed Grahame, and wrote an elegy to his memory, which Cockburn says owes its charm to its expressing the gentle kindness and simple piety of his departed friend. 'His delight was in religion and poetry, and he was perfectly contented with his humble curacy. With the softest of human hearts, his indignation knew no

bounds when it was roused by what he held to be oppression, especially of animals or the poor, both of whom he took under his special protection. He and a beggar seemed always to be old friends.'

A happy accident brought the Rev. Sydney Smith to Edinburgh. He had abandoned the dreary solitude of Nether Avon, where he was 'the first and purest pauper of the hamlet,' in order to accompany, as bear-leader, the son of Squire Beach to the University of Weimar in 1797, but the disturbed state of affairs at that time in Germany made their plans impracticable. So, as Smith put it, they were driven 'by stress of politics' into Edinburgh. Here he found a very congenial society, and soon became a leader among the younger Whigs. It was part of his humour to gird at Scotland as the garret of the world, or the knuckle-end of England, and at Scotsmen for requiring a surgical operation to appreciate a joke, but there was no part of Britain where his wit and jokes were more appreciated, and his daughter, Lady Holland, testifies to his strong liking for both the country and the people. It is said that he and his companions gained for Edinburgh the title of the Modern Athens.

Unfortunately Cockburn's reference to Sydney Smith is very brief. He only says—'Smith's reputation here then was the same as it has been throughout his life, that of a wise wit. Was there ever more sense combined with more hilarious jocularly? But he has been lost by being placed within the pale of holy orders. He has done his duty there decently well, and is an admirable preacher. But he ought to have been in some freer sphere; especially since wit and independence do not make bishops.' One feels tempted to add 'under a Whig Government.' It is only justice to the memory of the wittiest of men to say that 'decently well' as applied to his parochial work is faint praise.' It was from beginning to end of his career brilliantly conducted, and it was only 'the timidity of the Whigs' that prevented his

being made a bishop. The Tory minister, Lord Lyndhurst, in 1829 promoted him to a prebendal stall at Bristol. It was only stupid people who doubted Smith's orthodoxy, and the doubt originated solely in the popularity of his jokes.

Another Englishman, who was one of the distinguished company and who lived in Edinburgh from 1797 to his death in 1819, was Lord Webb Seymour, brother of the Duke of Somerset. His purpose in retiring to Edinburgh was to devote himself wholly to the study of science and philosophy, a purpose which he carried out without swerving for a moment. Such a man could not fail to be universally respected and beloved. It can be seen from Horner's *Memoirs* how excellent was the effect which the truly philosophic views and practice of this rare man had upon the minds and characters of his friends. Horner in his *Journal* analyses his friend's character very acutely: 'He possesses several of the most essential constituents to the character of a true philosopher—an ardent passion for knowledge and improvement, with apparently as few preconceived prejudices as most people can have. A habit of study intense almost to plodding—a mild, timid, reserved disposition.... He can subject himself to general rules, which perhaps he carries too far in matters of diet, etc. His knowledge of character quite astonishes me at times—his proficiency in the science of physiognomy.' Horner must have been charmed to meet so much of himself in the personality of another. Seymour, being such a man, disapproved of Horner's entry into political life. His friendship with Playfair, the great mathematician and geologist, was famous. Geology was the favourite pursuit of both, and they were continually together in scientific walks and excursions. Cockburn says: 'They used to be called man and wife. Before I got acquainted with them, I used to envy their walks in the neighbourhood of Edinburgh, and their scientific excursions to the

recesses of the Highland glens, and to the summits of the Highland mountains. Two men more amiable, more philosophical and more agreeable there could not be.'

Francis Horner, the youngest of the band, became prominent at an early age for his strong and very independent views on politics. Sydney Smith was 'cautioned against him' by some excellent and feeble people to whom he had brought letters of introduction. This led to their friendship. It was of Horner that Smith said: 'The commandments were written on his face. I have often told him there was not a crime he might not commit with impunity, as no judge or jury who saw him could give the smallest degree of credit to anything that was said against him.' The following anecdote related by Smith is a happy illustration of the character of Horner and of his friend who tells it: 'He loved truth so much, that he never could bear any jesting upon important subjects. I remember one evening the late Lord Dudley and myself pretended to justify the conduct of the government in stealing the Danish fleet; we carried on the argument with some wickedness against our graver friend; he could not stand it, but bolted indignantly out of the room; we flung up the sash, and, with loud peals of laughter, professed ourselves decided Scandinavians; we offered him not only the ships, but all the shot, powder, cordage, and even the biscuit, if he would come back; but nothing could turn him; he went home, and it took us a fortnight of serious behaviour before we were forgiven.'

CHAPTER XXXIV

M. G. Lewis—Seeks out Scott—*The Monk*—Translation by Scott of Goetz—Anecdote of Lewis—James Ballantyne—Prints *Apology for Tales of Terror*—William Laidlaw—James Hogg—Character

and Talents.

Scott's connection with M. G. Lewis, author of *The Monk*, was brought about through William Erskine's having shown him Scott's translations from the German. Lewis was eager to get Scott enlisted as a contributor to his projected *Tales of Wonder*. He came to Edinburgh in the autumn of 1798, and Scott long afterwards told Allan Cunningham that he had never felt such elation as when the 'Monk' invited him to dine with him for the first time at his hotel. Lewis indeed was *the* literary lion of the time. Charles Fox had crossed the floor of the House of Commons to congratulate him on his book. The London literary world was for the time classified into the adherents and the detractors of *The Monk*. Scott and he now met frequently, and it should not be forgotten, in justice to the small man, that the great one, roused by the ringing lines of 'Alonzo the Brave' and such resounding ware, was by him first set upon trying his hand at original verse, 'for' (Scott adds) 'I had passed the early part of my life with a set of clever, rattling, drinking fellows, whose thoughts and talents lay wholly out of the region of poetry.' Lewis was very small in person, and looked always like a schoolboy. Moreover, for all his cleverness, he was a decided bore in society; but all the same he was, as Scott always maintained, a good and generous man, who did good by stealth. Soon after this, he took the trouble to arrange for Scott the publication of his translation of Goethe's *Goetz von Berlichingen*, bargaining with Bell the publisher for twenty-five guineas for the copyright, and another twenty-five guineas in case of a second edition, which, however, was not called for till long after the copyright had expired. The *Goetz* came out in February 1799. Lewis also did his best to get another half-translated, half-original dramatic piece of Scott's, *The House of Aspen*, produced on the stage, but without success. Scott has an anecdote of Lewis

in his *Journal* which is rather amusing:—'I remember a picture of him being handed about at Dalkeith House. It was a miniature, I think by Saunders, who had contrived to muffle Lewis's person in a cloak, and placed some poignard or dark lanthorn appurtenance (I think) in his hand, so as to give the picture the cast of a bravo. It passed from hand to hand into that of Henry, Duke of Buccleuch, who, hearing the general voice affirm that it was very like, said aloud, "That like Matt Lewis? Why, that picture's like a *Man!*" Imagine the effect! Lewis was at his elbow.'

Towards the end of the year 1799 occurred an incident, trifling enough in itself, which was destined by the sport of Fate to bring disaster and sorrow upon the life of Scott. He had paid a short visit to Rosebank, his uncle's house at Kelso, and was preparing to return to Edinburgh for the winter, when an old acquaintance, James Ballantyne, the eldest son of a Kelso shopkeeper, called to see him. James, having failed to establish himself as a solicitor, was now the printer and editor of a weekly newspaper in Kelso. The writing of a short legal article by Scott for the *Kelso Mail* led to Ballantyne's printing twelve copies of a few of Scott's ballads under the title of *Apology for Tales of Terror*—1799. Very soon after this Scott appears to have been planning that fatal scheme of partnership which brought Ballantyne to town and all his woe.

In Edinburgh Scott still continued his attendance at the Bar. But all the time he could spare beyond this and his sheriff's duties, was devoted during the years 1800 and 1801 to his labours on the *Minstrelsy*. In fact, he combined to some extent his double aims, and the sheriff's visits to Ettrick Forest often resulted in large additions to the ballad-editor's stores. In one of these excursions he was hospitably entertained at the farm of Blackhouse, on the Douglas burn. There he found another zealous assistant in ballad-hunting, William Laidlaw, the son of his kindly host. Of this ever-

memorable and most faithful friend of Scott, Lockhart says: 'He was then a very young man, but the extent of his acquirements was already as noticeable as the vigour and originality of his mind: and their correspondence, where "Sir" passes at a few bounds, through "Dear Sir" and "Dear Mr. Laidlaw," to "Dear Willie," shows how speedily this new acquaintance had warmed into a very tender affection. Laidlaw's zeal about the ballads was repaid by Scott's anxious endeavours to get him removed from a sphere for which, he writes, "it is no flattery to say that you are much too good." It was then, and always continued to be, his opinion, that his friend was particularly qualified for entering with advantage on the study of the medical profession; but such designs, if Laidlaw himself ever took them up seriously, were not ultimately persevered in; and I question whether any worldly success could, after all, have overbalanced the retrospect of an honourable life spent happily in the open air of nature, amidst scenes the most captivating to the eye of genius, and in the intimate confidence of, perhaps, the greatest of contemporary minds.'

James Hogg, the 'Ettrick Shepherd,' was at this time working in a neighbouring valley. Laidlaw told Scott of the humble shepherd who was so fond of the local songs and ballads, and whose aged mother was celebrated in the Ettrick dales for having by heart several notable ballads in a perfect form. 'The personal history of James Hogg' (says Lockhart) 'must have interested Scott even more than any acquisition of that sort which he owed to this acquaintance with, perhaps, the most remarkable man that ever wore the *maud* of a shepherd. Under the garb, aspect, and bearing of a rude peasant—and rude enough he was in most of these things, even after no inconsiderable experience of society—Scott found a brother poet, a true son of nature and genius, hardly conscious of his powers. He had taught himself to write by copying the letters of a printed book as he lay watching his flock

on the hillside, and had probably reached the utmost pitch of his ambition, when he first found that his artless rhymes could touch the heart of the ewe-milker who partook the shelter of his mantle during the passing storm. As yet his naturally kind and simple character had not been exposed to any of the dangerous flatteries of the world; his heart was pure, his enthusiasm buoyant as that of a happy child; and well as Scott knew that reflection, sagacity, wit and wisdom, were scattered abundantly among the humblest rangers of these pastoral solitudes, there was here a depth and a brightness that filled him with wonder, combined with a quaintness of humour, and a thousand little touches of absurdity, which afforded him more entertainment, as I have often heard him say, than the best comedy that ever set the pit in a roar.'

Hogg, it should be mentioned, had been in the service of Mr. Laidlaw at Blackhouse from 1790 to 1799, and during that time had been treated with great sympathy and kindness. He enjoyed the run of all the books in the house, and was prompted and encouraged with his rhymes. Hogg was born in 1772, being thus a year younger than Scott.

CHAPTER XXXV

Failure of Lewis's *Tales*—Scott's *Border Minstrelsy*—Ballantyne's Printing—His Conceit—Removal of Chief Baron from Queensberry House—His odd Benevolence—Anecdote of Charles Hope—The Schoolmasters Act.

The long-deferred *Tales of Wonder* at length appeared in 1801. For various reasons the book was a failure. A vigorous parody held up the author's style and person to ridicule. On the whole, however, Scott's share in the unlucky

venture did him no harm. His contributions, he says, were dismissed without much censure, and in some cases received praise from the critics. 'Like Lord Home at the battle of Flodden, I did so far well, that I was able to stand and save myself.'

The episode seems to have made him all the more eager to come forward on his own account with the *Minstrelsy*. Volumes I. and II. were published in January 1802 by Cadell and Davies, of the Strand. The edition was specially remarkable as being the first work printed by James Ballantyne from his press at Kelso. 'When the book came out, the imprint, Kelso, was read with wonder by amateurs of typography, who had never heard of such a place, and were astonished at the example of handsome printing which so obscure a town had produced.' (See 'Essay on Imitations of the Ancient Ballad.') We know from Lockhart that the editor's most sanguine expectations were exceeded by its success. The edition was exhausted in the course of the year, and Scott received £78, 10s., being half the net profits of the venture. Longman, it seems, came in person to Edinburgh, to make 'a very liberal offer' for the copyright, including the third volume, which was accepted. There is a letter to Scott from James Ballantyne, who had been in London, 'cultivating acquaintance with publishers,' in which he says, 'I shall ever think the printing the *Scottish Minstrelsy* one of the most fortunate circumstances of my life. I have gained, not lost by it, in a pecuniary light; and the prospects it has been the means of opening to me, may advantageously influence my future destiny. I can never be sufficiently grateful for the interest you unceasingly take in my welfare. One thing is clear—that Kelso cannot be my abiding place for aye.'

Soaring ambition of the 'stickit solicitor,' and melancholy blindness of the great man who took the conceited 'cratur' on his own valuation! But the ill-omened 'Bulmer of Kelso' had not yet descended on the Canongate,

when an event happened which may be regarded as summing up and crowning the transformation of old Edinburgh. It was a sort of postscript to the change which the last generation had seen effected with such startling and tragic rapidity. This was the removal (in 1801) of the family of Lord Chief Baron Sir James Montgomery from their famous residence, Queensberry House in the Canongate. Queensberry House was acquired by the first Duke of Queensberry from Lord Halton, afterwards Earl of Lauderdale. The Duke is said to have practically rebuilt it and made it, both inside and out, one of the finest mansions in the country. To-day there is nothing suggestive of former grandeur about the building, except its size and the massive wall which fronts it. The name 'Queensberry House' is painted on the gate and is also on a brass plate at the bell-handle. The building looks like a modern barrack, the windows having been pointed and freshened up for the visit of King Edward: very proper treatment for a 'House of Refuge,' if not for Queensberry House. In this mansion, 'Kitty, beautiful and young,' the wife of Charles, third Duke, used to lead the aristocratic society of Edinburgh in the days of the first and second Georges. She was the friend of Prior, who celebrated her as 'the Female Phaeton,' and half a century later Horace Walpole added two lines to the poem:—

'To many a Kitty Love his car will for a day engage,
But Prior's Kitty, ever fair, obtained it for an age.'

Under 'Old Q.' the mansion in the Canongate was dismantled. Sir James Montgomery resided in it till 1801, when he resigned his seat as Chief Baron, and retired to the country. 'I believe' (says Cockburn) 'he was the last gentleman who resided in that historical mansion, which, though now one

of the asylums of destitution, was once the brilliant abode of rank and fashion and political intrigue. I wish the Canongate could be refreshed again by the habitual sight of the Lord Chief Baron's family and company, and the gorgeous carriage, and the tall and well-dressed figure, in the old style, of his Lordship himself. He was much in our house, my father being one of his Puisnes. Though a remarkably kind landlord, he thought it his duty to proceed sometimes with apparent severity against poachers, smugglers, and other rural corrupters; but as it generally ended in his paying the fine himself, in order to save the family, his benevolence was supposed to do more harm than his justice did good. He died in 1803.'

On the occasion of Montgomery's retirement Robert Dundas was appointed Lord Chief Baron, and Charles Hope became Lord Advocate. His short career was signalised by a somewhat rash and high-handed proceeding against Morison, a Banffshire farmer, who had dismissed a ploughman for absenting himself without leave in order to attend a volunteer drill. The matter led to a motion of censure in the House of Commons, which was not carried, but considerable odium was stirred. Hope in his defence had spoken of the Lord Advocate as vested with the whole powers of the state, both military and civil. An English newspaper reported Hope's return to Scotland in this satirical paragraph:—'Arrived at Edinburgh, the Lord High Chancellor of Scotland, the Lord Justice-General, the Lord Privy Seal, the Privy Council, and the Lord Advocate, all in one post-chaise, containing only a single person.'

Lord Cockburn has very properly defended the memory of Hope from all imputation of injustice. This act, he says, was entirely owing to a hot temperament not cooled by a sound head. 'In spite of all his talent and all his worth, had he continued in the very delicate position of Lord Advocate, his infirmity might have again brought him into some similar trouble. It was

fortunate therefore that the gods, envying mortals the longer possession of Eskgrove, took him to themselves; and Hope reigned in his stead. He was made Lord Justice-Clerk in December 1804.'

It was Hope that carried through the Schoolmasters Act of 1803, by which the heritors were compelled to build houses for the schoolmasters. The Act prescribed that the houses (!) need not contain more than two rooms *including the kitchen*. The provision was considered shabby even in those days, but it was all that could be got out of Parliament then. Hope told Lord Cockburn that he had considerable difficulty in getting even the two rooms, and that a great majority of the lairds and Scottish members were indignant at being obliged to 'erect palaces for dominies.'

CHAPTER XXXVI

Anecdotes of R. P. Gillies—His Picture of Scott—'Border Press' at Abbeyhill—Britain armed for Defence—Scenes in Edinburgh—'Captain' Cockburn.

The eccentric R. P. Gillies seems to have made Scott's acquaintance about this time. This gentleman, of whom Scott, with his usual tenderness to the unfortunate, says 'a more friendly, generous creature never lived,' seems to have been in sore distress about 1825-26. He is frequently mentioned in Scott's *Journal*, sending numerous 'precatory letters' while Scott's own troubles were at the worst. Both Lockhart and Scott made efforts to assist him. Gillies about the year 1851 brought out his *Memoirs of a Literary Veteran*, in which he says that Scott was 'not only among the earliest but most persevering of my friends—persevering in spite of my waywardness.' One of R. P. G.'s whims, being a rather clever calligraphist, was to imitate

some other person's handwriting, and he used to continue for months writing in imitation of some one or other of his friends. A fresh idea, however, had struck him at the time he was engaged on certain translations from the German which Lockhart had got Constable to undertake to publish for him. He wrote the whole with a brush upon large cartridge paper, and when it was finished, two stout porters were required to carry the huge bales to the publisher's office. The result was, as might have been expected, that Constable drew back from so tremendous an undertaking. It is amusing to find that the monstrous MS. was welcomed by another Edinburgh publisher, who paid £100 for it and issued the book under the title of *The Magic Ring*.

We are indebted to the same R. P. G. for some interesting remarks on Scott's appearance in 1802: 'At this early period, Scott was more like the portrait by Saxon, engraved for the *Lady of the Lake*, than any subsequent picture. He retained in features and form an impress of that elasticity and youthful vivacity, which he used to complain wore off after he was forty, and by his own account was exchanged for the plodding heaviness of an operose student. He had now, indeed, somewhat of a boyish gaiety of look, and in person was tall, slim, and extremely active.'

About the end of this year James Ballantyne came to Edinburgh and established his 'Border Press' at Abbeyhill, in the neighbourhood of Holyrood House. He at this time received 'a liberal loan' from Scott, who thus became implicated in this unfortunate concern.

The condition of public affairs was now beginning to relieve somewhat the tension of bitter feeling. Cockburn remarks that, 'upon the whole events were bringing people into better humour. Somewhat less was said about Jacobinism, though still too much; and sedition had gone out. Napoleon's obvious progress towards military despotism opened the eyes of those who

used to see nothing but liberty in the French revolution; and the threat of invasion, while it combined all parties in defence of the country, raised the confidence of the people in those who trusted them with arms, and gave them the pleasure of playing at soldiers. Instead of Jacobinism, Invasion became the word.'

Francis Horner writes from London: 'I understand the spirit of the people in London is, in general, almost as good as can be wished, and better than could have been expected. The police magistrates can form a tolerably good guess from their spies in the alehouses. In the country, particularly along the coast, the spirit of the people is said to be very high. Indeed no other country of such extent ever exhibited so grand a spectacle as the unanimity in which all political differences are at present lost.' In this letter to John Archibald Murray, referring to the *Beacon*, a weekly paper of 'incitements to patriotism,' he says, 'Pray have you engaged Walter Scott in these patriotic labours? His Border spirit of chivalry must be inflamed at present and might produce something. I wish he would try a song. I joined Mackintosh in exhorting Campbell to court the Tyrtæan muse: as yet he has produced nothing; not that I looked upon the success of his efforts with certainty, being not quite in his line; but a miracle produced "Hohenlinden," and this is now the age of miracles of every kind.' Later on this idea also occurred to Warren Hastings.

The war which broke out in 1803 and continued till Napoleon's fearful power was shattered for ever on the field of Waterloo, was a struggle altogether different in aims and spirit from that which began in 1792. Conquest, warlike fame, and personal aggrandisement were now Napoleon's aims, and the inspiring watchword of Liberty was now transferred from his banners to those of his enemies. In checking the great Frenchman's ambition the Allies were guarding the freedom of Europe. In

Britain every man was roused to defence, and felt, like Horner, that 'the people of England were about to gain for civilisation and democracy a very splendid triumph over military despotism.' The threatened invasion was in every man's mind at every moment and in every place. The scene Cockburn now witnessed in Edinburgh had its counterpart in every city of the kingdom:—

'Edinburgh became a camp. We were all soldiers, one way or other. Professors wheeled in the college area; the side arms and the uniform peeped from behind the gown at the bar, and even on the bench; and the parade and the review formed the staple of men's talk and thoughts. Hope, who had kept his Lieutenant-Colonelcy when he was Lord Advocate, adhered to it, and did all its duties after he became Lord Justice-Clerk. This was thought unconstitutional by some; but the spirit of the day applauded it. Brougham served the same gun in a company of artillery with Playfair. James Moncrieff, John Richardson, James Grahame (*The Sabbath*), Thomas Thomson, and Charles Bell were all in one company of riflemen. Francis Horner walked about the streets with a musket, being a private in the Gentlemen Regiment. Dr. Gregory was a soldier, and Thomas Brown the moralist, Jeffrey, and many another since famous in more intellectual warfare. I, a gallant captain, commanded ninety-two of my fellow-creatures from 1804 to 1814—the whole course of that war.'

CHAPTER XXXVII

Enthusiasm of Volunteers—Drill and Sham Fights—Scott's Letters—Quartermaster—Anecdote by Cockburn—Recruiting for the Army—Indifference to Fear of Invasion—Greatness of the Danger—War Song of 1802.

Captain Coburn's company was the left flank company of the 'Western Battalion of Midlothian Volunteers.' The right flank company was commanded by John Archibald Murray (afterwards Lord Murray), so that both these companies had embryo judges at their head. So ardent was their zeal that, besides the general day performance in Heriot's Green and Bruntsfield Links, the two companies used to drill almost every night of the four winter months of 1804 and 1805, by torch-light, in the ground flat of the George Street Assembly Rooms, which was then all one earthen-floored apartment. Then there was drilling with the whole regiment, besides parades, reviews, and four to six inspections in the course of the year. Sometimes they were ordered on 'permanent duty' to Leith or Haddington, and billeted on the long-suffering citizens. Then there were the sham fights, the marches, and the continual serio-comedy of the officers' mess. Such was the state of affairs for years in every corner of Great Britain. All who enrolled as volunteers were exempt from the militia ballot and from the risk of having to serve in the field as long as the war lasted. Thus the volunteer ranks were easily filled; and the sense of duty, or the contagious excitement of the time, supplied plenty of officers. The whole population, in fact, became military. Any able-bodied man, of whatever rank, who was *not* a volunteer, or a local militiaman, had to explain or apologise for his singularity.

Scott's letters of this time are full of the camp scenes at Musselburgh. Writing in July, he says to Miss Seward, 'We are assuming a very military appearance. Three regiments of militia, with a formidable park of artillery, are encamped just by us. The Edinburgh Troop, to which I have the honour to be quarter-master, consists entirely of young gentlemen of family, and is, of course, admirably well mounted and armed. For myself, I must own that

to one who has, like me, *la tête un peu exaltée*, "the pomp and circumstance of war" gives, for a time, a very poignant and pleasing sensation. The imposing appearance of cavalry, in particular, and the rush which marks their onset, appear to me to partake highly of the sublime.'

But the sublime was occasionally varied by a touch of the ludicrous. This is brought very vividly before us in the anecdote related by Cockburn, who, like the rest, records Scott's extraordinary zeal in the patriotic cause. 'It was,' he says, 'with him an absolute passion, indulgence in which gratified his feudal taste for war, and his jovial sociableness. He drilled, and drank, and made songs, with a hearty conscientious earnestness which inspired or shamed everybody within the attraction. I do not know if it is usual, but his troop used to practise, individually, with the sabre at a turnip, [1] which was stuck on the top of a staff, to represent a Frenchman, in front of the line. Every other trooper, when he set forward in his turn, was far less concerned about the success of his aim at the turnip, than about how he was to tumble. But Walter pricked forward gallantly, saying to himself, "cut them down, the villains, cut them down!" and made his blow, which from his lameness was often an awkward one, cordially muttering curses all the while at the detested enemy.'

[1] One thinks of Oliver Proudfoot and his sternpost of a dromond, fixed up in his yard for practice. 'That must make you familiar with the use of your weapon,' said the Smith. 'Ay, marry does it.'—*Fair Maid of Perth*, chap. viii.

Looking at the patriotic movement in the cold light of reason, one can see that its real use was a much humbler one than those enthusiastic and gallant fellows intended. Young artisans and ploughmen who had once joined the volunteers, falling in love with the liveliness and display of the military

career, and becoming unsettled in mind for the dull routine of their daily work, drifted readily into the paid militia. Thus the volunteer system was indirectly a splendid means of recruiting for the army. But there can be no doubt that for immediate service in the field—and it was for this that they were preparing—the volunteers would not have been found qualified. Their existence, however, gave the nation confidence, and prevented all danger of panic. It is marvellous to find, on the best evidence of those who lived and acted important parts in those critical years, that the general feeling about invasion was one of complete indifference. Most people went about their own business, and trusted to the country's luck. Although justified by events, it was an ill-founded security. Men of speculative minds, the Cockburns and the Horners, were in a great and genuine fright. Romantic and active spirits, like Scott, anticipated the turning of their sport into earnest at any moment. And how easily it might have happened so. 'Questions are mooted' (said Horner), 'and possibilities supposed, that make one shudder for the fate of the world.' Certainly there were reasons enough for constant fear and dread: the brilliant and unbroken success of Napoleon's arms: Ireland, a ready and willing basis for his first attack: and then the fearful loss and suffering to a country so thickly peopled and utterly unprepared for internal defence, should the war actually be brought within our bounds.

'If ever breath of British gale
Shall fan the tri-color,
Or footstep of invader rude,
With rapine foul, and red with blood,
Pollute our happy shore—
Then, farewell home, and farewell friends!

Adieu each tender tie!
Resolved we mingle in the tide,
Where charging squadrons furious ride,
To conquer or to die.'—

From 'War-Song of Royal Edinburgh
Light Dragoons,' 1802.

CHAPTER XXXVIII

Ashestiel—39 Castle Street—'Honest Tom Purdie'—Associations of Scott's Work with Edinburgh Home—First Lines of the Lay—Abandons the Bar for Literature—Story of Gilpin Horner—Progress of the Poem.

In the summer of 1803, when Scott was engaged in the military functions in which his heart delighted, he received a gentle hint from the Lord-Lieutenant of Selkirkshire with regard to the less exciting claims of his sheriffship. He had not yet complied strictly with the law which required that every sheriff should reside at least four months in the year within his own jurisdiction. In order to comply with the law, the Lasswade cottage was now given up, and in the summer of 1804 the family took up their residence for that season at Ashestiel, a farmhouse very romantically situated on the banks of the Tweed, a few miles from Selkirk. Their town residence, since 1802, was 39 Castle Street, and continued so to be till the black days of 1826. By the death of his uncle Robert in June 1804, Scott inherited Rosebank, 'a beautiful little villa on the banks of the Tweed, and about

thirty acres of the finest land in Scotland.' The estate was sold in the course of the year for £5000. Scott's fixed income, from all sources, at this time seems to have been about £1000 a year. During the first week at Ashestiel the Sheriff acquired his famous retainer 'honest Tom Purdie'; the ideal companion that the Sheriff got so much good of, 'Tom Purdie, kneaded up between the friend and servant, as well as Uncle Toby's bowling-green between sand and clay.' This is Lockhart's account of their meeting: 'Tom was first brought before him, in his capacity of Sheriff, on a charge of poaching, when the poor fellow gave such a touching account of his circumstances—a wife, and I know not how many children, depending on his exertions—work scarce and grouse abundant—and all this with a mixture of odd sly humour,—that the Sheriff's heart was moved. Tom escaped the penalty of the law—was taken into employment as shepherd, and showed such zeal, activity, and shrewdness in that capacity, that Scott never had any occasion to repent of the step he soon afterwards took, in promoting him to the position' (of farm griever) 'which had been originally offered to James Hogg.'

To return to Edinburgh, and 39 Castle Street. 'Poor No. 39' was from 1802 Scott's home and headquarters, his workshop, where he had all his books and manuscripts stored, the tools he delighted to employ in planning and perfecting the wondrous works of his tireless pen and teeming fancy. The house had its connection therefore with the far greater part of Scott's literary work, a connection starting from the *Lay of the Last Minstrel*, which Scott himself regarded as 'the first work in which he laid his claim to be considered as an original author,' and continuing as far as *Woodstock*, on which he was engaged in the fatal January of 1826. Even more than Abbotsford, No. 39 Castle Street deserves to be called the shrine of Scott's memory, having been the scene of his labours, the home of his children's

infancy, the place where his friends and professional colleagues were feasted at his genial board, and the scene where the dauntless old hero took up his lance for his last romantic encounter, the fight with the fiery dragon of debt which Ballantyne had raised to torture his latest years. The *Lay* was not actually commenced here, but at the Lasswade cottage. Here, in the autumn of 1802, he read the opening stanzas to his friends William Erskine and George Cranstoun.[1] They were naturally so much impressed as hardly to venture a remark, and the ardent poet concluded that 'their disgust had been greater than their good-nature chose to express.' He threw the MS. in the fire, but on finding that he had so strangely mistaken their feelings, he decided to begin again. The first canto was completed during a few days' confinement to his room in Musselburgh during the 'autumn manoeuvres,' and he thereafter proceeded with it at the rate of a canto a week. In his letter to George Ellis introducing Leyden, he mentions his intention of including in the third volume of the *Minstrelsy* 'a long poem, a kind of romance of Border chivalry, in a light-horseman sort of stanza.'

[1] Cranstoun, a great favourite of Scott's, was one of his legal advisers in his troubles. He became a lord of session in 1826, as Lord Corehouse.

As we know from the Introduction to the *Lay*, it was now, while the first draft of the poem was finished on his desk, that Scott finally resolved to abandon the Bar for literature. His last year's earnings, 1802-3, were £228, 18s. It is probable that his professional friends expected this, which would be sure to decrease their patronage. 'Certain it is,' he says, 'that the Scottish Themis was at this time peculiarly jealous of any flirtation with the Muses.' It showed, all the same, great confidence in his literary resources, for he

was well aware that anything like a firm reputation with the public was a thing he had still to acquire.

Every one now knows that the story of the goblin page, Gilpin Horner, was really the occasion which started the poem. The beautiful young Countess of Dalkeith, having heard the old legend, suggested half in jest that Scott should make a ballad of it. 'A single scene of feudal festivity in the hall of Branksome, disturbed by some pranks of a nondescript goblin, was probably all that he contemplated; but suddenly, as he meditates his theme to the sound of the bugle, there flashes on him the idea of extending his simple outline so as to embrace a vivid panorama of that old Border life of war and tumult. Erskine, or Cranstoun, suggests that he would do well to divide the poem into cantos, and prefix to each of them a motto explanatory of the action, after the fashion of Spenser in the *Faery Queen*. He pauses for a moment—and the happiest conception of the framework of a picturesque narrative that ever occurred to any poet—one that Homer might have envied—the creation of the ancient harper, starts to life. By such steps did the *Lay of the Last Minstrel* grow out of the *Minstrelsy of the Scottish Border*.'

Lockhart has also drawn attention to the fact that Scott seems to have been quite willing to communicate this poem, in its progress, to all and sundry of his acquaintances. 'We shall find him' (he adds) 'following the same course with his *Marmion*—but not, I think, with any of his subsequent works. His determination to consult the movements of his own mind alone in the conduct of his pieces, was probably taken before he began the *Lay*; and he soon resolved to trust for the detection of minor inaccuracies to two persons only—James Ballantyne and William Erskine.'

CHAPTER XXXIX

Edinburgh Literary Society—The Men of 1800-1820—Revelation of Scott's Poetical Genius—Effect in Edinburgh—Local Pride in his Greatness—Anecdote of Pitt—Success of *Lay of the Last Minstrel*—Connection with Ballantyne—Secrecy of the Partnership.

Enough has been said of individuals, of both the old and the new generation, to show the kind of society which looked on when Walter Scott made his first great attempt upon the public favour. The days of Hume and Home and Robertson were past, but a few of their contemporaries, such as Fergusson and Henry Mackenzie, still adorned the scene. Then there were Jeffrey, Cockburn, Brougham, and the rest of the young Mountaineers whom Cockburn has so fondly sketched. Well may Cockburn sing the praises of the unforgotten time—the first two decades of the nineteenth century. He explains its brilliancy by 'a variety of peculiar circumstances which operated only during this period.' There was, of course, the excitement of the war, with the stir and enthusiasm of the military preparations, all promoting cordiality in social intercourse. The closing of the Continent to the English, and the celebrity of Edinburgh's scientists and philosophers, brought many southerners there for pleasure or for education. But above all, the Edinburgh of those days realised what can seldom be attained more than partially in great centres—the ideal of 'literature and society embellishing each other, without rivalry, and without pedantry.' After the Peace there began a process of decay. Southern visitors turned to Italy and France, as in former years. And our philosophic Memorialist quaintly admits that 'a new race of peaceformed native youths came on the stage, but with little literature, and a comfortless intensity of political zeal.'

To all the best of this interesting society Scott was already known, to many among both the old and the young he was an intimate friend, but they could hardly have foreseen, any more than he himself could have anticipated, the marvellous possibilities of the career of which they now beheld the auspicious start. Fortunately we have, in Cockburn's *Memorials*, a brief and sober, but genuine and interesting picture of contemporary feeling in Edinburgh: 'Walter Scott's vivacity and force had been felt since his boyhood by his comrades, and he had disclosed his literary inclinations by some translations of German ballads, and a few slight pieces in the *Minstrelsy of the Scottish Border*; but his power of great original conception and execution was unknown both to his friends and himself. In 1805 he revealed his true self by the publication of the *Lay of the Last Minstrel*. The subject, from the principle of which he rarely afterwards deviated, was, for the period singularly happy. It recalled scenes and times and characters so near as almost to linger in the memories of the old, and yet so remote that their revival, under poetical embellishments, imparted the double pleasure of invention and of history. The instant completeness of his success showed him his region. The *Lay* was followed by a more impressive pause of wonder and then by a louder shout of admiration, than even our previous Edinburgh poem—*The Pleasures of Hope*. But nobody, not even Scott, anticipated what was to follow. Nobody imagined the career that was before him; that the fertility of his genius was to be its most wonderful distinction; that there was to be an unceasing recurrence of fresh delight, enhanced by surprise at his rapidity and richness. His advances were like the conquests of Napoleon; each new achievement overshadowing the last; till people half wearied of his very profusion. The quick succession of his original works, interspersed as they were with (for him rather unworthy) productions of a lower kind, threw a literary splendour over his native city, which had now

the glory of being at once the seat of the most popular poetry, and the most powerful criticism of the age.'

An interesting anecdote is recorded by an early friend, William Dundas, which pleasantly connects with Scott the name of the great premier Pitt, then drawing, in solitary grandeur, near to the end of his extraordinary career. Dundas writes: 'I remember at Mr. Pitt's table in 1805, the Chancellor asked me about you and your then situation, and after I had answered him, Mr. Pitt observed—"He can't remain as he is," and desired me to "look to it." He then repeated some lines from the *Lay* describing the old harper's embarrassment when asked to play, and said—"This is a sort of thing which I might have expected in painting, but could never have fancied capable of being given in poetry."

As regards the sale of the poem, the figures established a record in the history of popular poetry in Britain. 'The first edition of the *Lay* was a magnificent quarto, seven hundred and fifty copies; but this was soon exhausted, and there followed one octavo impression after another in close succession to the number of fourteen. In fact, some forty-four thousand copies had been disposed of in this country, and by the legitimate trade alone, before he superintended the edition of 1830, to which his biographical introductions were prefixed. The author's whole share in the profits of the *Lay* came to £769, 6s.'

Very shortly after this Scott's unworldly faith and simple confidence in his friend led him to hoist on his shoulders the odious Succubus Ballantyne. This personage, pleading increasing expenses and need of 'more capital,' applied for a second 'liberal loan.' We have the man's own story, which to those who know what business is, needs no comment. We see the confident, smirking tradesman gaily holding up the bottomless sack, and Scott, with the sublime folly of a generous and sanguine nature, pouring his hard-won

treasures into it. 'Now,' says James, 'being compelled, maugre all delicacy' (how well he understood Scott!) 'to renew my application, he candidly answered that he was not quite sure that it would be prudent for him to comply, but in order to evince his entire confidence in me, he was willing to make a suitable advance to be admitted as a third-sharer in my business.' Lockhart observes on this, that no trace has been discovered of any examination into the state of the business on the part of Scott, at this time. This is the sort of remark one would expect from Lockhart, a gentleman: but the implied acceptance of a portion of the blame for Scott is quite unnecessary. The question is, 'What did the Succubus say, and what did he show, to Scott at this time? Enough, I have no doubt, to convince Scott, and on quite good and sufficient grounds, that he was being favoured in being permitted to have a share in the concern. The fallacy, and the weakness, were in the man, not in the business. Scott's one mistake was this transcendental confidence in Ballantyne, who was a man formed by nature to *fail*! The partnership was very wisely kept a strict secret, and seems for years not even to have been suspected by any of his daily companions, except Erskine. Lockhart has remarked that 'its influence on his literary exertions and his worldly fortunes was productive of much good and not a little evil. I at this moment doubt whether it ought, on the whole, to be considered with more of satisfaction or of regret.'

CHAPTER XL

Scott and Jeffrey—Founding of *Edinburgh Review*—Impression in Edinburgh—Its Political and Literary Pretences—Review of *Lay* by Jeffrey—Strange Mistake—Beautiful Appreciation by Mr. Gladstone quoted—The *Dies Irae*.

In his Introduction to the *Lay* Scott mentions, *inter alia*, that the poem had 'received the imprimatur of Mr. Francis Jeffrey, who had been already for some time distinguished by his critical talent.' The *Edinburgh Review* **had been founded on the 10th of October 1802. Sydney Smith, Jeffrey, Brougham, and Horner were the most conspicuous among the founders. Sydney Smith was the first editor. He mentions the fact in the Preface to his Works: 'I proposed that we should set up a review; this was acceded to with acclamation. I was appointed editor, and remained long enough in Edinburgh to edit the first number of the *Edinburgh Review.'* Cockburn confirms the statement, but points out that the projectors, though he was not at first their formal editor, leant mainly on Jeffrey's experience and wisdom. Though Smith actually edited the first number, it appears from Jeffrey's well-known statement that there was no official editor at first. After three numbers had appeared, it was seen that a responsible editor was indispensable. Jeffrey then became editor, under a fixed arrangement with the publisher, Archibald Constable.

Like every other successful literary enterprise, the *Edinburgh Review* was well fitted to the circumstances and to the time. Historically its importance was far greater than we can now well realise. But we can, from Cockburn's glowing account of it, to some extent conceive how to the literary youth of the time it appeared a phenomenon as remarkable as the original works of Scott. In his *Life* of Jeffrey he gives a long and complete account of the founding and the founders of the *Review*, and says of its first appearance: 'The effect was electrical. And, instead of expiring, as many wished, in their first effort, the force of the shock was increased on each subsequent discharge. It is impossible for those who did not live at the time, and in the heart of the scene, to feel, or almost to understand the impression

made by the new luminary, or the anxieties with which its motions were observed. It was an entire and instant change of everything that the public had been accustomed to in that sort of composition. The old periodical opiates were extinguished at once. The learning of the new Journal, its talent, its spirit, its writing, its independence, were all new; and the surprise was increased by a work so full of public life springing up, suddenly, in a remote part of the kingdom.'

The *Review* was, of course, obnoxious to the opponents of reform. It was assailed with the usual amount of ridicule and personal abuse, and with prophecies of the speedy demise of so scandalous a publication. Few, indeed, anticipated that it had come to stay. None foresaw the services it was destined to perform. But all watched its progress with intense curiosity and interest. In Edinburgh, naturally, the interest was of the greatest. Men soon perceived that it was creating a new literary reputation for the city. It was something gained when the voice of Edinburgh counted for a power in political affairs. And, of course, with continued success, the voice became stronger, and the importance of Scottish opinion in both politics and literature was more and more widely acknowledged. 'All were the better for a journal to which every one with an object of due importance had access, which it was vain either to bully or to despise, and of the fame of which even its reasonable haters were inwardly proud.'

Jeffrey's review of the *Lay* is, on the whole, creditable to his critical sagacity and taste, though its praise fell far short of the impression made by the poem on the public mind. He made one strange enough blunder. He found fault with the goblin story, which he regarded as an excrescence, not knowing that it was actually the origin and occasion of the whole. He was wrong also in doubting the power of the poet's genius to inspire an interest in the exploits of the stark moss-troopers, and in the rugged names of the

Border heroes and the Border scenes. All these uncouth names are now familiar in our mouths as household words.

To sum up with the *Lay*, Mr. Gladstone, in that delightful *causerie* on Scott given to his friends at Hawarden in 1868, said two excellent things about Scott's poetry. The first is, that Scott's reputation rests not less on his verse than on his prose. The second is, that his most extraordinary power, his highest genius, is shown at times in his poetry. 'I know nothing more sublime in the writings of Sir Walter Scott—certainly I know nothing so sublime in any portion of the sacred poetry of modern times—I mean of the present century—as the "Hymn for the Dead," extending only to twelve lines, which he embodied in the *Lay of the Last Minstrel*. It is in these words, and they perhaps may be familiar:—

"That day of wrath, that dreadful day,
When heaven and earth shall pass away!
What power shall be the sinner's stay?
How shall he meet that dreadful day?
When shrivelling like a parched scroll,
The flaming heavens together roll;
When louder yet, and yet more dread,
Swells the high trump that wakes the dead!
Oh! on that day, that wrathful day,
When man to judgment wakes from clay,
Be THOU the trembling sinner's stay,
Though heaven and earth shall pass away!"

Simple as these words, and few as these lines are, they are enough to stamp with greatness the name of the man who wrote them.'

CHAPTER XLI

Town and Country—Scott's Ideal—Reversion of Clerkship—Impeachment of Lord Melville—Acquittal—The Edinburgh Dinner—Scott's Song of Triumph—Nature of his Professional Duties—Social Claims and Literary Industry.

When Scott decided to abandon the Bar, he had no intention of quitting Edinburgh. Notwithstanding his delight in natural scenery and his real fondness for rural pursuits and his passion for sport, he had an equally strong attachment to the city and its old routine. 'Here is the advantage of Edinburgh' (he says in his *Journal*). 'In the country, if a sense of inability once seizes me, it haunts me from morning to night; but in Edinburgh the time is so occupied and frittered away by official duties and chance occupation, that you have not time to play Master Stephen and be gentlemanlike and melancholy. On the other hand, you never feel in town those spirit-stirring influences—those glances of sunshine that make amends for clouds and mist. The country is said to be quieter life; not to me, I am sure. In the town the business I have to do hardly costs me more thought than just occupies my mind, and I have as much of gossip and ladylike chat as consumes the time pleasantly enough. In the country I am thrown entirely on my own resources, and there is no medium betwixt happiness and the reverse.' To carry out his ideal, therefore, of a life alternating between town and country, and enjoying the best of both, and to keep his mind easy about the provision—generous, of course—which he should make for his increasing family, Scott was not satisfied with an income of £1000 a year. He accordingly set about obtaining another post—

such a post (he frankly puts it) as an author might hope to retreat upon, without any perceptible alteration of circumstances, whenever the time came that the public grew weary of him, or he himself tired of his pen. He hoped, in fact, to obtain a clerkship in the Court of Session, and his friends began to work for it just after the *Lay* was published. These friends were the Duke of Buccleuch and Lord Melville, and, as we have seen, Pitt himself had given orders that something should be done. Near the end of 1805 it was arranged that Scott should have the succession to the clerkship held by Mr. Home of Wedderburn. The old gentleman was to retain the whole salary during his life, while Scott was to do the work and fall into the salary at Home's death. The matter was arranged just before Lord Melville's retirement, but a mistake having been made in the patent, Scott's commission had to be made out by the Home Secretary of the Whig Government of 1806. Thus it appeared as if he had owed his appointment to the Whigs, and some of the meaner sort among the local people grumbled loudly and complained of the preference. Scott resented this doubly, since he really owed nothing to the Whig Ministry and would never have accepted a favour at their hands. Lockhart says that this incident was the occasion of his making himself prominent for a time as a decided Tory partisan.

The Coalition Government signalled its accession to power by impeaching Lord Melville. The charges, it is now well known, were groundless and absurd. At the same time 'the investigation brought out many circumstances by no means creditable to his discretion.' But on the one side there was a savage whoop of triumph when the autocrat was himself brought to trial; on the other, loud and scornful jubilation when the great pro-consul was acquitted. Less noise might well have served. In Edinburgh a public dinner was held to celebrate the event, on the 27th of

June 1806, and for this occasion Scott wrote a jolly piece of rattling doggerel, 'Health to Lord Melville,' which was sung by James Ballantyne, and received with shouts of applause. A line in this song 'Tally-ho to the Fox,' was fastened upon by political spite as a shout of triumph over Fox, because he was then on his death-bed. Never was any effort of malignity more idiotic. If it had been so intended, even a fool might have seen that it would have been irrelevant. It was, of course, merely one note of the triumphal cock-crowing at the defeat of the impeachment. Any one who could seriously think that Scott would for a moment rejoice at the illness or death of Fox is outside the pale of argument.

Surprise has often been expressed at the enormous output of Scott's literary labours during the twenty most active years of his life. But, vast as it is, the literary output represents only half of his industry and exertion. Neither his sheriffship nor his clerkship was a sinecure. The latter required actual attendance in the court, on the average, for from four to six hours daily during rather less than six months out of the twelve. The work, though partly mechanical, constantly entailed extra toil in the way of consulting law papers and authorities at home. It is well known, too, that Scott performed these duties with the most conscientious regularity and care. He never employed inferior assistants to relieve himself of drudgery. He took a just pride, as did also the best of his colleagues, in maintaining a high reputation for legal science. There can, indeed, be no question of the justness of his biographer's view, that it forms one of the most remarkable features in his history, that during his great period of literary production, he must have devoted a large proportion of his hours, during half at least of every year, to the conscientious discharge of professional duties.

Thus Scott, while in Edinburgh, led a life of very exacting labour, and strictly governed by official routine. His habit of early rising enabled him to

get through the larger portion of his literary task before breakfast. He was always ready to play his part cheerfully in the duties of the family circle, as well as to implement the round of social engagements. The latter were always great, owing to his own and his wife's popularity in society. Of course, as time went on and his fame became world-wide, these social calls upon his leisure became greater and greater. Still, he would often contrive to rescue some of the evening hours as well, in order to complete the minimum of his daily literary task. But for occasional drives with his family or friends, his time in town was mainly spent indoors, and later on he confessed that this want of activity and open-air life proved highly injurious to his bodily health.

CHAPTER XLII

Colleagues at the Clerks' Table—Morritt on Scott's Conversation—His Home Life—Treatment of his Children—Ideas on Education—Knowledge of the Bible—Horsemanship, Courage, Veracity—Success of the Training.

The kindly affections of friendship were always to Scott 'the dearest part of human intercourse.' Even in 'that sand-cart of a place, the Parliament House' he found them in abundance. Among his colleagues were Colin Mackenzie of Portmore, the friend of his boyhood, 'one of the wisest, kindest, and best men of his time': Hector Macdonald Buchanan of Drummakiln: Sir Robert Dundas of Beechwood: and David Hume, nephew of the great David and Professor of Scots Law, afterwards a Baron of the Exchequer. Mentioning a dinner at Dundas's house, Scott says, 'My little *nieces (ex officio)* gave us some pretty music.' The explanation of this is that all these families were so

intimate and friendly that the children all called their fathers' colleagues *uncles*, and the mothers of their little friends *aunts*. 'In truth' (says Lockhart) 'the establishment was a brotherhood.'

We may here quote his friend Morritt's description, which, referring to the year 1808, gives so lifelike a notion of what Scott was to the friends of his prime: 'At this period his conversation was more equal and animated than any man's that I ever knew. It was most characterised by the extreme felicity and fun of his illustrations, drawn from the whole encyclopedia of life and nature, in a style sometimes too exuberant for written narrative, but which to him was natural and spontaneous. A hundred stories, always apposite, and often interesting the mind by strong pathos, or eminently ludicrous, were daily told, which, with many more, have since been transplanted, almost in the same language, into the Waverley Novels and his other writings. These, and his recitations of poetry, which can never be forgotten by those who knew him, made up the charm that his boundless memory enabled him to exert to the wonder of the gaping lovers of wonders. But equally impressive and powerful was the language of his warm heart, and equally wonderful were the conclusions of his vigorous understanding, to those who could return or appreciate either. Among a number of such recollections, I have seen many of the thoughts which then passed through his mind embodied in the delightful prefaces annexed late in life to his poetry and novels. Keenly enjoying literature as he did, and indulging his own love of it in perpetual composition, he always maintained the same estimate of it as subordinate and auxiliary to the purposes of life, and rather talked of men and events than of books and criticism.'

The happiness he made at home for his children in their early years has been revealed by his son-in-law in a charming passage. Though familiar to many, it can hardly be out of place here: 'He had now two boys and two

girls:—and he never had more. (They were Charlotte Sophia, born 1799; Walter, 1801; Anne, 1803; and Charles, 1805). He was not one of those who take much delight in a mere infant; but no father ever devoted more time and tender care to his offspring than he did to each of his, as they reached the age when they could listen to him, and understand his talk. Like their playmates, Camp and the greyhounds, they had at all times free access to his study; he never considered their prattle as any disturbance; they went and came as pleased their fancy; he was always ready to answer their questions; and when they, unconscious how he was engaged, entreated him to lay down his pen and tell them a story, he would take them on his knee, repeat a ballad or legend, kiss them, and set them down again to their marbles or ninepins, and resume his labour, as if refreshed by the interruption. From a very early age he made them dine at table, and "to sit up to supper" was the great reward when they had been "very good bairns." In short, he considered it as the highest duty as well as the sweetest pleasure of a parent to be the companion of his children; he partook all their little joys and sorrows, and made his kind unformal instructions to blend so easily and playfully with the current of their own sayings and doings, that so far from regarding him with any distant awe, it was never thought that any sport or diversion could get on in the right way, unless *papa* were of the party, or that the rainiest day could be dull, so he were at home.'

Scott was no elaborate theorist in regard to education. His sound practical sense laid hold instinctively of a few invaluable principles, and these he carried out with his children with the most beneficial results. He would have nothing to do with the great specific of the period, those fearful 'children's books' filled with endless facts of science precisely worded for the purpose of committing to memory. He was quite pleased, however, with the older-fashioned books, in which stories appealing to the imagination

were employed as a means of exciting curiosity in graver matters. He took pains to select for their tasks in recitation such passages of poetry as might be expected to please their fancy. His own stories and legends with which he amused them were the beginnings of an intelligent interest in Scottish History, and on Sundays the Bible stories were in the same way made at once delightful and familiar. 'He had his Bible' (says Lockhart), 'the Old Testament especially, by heart; and on these days inwove the simple pathos or sublime enthusiasm of Scripture, in whatever story he was telling, with the same picturesque richness as in his week-day tales the quaint Scotch of Pitscottie, or some rude romantic old rhyme from Barbour's *Bruce* or Blind Harry's *Wallace*:

It was characteristic of the man to combine, like Xenophon's ancient Persians, the love of truth and the love of horsemanship as the two greatest aims in education. Each of his children, both girls and boys, became, as soon as old and strong enough for the exercise, the companion of his own rides over moor and stream and hill. He taught them to laugh at tumbles and slight misadventures, and they soon caught his own spirit, and came to delight in adventurous feats like his own. 'Without courage,' he used to say, 'there cannot be truth; and without truth there can be no other virtue.' With such a teacher, we may be sure the two fundamental virtues were imbibed in full perfection.

CHAPTER XLIII

Marmion—Published by Constable—Misfortunes of Thomas Scott—George Ellis on *Marmion*—Hostile Review by Jeffrey—Charge of Want of Patriotism—Mrs. Scott and Jeffrey—Extraordinary Success of the Poem.

Marmion was begun in November 1806, and continued at intervals during the following year. He had made up his mind—so he tells us in the Introduction—not to be in a hurry with his new poem, but to bestow upon it more than his usual care. Particular passages accordingly were 'laboured with a good deal of care' and the progress of the work seems to have given him much pleasure. 'The period of its composition was a very happy one in my life.' *Marmion* was the first of Scott's original works published by Archibald Constable. This enterprising gentleman offered a thousand guineas for the poem shortly after it was begun, a fact which speaks volumes at once for the sagacity of the publisher and the impression already made by the poet. The offer was accepted, and the price paid long before the book was published. Scott seems to have had occasion for the use of the money in connection with the final withdrawal of his brother Thomas at this time from practice as a Writer to the Signet. Thomas had been unfortunate in certain speculations outside his proper business. He afterwards became paymaster of the 70th Regiment and died in Canada.

The appearance of *Marmion* was expected with intense interest in literary circles. It was published in the February of 1808. The general feeling was that expressed after an interval of two months by Scott's friend George Ellis, that 'dear old friend, who had more wit, learning, and knowledge of the world than would fit out twenty *literati*.' Ellis writes, 'All the world are agreed that you are like the elephant mentioned in the *Spectator*, who was the greatest elephant in the world except himself, and consequently, that the only question at issue is, whether the *Lay* or *Marmion* shall be reputed the most pleasing poem in our language.' He goes on to say that most people consider the Introductory Epistles—that to Canto V. is addressed to himself—as merely interruptions to the narrative. He expresses

his own opinion that *Marmion* is preferable to the *Lay*, because its species of excellence is of much more difficult attainment. He thinks that *Marmion*, from the nature of the plot, and from the quality and variety of the characters, might with advantage have been largely extended, and elevated to the rank and dignity of an Epic in twelve books. Such seems to have been, in brief, the spontaneous verdict on *Marmion* of London literary circles when the poem was fresh from the press. The *Edinburgh Review*, all-powerful as the critical oracle of the time, had not yet recorded its verdict.

Jeffrey's *Review* had now been in existence for six years. Its pages were constantly illuminated by the brilliant productions of its army of able and talented young contributors. So far, also, it was without any rival worth considering at all. Its circulation was unprecedented, and its power to make or mar the fortunes of literary aspirants was esteemed absolute. Scott himself says, 'Of this work nine thousand copies are printed quarterly, and no genteel family can pretend to be without it, because, independent of its politics, it gives the only valuable literary criticism which can be met with.' On reading over Jeffrey's review of *Marmion*, one feels even yet aggrieved: but as it did not hurt the actual victim, we need only say, with Lockhart, 'it is highly creditable to Jeffrey's courageous sense of duty.' Certainly, it requires a good deal of that quality, and of coolness as well, to accumulate such a wealth of depreciation and petty fault-finding on the head of a private friend and honoured colleague. Jeffrey fully anticipated that Scott would take offence, for he wrote him a half-apologetic letter, which was sent along with Scott's copy of the magazine. The article begins with Jeffrey's favourite sweep of the arm—the writer of a successful poem must expect sterner criticism when he ventures to issue a second of the same kind. This paves the way to enumerating previous objections—broken narrative, redundancy of minute description, inequality of merit in the

composition, and the general spirit and animation 'unchastised by any great delicacy of taste, or elegance of fancy.' All these faults are common to both the poems, but *Marmion* is crowded with additional defects. Compared with the *Lay*, he thinks it more clear that *Marmion* has greater faults than that it has greater beauties, though he is *inclined* to believe in both propositions. While he admits greater richness and variety both of character and incident, he finds in it more tedious and flat passages. He refers with supercilious contempt to the 'epistolary dissertations,' in which, poor man, he finds little to his taste. He seems to be savagely angry that the poem is a romantic narrative—presumably it ought to have been something else. He regrets that the author should consume his talent in 'imitations of obsolete extravagance,' in which he is sure no human being can take any interest. He sums up his indictment in numbered paragraphs: the plan bad, the incidents improbable, the characters morally worthless, and the book too long. Though he does give warm and unstinted praise to 'Flodden Field,' he finds, strange to say, that the interspersed ballads have less finish and poetical beauty. Stranger still, the author has wilfully neglected Scottish feelings and Scottish characters. Think of this charge against Walter Scott—'scarcely one trait of Scottish nationality or patriotism has been introduced into the book!' A good deal is said about 'bad taste' and culpable haste. Then the merciful critic adds that he passes over many other blemishes of taste and diction. It happened that Jeffrey was invited to dine at 39 Castle Street on the very day this article appeared. In reply to Jeffrey's note Scott assured him that the article had not disturbed his digestion, though he hoped neither his booksellers nor the public would agree with the opinions it expressed: and begged he would come to dinner at the hour appointed. Lockhart tells how he was received by his host with the frankest cordiality, but Mrs. Scott, though perfectly polite, was not quite so easy with him as usual. She said as

he took his leave, 'Well, good night, Mr. Jeffrey—they tell me that you have abused Scott in the *Review*, and I hope Mr. Constable has paid you very well for writing it.' Scott could indeed afford to be complacent. There was, if anything, some danger of the popularity of *Marmion* giving even him 'a heeze.'

The success of *Marmion* as a publication was as remarkable as that of the *Lay*. The first edition, as usual a splendid quarto, of two thousand copies was sold out in less than a month. More than thirty thousand copies had been sold before the collected edition of the poems appeared in 1830.

CHAPTER XLIV

John Murray—Share in *Marmion*—Reverence for Scott—*The Quarterly Review*—The 'Cevallos' Article—Jeffrey's Pessimism—Contemplated Flight to America—Anecdotes of Earl of Buchan.

When Constable had concluded his arrangement with Scott, he followed a usual and prudent practice in offering fourth shares of the adventure to two other booksellers. They agreed, and their reply added, 'We both view it as honourable, profitable, and glorious to be concerned in the publication of a new poem by Walter Scott.' The writer of these words was John Murray, of Fleet Street, a young bookseller already of some note. Murray, as a keen business man, had evidently an eye to see and a mind that could grasp the future. He was aware that the *Edinburgh Review* was the great source and support of Constable's fortunes. Knowing also that Scott, though a Tory, was an important contributor to the *Review*, he seems to have been on the watch for the time when, as he acutely anticipated, some occasion of rupture would emerge. He told Lockhart long after that when he read the

review of *Marmion* and the political article in the same number, he said to himself—'Walter Scott has feelings both as a gentleman and a Tory, which these people must now have wounded; the alliance between him and the whole clique of the *Review*, its proprietor included, is now shaken.' With the same sagacity, he pushed his advances towards Scott by the medium of James Ballantyne. Murray came north in person, visited Scott at Ashestiel, and learned that, as he had expected, the disruption had begun. Scott had, in fact, been so disgusted with an article in the twenty-sixth number entitled 'Don Cevallos on the Usurpation of Spain,' that he had written to Constable withdrawing his subscription and saying, 'The *Edinburgh Review* had become such as to render it impossible for me to continue a contributor to it.—Now, it is such as I can no longer continue to receive or read it.' Mr. Cadell, one of Constable's partners, mentions that the list of the then subscribers exhibits, in an indignant dash of Constable's pen opposite Scott's name, the word 'STOPT!!!' The opportunity was a good one for advancing Murray's views. Before the end of the year some unguarded words of Mr. Hunter, Constable's junior partner, made the breach complete. We find Scott writing about 'folks who learn to undervalue the means by which they have risen,' and Constable stamping his foot and saying, 'Ay, there is such a thing as rearing the oak until it can support itself.' The result of all this, as concerns Scott, was that he eagerly entered into Murray's plans for establishing a rival *Review*, and that he carried out a scheme, 'begun' (Lockhart admits) 'in the short-sighted heat of pique,' of starting a new bookselling house in Edinburgh, another rival to Constable.

Murray's new *Review* was the *Quarterly*. The first number came out in February 1809, and was quite sufficient to prove that the *Edinburgh* was now to have a powerful competitor, and Jeffrey to find in Gifford a 'foeman worthy of his steel.' The idea of the *Quarterly* was precisely that which had

guided the projectors of its rival, 'to be conducted totally independent of bookselling influence, on a plan as liberal as that of the *Edinburgh*, its literature as well supported, and its principles English and constitutional.' A great deal was, naturally enough, said at the time about the political excesses of the *Edinburgh Review* as having caused the introduction of the *Quarterly*. But there was no need to justify it on such grounds. Lord Cockburn in his *Life of Jeffrey* sums up the argument with equal fairness and good sense when he says, 'It was not this solitary article' (the 'Cevallos') 'that produced the rival journal. Unless the public tone and doctrines (of the *Edinburgh Review*) had been positively reversed, or party politics altogether excluded, a periodical work in defence of Church, Tory, and War principles, must have arisen; simply because the defence of these principles required it. The defence was a consequence of the attack. And it is fortunate that it was so. For besides getting these opinions fairly discussed, the party excesses natural to any unchecked publication were diminished; and a work arose which, in many respects, is an honour to British literature, and has called out, and indirectly reared, a great variety of the highest order of talent.'

Jeffrey himself, in writing to Horner for opinions of the new *Quarterly*, disavows with creditable spirit any unworthy jealousy or fear. He recognises the merit of the work, 'inspired, compared with the poor prattle of Cumberland,' and admits that his 'natural indolence would have been better pleased not to be always in sight of an alert and keen antagonist.' But at the same time he rejoices in the idea of seeing magazine literature improved, and congratulates himself on having set the example.

Lord Cockburn expressly states that Jeffrey was himself the writer of the unfortunate Cevallos article. It is curious and interesting, but not so very surprising, to find an earnest and far-seeing man like Jeffrey taking so despondent a view of British prospects in the Peninsula. It must be

remembered that the great burst of enthusiasm in this country over the national rising of Spain against Napoleon was really, as every one now knows, founded upon ignorance and exaggeration. It was Jeffrey's chief crime that he ventured to doubt the patriotism and efficiency of the Spaniards. He could not, of course, foresee what the genius of Wellington was to effect, and he undoubtedly expected that Napoleon would enter Ireland soon; 'and then' (he asks) 'how is England to be kept?' Looking upon the conquest of the whole continent by France as a practical certainty, he was for peace at any price, and non-interference whatever happened elsewhere. It was his intention when the catastrophe came, to try to go to America. 'I hate despotism and insolence so much, that I could bear a great deal rather than live here under Frenchmen and such wretches as will at first be employed by them.'

Such cold fears and calculations were apt to make his writings distasteful in those excited times. The Cevallos article, in which he flatly expressed despair of the vaunted 'regeneration' of Spain, capped the whole. About twenty-five 'persons of consideration' in Edinburgh forbade the *Review* to enter their doors. The Earl of Buchan, a rather vain and foolish character at the best, did more. He ordered the door of his house in George Street to be set wide open, and the offending number to be laid down on the lobby floor. Then, when all was ready, his lordship solemnly kicked the volume out into the street.

In Scott's *Journal*, April 20, 1829, the death of this eccentric person is noticed: 'Lord Buchan is dead, a person whose immense vanity, bordering upon insanity, obscured, or rather eclipsed, very considerable talents.... I felt something at parting with this old man, though but a trumpery body. He gave me the first approbation I ever obtained from a stranger. His caprice had led him to examine Dr. Adam's class when I, a boy twelve years old,

and then in disgrace for some aggravated case of negligence, was called up from a low bench, and recited my lesson with some spirit and appearance of feeling the poetry (it was the apparition of Hector's ghost in the *Aeneid*) amid the noble Earl's applause. I was very proud of this at the time.'

CHAPTER XLV

The Calton Jail—Opening of Waterloo Place—Removal of Old Tolbooth—Scott purchases Land at Abbotsford—Professional Income—Correspondence with Byron—Anecdote of the 'Flitting' from Ashestiel.

In 1808-10 the new prison on the Calton Hill was built. It stands on a magnificent site, the old 'Doo Craig.' All will agree with Lord Cockburn's remark on the 'undoubted bad taste' of devoting that glorious eminence, which ought to have had one of our noblest buildings, to a jail. The east end of Princes Street was at that time closed in by a line of mean houses running north and south. Beyond this all to the east was occupied by the burying-ground, of which the south portion is still maintained. The only access to the hill on this side was to go down to the foot of Leith Street, and then climb 'the steep, narrow, stinking, spiral street still to be seen there.' The necessity for an easy access to the jail led to the construction of Waterloo Bridge. The blocking houses were, of course, removed, and a level road carried along to the Calton Hill. 'The effect,' says the author of the *Memorials*, 'was like the drawing up of the curtain in a theatre. But the bridge would never have been where it is except for the jail. The lieges were taxed for the prison; and luckily few of them were aware that they were also taxed for the bridge as the prison's access. In all this magnificent

improvement, which in truth gave us the hill and all its decoration, there was scarcely one particle of prospective taste. The houses alongside the bridge were made handsome by the speculators for their own interest; but the general effect of the new level opening into Princes Street, and its consequences, were planned or foreseen by nobody.'

In a few years after the erection of the Calton Jail, the Old Tolbooth, the 'Heart of Midlothian,' was removed. Had it been preserved, it would have been the prize relic of historical antiquity in Scotland. 'Was it not for many years the place in which the Scottish parliament met? Was it not James's place of refuge, when the mob, inflamed by a seditious preacher, broke forth on him with the cries of "The sword of the Lord and of Gideon—bring forth the wicked Haman"?' It stood, 'as is well known to all men,' near the Cathedral, in the very middle of the High Street, and the purpose of widening the street and opening up the Cathedral was the excuse for its demolition. Scott describes it as 'antique in form, gloomy and haggard in aspect, its black stanchioned windows opening through its dingy walls like the apertures of a hearse.' Cockburn speaks of it as a most atrocious jail, the very breath of which almost struck down any stranger who entered its dismal door; and as ill-placed as possible, without one inch of ground beyond its black and horrid walls. And these walls were very small; the entire hole being filled with little dark cells; heavy manacles the only security; airless, waterless, drainless; a living grave. But yet I wish the building had been spared.' The only memorial of it now is a heart in the street formed of particoloured stones, showing where the door of the prison stood. At Abbotsford may be seen, decorating the entrance of the kitchen court, the stones of the old gateway, and also the door itself with its ponderous fastenings.

In the summer of 1811 Scott made his first purchase of land at Abbotsford. The name was taken from a ford in the Tweed just above the influx of Gala Water. The whole of the lands round there had at one time belonged to the Abbey of Melrose. The property had sunk into a state of great neglect under an absentee owner. The land was neither drained, properly enclosed, nor even fully reclaimed. The house was small, with a kailyard at one end and a barn at the other. But Scott in his mind's eye already saw it all as he intended it to be. With boyish delight in the prospect of realising his one innocent ambition, he writes to his brother-in-law: 'I have bought a property extending along the banks of the River Tweed for about half a mile. This is the greatest incident which has lately taken place in our domestic concerns, and I assure you we are not a little proud of being greeted as *laird* and *lady of Abbotsford*. We will give a grand gala when we take possession of it, and as we are very clannish in this corner, all the Scotts in the country, from the Duke to the peasant, shall dance on the green to the bagpipes, and drink whisky punch.'

At the beginning of the next year, January 1812, Scott came into his salary as Clerk of Session. He had now a professional income of £1600 a year. Why, then, was he not to buy land and become a laird?

In this year began that correspondence with Byron which connects so pleasantly the names of the two most popular poets of the day. In one letter he mentions that he was staying in the gardener's hut at Abbotsford. Alterations were going on apace, and besides raising the roof and projecting some of the lower windows, a rustic porch, a supplemental cottage at one end, and a fountain to the south, soon made their appearance. Here is the 'laird's' amusing account of his 'flitting' from Ashestiel: 'The neighbours have been much delighted with the procession of my furniture, in which old swords, bows, targets, and lances made a very conspicuous show. A family

of turkeys was accommodated within the helmet of some *preux* chevalier of ancient border fame; and the very cows, for aught I know, were bearing banners and muskets. I assure your ladyship that this caravan, attended by a dozen of ragged rosy peasant children, carrying fishing-rods and spears, and leading ponies, greyhounds, and spaniels, would, as it crossed the Tweed, have furnished no bad subject for the pencil, and really reminded me of the gypsey groups of Callot upon their march.'

CHAPTER XLVI

Scott and the Actors—Kemble, Siddons, Terry—Terry's Imitation of 'the Shirra'—Anecdote of Terry and C. Mathews—Mathews in Edinburgh—'The Reign of Scott'—Anecdotes of his Children—Excursion to the Western Isles.

A very remarkable feature of Edinburgh society at this period was the free admittance to the best houses of the chief actors of the time. Scott was particularly fond of their company. Charles Young, in 1803, seems to have been the first of these theatrical friends. Later came John Philip Kemble and his incomparable sister, Mrs. Siddons. Scott used to say that Kemble was the only man who ever seduced him into very deep potations in his middle life. Through his intimacy with Kemble, Scott was led to take an interest in getting Henry Siddons, Kemble's nephew, to take on the lease and management of the Edinburgh Theatre. He purchased a share, became a trustee, and continued to take much interest in the affairs of the company. Daniel Terry also was a friend of Scott's. Both Terry and Kemble were highly educated men, and were well read in the old literature of the drama. Terry was also, like Scott, an enthusiast in the antiquities of *vertu*. Terry

was remarkable for his apparently involuntary imitation of Scott, whom he almost worshipped. In particular, he acquired the power of imitating his handwriting so closely that Lockhart says their letters, lying before him, appeared as if they had all been written by one person. Scott himself used to say that, if he were called on to swear to any document, the utmost he could venture to attest would be, that it was either in his own hand or in Terry's. Their common friends were much amused at the approximation of Terry to a replica of Scott in facial tricks and gravity of expression, and even in tone and accent. It is this that gives point to an anecdote of Terry and Charles Mathews. They happened to be thrown out of a gig together, and Mathews received an injury which made him lame for life, while Terry escaped unhurt. 'Dooms, *Dauniel*,' said Mathews when they next met, 'what a pity that it wasna your luck to get the game leg, mon! Your Shirra would hae been the very thing, ye ken, an' ye wad hae been croose till ye war coffined.'

Mathews was in Edinburgh in the spring of 1812, when he seems to have been greatly delighted with his success. On April 13th he wrote to his wife: 'Edinburgh turned out as delightful as Glasgow was horrible. Beautiful weather—good society—had the luck to see the superfine patterns of the Scotch; and the warmest reception I ever yet met with, because I have considered an Edinburgh audience so difficult to please. Hundreds turned away at my benefit. I reckon Edinburgh an annuity to me for the future.'

Scott's popularity as a poet was about this time at its highest. This period (1811) was, as Byron said, 'the reign of Scott.' He had reached his poetical apogee with the publication of the *Lady of the Lake*, the most successful of all his poems. In Edinburgh, by James Ballantyne's habit of reading portions to select friends while the work was printing, the highest expectations had been excited. Cadell, the publisher, testifies that, when it appeared, the country rang with the praises of the poet. 'Crowds' (he says)

'set off to view the scenery of Loch Katrine, till then comparatively unknown: and as the book came out just before the season for excursions, every house and inn in that neighbourhood was crammed with a constant succession of visitors. It is a well-ascertained fact, that from the date of the publication of the *Lady of the Lake*, the post-horse duty in Scotland rose in an extraordinary degree, and indeed it continued to do so regularly for a number of years, the author's succeeding works keeping up the enthusiasm for our scenery which he had thus originally created.' Within a year no fewer than 20,000 copies of the poem were sold.

Scott, as is well known, was always too modest and sensible to be, even at the height of success, 'a partisan of his own poetry.' John Ballantyne is the authority for a very surprising instance of this. 'I remember,' he says, 'going into his library shortly after the publication of the *Lady of the Lake*, and finding Miss Scott (who was then a very young girl) there by herself. I asked her—"Well, Miss Sophia, how do you like the *Lady of the Lake*?" Her answer was given with perfect simplicity—"Oh, I have not read it: papa says there's nothing so bad for young people as reading bad poetry.'"

Lockhart adds that the children in those days of childhood really did not know that their father was in any way distinguished above the other gentlemen of his profession who were their visitors and friends. He caps Ballantyne's story with another: 'The eldest boy, Walter, came home one afternoon from the High School, with tears and blood hardened together upon his cheeks.—"Well, Wat," said his father, "what have you been fighting about to-day?" The boy blushed and hung his head, and at last stammered out—that he had been called a *lassie*. "Indeed!" said Mrs. Scott, "this was a terrible mischief, to be sure." "You may say what you please, mamma," Wat answered roughly, 'but I dinna think there's a waufer (shabbier) thing in the world than to be a lassie, to sit boring at a clout.'

Upon further inquiry it turned out that one or two of his companions had dubbed him the *Lady of the Lake*, and the phrase was to him incomprehensible, save as conveying some imputation on his prowess, which he accordingly vindicated in the usual style of the Yards. Of the poem he had never before heard. Shortly after, this story having got wind, one of Scott's colleagues of the Clerks' Table said to the boy—who was in the home circle called *Gilnockie*, from his admiration of Johnny Armstrong—"Gilnockie, my man, you cannot surely help seeing that great people make more work about your papa than they do about me or any other of your *uncles*—what is it do you suppose that occasions this?" The little fellow pondered for a minute or two, and then answered very gravely—"It's commonly *him* that sees the hare sitting." And yet this was the man who had his children all along so very much with him.'

It was at this time, while his heart was in a glow with happiness, that he made his famous excursion to the Western Isles. The Laird of Staffa, whose hospitality he celebrates, was the elder brother of his colleague Macdonald Buchanan. The Laird was an ideal specimen of the old Highland chief, 'living among a people distractedly fond of him.'

CHAPTER XLVII

Waverley laid aside—*Rokeby*—Excitement at Oxford—Ballantyne's Dinner—Scott's Idea of Byron as a Poet—Ballantyne's Mismanagement—Aid from Constable—Loan from the Duke—Scott decides to finish *Waverley*.

On his return from the Hebrides, while rummaging one morning for flies in an old desk, Scott came upon a manuscript, long since laid aside, containing

the first two or three chapters of *Waverley*. It was now taken out, and shown to James Ballantyne. But he was only faintly confident of success, and the packet containing Cæsar's fortunes was again laid by.

The poem of *Rokeby* occupied Scott in 1812. In Edinburgh we see James Ballantyne again reading from the sheets to his select circle of critics. The effect is not quite satisfactory. The *Lady of the Lake* has spoiled Edinburgh. Enthusiasm is gone. But not so in England. Look at this picture of Lockhart's: 'I well remember, being in those days a young student at Oxford, how the booksellers' shops there were beleaguered for the earliest copies, and how he that had been so fortunate as to secure one was followed to his chambers by a tribe of friends, all as eager to hear it read as ever horse-jockeys were to see the conclusion of a race at Newmarket; and indeed not a few of those enthusiastic academics had bets depending on the issue of the struggle, which they considered the elder favourite as making to keep his own ground against the fiery rivalry of *Childe Harold*.'

All anxiety as to the sale of *Rokeby* was soon allayed. The three thousand quartos of the first edition were exhausted on the day of publication, the 13th of January 1813. Scott's letter to his friend Morritt, the proprietor of *Rokeby*, shows relief. He mentions Ballantyne's 'christening dinner,' and gaily wishes 'we could whistle you here to-day.' These dinners were great events, 'at which the Duke of Buccleuch and a great many of my friends are formally feasted. He has always the best singing that can be heard in Edinburgh, and we have usually a very pleasant party, at which your health as patron and proprietor of *Rokeby* will be faithfully and honourably remembered.' By Morritt at least *Rokeby* was considered a masterpiece.

The comparison of Scott and Byron, and the popular pitting of the one against the other, was inevitable. The first two cantos of *Childe Harold*,

published in March 1812, had obtained a marvellous success. It was of this that Byron said, 'I awoke one morning, and found myself famous.' In such popularity Scott alone was his rival. But the two poets equally disapproved the talk of competition. Speaking of a debate of this kind between Murray and Ellis, Byron said, 'If they want to depose Scott, I only wish they would not set me up as a competitor. I like the man, and all such stuff can only vex him, and do me no good.' In this manly spirit he might have spoken for both.

No one appreciated more fully than did Scott the genius of the author of *Childe Harold*. He seems from the first sight of that poem to have been satisfied in his own mind of Byron's pre-eminent powers in poetry. He had no desire, as he says, 'to measure his force with so formidable an antagonist,' but he determined to go on with the work he had planned, and already it is evident that his thoughts were turning vaguely towards some other literary form, in which the youthful ardour which he thought was cooling might be less essential to success.

In this year of commercial panic, 1813, Scott began to experience the worries and discomforts which flow from a speculative commercial adventure shamelessly neglected by a reckless and incompetent 'manager.' The crisis was already bringing the less substantial publishing houses into danger, and the firm of John Ballantyne and Co. was soon reduced to extremity. Two features are mentioned by Lockhart which sufficiently show how well fitted John Ballantyne was to organise disaster: his blind recklessness in regard to bills—he never looked beyond the passing day—and his absolute neglect to keep the moneyed partner informed of his obligations and of the state of the firm's resources. In Lockhart's opinion the concern must have gone to pieces at this time but for the reconciliation with Constable. He relieved Ballantyne of part of his stock, on the understanding

that the firm should, as soon as possible, be finally wound up. In these distressing affairs it is too sadly easy to understand the whole drama. From his beautiful and now unspeakably touching letters we can picture the good soft-hearted gentleman crediting the adventurer with all his own unselfishness and fine sensitiveness, pointing out with an apology errors of conduct which deserved immediate dismissal with disgrace, and lamenting possible consequences to *him*, to the needy ruined adventurer who had found a haven of refuge in a business to which he had actually brought no capital at all. To make a phrase out of Spencerian jargon, Scott was the dupe of automorphism. His sense of duty to the imaginary Ballantynes made him the victim of the actual ones. He ought at this time to have kicked both of them out, put the affairs of both concerns into the hands of professional accountants, and considered the situation. But there was the secrecy as well as the automorphic delusion. Then he went on, of course, buying land. He was making money, and he *ought* to have been able to spend. But if a genius can make one fortune, a reckless trifler can waste ten. It is dreadful even yet to think of Walter Scott, of all our great ones the *best*, slaving and dreaming innocent Alnaschar dreams, while a Ballantyne, without any toil at all, is piling up mountains of debt to overwhelm him. By the end of the year, John's calls upon Scott necessitated more help from Constable and a loan to Scott from the Duke of Buccleuch of £4000. The publishing business was to be given up at once, and the amateur publisher was to start as an auctioneer of books and curios. During this time of vexation and worry, Scott was constantly engaged in toilsome and taxing labour on an edition and life of Swift, and also made a beginning with the *Lord of the Isles*. Just then, too, the fragment of *Waverley* turned up once more. He read it, judged it this time for himself without advice, and decided to finish it.

CHAPTER XLVIII

Success of the Allies—Address to the King—Freedom of Edinburgh—Edition of Swift—Printing of *Waverley*—Mystery of Authorship—Edinburgh Guesses—Excellent Review by Jeffrey—Scott's 'gallant composure'—Success of the Novel.

'O, dread was the time, and more dreadful the omen,
When the brave on Marengo lay slaughtered in vain,
And beholding broad Europe bow'd down by her foemen,
Pitt closed in his anguish the map of her reign.'

The song which begins thus was written by Scott about the close of 1813, inspired by the great successes of the Allies. On the magistrates of Edinburgh presenting an address to the King, Scott indited one for them which was privately acknowledged to himself as 'the most elegant congratulation a sovereign ever received or a subject offered.' It is gratifying to know that the magistrates were duly grateful for the service, which secured for them an extremely cordial reception at Carlton House. At Christmas 1813 Scott was presented with the freedom of the city and a very handsome piece of plate.

He had now been working for five or six years on the great edition of Swift in nineteen volumes, which came out in the summer of 1814. It was reviewed in the *Edinburgh* by Jeffrey at Constable's special request. The review contained an attack on the character of Swift so able and incisive as, in Constable's opinion, to have greatly retarded the sale of the work. But Jeffrey's appreciation of the editor and his work was admirable: giving him

the frankest praise for 'minute knowledge and patient research, vigour of judgment and vivacity of style.' Of the *Life* he said most justly: 'It is not much like the production of a mere man of letters, but exhibits the good sense and large toleration of a man of the world, with much of that generous allowance for the

"Fears of the brave and follies of the wise,"

which genius too often requires, and should therefore be always most forward to show.' Meantime the latter 'genius' was preparing the great new stroke for fame which was now to extinguish all lesser lights in a blaze of unexpected glory. Early in the year Ballantyne had printed the first volume of *Waverley*. With the precaution regularly exercised all through, the MS. was copied by John Ballantyne before being sent to press. The printed volume was taken by John to Constable, who made the very liberal offer of £700 for the copyright. Scott's remark was that £700 was too much if the novel should not be successful, and too little if it should. But he added, 'If our fat friend had said £1000, I should have been staggered.' Fortunately Constable doubted, and lost the opportunity, an agreement being ultimately made for an equal division of profits between him and the author. The authorship was, of course, not hidden from 'our fat friend.' He published, therefore, on the 7th of July, what Scott, writing two days after to Morritt, called 'a small anonymous sort of a novel.' Even then, it seems, 'it had made a very strong impression here, and the good people of Edinburgh are busy in tracing the author.... Jeffrey has offered to make oath that it is mine.' Later on, replying to Morritt's protests, he says, 'I shall not own *Waverley*; my chief reason is, that it would prevent me the pleasure of writing again. David Hume, the nephew of the historian, says the author must be of a

Jacobite family and predilections, a yeoman-cavalry man, and a Scottish lawyer, and desires me to guess in whom these happy attributes are united. I shall not plead guilty, however.... The Edinburgh faith is, that *Waverley* was written by Jeffrey.... The second edition is, I believe, nearly through the press. It will hardly be printed faster than it was written; for though the first volume was begun long ago, and actually lost for a time, yet the other two were begun and finished between the 4th June and the 1st July, during all which I attended my duty in court, and proceeded without loss of time or hinderance of business.'

We have an admirable picture from Lord Cockburn of the impression made in Edinburgh by this memorable event, and the sensations, as he puts it, produced by the first year of these Edinburgh works. 'It is curious,' he says, 'to remember the instant and universal impression in Edinburgh. The unexpected newness of the thing, the profusion of original characters, the Scotch language, Scotch scenery, Scotch men and women, the simplicity of the writing, and the graphic force of the descriptions, all struck us with an electric shock of delight. If the concealment of the authorship of the novels was intended to make mystery heighten their effect, it completely succeeded. The speculations and conjectures, and nods and winks and predictions and assertions were endless, and occupied every company, and almost every two men who met and spoke in the street. It was proved by a thousand indications, each refuting the other, and all equally true in fact, that they were written by old Henry Mackenzie, and by George Cranstoun, and William Erskine, and Jeffrey, and above all by Thomas Scott, Walter's brother, a regimental paymaster, then in Canada. But "the great unknown," as the true author was then called, always took good care, with all his concealment, to supply evidence amply sufficient for the protection of his property and his fame; in so much that the suppression of the name was

laughed at as a good joke not merely by his select friends in his presence, but by himself. The change of line, at his age, was a striking proof of intellectual power and richness. But the truth is, that these novels were rather the outpourings of old thoughts than new inventions.'

From the very first the secret of the authorship was known to quite a number of persons, indeed to all Scott's intimates, and, in Lockhart's own opinion, the mystification never answered much purpose among other literary men of eminence. He thinks that all Scott wished was 'to set the mob of readers at gaze, and, above all, to escape the annoyance of having productions, actually known to be his, made the daily and hourly topics of discussion in his presence. All the critics, with the exception of the savage *Quarterly*, were able to see that *Waverley* was a great, an uncommon work. The author was at once acknowledged to be a genius. Foremost and frankest was Jeffrey, who began, 'It is a wonder what genius and adherence to nature will do.' The reviewer has, of course, many small and petty things to say, he has not yet surrendered himself fully to the great enchanter, but he clearly sees and heartily enjoys the points of real greatness—the creation of living characters and the marvellous resurrection of the period and its social state. He says what is a thing most true of Scott, that the work by the mere force of truth and vivacity of its colouring takes its place rather with the most popular of our modern poems than with the rubbish of provincial romances. This point, that the book was founded upon actual experience and observation, he strongly emphasises. This was what Scott of all possible authors possessed in the highest degree, and Jeffrey was quite certain that *Waverley* was Scott's. He concludes by saying that it is hard to see why the book should have been anonymous: if the author really was an 'unknown' personage, then Mr. Scott would have to look to his laurels against a sturdier competitor than any he had as yet encountered.

Such was the reception of *Waverley*: a reception not unworthy of a masterpiece. And it is worth while to remark once again the 'gallant composure' of the writer who had staked his fame and fortune on an experiment so new, uncertain, and dangerous. Before he had heard of its fate in England, he set out on a voyage to the Hebrides, Orkney and Shetland, so that he was practically cut off from letters and news for nearly two months. When he returned, he found that two editions of *Waverley* had been sold.

CHAPTER XLIX

The Lord of the Isles—*Guy Mannering*—Universal Delight—Effects of Peace in Scotland—Awakening of Public Opinion in Edinburgh—'Civic War'—Professor Duncan—Sketch by Lord Cockburn.

The month of January 1815 saw the publication of Scott's *Lord of the Isles*. On the 24th of February a second novel—*Guy Mannering*—was issued, by the Author of *Waverley*. Detailed dates given by Lockhart show that the novel was literally written, as Scott himself said, 'in six weeks at a Christmas.' Writing to Morritt on January 15, he says, 'I want to shake myself free of *Waverley*, and accordingly have made a considerable exertion to finish an odd little tale within such time as will mystify the public, I trust—unless they suppose me to be Briareus.' The biographer adds that this excess of labour was the result of difficulties about the discount of John Ballantyne's bills. The *Lord of the Isles*, though amply successful from the point of view of sale, was in point of reputation disappointing. On James acknowledging this, Scott, we are told by James Ballantyne, 'did look rather blank for a few seconds: in truth, he had been wholly unprepared for the event; for it is a singular fact, that before the public, or rather the booksellers, had given their decision, he no more knew whether he had written well or ill, than whether a die thrown out of a box was to turn up a size or an ace. However, he instantly resumed his spirit, and expressed his wonder rather that his poetical popularity should have lasted so long, than that it should have now at last given way. At length he said, with perfect cheerfulness, "Well, well, James, so be it—but you know we must not

droop, for we can't afford to give over. Since one line has failed, we must just stick to something else"; and so he dismissed me, and resumed this novel.' The reviews of the *Lord of the Isles*, though rather severe on the structure of the poem and the imperfections of the hero, did ample justice to the majestic power and unfailing vigour of the story as well as to its rare descriptive beauties. But most will now agree with Lockhart that the best achievements in the book are the magnificent character of the heroic King, and the Homeric battle-piece of Bannockburn.

The reception of *Guy Mannering* in the following month amply made up for this partial disappointment. In two days the first edition of 2000 copies was sold out. Within two or three months 5000 copies more were called for. Curiosity doubtless stimulated the first demand. The mystery was further deepened by the prefixing to the novel of a motto from the *Lay*:

"Tis said that words and signs have power
O'er sprites in planetary hour;
But scarce I praise their venturous part,
Who tamper with such dangerous art'—

a device, as Scott said in 1829, for evading the guesses of certain persons who had observed that the Author of *Waverley* never quoted from the poetry of Walter Scott. The verdict of readers went by acclamation. There was no dissent as to the splendid qualities of the new novel. It was simply a chorus of delight. Happy generation to have the *first* enjoyment of the Shakespearian gallery of characters containing Dominie Sampson, the Laird of Ellangowan, Pleydell, Dandie Dinmont, and Meg Merrilies!

In this frame of mind, then, and in this blaze of glory, Walter Scott passed on, with the rest, into the new generation and the changing

Edinburgh scene that followed and were products of the great European peace of 1815. The effects of the peace were the same in Edinburgh as elsewhere in the country. Cockburn has summarised them in these words: 'We got new things to speak about; and the entire disappearance of drums, uniforms, and parades, changed our habits and appearance. We were charmed at the moment by a striking sermon by Alison, and a beautiful review by Jeffrey, on the cessation of the long struggle; the chief charm of each being in the expression of the cordial and universal burst of joy that hailed the supposed restoration of liberty to Europe, and the downfall of the great soldier who was believed to be its only tyrant. Old men, but especially those in whose memories the American war ran into the French one, had only a dim recollection of what peace was; and middle-aged men knew it now for the first time. The change in all things, in all ideas, and conversation, and objects, was as complete as it is in a town that has at last been liberated from a strict and tedious siege.'

With the peace there began in Edinburgh some stirring of popular interest in public questions. One of the first signs of it was the great public meeting, held in July 1814, to protest against West Indian Slavery. The meeting was non-political, being attended by sympathetic persons of both parties. Yet it seems to have excited alarm, as an indication of dangerous and unsettled feelings. A monster petition resulted from this meeting, signed by ten or twelve thousand persons. Some of the promoters of the petition had an amusing experience. They found that many of the old Calvinistic Whigs would not sign any petition to the *Lords Spiritual*. This was the real spirit of true-blue Covenanters!

Over the New Town Dispensary, which was established in 1815, there raged what Cockburn remembered as 'a civic war.' The vested interests and old prejudices were up in arms against treating patients at their homes and

the election of office-bearers by subscribers. 'However, common sense prevailed. The hated institution rose and flourished, and has had all its defects imitated by its opponents.' Prominent in this incident was Professor Andrew Duncan, an odd specimen of the curious old Edinburgh characters. He is described as a kind-hearted and excellent man, but 'one of a class which seems to live and be happy, and get liked, by its mere absurdities.' He figured as promoter and president of all sorts of innocent crack-brained clubs and societies, and wrote pamphlets, poems, epitaphs and jokes without end. His writings were all amiable, all dull, and most of them very foolish, but they made the author happy. The general respect and toleration for an eccentric like this throws a strong light on the simplicity and broad-minded philosophy of the 'unreformed' city population of a hundred years ago. The following are Lord Cockburn's recollections of Duncan:—

'He was even the president of a bathing club; and once at least every year did this grave medical professor conduct as many of the members as he could collect to Leith, where the rule was that their respect for their chief was to be shown by always letting him plunge first from the machine into the water. He continued, till he was past eighty, a practice of mounting to the summit of Arthur's Seat on the 1st of May, and celebrating the feat by what he called a poem. He was very fond of gardening, and rather a good botanist. This made him president of the Horticultural Society, which he oppressed annually by a dull discourse. But in the last, or nearly the last, of them he relieved the members by his best epitaph, being one upon himself. After mentioning his great age, he intimated that the time must soon arrive when, in the words of our inimitable Shakespeare, they would all be saying "Duncan is in his grave."'

CHAPTER L

The New Town of Edinburgh in 1815—Effects of the 'Plan'—The Earthen Mound—Criticisms by Citizens after the War—The New Approaches—Destruction of City Trees—Lord Cockburn's Lament.

The New Town of Edinburgh, as seen by Scott and his contemporaries, was simply a product of the mason. The houses were plain three-story buildings, without ornament and without variety. They stood end-on in long barrack-like blocks. 'Our jealousy of variety,' says Cockburn, 'and our association of magnificence with sameness, was really curious. If a builder ever attempted (which, however, to do them justice, they very seldom did) to deviate so far from the established paltriness as to carry up the front wall so as to hide the projecting slates, or to break the roof by a Flemish storm window, or to turn his gable to the street, there was an immediate outcry; and if the law allowed our burgh Edile, the Dean of Guild, to interfere, he was sure to do so.' Mere convenience was the only guiding principle, and it was the same with the famous 'Plan' for laying out the streets. Instead of taking a hint from the strikingly picturesque irregularity of the romantic 'Old Town,' the projectors studiously endeavoured to make everything as unlike it as possible. The 'Plan' laid down the streets in long straight lines, divided to an inch, and all to the same number of inches, by intersecting straight lines at right angles.

Well might a few men of taste hold up protesting hands and exclaim, What a site did nature give us for our New Town! Yet what insignificance in its Plan! What poverty in all its details! But the most of the citizens were quite contented with the Plan and the buildings. They thought the idea of three main streets intersected by six cross streets at right angles and at

regular distances, a perfect inspiration of genius. They talked of its beauty and elegance, and fondly believed that the New Town had few equals in Europe. Certainly in one point the contrast with the Old Town was in favour of the New. The streets were made spacious and broad, giving the inestimable boon of free air. Along with the New Town there gradually grew another monument, gigantic in every sense, of the taste of Edinburgh citizens—'the Mound,' as it is still called, a monument which justifies the city's love and pride in being at least unique. It took fifty years to collect, it is eight hundred feet long, its height at the north end is sixty feet, and at the south end one hundred. Like every other great work, the Mound has had its detractors. Lord Cockburn said of it, 'The creation of that abominable incumbrance, the "Earthen Mound," by which the valley it abridges and deforms was sacrificed for a deposit of rubbish, was not only permitted without a murmur to be slowly raised, but throughout all its progress was applauded as a noble accumulation.' It was originally suggested by a Lawnmarket shopkeeper. Even at the present day there are some who have their doubts about its beauty and elegance, but they are easily silenced by recalling its vastness and its original cheapness. The Mound, in fact, is here to stay.

After the peace, when Europe was immediately covered with travellers, it became known to some Edinburgh natives that there were better things in city architecture than the 'regular, elegant, and commodious' houses of New Edinburgh. 'Not one of them, whether from taste, or conceit, or mere chattering—but it all did good—failed to contrast the littleness of almost all that the people of Edinburgh had yet done, with the general picturesque grandeur and the unrivalled sites of their city. It was about this time that the foolish phrase, "The Modern Athens," began to be applied to the capital of Scotland; a sarcasm, or a piece of affected flattery, when used

in a moral sense; but just enough if meant only as a comparison of the physical features of the two places.'

The existence of a New Town soon forced on the opening up of the city by adequate routes of access. The narrow, steep, and crooked 'wynds' of the Old Town had been constructed in the days when to keep enemies out was the first, indeed the only consideration. Now it became a primary necessity to provide broad, open, and convenient approaches from all sides. The citizens soon enjoyed the privilege of issuing by wide and pleasant highways, conducting to the open fields. And fortunately the buildings now erected beside these spacious approaches were not dominated by the 'Plan.' Cockburn himself considered the buildings 'very respectable; the owners being always tempted to allure the spreading population by laying out their land attractively. Hence Newington, Leith Walk, the grounds of Inverleith, the road to Corstorphine, and to Queensferry, and indeed all the modern approaches, which lead in every direction through most comfortable suburbs.'

It is clear from Lord Cockburn's invaluable testimony that the idea of the more free and daring attempts in architecture, which have now given the New Town a character so different from its 'planned' uniformity and elegance, originated immediately after the peace. 'The influence of these circumstances can only be appreciated by those who knew Edinburgh during the war. It is they alone who can see the beauty of the bravery which the Queen of the North has since been putting on. There were more schemes, and pamphlets, and discussions, and anxiety about the improvement of our edifices and prospects within ten years after the war ceased, than throughout the whole of the preceding one hundred and fifty years.'

Suburban Edinburgh of to-day rejoices in a profusion of trees. Had the same taste been predominant at this period, how different even the centre of the city might have been. It is tantalising to imagine the pictures left us of what existed in those bygone days. 'There was no Scotch city more strikingly graced by individual trees and by groups of them than Edinburgh, since I knew it, used to be. How well the ridge of the Old Town was set off by a bank of elms that ran along the front of James' Court, and stretched eastward over the ground now partly occupied by the Bank of Scotland. Some very respectable trees might have been spared to grace the Episcopal Chapel of St. Paul in York Place. There was one large tree near its east end which was so well placed that some people conjectured it was on its account that the Chapel was set down there. I was at a consultation in John Clerk's house, hard by, when that tree was cut. On hearing that it was actually down we ran out, and well did John curse the Huns. The old aristocratic gardens of the Canongate were crowded with trees, and with good ones. There were several on the Calton Hill; seven, not ill-grown, on its very summit. And all Leith Walk and Lauriston, including the ground round Heriot's Hospital, was fully set with wood. A group was felled about the year 1826 which stood to the west of St. John's Chapel, on the opposite side of the Lothian Road, and formed a beautiful termination of all the streets which join near that point. Moray Place, in the same way, might have been richly decorated with old and respectable trees. But they were all murdered.... I tried to save a very picturesque group, some of which waved over the wall at the west end of the jail on the Calton Hill. I succeeded with two trees; but in about four years they also disappeared. The sad truth is that the extinction of foliage, and the unbroken display of their bright freestone, is of itself a first object with both our masons and their employers. The wooded gardens that we have recently acquired are not inconsistent with

this statement. There was no competition between them and building. It is our horror of the direct combination of trees with masonry, and our incapacity to effect it, that I complain of. No apology is thought necessary for murdering a tree; many for preserving it.'

CHAPTER LI

The 'Jury Court'—Chief-Commissioner Adam—His Work and Success—Friendship with Scott—Character of Adam by Scott—The Blairadam Club—Anecdotes—Death of Lord Adam.

Trial by jury in civil cases was introduced into Scotland by an enactment of the year 1815. The first case was tried on 22nd January 1816. The change thus inaugurated was considered by reformers 'one of the most important events in the progress of our law.' Though meeting with strong opposition, headed by the old judges, the introduction of the new system was managed successfully. It implied the arrangement of a separate court, and the appointment of a special presiding judge trained to English practice. The Lord Chief-Commissioner was the Right Hon. William Adam, of Blairadam, and he was assisted by two other judges, Lords Pitmilley and Meadowbank. Adam was then sixty-five years of age. Cockburn says that he was handicapped by extravagant expectations of what he was to do. He describes him as 'the person who had first fought Fox, and then been his friend; who had spoken in debate with Pitt; managed the affairs of Royal Dukes; been the standing counsel of such clients as the East India Company and the Bank of England, and in great practice in Parliamentary Committees.' His appearance was that of a farming gentleman. He had a clear distinct voice, and an admirable manner, but his great defect is said to

have been 'obscurity of judicial speech.' Lord Glenlee, listening for a long time, without getting any definite idea, to his well-sounding sentences full of confusion, made the epigram, 'He speaks as if he were an Act of Parliament.'

We have the testimony of Lord Cockburn to the success of his work. 'No other man could have done his work. He had to guide a vessel over shoals and among rocks. This was his special duty, and he did it admirably. He protected his court from prejudices which, if not subdued by his patience and dexterity, would have crushed it any week. So far as we are to retain civil trial by jury in this country, we shall owe it to him personally. When in 1830 the Jury Court ceased to exist as a separate court his vocation was at an end; and he retired with the respect and the affection of the whole legal profession and of the public.'

Such was the task of the man with whom Scott was now to be connected during the rest of his life in a constant interchange of hospitality, and whom he so frequently mentions in his *Journal* with epithets of esteem and respect. Their acquaintance practically dated from Adam's appointment, but soon grew into the closest friendship. The account of their connection in the *Journal* (January 1826) must be quoted for the vivid, almost startling light it throws on Scott's own peculiarities.

'I have taken kindly to him as one of the most pleasant, kind-hearted, benevolent, and pleasing men I have ever known. It is high treason among the Tories to express regard for him, or respect for the Jury Court in which he presides. I was against that experiment as much as any one. But it is an experiment, and the establishment (which the fools will not perceive) is the only thing which I see likely to give some prospects of ambition to our Bar. As for the Chief-Commissioner, I dare say he jobs, as all other people of consequence do, in elections, and so forth. But he is the personal friend of

the King, and the decided enemy of whatever strikes at the constitutional rights of the monarch. Besides, I love him for the various changes which he has endured through life, and which have been so great as to make him entitled to be regarded in one point of view as the most fortunate—in the other, the most unfortunate—man in the world. He has gained and lost two fortunes by the same good luck, and the same rash confidence, which raised, and now threatens, my *peculium*. And his quiet, honourable, and generous submission under circumstances more painful than mine,—for the loss of world's wealth was to him aggravated by the death of his youngest and darling son in the West Indies—furnished me at the time and now with a noble example. So the Tories and Whigs may go be d—d together, as names that have disturbed old Scotland, and torn asunder the most kindly feelings since the first day they were invented.... I cannot permit that strife to "mix its waters with my daily meal," those waters of bitterness which poison all mutual love and confidence betwixt the well-disposed on either side.'

Adam was fond of society, in which 'nothing could exceed his delightfulness.' The Blairadam Club was for many years (from 1818 onwards) an institution. It was an annual gathering at midsummer of a few bosom friends, among them Scott, William Clerk, and Sir Adam Ferguson. The friends spent a day or two together, and generally made it a gay and happy occasion. 'We hire a light coach-and-four, and scour the country in every direction in quest of objects of curiosity.' The last meeting attended by Scott was in 1830, when he says: 'Our meeting was cordial, but our numbers diminished. Will Clerk has a bad cold, Thomas Thomson is detained, but the Chief-Commissioner, Admiral Adam (son of the host), Sir Adam, John Thomson and I, make an excellent concert. The day was execrable (wet). But Sir Adam was in high fooling, and we had an amazing

deal of laughing.' It is pathetic, in the midst of this, to see how he fretted to be at home, in order to be at work again. In the *Journal* we come across some remarks or anecdotes of Adam's, of which one or two may be given. 'I came home with Lord Chief-Commissioner Adam. He told me a dictum of old Sir Gilbert Elliot, speaking of his uncles. "No chance of opulence," he said, "is worth the risk of a competence." It was not the thought of a great man, but perhaps that of a wise one.'

Again, 'Dined with Chief-Commissioner,—Admiral Adam, W. Clerk, Thomson and I. The excellent old man was cheerful at intervals—at times sad, as was natural. A good blunder he told us, occurred in the Annandale case, which was a question partly of domicile. It was proved that leaving Lochwood, the Earl had given up his *kain* and *carriages*; this an English counsel contended was the best of all possible proofs that the noble Earl designed an absolute change of residence, since he laid aside his *walking-stick* and his *coach*.'[1]

[1] *Kain* in Scots Law means 'payment in kind': carriages, 'services in driving with horse and cart.'

Lockhart has recorded that 'this most amiable and venerable gentleman, my dear and kind friend, died at Edinburgh, on the 17th February 1839, in the eighty-ninth year of his age. He retained his strong mental faculties in their perfect vigour to the last days of his long life, and with them all the warmth of social feelings which had endeared him to all who were so happy as to have any opportunity of knowing him.'

CHAPTER LII

1816—The *Antiquary*—Death of Major John Scott—The Aged Mother—Buying Land—The Ballantynes—The *Black Dwarf* and Blackwood—Scott and a Judgeship—Anecdote of Authorship of *Waverley*.

The year 1816, says Lockhart, 'has almost its only traces in the successive appearance of nine volumes, which attest the prodigal genius and hardly less astonishing industry' of Walter Scott. Among these were the *Antiquary* and *Old Mortality*. The former appeared in the beginning of May, and about the same time occurred the death of the author's brother, Major John Scott, who had long been in weak health. Writing to Morritt on this occasion Scott says, 'It is a heavy consideration to have lost the last but one who was interested in our early domestic life, our habits of boyhood, and our first friends and connexions. It makes one look about and see how the scene has changed around him, and how he himself has been changed with it. My mother, now upwards of eighty, has now only one child left to her out of thirteen whom she had borne. She is a most excellent woman, possessed, even at her advanced age, of all the force of mind and sense of duty which have carried her through so many domestic griefs, as the successive deaths of eleven children, some of them come to men and women's estate, naturally infers. She is the principal subject of my attention at present, and is, I am glad to say, perfectly well in body and composed in mind.'

In the same letter he speaks of the *Antiquary* as being 'not so interesting' as its predecessors, but more fortunate than any of them in the sale, six thousand copies having gone off in a week. Meantime he was fast purchasing land to add to his estate. By this time it had grown from 150 acres to nearly a thousand. There were signs that might have warned him to be careful. At the time of James Ballantyne's fall he appears to have been owing over £3000 to Scott of personal debt. But Scott was sanguine by

nature, and it was the interest of the Ballantynes to keep their businesses going. 'Therefore, in a word' (this is Lockhart's deliberate charge), 'John appears to have systematically disguised from Scott the extent to which the whole Ballantyne concern had been sustained by Constable—especially during his Hebridean tour of 1814, and his Continental one of 1815—and prompted and enforced the idea of trying other booksellers from time to time, instead of adhering to Constable, merely for the selfish purposes—first of facilitating the immediate discount of bills;—secondly, of further perplexing Scott's affairs, the entire disentanglement of which would have been, as he fancied, prejudicial to his own personal importance.'

It was in this way that the *Tales of my Landlord* (that is, the *Black Dwarf* and *Old Mortality*) came to be published by Murray and Blackwood. The latter, alarmed by Gifford's disapprobation of the *Black Dwarf*, proposed that if the author would recast the later chapters, he would gladly take upon himself the expense of cancelling the sheets. Scott's reply, in a letter to Ballantyne, was emphatic: 'Tell him and his coadjutor that I belong to the Black Hussars of Literature, who neither give nor receive quarter. I'll be cursed, but this is the most impudent proposal that ever was made.'

An interesting fact in Scott's personal history which had previously been unknown even to Lockhart, was discovered by the latter when Scott's letters to the Duke of Buccleuch came into his hands after the death of the Duke. During the winter of 1816-1817, it appears, Scott made an attempt to exchange his Clerkship for a seat on the Bench of the Court of Exchequer. The Duke was naturally most anxious to second the proposal, but private reasons prevented him from exercising his influence at that juncture. This seems to have set the matter at rest. In later years, when such a step was suggested, Scott seems to have become convinced that the less conspicuous position was more fit and desirable for a literary man, and more especially a

poet and novelist. At all events the Tory party lost the opportunity of making Walter Scott 'Lord Abbotsford.'

After the publication of *Tales of my Landlord* by Murray, Scott, in conjunction with his friend Erskine, contributed to the *Quarterly* a general review of the *Waverley Novels* and a reply to Dr. M'Crie's strictures on the treatment of the Covenanters in *Old Mortality*. The criticisms were the work of Erskine, though Scott was severely censured after, as if he had been puffing his own works unfairly. The paper closed with an allusion to the report of Thomas Scott's being the author of *Waverley*. 'A better joke,' says Lockhart, 'was never penned, and I think it includes a confession over which a misanthrope might have chuckled.' This is the conclusion: 'We intended here to conclude this long article, when a strong report reached us of certain Transatlantic confessions, which, if genuine (though of this we know nothing), assign a different author to these volumes than the party suspected by our Scottish correspondents. Yet a critic may be excused seizing upon the nearest suspicious person, on the principle happily expressed by Claverhouse in a letter to the Earl of Linlithgow. He had been, it seems, in search of a gifted weaver, who used to hold forth at conventicles: "I sent for the webster (weaver), they brought in his *brother* for him; though he, may be, cannot preach like his brother, I doubt not but he is as well-principled as he, wherefore I thought it would be no great fault to give him the trouble to go to jail with the rest."'

At this point we shall cease to attempt any detailed account of the various novels and their publication. Our plan calls now only for a few striking scenes in the closing years of the life whose outward surroundings and personal environment in Edinburgh it is our main aim to illustrate. We may, however, conclude this chapter with the admirable summary by Lockhart of the qualities of *Old Mortality*, a work which was the product of

Scott's greatest intellectual effort, and which is usually, and justly, ranked with *Guy Mannering* as one of the best of the Scotch Novels. 'The story,' he says, 'is framed with a deeper skill than any of the preceding novels; the canvas is a broader one; the characters are contrasted and projected with a power and felicity which neither he nor any other master ever surpassed; and notwithstanding all that has been urged against him as a disparager of the Covenanters, it is to me very doubtful whether the inspiration of romantic chivalry ever prompted him to nobler emotions than he has lavished on the reanimation of their stern and solemn enthusiasm. The work has always appeared to me the *Marmion* of his novels.'

CHAPTER LIII

1817—Overwork and Illness—Kemble's 'Farewell Address'—The Kemble Dinner—*Blackwood's Magazine* and the Reign of Terror in Edinburgh.

During the times of trouble with the Ballantyne affairs, Scott, as has been seen, taxed his strength to an extraordinary and dangerous extent. The effects were presently felt in that which was the permanently weak point of his physical constitution—the family tendency to paralysis. His first serious illness was in March 1817. From his letters to Morritt it appears that he had suffered all through the winter—while working as usual in Edinburgh—with cramps in the stomach. He had got temporary relief by means of drinking scalding water, but as the pains continued to recur more frequently he had been obliged reluctantly to have recourse to Dr. Baillie. 'But' (he says) 'before his answer arrived, on the 5th, I had a most violent attack, which broke up a small party at my house, and sent me to bed roaring like a

bull-calf. All sorts of remedies were applied, as in the case of Gil Blas' pretended colic, but such was the pain of the real disorder, that it out-deviled the Doctor hollow. Even heated salt, which was applied in such a state that it burned my shirt to rags, I hardly felt when clapped to my stomach. At length the symptoms became inflammatory, and dangerously so, the seat being the diaphragm. They only gave way to very profuse bleeding and blistering, which, under higher assistance, saved my life. My recovery was slow and tedious from the state of exhaustion. I could neither stir for weakness and giddiness, nor read for dazzling in my eyes, nor listen for a whizzing sound in my ears, nor even think for lack of the power of arranging my ideas. So I had a comfortless time of it for about a week.' Lockhart adds that his friends in Edinburgh were in great anxiety about him all the spring, the attacks being more than once repeated. But he resumed work almost immediately, planning out, in intervals of pain, the drama called *The Doom of Devorgoil*. Now also he wrote the magnificent 'Farewell Address,' instinct with heart-felt pathos, with which his friend John Philip Kemble took his leave of the Edinburgh stage, on the evening of Saturday the 29th March 1817. The character in which Kemble had appeared was Macbeth, and he wore the dress of the character while he spoke the lines. 'Mr. Kemble' (says James Ballantyne) 'delivered these lines with exquisite beauty, and with an effect that was evidenced by the tears and sobs of many of the audience. His own emotions were very conspicuous. When his farewell was closed, he lingered long on the stage, as if unable to retire. The house again stood up, and cheered him with the waving of hats and long shouts of applause. At length he finally retired, and, in so far as regards Scotland, the curtain dropped upon his professional life for ever.'

'My last part is played, my knell is rung,
When e'en your praise falls faltering from my tongue;
And all that you can hear, or I can tell,
Is Friends and patrons, hail, and *Fare you well!*'

A few days after, the great tragedian was entertained to dinner by his Edinburgh admirers. There was a company of about seventy notable persons—among them Lockhart, who says, 'I was never present at any public dinner in all its circumstances more impressive.' Jeffrey was chairman, and the croupiers were Walter Scott and John Wilson. From the *Life* of Jeffrey we extract a curious anecdote of this interesting scene. That evening Jeffrey 'did what he never did before or since. He stuck a speech. He had to make the address and present a snuff-box to Kemble. He began very promisingly, but got confused, and amazed both himself and everybody else, by actually sitting down and leaving the speech unfinished; and, until reminded of that part of his duty, not even thrusting the box into the hand of the intended receiver. He afterwards told me the reason of this. He had not premeditated the scene, and thought he had nothing to do, except in the name of the company to give the box. But as soon as he rose to do this, Kemble, who was beside him, rose also, and with most formidable dignity. This forced Jeffrey to look up to his man; when he found himself annihilated by the tall tragic god; who sank him to the earth at every compliment, by obeisances of overwhelming grace and stateliness.' The incident must have been awkward for Kemble, but it was a genuine and involuntary tribute to the majestic bearing of the great actor.

Shortly after this, in April 1817, there occurred an event which greatly stirred the peaceful waters of Edinburgh social and literary life, and with

which Scott's future son-in-law and biographer, John Gibson Lockhart, was to be very prominently associated. This was the founding of the *Edinburgh Monthly Magazine*. The publisher was John Blackwood. Wishing to develop the magazine on lines of his own, this far-seeing and able gentleman, first shaking himself clear from the two editorial personages who were hampering his energies, started the periodical afresh at the seventh number under the title of *Blackwood's Edinburgh Magazine*. The famous No. VII. came like a thunderbolt. All the world wondered. From what sources had Blackwood evoked the wit, the tremendous energy, the boundless audacity of personal attack which at once shocked and delighted the public mind? The Whigs were both tortured and alarmed. The days of their sole literary domination were seen straightway to be over. For them especially a Reign of Terror had begun. They were now to be subjected to the lash of an incomparable, though often excessive, power of ridicule: a form of punishment which always hurts most sorely those to whom the saving grace of humour has been denied. Necessarily *Blackwood's Magazine* was a political engine, the organ of high Toryism. As such, it was liable to the sneer of Cockburn (a sneer which tells with equal justness against all theoretical defenders of current politics): 'In this department it has adhered with respectable constancy to all the follies it was meant to defend. It is a great depository of exploded principles; and indeed it will soon be valuable as a museum of old errors.' But every device of mystification, an example set by Scott, was employed to keep the secret of who were really 'Blackwood's young Tory wags,' and this was further secured by the entirely unsuspected fact, that the editor was actually Blackwood himself. The marvellous thing, now that the facts are known, is the enormous share performed by the two chiefs, Lockhart and Wilson. In their buoyant eagerness to break up the monopoly of Whig literary and

political influence, they doubtless went too far, and sometimes knew it. Later on, these early defects were acknowledged and analysed, in *Peter's Letters*, by the authors themselves. Even they, it may be, hardly realised how much pain they had given, but the almost solemn words of Lord Cockburn indicate very clearly how intense it must have been. 'Posterity,' he says, 'can never be made to feel the surprise and just offence with which, till we were hardened to it, this work was received. The minute circumstances which impart freshness to slander soon evaporate; and the arrows that fester in living reputations and in beating hearts are pointless, or invisible to the eyes of those who search for them afterwards as curiosities.' It was, in fact, the work of young and inexperienced men brimful of genius and spirit, but untaught to discern the dangers in the use of the weapons with which they played.

CHAPTER LIV

Personal Anecdotes of Scott—Washington Irving—The Minister's Daughter—J. G. Lockhart—His Introduction to Scott—*Annual Register*—39 Castle Street—Scott's 'Den'—Animal Favourites.

In the autumn of 1817 Washington Irving, with whose *History of New York* by Knickerbocker Scott had been greatly charmed, paid a visit to Abbotsford, and received a hearty welcome. One of the anecdotes told by Irving of this visit may be given here, as illustrating the beautiful courtesy and fine sympathetic feeling with which it was Scott's nature to treat sterling worth and generosity of mind in whatever rank he discovered it. Irving tells how William Laidlaw and his wife came to dinner one day, accompanied by a lady friend. He observed with some curiosity that this by

no means extraordinary person, who was middle-aged and only remarkable for her intellectual qualities, was treated by their host with particular attention and courtesy. The occasion was in fact a specially pleasant one, and the company were made to feel that they were cherished guests. On their leaving, Scott, to Irving's great delight, launched into hearty praise of the lady visitor. The daughter of a Scottish minister, who died in debt, she had been left an orphan and destitute. She had at once faced the situation with a brave heart, and though her education was not great, she set up a school for young children, which soon proved in its way a success. But she made her own concerns a secondary object. By submitting to all sorts of privation, she managed to pay off all her father's debts, determined that no slighting word or evil feeling might humble his memory. And this was not all. To the martyr's self-sacrifice she added a divine benevolence. To some who once had been kind to her father and were now fallen on evil days, she did all the service she could by teaching their little ones without reward or fee. Happily her memory is green in the eulogy of the great neighbour to whom she was a kindred spirit: 'She's a fine old Scotch girl, and I delight in her more than in many a fine lady I have known, and I have known many of the finest.'

It was in the following year, in May 1818, that John Gibson Lockhart, then a young barrister with pronounced literary leanings, was first introduced to Scott. It was the moment when, as the great biographer himself has eloquently put it, 'Scott's position was, take it for all in all, what no other man had ever won for himself by the pen alone. His works were the daily food, not only of his countrymen, but of all educated Europe. His society was courted by whatever England could show of eminence. Station, power, wealth, beauty, and genius, strove with each other in every demonstration of respect and worship, and—a few political fanatics and

envious poetasters apart—wherever he appeared in town or country, whoever had Scotch blood in him, "gentle or simple," felt it move more rapidly through his veins when he was in the presence of Scott.' But in the midst of this blaze of glory, and while he was dreaming dreams of fortune and family pride, what was it that struck the most keen-eyed of critics when he first saw his hero? Only the plain easy modesty, the kindness of heart which *pervaded* every word, tone, and gesture, the simple qualities which made him 'loved more and more' by his earliest friends. It was at the house of Mr. Home Drummond, a grandson of Lord Kames, that the meeting took place. Like every other literary aspirant, Lockhart was astonished and gratified by the cordiality and kindly appreciation of the elder writer. 'When the ladies' (he says) 'retired from the dinner-table, I happened to sit next him; and he, having heard that I had lately returned from a tour in Germany, made that country and its recent literature the subject of some conversation. In the course of it, I told him that when, on reaching the inn at Weimar, I asked the waiter whether Goethe was then in the town, the man stared as if he had not heard the name before; and that, on my repeating the question, adding *Goethe der grosse Dichter*, he shook his head as doubtfully as before—until the landlord solved our difficulties, by suggesting that perhaps the traveller might mean "*Herr Geheimer-Rath* (Privy Councillor) *von Goethe*.'"—Scott seemed amused with this and said, "I hope you will come one of these days and see me at Abbotsford; and when you reach Selkirk or Melrose, be sure you ask even the landlady for nobody but *the Sheriff*." I mentioned how much any one must be struck with the majestic beauty of Goethe's countenance—the noblest certainly by far that I have ever yet seen—"Well," said he, "the grandest demi-god I ever saw was Dr. Carlyle, minister of Musselburgh, commonly called *Jupiter Carlyle*, from having sat more than once for the king of gods and men to Gavin Hamilton

—and a shrewd, clever old carle was he, no doubt, but no more a poet than his precentor. As for poets, I have seen, I believe, all the best of our own time and country—and though Burns had the most glorious eyes imaginable, I never thought any of them would come up to an artist's notion of the character, except Byron."

Soon after this Lockhart was, on Scott's recommendation, invited by the Ballantynes to take Scott's place in working up the historical part of their *Annual Register*. Thus they met pretty frequently during the ensuing summer session, a circumstance to which we owe Lockhart's very complete and first-hand description of Scott's working 'den' at 39 Castle Street and of his social life at this period. The den was a small square back-room behind the dining parlour. It looked out upon a dull back-yard with a small square of turf. The walls of the room were lined with books, mostly stately folios and quartos beautifully kept, as befitted a lover of books. There was one massive table, on which was his own desk, and one opposite for an occasional amanuensis. On the top lay his law papers, while his MSS., letters, and proof-sheets were under his hand on the desk below. Before the desk stood his large elbow-chair, and there were only two other chairs in the room. Beside the window was a pile of green tin boxes, on the top of which was a fox's tail mounted on a handle of old silver and used for dusting the top of a book as occasion required. He had a ladder for scaling the high shelves, which is described as 'low, broad, well carpeted, and strongly guarded with oaken rails.' His living companions in his den were usually a venerable tom-cat called Hinse, which had a liking for the top of the ladder, and the noble stag-hound Maida, whose lair was on the hearth-rug. 'I venture to say' (Lockhart remarks) 'that Scott was never five minutes in any room before the little pets of the family, whether dumb or lisping, had found out his kindness for all their generation.'

In conversation among his friends, Scott was always natural, sensible, and good-humoured. His ideal society, as we have seen, was the simple but high-toned friendliness, with courtly attention to old manners and customs of the social board—the ways of the old-fashioned generation before 1800, when Edinburgh society still took its tone from the Scottish aristocracy and gentry. After this period Edinburgh table-talk and manners were led by the lawyers. Men shone in society by contests of dialectics, brilliant disquisitions, 'such as might be transferred without alteration to the pages of a critical review.' Scott was of another world from this. He admired the dexterity and skill displayed, but he was not tempted to take part. It lacked the touch of nature which would have made him acknowledge kin. So everybody else was satisfied, and Scott was not displeased. The great poet, the writer of conversations which had heightened the gaiety of millions, was perfectly content to be considered inferior as a table-companion to 'this or that master of luminous dissertation or quick rejoinder, who now sleeps as forgotten as his grandmother.' To appreciate, it is necessary to know something and to sympathise. The persons who called Scott's conversation 'common-place' were practically comparing the Waverley Novels to Dugald Stewart's lectures, and would have denounced Shakespeare for making up his *Hamlet* out of popular quotations. It was 'ignorance, madam, pure ignorance,' without the wit to acknowledge, and in many cases political prejudice was also present. To one of the latter Lockhart heard Lord Cockburn nobly reply: 'I have the misfortune to think differently from you; in my humble opinion, Walter Scott's *sense* is a still more wonderful thing than his *genius*.' Nothing could be better: a noble and excellent saying. And to similar effect in his *Memorials* he testifies that scarcely even in his novels was Scott more striking or delightful than in society; where his halting limb, the bur in the throat, the heavy cheeks, the high Goldsmith-

forehead, the unkempt locks, and general plainness of appearance, with the Scotch accent and stories and sayings, all graced by gaiety, simplicity, and kindness, made a combination most worthy of being enjoyed.

CHAPTER LV

Scotland Edinburgh Society—Lockhart's Opinion—Scott's Drives in Edinburgh—Love of Antiquities—The Sunday Dinners at 39 Castle Street—The Maclean Clephanes—Erskine, Clerk, C. K. Sharpe, Sir A. Boswell, W. Allan,—Favourite Dishes.

Ignorant prejudice gradually disappeared. The charm of Scott's conversation was found to be as great, in fact the same, as that of his writings. Mingling with and wishing to emulate London society, Edinburgh great folks came to understand that social intercourse ought to aim at enjoyment and relaxation, not at the display of alleged wit and amateur disquisitions on speculative themes. Then they discovered that Scott's easy, natural humour, his ever-ready and picturesque descriptions, his quaint old-world sayings and diverting sketches and anecdotes, nay, his very prejudices, always honest and so very lovable when understood to their foundation, were unique treasures even from the narrowest point of view. This was what all, long before 1818, recognised whose opinion was worth considering. But Lockhart, who had the best means of knowing, as being himself 'one of them,' says that even then the old theory, that Scott's conversation was 'commonplace,' lingered on in the general opinion of the city, especially among the smart praters of the *Outer House*. Of course it was the cue of these praters to differ from their elders, and few of them, after all, had perhaps enjoyed what they made a boast of affecting to depreciate.

Lockhart, who was certainly in the Whig sense the strongest *intellect* that ever adorned Edinburgh, both enjoyed and appreciated. And fortunately for us *minores*, he has told what he saw and rejoiced in. He says: 'It was impossible to listen to Scott's oral narrations, whether gay or serious, or to the felicitous fun with which he parried absurdities of all sorts, without discovering better qualities in his talk than *wit*—and of a higher order; I mean especially a power of *vivid painting*—the true and primary sense of what is called *Imagination*. He was like Jacques—though not a "Melancholy Jacques"; and "moralised" a common topic into a "thousand similitudes." Shakespeare and the banished Duke would have found him "full of matter." He disliked mere disquisitions in Edinburgh, and prepared *impromptus* in London; and puzzled the promoters of such things sometimes by placid silence, sometimes by broad merriment. To such men he seemed *common-place*—not so to the most dexterous masters in what was to some of them almost a science; not so to Rose, Hallam, Moore, or Rogers,—to Ellis, Mackintosh, Croker, or Canning.'

When in Edinburgh, Scott's only formal outing was an afternoon drive in an open carriage, sometimes to Blackford Hill, or Ravelston, and so home by Corstorphine, sometimes to Portobello, keeping as close as possible to the sea. An old man who died last year (1905) used to tell how, when he was a boy, he remembered Scott alighting and coming some distance across a field to speak a few kind words to him and ask after his parents, in whom he took an interest. When he went home, his mother told him about the great man and bade her son remember that day, for if he lived to be an old man, he would be proud to talk of it to his children's children. As he drove through the city, it was Scott's greatest enjoyment to gaze and muse upon its natural beauties, and especially its remaining antiquities. He would often make a long circuit in order, as Lockhart observed, 'to spend a

few minutes on the vacant esplanade of Holyrood, or under the darkest shadows of the Castle rock, where it overhangs the Grassmarket, and the huge slab that still marks where the gibbet of Porteous and the Covenanters had its station. His coachman knew him too well to move at a Jehu's pace amidst such scenes as these. No funeral hearse crept more leisurely than did his landau up the Canongate or the Cowgate; and not a queer tottering gable but recalled to him some long-buried memory of splendour or bloodshed, which, by a few words, he set before the hearer in the reality of life. His image is so associated in my mind with the antiquities of his native place, that I cannot now revisit them without feeling as if I were treading on his gravestone.'

But of all pleasant memories of the Master well-beloved, the most delightful to conjure up is that of the good Clerk as host at the Sunday 'dinner without the silver dishes,' as he was wont to call it. It was always a gathering of dear and long-cherished friends. All were delighted to meet, and all were prepared to be happy. Gladdest of all was their host, who came into the room 'rubbing his hands, his face bright and gleesome, like a boy arriving at home for the holidays, his Peppers and Mustards gambolling about his heels, and even the stately Maida grinning and wagging his tail in sympathy.' Most of the intimates who came to these parties have already been mentioned. There was Mrs. Maclean Clephane, with whom Scott would playfully dispute on the subject of Ossian. Her daughters would accompany her, to delight all, especially Scott, with the poetry and music of their native isles. They had made him their guardian by their own choice, and were loved for their own sakes. The eldest was that Lady Crompton with whom, as he tells in the *Journal*, he travelled to Glasgow in September 1827, and had 'as pleasant a journey as the kindness, wit, and accomplishments of my companion could make it.' When they reached

Glasgow, they met, at the Buck's Head, Mrs. Maclean Clephane and her two daughters. He mentions that after dinner the ladies sang, 'particularly Aunt Jane, who has more taste and talent than half the people going with great reputations on their backs.' Then there were the Skenes, the Macdonald Buchanans, and all the *nieces* and *nephews* of the Clerks' table alliance. 'The well-beloved Erskine,' says Lockhart, 'was seldom absent; and very often Terry or James Ballantyne came with him—sometimes, though less frequently, Constable. To say nothing of such old cronies as Clerk, Thomson, and Kirkpatrick Sharpe.' It was of his boyhood's friend and mentor, Clerk, that Scott said he feared he would leave the world little more than the report of his fame. It was his opinion, as well as that of other competent judges, that he had never met a man of greater powers than Clerk. Charles Kirkpatrick Sharpe was also regarded by Scott very highly, and is sketched in a lively page in the *Journal*, 1825. His effeminacy of voice, his clever and fanciful drawings—which he was too aristocratic to use for increasing his small income—his odd curiosity for scandal centuries old, made Sharpe a very remarkable figure. 'My idea is' (says Scott) 'that C. K. S. with his oddities, tastes, satire, and high aristocratic feelings, resembles Horace Walpole—perhaps in his person also, in a general way.'

Lockhart mentions also Sir Alexander Boswell, author of the humorous song, *Jeannie dang the Weaver*, and a great bibliomaniac, Sir Alexander Don of Newton, 'the model of a cavalier,' and William Allan, R.A., whom Scott calls a very agreeable, simple-mannered, and pleasant man. Allan became Sir William, President of the Royal Scottish Academy from 1838 to 1850. In July 1826 Scott mentions his having been to see Allan's picture of 'the Landing of Queen Mary.' Three or four of these friends, with Scott and his family, took their places every Sunday at the 'plain dinner' in No. 39 Castle Street.

Scott kept a bounteously loaded table. He was himself a hearty eater, preferring plain substantial fare. He was not a gourmand, still less a glutton. His one good meal was breakfast. At dinner his appetite was neither keen nor nice. 'The only dishes he was at all fond of were the old-fashioned ones to which he had been accustomed in the days of Saunders Fairford.' Readers of the Novels have heard of them all, and few will forget the conclusion of the *Fortunes of Nigel*: 'My lords and lieges, let us all to our dinner, for the *cock-a-leekie* is cooling.'

CHAPTER LVI

The National Monument—Still incomplete—The Salisbury Crag—Danger of their Destruction—
The Path impassable—Construction of the Radical Road—National Distress—Trials for Sedition—
Anecdote of John Clerk—The City Guard.

As a landmark of modern Edinburgh, the National Monument must now be noticed. Its twelve massy columns of white Craigleith stone are familiar to all who have spent an hour in the city. The idea of it dates from 1816, for it was intended to commemorate Scotland's share in the triumphs of the great war. During the following years it was often discussed. The original proposal was to erect a lofty pillar. Then, as we learn from Lord Cockburn, 'there were some who thought that the prevailing effervescence of military patriotism created a good opportunity for improving the public taste by the erection of a great architectural model. The Temple of Minerva, placed on the Calton Hill, struck their imaginations, and though they had no expectation of being able to realise the magnificent conception, they resolved, by beginning, to bring it within the vision of a distant

practicability. What, if any, age would finish it, they could not tell; but having got a site, a statute, and about £20,000, they had the honour of commencing it.' The hour of its completion has not arrived yet. Nearly a century has elapsed since George IV. laid the foundation stone in 1822. Perhaps on the occurrence of the centenary the project may once more lay hold of the public imagination. At least the 'distant practicability' remains. Imposing and sublime possibility! Perhaps, in an era of colossal fortunes, some INDIVIDUAL may anticipate the city—engrossed with its Usher Hall and water-fleas—and capture the national glory to crown with immortality his own proud name.

One noble feature of our scenery was completed about this time by the walk round the Salisbury Crag. When Henry Cockburn as a boy of nine scrambled, as he tells us, for the first time to the top of that romantic cliff, the path at its base was not six feet wide, while at places there was no path at all. Between that time and the year 1816 certain persons quarried the rock to such an extent that what was formerly a narrow footpath became, in many places, one hundred feet wide. This impudent theft of public property would shortly have destroyed the whole face of the rock. Fortunately the depredators were stopped in time, and Edinburgh preserved at once a remarkable piece of geological 'testimony,' and one of its finest natural features. Cockburn records that Henry Brougham, 'who as a boy had often clambered among these glorious rocks,' then, in the capacity of Lord Chancellor, pronounced the judgment which finally saved a remnant of the Crag. The old path is mentioned by Scott in the *Heart of Midlothian* (Chap. VIII.) as having been his favourite evening and morning resort, when engaged with a favourite author or new subject of study. And he added to his enthusiastic description of the view from the Salisbury Crag a brief and mildly expressed reproach. 'It is, I am informed, now (1818)

become totally impassable; a circumstance which, if true, reflects little credit on the taste of the Good Town or its leaders.' In a note, added in a later addition, he says, 'A beautiful and solid pathway has, within a few years, been formed around these romantic rocks; and the author has the pleasure to think that the passage in the text gave rise to the undertaking.' This was indeed the case; but, strange to say, the path thus due to Sir Walter Scott got the name of the *Radical Road*. In 1820, it appears, the 'unemployed' question was flagrant. The men, stimulated by Radicals, were becoming dangerous, when Scott's happy suggestion solved the problem by providing them with a substantial piece of work. The discontent was allayed, and the road was constructed by these vigorous Radicals. The name of the *Salisbury Crags* commemorates the English invasion of 1336. King Edward III.'s forces were commanded by the famous Earl of Salisbury, who encamped on the Crags, and thus gave the spot its foreign name.[1]

[1] James Grant, however, gives a Gaelic derivation of the name.

The distress which followed as a natural consequence of the prolonged strain of the war, was in those years very severe. Outbreaks of seditious talk were common in England, and led to many serious disturbances. In Scotland they were fewer, because the law still made transportation the penalty for this offence. There were, however, some prosecutions for sedition, and in connection with the first of these, in 1817, Cockburn, who was, with Jeffrey, counsel for one of the defendants, tells a characteristic anecdote of John Clerk, who was counsel for another of the accused, along with James Campbell of Craigie. 'Campbell called on Clerk on the morning of the trial. He found him dressing, and in a frenzy at the anticipated iniquities of the judges; against whom, collectively and individually, there

was much slow dogged vituperation throughout the process of shaving. He had on a rather dingy-looking nightshirt: but a nice pure shirt was airing before the fire. When the toilet reached the point at which it was necessary to decide upon the shirt, instead of at once taking up the clean one, he stopped and grumpled, and looked at the one and then at the other, always turning with aversion from the dirty one; and then he approached the other resolutely, as if his mind was made up; but at last he turned away from it, saying fiercely, "No, I'll be d—d if I put on a clean sark *for them*." Accordingly he insulted their Lordships by going to Court with the foul one. Not like Falkland.'

About the end of the year 1817 Edinburgh streets finally lost the most picturesque of their official figures. The City Guard, a body first enrolled in 1696, now retired from view, their functions being better fulfilled by the new police, and Robert Fergusson's well-known lines became superfluous:

'Gude folk, as ye come frae the fair,
Bide yont frae this black squad;
There's nae sic savages elsewhere
Allowed to wear cockad.'

Scott gives a capital description of them in the *Heart of Midlothian* (Chap. III.), where he says, 'The venerable corps may now be considered as totally extinct.' From Cockburn we learn that one of these stern-looking but half-dotard warriors used to sit as guard with the prisoners at the bar of the Court of Justiciary. 'They sat so immovably, and looked so severe, with their rugged weather-beaten visages, and hard muscular trunks, that they were no unfit emblems of the janitors of the region to which those they guarded were so often consigned. The disappearance of these picturesque old

fellows was a great loss.' He wished they had been perpetuated, if only as curiosities. They were probably the last of our soldiers who carried as their special weapon the old genuine Lochaber axe, which Lord Cockburn styles 'a delightful implement.' Fergusson, who saw its virtues in a more practical way, speaks of the 'deadly paiks,' or blows, freely dealt by the hot-tempered veterans.

'Gie not her bairns sic deadly paiks,
Nor be sae rude,
Wi' firelock or Lochaber axe,
As spill their bluid.'

Their last march (as mentioned in Scott's note) to do duty at Hallow-fair, had something affecting in it. Their drums and fifes had been wont on better days to play, on this joyous occasion, the lively tune of *Jockey to the Fair*; but on this final occasion the afflicted veterans moved slowly to the dirge of *The last time I came ower the muir*. They were always greatly disliked by the commons of Edinburgh, who never spoke of them by any better name than the loathsome appellation 'the Toon Rottens' (Rats).

CHAPTER LVII

Scott and the Ballantynes—James in the Canongate—Ceremonies at the 'Waverley' Dinners—Reading of Scenes from the New Volume—John at Trinity—His 'Bower of Bliss'—Anecdote by C. Mathews.

At this distance of time it is difficult either to understand or to condone the wilful delusion in which Scott persisted to regard the two reckless adventurers, James and John Ballantyne. They were lowborn and vulgar: his deep-seated aristocratic feelings should have kept them at a distance. They were utterly devoid of business capacity: his natural shrewdness ought to have seen through them. They were neglectful of duty: his own tireless devotion to work ought to have made him despise them. But they were friends of his boyhood, and he loved them. James was a shrewd critic and an excellent amanuensis, and Scott trusted his judgment and enjoyed his services. John was a humorist, his social clowning was inimitable, and in these capacities he was emphatically a man after Scott's own heart. Both of them knew Scott down to the minutest foible of his simple honest nature. They knew exactly what it was in themselves which pleased him. All they had to do was to be themselves—just as he conceived them. And this was what they did, each in his own way, regardless of expense and consequences. Thus they maintained a hold over their illustrious dupe, which no studied system of flattery could have equalled in the case of the weakest and most foolish of patrons. These two penniless and ruined adventurers lived lives of splendour and luxury, and neither they nor Scott seemed to realise or remember that every penny which supported them had come or would have to come from Scott's estate. The house of James, the elder brother, was not far from his printing works, No. 10 St. John Street, Canongate, which had not long ceased to be the most fashionable street in Edinburgh. Here, in the first house on the west side, was the meeting-place of the ever-memorable Freemason Lodge, the Canongate Kilwinning, whose 'poet-laureate' was no less a genius than Scotland's second glory, Robert Burns. Here, in the town house of the Telfers of Scotstoun, overlooking the Canongate, resided the greatest of Scottish novelists after

Scott himself, Tobias Smollett, on his last visit to the capital. No. 13 was the house of Lord Monboddo, and at No. 15 lived the famous Professor Gregory, already mentioned. The Kelso adventurer lived here in grand style, a mighty city magnate, highly decorous and respectable. It was his rôle, and his playing of it was admirable, because it was simply his nature and bent: that he was at any moment entirely ignorant of his real insolvency, or entirely unconscious of the horror that he was accumulating for the most unselfish of friends, one may be excused for doubting. Every one has heard of James Ballantyne's famous dinners—a not uninteresting part of the story of the *Waverley* Novels. He assembled all his own particular literary friends, and Scott was among the company. It was James's delight to mention the author of *Waverley* always in mystic tones as 'the Great Unknown,' and the whole affair must have been intensely amusing to the real author, who sat and took part in the proceedings with smiles of good humour. After what the host himself justly called a *gorgeous* dinner, and after toasting the company, the King, and Mr. Walter Scott, the ladies who might be present retired, and the great 'business' of the little comedy began. Lockhart, as an eyewitness, quaintly describes the scene: 'Then James rose once more, every vein on his brow distended, his eyes solemnly fixed upon vacancy, to propose, not as before in his stentorian key, but "with bated breath," in the sort of whisper by which a stage conspirator thrills the gallery—"Gentlemen, a bumper to the immortal Author of *Waverley*!"—The uproar of cheering, in which Scott made a fashion of joining, was succeeded by deep silence, and then Ballantyne proceeded—

"In his Lord Burleigh look, serene and serious,
A something of imposing and mysterious"—

to lament the obscurity in which his illustrious but too modest correspondent still chose to conceal himself from the plaudits of the world—to thank the company for the manner in which the *nominis umbra* had been received, and to assure them that the Author of *Waverley* would, when informed of the circumstance, feel highly delighted—"the proudest hour of his life," etc. etc. The cool demure fun of Scott's features during all this mummary was perfect; and Erskine's attempt at a gay *nonchalance* was still more ludicrously meritorious.' Upon this Ballantyne would announce the name of the coming novel, a bumper would be drained to its success, and that was all. The night 'drove on wi' sangs and clatter,' till the senior and graver members, including Scott, had withdrawn. 'Then,' says Lockhart, 'the scene was changed. The claret and olives made way for broiled bones and a mighty bowl of punch; and when a few glasses of the hot beverage had restored his powers, James opened *ore rotunda* on the merits of the forthcoming romance. "One chapter—one chapter only,"—was the cry. After "*Nay, by 'r Lady, nay,*" and a few more coy shifts, the proof-sheets were at length produced, and James, with many a prefatory hem, read aloud what he considered as the most striking dialogue they contained.' Lockhart was one of the fortunate company who listened to James, in these circumstances, reading, from the *Heart of Midlothian*, the interview of Jeanie Deans with the Queen in Richmond Park. James's declamation, though marked, of course, by some of his 'pompous tricks,' seems to have been really effective. The sitting ended with the 'Death of Marmion,' delivered in imitation of the great Braham. Later on, James removed his household gods to the New Town, No. 3 Heriot Row. The younger brother, John, was much more original in his ways and doings, and equally reckless of consequences and expense. He had a little villa in the French style at Trinity, on the shore of the Firth. The gardens alone of the ex-needleman

must have cost a pretty penny, being laid out with great art so as to seem of considerable extent, 'with many a shady tuft, trellised alley, and mysterious alcove, interspersed among their bright parterres.' His house, as became an auctioneer of curiosities, was crowded with objects of *vertu*, numberless costly mirrors, and pictures of a certain class, mostly, in fact, theatrical portraits, especially of actresses, which were afterwards bought by Charles Mathews for his gallery at Highgate. The house was furnished like a suburban 'Bower of Bliss' in London or Paris, and had a private wing which his wife was most effectively debarred from entering. If Bluebeard, the clumsy villain, had only enjoyed the services of this clever, resourceful voluptuary, he would have been able to shun the society of his successive 'cleaving michiefs' without having recourse to tragic methods. Johnnie, in fact, could have taught Milton a trick of 'defensive armour,' within which not even a wife could penetrate. This was his ingenious plan: he made every door of entrance into the sacred wing just so narrow as to render it absolutely impossible for Mrs. Ballantyne to squeeze her body through. One can fancy the arrangement giving rise to awkward difficulties, but its efficiency for the main purpose was admirable. It was worthy of a Duc de Richelieu rather than an ex-tailor. Johnnie's festive parties at Trinity were the great social attraction of Edinburgh to the theatrical people of his day. Mathews, Braham, Kean, and Kemble were all frequent guests when acting in Edinburgh. In Mathews' *Memoirs* there is an anecdote of John Ballantyne which is of interest in itself, while happily illustrative of the character of *Wee Johnny*. Ballantyne, Constable, and Terry were dining with the Mathews family, when John, who had a certain indiscreet vivacity when the wine began to affect him, was talking to Mathews about some books, and concluded by saying, 'I shall soon send you *Scott's new novel*.' The effect may be imagined, especially on Constable. 'He,' says Mrs. Mathews,

'looked daggers—and Terry used some—for with a stern brow and a correcting tone, he cried out *John!* adding with a growl, like one reproving a mischievous dog,—“Ah, what are you about?” which made us droop our eyes for the indiscreet tatler; while wee Johnny looked like an impersonation of *fear*—startled at the “sound himself had made.” Not another word was said: but our little good-natured friend's lapse was sacred with us, and the secret was never divulged while it was important to preserve it.'

CHAPTER LVIII

Anecdotes of Constable—"The Czar"—Plans the *Magnum Opus*—Anecdote of Longmans and Co.—Constable's House and Equipage—John Ballantyne's Habits—Horses and Dogs—Anecdote by Scott of his Liberality—Scott's Sorrow at his Death.

At John Ballantyne's house in Trinity, his great co-adjutor Constable was often to be seen. There Lockhart first met him. Struck by the majestic appearance of the publisher, he made a remark to Scott on Constable's 'gentlemanlike' (publishers were only 'booksellers' in those days) 'and distinguished appearance.' 'Ay,' replied Scott, 'Constable is indeed a grand-looking chield. He puts me in mind of Fielding's apology for Lady Booby—to wit, that Joseph Andrews had an air which, to those who had not seen many noblemen, would give an idea of nobility.' He is said to have been a large feeder and deep drinker: of a violent temper, but 'easily overawed by people of consequence.' He was, on the whole, not one of Scott's favourites—a circumstance, however, which was more owing to the great man's blind partiality for the Ballantynes, with whom Constable necessarily came into

frequent contact. Scott, however, praises Constable as 'generous and far from bad-hearted.' Among his brothers of 'the trade' Constable was nicknamed 'the Czar,' and also 'the Crafty.' Scott declared that Constable was 'the prince of book-sellers.' He considered that the Crafty knew more of the business of a bookseller in planning and executing popular works than any man of his time. His imperious style was natural to the man, and his unaided rise to eminence in his important calling largely justified his pride. His share in the blame for the disaster of 1826 was at the time exaggerated, unfortunately also in the mind of Scott himself. It was the Ballantyne co-partnery that led to the unfortunate bill transactions, and the great pity was that both Constable and Scott took these tragic jokers on their own fictitious valuation. Constable I believe to have been truly a great man and in all respects a gentleman: as different in mental qualities as he was in physical dignity from the bounding brothers of Kelso. Who can fail to admit the genius of the man who *foresaw* the value of the Waverley Novels, and who provided Scott with the greatest consolation of his last sad years—the *magnum opus* of the collected edition, and thus enabled him to carry out his romantic resolve to pay the so-called *debts* to the full? John Ballantyne told Lockhart a good story of Constable's fondness for bestowing nicknames. 'One day a partner of the house of Longman was dining with him in the country, to settle an important piece of business, about which there occurred a good deal of difficulty. "What fine swans you have in your pond there!" said the Londoner, by way of parenthesis.—"Swans!" cried Constable; "they are only geese, man. There are just five of them, if you please to observe, and their names are Longman, Hurst, Rees, Orme, and Brown." This skit cost the Crafty a good bargain.' Lockhart soon became a frequent visitor at Constable's country seat of Craigcrook Castle (afterwards tenanted by Francis Jeffrey), and says that he did the honours of the ancient home of

noble Grahams with all the ease that might have been looked for had he been the long-descended owner of the place. He greatly admired Constable's 'manly and vigorous' conversation, full of old Scotch anecdotes, which he told with a spirit and humour only second to his great author's. 'His very equipage,' Lockhart adds, 'kept up the series of contrasts between him and the two Ballantynes. Constable went back and forward between the town and Polton in a deep-hung and capacious green barouche, without any pretence at heraldic blazonry, drawn by a pair of sleek, black, long-tailed horses, and conducted by a grave old coachman in plain blue livery. The Printer of the Canongate drove himself and his wife about the streets and suburbs in a snug machine, which did not overburthen one powerful and steady cob:—while the gay Auctioneer, whenever he left the saddle for the box, mounted a bright blue dogcart, and rattled down the Newhaven Road with two high-mettled steeds prancing tandem before him.' Johnnie, indeed, kept up a good stable, hunted the fox at times, and had the pleasant whim of naming his numerous steeds after various characters in Scott's works. His daily mount was a milk-white hunter, y-clept Old Mortality, and he was always attended by a leash or two of greyhounds, which he named Die Vernon, Jenny Dennison, and so on. At business he appeared in sporting half-dress,—a light-grey frock, with emblems of the chase on its silver buttons, white cord breeches, and jockey-boots in Meltonian order.' Scott was a constant frequenter of his auction rooms in Hanover Street, at the door of which his favourite Maida was to be seen waiting his arrival from the Court, couched among Johnnie's greyhounds. Such was the frivolous, but astute, underminer, who succeeded to the end in maintaining a fatal hold on the great genius, and finally left him to toil as a slave, often at a loss for money for mere current expenses, during the last years of what might have been one of the happiest of lives. It is a melancholy fact, and perhaps, after

all, his own favourite saying fits it best—that often the wisest of men keep, as it were, the average stock of folly only in reserve, to be *all* expended on some one flagrant absurdity. One can at least understand Scott's affection for John Ballantyne, when one thinks of such an incident as this, related by Scott himself: 'A poor divinity student was attending his sale one day, and Johnnie remarked to him that he looked as if he were in bad health. The young man assented with a sigh. "Come," said Ballantyne, "I think I ken the secret of a sort of draft that would relieve you—particularly," he added, handing him a cheque for £\$ or £10—"particularly, my dear, if taken upon an empty stomach."

John Ballantyne died at Edinburgh in the summer of 1821. Scott and Lockhart attended his funeral in the Canongate churchyard. 'As we stood together' (the latter relates), 'while they were smoothing the turf over John's remains, the heavens, which had been dark and slaty, cleared suddenly, and the midsummer sun shone forth in his strength. Scott, ever awake to the "skiey influences," cast his eye along the overhanging line of the Calton Hill, with its gleaming walls and towers, and then turning to the grave again, "I feel," he whispered in my ear, "as if there would be less sunshine for me from this day forth."

John Ballantyne was thus taken away from the evil to come, but James lived till 1833. Archibald Constable died on the 21st of July 1827. His proud spirit could not survive the tremendous downfall of his splendid fortunes. All his great undertakings, except the *Miscellany*, had passed from his control. He was reduced to 'an obscure closet of a shop,' and found himself without either capital or credit to start a new career. Of all with whom Scott had to do in the business of life, he is the only man in whose case Scott's natural generosity did not at once overcome every shadow of well or ill founded resentment or grudge.

CHAPTER LIX

The Baronetcy—Reasons for accepting—Marriage of Sophia Scott to John Gibson Lockhart—Charles Scott and Archdeacon Williams—Improvements in Edinburgh—The 'Water Caddies'—Drama of *Rob Roy*—The Burns Dinner—Henry Mackenzie.

It was in the end of the year 1818 that Scott received, through Lord Sidmouth, intimation of the Prince Regent's desire to confer on him a baronetcy. When informed of it privately, a few months before this, by Chief-Commissioner Adam, he had hesitated about accepting such an honour, feeling that it might dangerously affect the style of living and the ideas and aspirations of a contented family. However, the sudden death of Charles Charpentier altered all this. He left, as was believed, a large fortune, and had settled the reversion on his sister's family. The inheritance in the end came to nothing, but the expectation removed Scott's doubts as to accepting the title. His eldest son having by this time settled to enter the Army, it was obvious that the title would be of real advantage to him in his profession. We have fortunately Scott's views expressed in the frankest manner in a letter to Morritt, and they certainly require no comment. 'It would be easy,' he says, 'saying a parcel of fine things about my contempt of rank, and so forth; but although I would not have gone a step out of my way to have asked, or bought, or begged, or borrowed a distinction, which to me personally will rather be inconvenient than otherwise, yet coming as it does directly from the source of feudal honours, and as an honour, I am really gratified with it;—especially as it is intimated that it is His Royal Highness's pleasure to heat the oven for me expressly, without waiting till

he has some new *batch* of Baronets ready in dough.... After all, if one must speak for themselves, I have my quarters and emblazonments, free of all stain but Border theft and High Treason, which I hope are gentlemanlike crimes; and I hope Sir Walter Scott will not sound worse than Sir Humphry Davy, though my merits are as much under his, in point of utility, as can well be imagined. But a name is something, and mine is the better of the two.' It was not till March 1820 that he was able to go to London, having been prevented by illness at one time, and on a second proposed occasion by family afflictions. When he did go to London, his admirer was King George the Fourth. To him, at all events, the event was an honour and a credit, for it proceeded entirely from himself. His greeting to the new Baronet was, 'I shall always reflect with pleasure on Sir Walter Scott's having been the first creation of my reign.' Shortly after this the two English Universities offered him the honorary degree of D.C.L. He was never able to avail himself of either offer.

On the 29th of April in this year, his daughter Sophia was married to John Gibson Lockhart. The son-in-law mentions that Sir Walter hastened his return from London—he had been sitting to Lawrence at the King's request—in order to get the marriage over before the unlucky month of May. Lockhart says too little of his own affairs, but he mentions that the wedding took place, *more Scotico*, in the evening, and that Sir Walter, adhering on all such occasions to ancient modes of observance with the same punctiliousness which he mentions as distinguishing his worthy father, gave a jolly supper afterwards to all the friends and connections of the young couple.

Towards the end of the year the second son, Charles, also left the family circle. He went to Lampeter to be under the celebrated scholar John Williams, afterwards Archdeacon of Cardigan. Mr. Williams, who became

Rector of the Edinburgh Academy in 1824, was much appreciated by Scott, not only for his erudition, but as being 'always pleasant company.' At another time he calls him 'a heaven-born teacher.'

We may mention here another item in the constant process of modernising the city. About this time a strong feeling was growing, and even obtaining vent in public, against the sway of the Town Council. The position of Edinburgh, 'always thirsty and unwashed,' was then, by Lord Cockburn's account, in reference to water positively frightful. The wretched shallow tank on the north side of the Pentlands, the only source of supply, was often and for long periods empty. But the Town Council would do nothing. A private company was therefore formed, and the supply began to be regular. Then water-pipes were put into private houses, and the ancient fraternity of water-carriers found their occupation gone. 'In a very few years,' says Cockburn, 'there was not one extant. They were a very curious tribe, consisting of both men and women, but the former were perhaps the more numerous. Their days were passed in climbing up lofty stairs to the "flats." The little casks of water, when filled from the street wells, were slung upon their backs, suspended by a leather strap, which was held in front by the hand. They acquired a stopping attitude, by which they were easily recognised even when off duty. They were all rather old, and seemed little; but this last might be owing to their stooping. The men very generally had old red jackets, probably the remnants of the Highland Watch, or of the City Guard; and the women were always covered with thick duffle greatcoats, and wore black hats like the men. Every house had its favourite "Water Caddie." The fee (I believe) was a penny per barrel. In spite of their splashy lives and public-well discussions, they were rather civil, and very cracky creatures. What fretted them most was being obstructed in going up a stair; and their occasionally tottering legs testified that they had no bigotry

against qualifying the water with a little whisky. They never plied between Saturday night and Monday morning; that is, their employers had had hot water all Sunday. These bodies were such favourites, that the extinction of their trade was urged seriously as a reason against water being allowed to get into our houses in its own way.'

In February 1819 a dramatised version of *Rob Roy* was played in the Edinburgh Theatre. The Bailie was played by the famous actor Charles Mackay, who, being a native of Glasgow, was able to do full justice to the dialect and all the little amusing peculiarities of the character. Scott is said to have been greatly interested in this representation of his story, and Lockhart says 'it was extremely diverting to watch the play of his features during Mackay's admirable realisation of his conception.' On his benefit night 'the Bailie' received an epistle of kind congratulation from no less a personage than Jedediah Cleishbotham. It is worth mentioning that, though his fellow-citizens greeted him on entering his box with 'some mark of general respect and admiration,' there was never anything said or done to embarrass him as hinting at his authorship of the play.

While *Rob Roy* was enjoying its successful run, a party of two or three hundred Edinburgh gentlemen met, on February 22nd, at what has since become the national cult—a Burns dinner. This function was distinguished by a short speech from the veteran 'Man of Feeling,' who had welcomed Burns and praised his genius more than thirty years before. Scott's feeling towards Burns was one of constantly increasing admiration. 'Long life to thy fame' (he says in his *Journal*) 'and peace to thy soul, Rob Burns! When I want to express a sentiment which I feel strongly, I find the phrase in Shakespeare—or thee.' For Henry Mackenzie he had a strong regard. The old man surprised him by unfolding literary schemes in his old age. He loved to unbosom himself to Scott, and called him his 'literary confessor,'

and 'I am sure' (said the patient victim) 'I am glad to return the kindnesses which he showed me long since in George Square.' Scott's description of the veteran in 1825 is as follows: 'No man is less known from his writings. We would suppose a retired, modest, somewhat affected man, with a white handkerchief and a sigh ready for every sentiment. No such thing: H. M. is alert as a contracting tailor's needle in every sort of business—a politician and a sportsman—shoots and fishes in a sort even to this day—and is the life of the company with anecdote and fun. Sometimes, his daughter tells me, he is in low spirits at home, but really I never see anything of it in society.

In January 1831 Scott got the news of Henry Mackenzie's death. By this time Scott was contemplating the near approach of his own end, but he can still spare a regret for the old man, 'gayest of the gay, though most sensitive of the sentimental,' who had so long filled a niche in Scottish literature.

CHAPTER LX

The Commercial Disaster—Ruin of Ballantyne (Scott) and Constable—Scott's Feeling—Universal Sympathy—Offer of Help—Brave Reply—Cheerful Spirit—Constable—The Agreement—Removal from Castle Street—Death of Lady Scott—The Visit to Paris.

James Ballantyne on his deathbed declared that all the appearances of his prosperity were merely shadows. But Scott up to the end of 1825 had no idea of the magnitude of the crisis that had been so long preparing. On the 18th of December in that year he penned in his *Journal* that melancholy summary of his career: 'What a life mine has been! Half-educated, almost

wholly neglected or left to myself; stuffing my head with most nonsensical trash, and undervalued by most of my companions for a time; getting forward, and held a bold and clever fellow, contrary to the opinion of all who thought me a mere dreamer; broken-hearted for two years; my heart handsomely pieced again—but the crack will remain till my dying day. Rich and poor four or five times; once on the verge of ruin, yet opened a new source of wealth almost overflowing. Now to be broken in my pitch of pride.... Nobody in the end can lose a penny by me—that is one comfort.' Following entries prove that Ballantyne professed confidence. Even on 14th January, when Scott had received 'an odd mysterious letter' from Constable, hinting calamity, James had no doubts! On Tuesday the 17th the blow fell. Ballantyne came in the morning to say that he had arranged to stop. His own account of the interview is: 'It was between eight and nine in the morning that I made the final communication. No doubt he was greatly stunned—but, upon the whole, he bore it with wonderful fortitude. He asked—"Well, what is the actual step we must first take? I suppose we must do something?" I reminded him that two or three thousand pounds were due that day, so that we had only to do what we must do—refuse payment—to bring the disclosure sufficiently before the world. He took leave of me with these striking words—"Well, James, depend upon that, I will never forsake you."'

In the *Journal* of that day—"I felt rather sneaking as I came home from the Parliament House—felt as if I were liable *monstrari digito* in no very pleasant way. But this must be borne *cum caeteris*.' On which Lord Cockburn remarks: 'very natural for him to feel so; but it was the feeling of nobody else.'

From Cockburn's pages we can realise the astounding effect of the news of Scott's implication in the disaster upon his friends and fellow-

citizens. The 'black Tuesday' became a recollection of sadness and pain to all who personally knew him. The destruction of half the city could not have caused greater astonishment and sorrow. His professional brethren now for the first time learned that Scott had 'dabbled in trade.' 'How humbled,' says Cockburn, 'we felt when we saw him—the pride of us all—dashed from his lofty and honourable station, and all the fruits of his well-worked talents gone. He had not then even a political enemy. There was not one of those whom his thoughtlessness had so sorely provoked, who would not have given every spare farthing he possessed to retrieve Sir Walter. Well do I remember his first appearance after this calamity was divulged, when he walked into Court one day in January 1826. There was no affectation, and no reality, of *facing it*; no look of indifference or defiance; but the manly and modest air of a gentleman conscious of some folly, but of perfect rectitude, and of most heroic and honourable resolutions. It was on that very day, I believe, that he said a very fine thing. Some of his friends offered him, or rather proposed to offer him, enough of money, as was supposed, to enable him to arrange with his creditors. He paused for a moment; and then, recollecting his powers, said proudly—"No! this right hand shall work it all off." His friend William Clerk supped with him one night after his ruin was declared. They discussed the whole affair openly and playfully; till at last they laughed over their noggins at the change, and Sir Walter observed that he felt something like Lambert and the other Regicides, who, Pepys says, when he saw them going to be hanged and quartered, were as cheerful and comfortable as any gentlemen could be in that situation.'

This probably refers to the evening, mentioned in Scott's *Journal*, when his daughter was very greatly surprised by the loud hilarity of Clerk and his host. 'But do people suppose,' adds Scott, 'that he was less sorry for his poor sister,[1] or I for my lost fortune?' He declares that pride was his

strongest passion—a passion which never hinged upon world's gear, which was always with him—light come, light go!

[1] Miss Elizabeth Clerk's sudden death had also occurred on the 17th of January.

Constable had stood like a hero in the breach to the last moment. His last device, a good one if he could have by magic imparted his own knowledge, foresight, and sublime faith to a board of directors, was to take Lockhart (in the capacity of a confidential friend of the author of *Waverley*) with him to the Bank of England, and to apply for a loan of from £100,000 to £200,000 on the security of the copyrights. These, it must be remembered, were the *Encyclopedia Britannica*, half of the *Edinburgh Review*, nearly all Scott's poetry, the *Waverley Novels*, and the *Life of Napoleon*, on which Scott was at the time working. Lockhart refused to interfere without direct instructions from Sir Walter. Poor Constable, he says, became livid with rage.

The claims against Scott were found in the end to amount to £130,000. All the world knows the course Scott elected to take; how he at once put his affairs in the hands of trustees, and became, by his own offer, the vassal of his creditors for life, toiling henceforward to pay their claims, not to enrich himself. From his side it was a noble sacrifice, as noble as any ever offered on the altar of honour. If the debts had been real, if he had actually had in possession the sum and used it, no other course would have been possible *salvo honore*. But commercial debts, the largely fictitious product of stamps and paper, should have been paid commercially. Such a course, he himself said, he might have advised a client to take, and it would have saved him much sorrow, pain, and trouble, without harming any man. However, he preferred it otherwise, and received the news of the acceptance of his offer as if it had been a mighty favour. He wrote in his *Journal*: 'This is

handsome and confidential, and must warm my best efforts to get them out of the scrape.'

The agreement was finally, not of course without harassment and difficulty, passed. He was left in possession of Abbotsford, his official salary was left him to support his family, everything else was sold for behoof of the creditors, and all his future literary gains were assigned to them in advance. On March 15th he left his house in Castle Street, and on that night he wrote in his *Journal*: 'I never reckoned upon a change in this particular so long as I held an office in the Court of Session. In all my former changes of residence it was from good to better—this is retrograding. I leave this house for sale, and I cease to be an Edinburgh citizen, in the sense of being a proprietor, which my father and I have been for sixty years at least. So farewell, poor 39, and may you never harbour worse people than those who now leave you.'

Very soon after the departure from Castle Street a second calamity, probably hastened by the former, overtook the family. Lady Scott died at Abbotsford on the 14th of May. Scott, who was engaged in his Court duties at Edinburgh, and staying now in Mrs. Brown's lodgings, North St. David Street, reached Abbotsford late in the evening of the 15th. His weakly daughter Anne, worn out with attendance, was hysterical when he arrived. The entries in his *Journal* are sadly touching: 'When I contrast what this place now is with what it has been not long since, I think my heart will break. Lonely, aged, deprived of my family—all but poor Anne; an impoverished, an embarrassed man, deprived of the sharer of my thoughts, who could always talk down my sense of the calamitous apprehensions which break the heart that must bear them alone.'

The funeral took place on the 22nd at Dryburgh. Scott mentions very kindly the Rev. E. B. Ramsay, who performed the funeral service. This

gentleman afterwards became famous, when Dean of Edinburgh, by his well-known book *Lights and Shadows of Scottish Life*.

And now Scott found the task he had imposed upon himself bracing him against despondency. He returned to Edinburgh and his old 'task,' thankful that it was of a graver nature (the *Life of Napoleon*), and determined to fight on 'for the sake of the children and of my own character.'

A visit to London and Paris was necessitated in October by his work on Napoleon. The change did him good, and Lockhart mentions that his behaviour under misfortunes so terrible had gained for him 'a deep and respectful sympathy, which was brought home to him in a way not to be mistaken.' This expedition for information had cost him £200—a matter for serious consideration in his changed circumstances.

CHAPTER LXI

House in Walker Street—Ill-health—Extraordinary Labours—Article on Hoffman—Kindness to Literary People—Murray's Party—Theatrical Fund Dinner—*Life of Napoleon*—Payment of £28,000 to Creditors—The Lockharts at Portobello—Grandfather's Tales—Domestic Happiness—Visit of Adolphus.

On resuming his duties in Edinburgh at the end of November (1826), Scott went to reside in a furnished house in Walker Street, which he had taken for the winter. In his *Journal*, 27th November, he says: 'Walter came and supped with us, which diverted some heavy thoughts. It is impossible not to compare this return to Edinburgh with others in more happy times. But we should rather recollect under what distress of mind I took up my lodgings in

Mrs. Brown's last summer, and then the balance weighs deeply on the favourable side. This house is comfortable and convenient.' It was for the sake of his daughter's company that he had taken this house. The winter, however, proved a weary time. His incessant toil at his *Napoleon* was hampered by continual ill-health—successive attacks of rheumatism, which might well have excused him from work of any kind. But his watchword was, 'I am now at my oar, and I must row hard.' To crown all his troubles, the weather was exceptionally cold and trying. He could not but think often of the days when rain and cold and long night journeys did him no harm, and he was painfully conscious of a speedy break-up of the hard-wrought machine. Bad nights were the rule, and he was sometimes sick with mere pain. Sometimes he notes his work, proof-sheets and the like, as 'finished mechanically.' 'All well,' he ends up on 21st December, 'if the machine would but keep in order, but "The spinning-wheel is auld and stiff." I shall never see the threescore and ten, and shall be summed up at a discount. No help for it, and no matter either.' Yet, even in these circumstances, he wrote more than his task. One of these minor pieces was an article on Hoffman for the *Foreign Quarterly*, a review edited by R. P. Gillies. It was done purely as a kindness to Gillies, giving, as Lockhart says, a poor brother author £100 at the expense of considerable time and drudgery to himself. He had done the same in numberless instances, often for persons whose only claim on him was that of the common vocation. At this time he naturally went but little into society, but his enjoyment of good company could still be keen. On spending an evening with John A. Murray, he says: 'When I am out with a party of my Opposition friends, the day is often merrier than when with our own set. Is it because they are cleverer? Jeffrey and Harry Cockburn are, to be sure, very extraordinary men; yet it is not owing to that entirely. I

believe both parties meet with the feeling of something like novelty—we have not worn out our jests in daily contact.'

On the 23rd of February 1827 he presided at the famous Theatrical Fund Dinner, at which he publicly admitted his authorship of the *Waverley* Novels. All he says of the incident is, 'Meadowbank taxed me with the novels, and to end that farce at once I pleaded guilty, so that splore is ended.' Of course, as a matter of fact, the secret had been an open one from the day of the first meeting of Ballantyne's creditors. When Scott was thinking of himself as liable *monstrari digito* as the partner of an insolvent firm, every one else was thinking of him as the now-revealed 'author of *Waverley*.' 'Scott ruined,' Earl Dudley exclaimed on hearing the news, 'the author of *Waverley* ruined! Good God! let every man to whom he has given months of delight give him a sixpence, and he will rise to-morrow morning richer than Rothschild!' That was probably what was in the mind of every man who gazed on Scott's calm, honest face in the first days of trouble.

On the 7th of June he finished *Napoleon*, which had grown on his hands, much beyond the original estimate, to nine closely-printed volumes. The work produced £18,000 for his creditors, so that in eighteen months he had actually diminished his obligations by £28,000.

One of the most touching episodes of Scott's life was his loving anxiety for his invalid grandson, the child of Lockhart and Sophia. Knowing the fearful strain that Sir Walter was now keeping up in working double tides for his bondholding masters, Lockhart and his wife did what they could to induce him to moderate his zeal. 'But nothing,' says Lockhart, 'was so useful as the presence of his invalid grandson. The poor child was at this time so far restored as to be able to sit on his pony again; and Sir Walter, who had conceived, the very day he finished *Napoleon*, the notion of putting together a series of *Tales on the History of Scotland*, somewhat in

the manner of Mr. Croker's on that of England, rode daily among the woods with his "Hugh Littlejohn," and told the story, and ascertained that it suited the comprehension of boyhood, before he reduced it to writing.' During the rest of this year he wrote new matter which filled five to six volumes in the uniform edition of his works, but this Lockhart thinks was light and easy compared with 'the perilous drudgery' of the preceding eighteen months.

Ill-health and the perpetual consciousness of his bondage had marvellously little effect as yet on the quality of his work. To friends who visited him casually he seems to have rarely alluded to any of his troubles. Adolphus, however, mentions that once, when speaking of his *Life of Napoleon*, he said in a quiet but touching tone, 'I could have done it better, if I had written at more leisure, and with a mind more at ease.' Adolphus was deeply impressed by the sight of his quiet cheerfulness among his family and their young friends. He has preserved one of Scott's remarks on the subject of happiness which is both characteristic and, considering the time, strikingly suggestive. Scott having said something about an accident which had spoiled the promised pleasure of a visit to his daughter in London, then observed, 'I have had as much happiness in my time as most men, and I must not complain now.' Adolphus replied that, whatever had been his share of happiness, no one could have laboured better for it. Scott's answer was, 'I consider the capacity to labour as part of the happiness I have enjoyed.' In mentioning Adolphus (who had written a book on the authorship of the Waverley Novels) and his visit, Scott wrote in his *Journal*, 'He is a modest as well as an able man, and I am obliged to him for the delicacy with which he treated a matter in which I was personally so much concerned.'

CHAPTER LXII

Incident of Gourgaud—Expected Duel—Scott's Preparations—Tired of Edinburgh—Changing Aspect of New Town—The 'Markets' superseded by Shops—The Female Poisoner—Scott's opinion of 'Not Proven'—Points in its Favour.

In the *Life of Napoleon* Scott had made use of certain documents which had been put at his disposal in the British Colonial Office. Founding on these unimpeachable authorities, he had told how General Gourgaud, one of Napoleon's aides-de-camp at St. Helena, though he had given the British Government private information that Bonaparte's complaints of ill-usage were utterly unfounded, had afterwards supported and encouraged in France the idea that Sir Hudson Lowe's conduct towards his illustrious prisoner had been cruel and tyrannical. About the end of August Cadell sent extracts from French newspapers to Scott, stating that Gourgaud was going to London to *verify* the statements in the history. This Cadell took to mean that the fire-eater intended to fasten a quarrel on Scott and challenge him to a duel. The good bookseller was alarmed, but Scott took it all very coolly. He had really dealt very moderately and delicately with Gourgaud's shaky reputation, and when the latter at last wrote his attack in the French newspapers, Scott retorted by simply publishing in full the extracts he had made from the records of the Colonial Office. The General, though he continued to load Scott with abuse, did not dare to pen a direct negative, and so the affair 'fizzled out.' Scott had expected a challenge, and had quite made up his mind to fight, Clerk promising to act as his second. 'He shall not dishonour the country through my sides, I can assure him.' In the end he writes, 'I wonder he did not come over and try his manhood otherwise. I

would not have shunned him nor any Frenchman who ever kissed Bonaparte's breech.'

At this period Scott's heart became more and more fixed upon Abbotsford, his interest in Edinburgh proportionately less. Edinburgh was now only the workshop, in which he must toil with fettered limbs, and without the buoyancy of health and strength which used to make his labours a portion of his happiness. 'Fagged by the Court'—'no time for *work*'—fagged by the good company of Edinburgh, he is tempted to run off to Abbotsford—but it will not do; and, sooth to speak, it ought not to do; though it would do me much pleasure if it would do.' Such was his state of mind, and his interest in local affairs and changes of the city was naturally diminished. About the time of the Ballantyne disaster, the opening of the New Town markets at Stockbridge might perhaps have drawn his attention to the great change going on in the city, which has made it internally so modern, and so commonplace. The New Town was now fast becoming a town of shops. The old 'market' system, so characteristic of Edinburgh, was dying out. Formerly the dealers in any one commodity were all grouped together in a certain fixed and limited locality. This was what was meant by a 'market': a congregation of shops or rather booths. For example, the Flesh Market was at the Tron: the Cattle Market at King's Stables end of the Grassmarket, and so on. Cockburn remembered when, about 1810, the only supply of fish for the citizens was in the Fish Market Close, which he justly calls a steep, narrow, stinking ravine. 'The fish' (he says) 'were generally thrown out on the street at the head of the close, whence they were dragged down by dirty boys or dirtier women; and then sold unwashed—for there was not a drop of water in the place—from old, rickety, scaly wooden tables, exposed to all the rain, dust and filth.... I doubt if there was a single fish-shop in Edinburgh so early as the year 1822.' The fruit and vegetable

market was quite as bad, managed by 'a college of old gin-drinking women, who congregated with stools and tables round the Tron Church.' The fruit was put on the tables, but the vegetables were thrown on the ground. 'I doubt, Cockburn adds, 'if there was a fruit-shop in Edinburgh in 1815. All shops indeed meant for the sale of any article on which there was a local tax or market-custom, were discouraged by the magistrates or their tacksman as interfering with the collection of the dues. The growth of shops of all kinds in the New Town is remarkable. I believe there were not half a dozen of them in the whole New Town, west of St. Andrew Street, in 1810. The dislike to them was so great, that any proprietor who allowed one was abused as an unneighbourly fellow.'

In February 1827 a poisoning case came up for trial which excited great interest in the city. Scott has given a life-like sketch of the scene in his *Journal*. 'In Court, and waited to see the poisoning woman. She is clearly guilty, but as one or two witnesses said the poor wench hinted an intention to poison herself, the jury gave that bastard verdict, *Not Proven*. I hate that Caledonian *medium quid*. One who is not *proven guilty* is innocent in the eye of the law. It was a face to do or die, or perhaps to do to die. Thin features, which have been handsome, a flashing eye, an acute and aquiline nose, lips much marked, as arguing decision, and, I think, bad temper—they were thin, and habitually compressed, rather turned down at the corners, as one of a rather melancholy disposition. There was an awful crowd; but, sitting within the bar, I had the pleasure of seeing much at my ease; the constables knocking the other folks about, which was of course very entertaining.'

Referring to the same incident, Lord Cockburn says that Scott's description of the woman is very correct; 'she was like a vindictive masculine witch. I remember him sitting within the bar looking at her. As

we were moving out, Sir Walter Scott's remark upon the acquittal was, "Well, sirs, all I can say is that if that woman was my wife I should take good care to be my own cook."

It is somewhat startling to find Scott so strongly denouncing our Caledonian verdict of *Not Proven*. *Pace tanti viri*, his opinion is not ours. A jury may be convinced of the guilt of a person, and yet quite satisfied that the prosecution has failed to prove it. *Experto crede*; in a criminal case in the Sheriff Court I have been on a jury that was absolutely unanimous on both points, the police evidence having been got up in a most perfunctory style. It was very satisfactory to us to be able to say 'Not Proven,' which was absolutely accurate, and yet not to be obliged to give the prisoner a certificate of innocence. Probably this verdict, while at times favouring the guilty, has saved the life of many an innocent victim of circumstantial fatality. It is entirely in favour of the innocent 'suspect,' to whom every day of respite is an additional chance of clearing his name: to the guilty it is an effective punishment, since any day may bring to light the defective links in the proof of his guilt.

CHAPTER LXIII

Visit of Richardson and Cockburn to Abbotsford—Sir Walter at Home—Anecdote of Cranstoun—Patterson's Anecdotes—The Burke and Hare Murders—Anecdote of Cockburn—Dr. Knox—Catholic Emancipation Bill—Meeting in Edinburgh—Death of Terry and Shortreed—Severe Illness of Scott—Death of Tom Purdie.

John Richardson, 'the learned Peerage lawyer,' was the intimate of Henry Cockburn, and the favoured and highly prized friend of Sir Walter Scott. He

tells a good fishing story of earlier days when he visited Sir Walter at Ashestiel. Richardson was fishing in the Tweed, Scott walking by his side, when, after the capture of numerous fine trout, he hooked something greater and unseen. Scott became greatly excited: to their common alarm the rod broke; but climbing the bank and holding the rod down, the angler at last managed to bring his mysterious prize round a small peninsula towards the bank. Then 'Sir Walter jumped into the water, seized him, and threw him out on the grass. Tom Purdie came up a little time after, and was certainly rather discomposed at my success. "It will be some sea brute," he observed; but he became satisfied that it was a fine river-trout, and such as, he afterwards admitted, had not been killed in Tweed for twenty years; and when I moved down the water, he went, as Sir Walter afterwards observed, and gave it a kick on the head, observing, "To be ta'en by the like o' him frae Lunnon!"'

The two friends met again in very different form in 1828, when Cockburn accompanied Richardson to visit Scott at Abbotsford. Apropos of this visit we have happily a very fine description by Cockburn of Scott and his talk at this time. He describes his appearance thus: 'When fitted up for dinner, he was like any other comfortably ill-dressed gentleman. But in the morning, with the large coarse jacket, great stick, and leathern cap, he was Dandy Dinmont or Dirk Hatteraick—a poacher or a smuggler.' Scott gave them an anecdote of an early anticipation regarding the professional prospects of their friend George Cranstoun, who had been recently raised to the bench. Just after being called to the Bar, Cranstoun, William Erskine, and Scott went to dine with an old Selkirk writer, a devoted drinker of the old school. Cranstoun, who was never anything at a debauch, was driven off the field, with a squeamish stomach and a woful countenance, shamefully early. Erskine, always ambitious, adhered to the bowl somewhat longer; but Scott who, as he told us, 'was at home with the hills and the whisky punch,'

not only triumphed over these two, but very nearly over the landlord. As they were mounting their horses to ride home, the entertainer let the other two go without speaking to them; but he embraced Scott, assuring him that he would rise high. 'And I'll tell ye what, Maister Walter, that lad Cranstoun may get to the tap o' the bar if he can; but tak my word for't—it's no be by drinking.'

In his *Journal*, 4th April 1829, it is mentioned that one David Patterson wrote to Sir Walter to suggest that he should write on the subject of the Burke and Hare murders, and to offer him for materials his 'invaluable collection of anecdotes.' 'Did ever one hear of the like?' adds Scott. 'The scoundrel has been the companion and patron of such atrocious murderers and kidnappers, and he has the impudence to write to any decent man!'

Burke and Hare were two desperadoes who, for about two years, had carried on a regular trade of murder in Edinburgh, the scene being a gloomy back house, recently demolished, in a close near the north corner of the West Port and Lady Lawson Street. Here they had disposed of sixteen victims, selling all the bodies to the doctors for dissection. The popular excitement when the discovery was made, and when Burke, Hare, and Helen Macdougall were brought to trial, was something unexampled in the city. 'No case,' says Lord Cockburn, 'ever struck the public heart or imagination with greater horror. And no wonder. The regular demand for anatomical subjects, and the high prices given, held out a constant premium to murder; and when it was shown to what danger this exposed the unprotected, every one felt himself living among persons to whom murder was a trade.' At this time Dr. Robert Knox, a very clever surgeon, was the most popular lecturer in the medical school, and into his hands most of the bodies had come. The populace fully believed that he had known that the bodies were those of murdered persons. Few could believe him entirely

innocent—a supposition, of course, inconsistent with his anatomical skill. He was, however, acquitted of all blame by the report of an independent and influential committee, and remained in Edinburgh till 1841. Lord Cockburn states that all the Edinburgh anatomists incurred great odium, which he considered most unjust. Tried in view of the invariable, and at that time necessary practice of the profession, the anatomists were, in his opinion, 'spotlessly correct, and Knox the most correct of them all.' It was Cockburn who, as counsel for the defence, secured the acquittal of Helen Macdougall. A story went round that, on finishing his address to the jury and observing its effect, he whispered, 'Infernal hag! the gudgeons swallow it!' This was utterly untrue. The evidence was really insufficient to warrant a conviction, and the defence was, of course, entirely honest. Of the two assassins, Hare escaped by turning King's Evidence, and Burke, the less revolting of the two, was hanged. On the evening of the execution Scott wrote, 'The mob, which was immense, demanded Knox and Hare, but though greedy for more victims, received with shouts the solitary wretch who found his way to the gallows out of five or six who seem not less guilty than he.' Knox's brilliant career was ruined by the incident. He passed the last twenty years of his life in London, in a precarious struggle for a poor existence, and died in 1862.

In March 1829 Edinburgh had a great meeting in favour of Wellington and Peel's measure of Catholic Emancipation. Scott and a number of Tories supported it. His opinion was that the measure ought to satisfy all lovers of peace. But he had his doubts about *Pat*, 'who with all his virtues, is certainly not the most sensible person in the world.' The petition got up by the meeting was signed by eight thousand persons, but the two opposing petitions were much more numerous signed. When the first petition was read in the House of Commons, the name of Sir Walter Scott was received

with a great shout of applause, which led Sir Robert Peel to send him a special and very cordial letter of thanks. Of this petition Cockburn, who was prominent in the whole affair, declares that the eight thousand who signed were of a higher and more varied class than ever concurred in any political measure in Edinburgh.

About the middle of May appeared *Anne of Geierstein*, which, as Lockhart has put it, may almost be called the last work of Scott's imaginative genius. To the reader who peruses this story, keeping in mind the time and the circumstances in which it was written, it is full of passages which touchingly depict the past and present emotions of the writer's own career.

The next two months deprived him of two old friends—Terry and Shortreed—with whom, he writes, 'many recollections die.' Meanwhile there was great comfort in the success of his *Magnum Opus*—the collected works.

At the end of this year, 1829, eight volumes had appeared, and the monthly sale was thirty-five thousand. The effect on his spirits was gratifying to his friends, for he had been almost prostrated by fears and anxiety about the health of his eldest son. Then came the first warning of the end. 'Good news of Walter' was succeeded by a serious and alarming attack of illness—in fact a threatening of apoplexy. He obtained relief by cupping, but he had apparently no delusions as to the meaning of the stroke. Writing to tell Walter of his recovery, he talks of coming death, and in view of 'the pro-di-gi-ous sale' of the Novels, he says, 'I should be happy to die a free man; and I am sure you will all be kind to poor Anne, who will miss me most. I don't intend to die a minute sooner than I can help for all this; but when a man takes to making blood instead of water, he is tempted to think on the possibility of his soon making earth.'

Another warning was the loss of his 'old and faithful servant,' the never-failing Tom Purdie. He died suddenly, and on his grave, close to the Abbey at Melrose, may be seen the monument placed there by Sir Walter 'in sorrow for the loss of a humble but sincere friend.' This bereavement was felt so keenly that, for once in his life, Scott was impatient to leave Abbotsford and resume the engrossing cares of the city. 'I am so much shocked, that I really wish to be quit of the country and safe in the town.'

CHAPTER LXIV

Last Winter in Edinburgh—The *Ayrshire Tragedy*—Apoplectic Stroke—Retirement from the Clerkship—Visit to Edinburgh—Refusal to stop Literary Work—John Nicolson—Scott at Cadell's House—His Will.

On reaching 'the safety of the town' he began work without delay. The *Ayrshire Tragedy*, his most ambitious attempt in drama, was finished before the close of the year. It is founded on the horrible story of Mure of Auchindrane. The 'tragedy' is, however, really less interesting and dramatic than the simple prose version of the story which forms the preface.

So was Scott's life going on—the regular daily routine of his Court duties and then the daily portion of 'work,' of which, in spite of all that happened, he seems to have done as much in 1830 as in the previous year. There was no immediate warning of the terrible collapse. On the 15th of February he returned from the Court as usual about two o'clock. An old lady was waiting to show him some papers. He sat with her for half an hour, seeming to be occupied with the MS. When he rose from his chair to usher out his visitor, he sank back again. His features were slightly convulsed.

After a few minutes he rose and staggered to the drawing-room. His daughter Anne and Miss Lockhart ran to him, but they were not in time—he fell at full length on the floor. A surgeon was fetched without delay, and bleeding proved effective. So fully did he recover his faculties, that he was able shortly to go out as usual, and few noticed any serious change. For a time he and his friends tried to believe that 'the attack had proceeded merely from the stomach.' The symptoms, however, too clearly indicated the more serious danger. 'When we recollect,' says the biographer, 'that both his father and his elder brother died of paralysis, and consider the violences of agitation and exertion to which Sir Walter had been subjected during the four preceding years, the only wonder is that this blow (which had, I suspect, several indistinct harbingers) was deferred so long; there can be none that it was soon followed by others of the same description.'

His health continued to improve till the autumn of this year. He was now preparing to bid farewell to Edinburgh. In July he retired from the Clerkship of Session, receiving an allowance of £800 a year, and refusing (with consent of his masters) a pension of £500, which would have made up the loss of income. The idea of leaving Edinburgh was, all the same, very painful. 'I can hardly' (he wrote at this time) 'form a notion of the possibility that I am not to return to Edinburgh.' The breaking up of a routine which had lasted for twenty-six years, was in itself a serious change. It meant also the loss, during the winter, of the society which helped so much to cheer him. And then, as Lockhart says, 'he had a love for the very stones of Edinburgh, and the thought that he was never again to sleep under a roof of his own in his native city, cost him many a pang.'

His return to Edinburgh in November was for the purpose of consulting his physicians there after another slight attack of apoplexy. One of these was the famous Abercrombie. They prescribed a severe regimen of

spare diet, and strongly urged him to cease from brain-work. Lockhart and his relatives did the same. His reply was: 'I am not sure that I am quite myself in all things; but I am sure that in one point there is no change. I mean, that I foresee distinctly that if I were to be idle, I should go mad. In comparison to this, death is no risk to shrink from.' It can be seen from his diary what this 'work' meant; he speaks of being 'fogged with frozen vigils'—of working 'without intermission'—and grudges an afternoon's chat with visitors, 'though well employed and pleasantly.' And all this time the symptoms of physical collapse were growing daily more plain and more painful. 'I speak with an impediment—the constant increase of my lameness—the thigh-joint, knee-joint, and ankle-joint. I should not care for all this, if I were sure of dying handsomely.... But the fear is, lest the blow be not sufficient to destroy life, and that I should linger on, "a driveller and a show."' "

In January 1831 he became convinced that it was now a pressing duty to make his will. A heavy fall of snow began on the 30th, but next morning he set out on horseback, attended only by his 'confidential attendant,' John Nicolson, whose services in these last years were of extraordinary value to the disabled man. Lockhart's praise of him was doubtless well-deserved: 'He had been in the household from his boyhood, and was about this time advanced to the chief place in it. Early and continued kindness had made a very deep impression on this fine handsome young man's warm heart; he possessed intelligence, good sense, and a calm temper; and the courage and dexterity which Sir Walter had delighted to see him display in sports and pastimes, proved henceforth of inestimable service to the master whom he regarded, I verily believe, with the love and reverence of a son.' On reaching Edinburgh, Sir Walter took up his quarters for the night in a hotel. It was the first time he had done so in his native city. He could not sleep, lay

listening to the endless noises of the street, and next day he yielded to Cadell's kindly pressure and accepted the publisher's hospitality at his house in Atholl Crescent. 'Here,' he mentions in a letter to Mrs. Lockhart, 'I saw various things that belonged to poor No. 39. I had many sad thoughts on seeing and handling them—but they are in kind keeping, and I was glad they had not gone to strangers.' These were some articles which had been bought in at the sale by a friend and returned to Scott, who himself had presented them to Mrs. Cadell. With the Cadells the snowstorm prolonged his stay for a week. He was cheered by the sight of one or two old intimates, such as Clerk and Skene, but they could not look on him without feeling pain at the great change. Even now he kept on writing, working for some hours daily on *Count Robert of Paris*. The will was duly completed, signed, and left in the safe keeping of Cadell. The account of the visit in the *Journal* concludes: 'I executed my last will, leaving Walter burdened, by his own choice, with £1000 to Sophia, and another received at her marriage, and £2000 to Anne, and the same to Charles. I have made provisions for clearing my estate by my publications, should it be possible.... My bequests must, many of them, seem hypothetical.

'Besides during the unexpected stay in town, I employed Mr. Fortune, an ingenious artist, to make a machine to assist my lame leg....

'The appearance of the streets was most desolate; the hackney coaches, with four horses, strolling about like ghosts, and foot-passengers few but the lowest of the people.

'I wrote a good deal of *Count Robert*, yet I cannot tell why my pen stammers egregiously and I write horridly incorrect. I long to have friend Laidlaw's assistance.'

CHAPTER LXV

The Paralytic Stroke—The Last Novels—Election Meetings—Disgraceful Conduct of Radical Gangs—Scott's Journey for Health—The Return—Collapse and Stupor—The Last Stay in Edinburgh—Death of Sir Walter Scott.

Very soon after this came what Sir Walter himself could not fail to recognise as 'a distinct stroke of paralysis affecting both nerves and speech.' Lockhart describes the occasion on which it occurred as follows: 'Sir Walter's friend Lord Meadowbank had come to Abbotsford, as usual when on the Jedburgh circuit; and he would make an effort to receive the Judge in something of the old style of the place; he collected several of the neighbouring gentry to dinner, and tried to bear his wonted part in the conversation. Feeling his strength and spirits flagging, he was tempted to violate his physician's directions, and took two or three glasses of champagne, not having tasted wine for several months before. On retiring to his dressing-room he had this severe shock of apoplectic paralysis, and kept his bed under the surgeon's hands for several days.'

A fortnight after, when Lockhart came to see him, Sir Walter, having been lifted on his pony, came about half a mile on the Selkirk road to meet him, with one of his grand-children before him on a pillion. Lockhart was sadly moved by the terrible change in his appearance, which he describes thus: 'All his garments hung loose about him; his countenance was thin and haggard, and there was an obvious distortion in the muscles of one cheek. His look, however, was placid—his eye as bright as ever—perhaps brighter than it ever was in health; he smiled with the same affectionate gentleness, and though at first it was not easy to understand everything he said, he spoke cheerfully and manfully.'

Under such conditions, Sir Walter still continued to work, seldom speaking even in the family circle about his illness at all, and only then in a hopeful way. His one desire was to use his faculties, while they remained responsive, for the benefit of those to whom he considered himself a debtor. *Count Robert* and *Castle Dangerous* were both finished at this time, the latter being perhaps the only permanent evidence of the final decay of his powers.

Scott's strong sense of duty, combined with the calls of his official position as Sheriff, obliged him to take part during the month of May in several election meetings. He was from deep conviction opposed to the great movement for reforming our political machinery by which the country was then convulsed. At Jedburgh the mob, largely recruited from Hawick, showed their political fanaticism by mobbing Sir Walter Scott and putting his life in danger. At Selkirk, however, though it also was invaded by a Radical contingent, no disrespect was shown to the great man who was there personally known to all and 'all but universally beloved as well as feared.' 'I am well pleased,' Lockhart remarks, 'that (Selkirk) the ancient capital of the *Forest* did not stain its fair name upon this miserable occasion; and I am sorry for Jedburgh and Hawick. This last town stands almost within sight of Branksome Hall, overhanging also *sweet Teviot's silver tide*. The civilised American or Australian will curse these places, of which he would never have heard but for Scott, as he passes through them in some distant century, when perhaps all that remains of our national glories may be the high literature adopted and extended in new lands planted from our blood.' It is a bitter reflection that Sir Walter Scott's last hours were haunted by the mob's brutal cry of 'Burke Sir Walter.'

But we must not dwell on the events of 1831. The European journey, the last slender hope for the great novelist's recovery, was begun in October,

the Government putting at Sir Walter's disposal the *Barham*, 'a beautiful ship, a 74 cut down to a 50, and well deserving all the commendations bestowed on her.'

There remains now only one more Edinburgh scene to notice—a sadder scene than that of the death-bed. He had reached London on the 13th of June 1832, being then in a state of extreme feebleness and exhaustion. There he lay 'in the second-floor back-room' of a Jermyn Street hotel, for some three weeks, in a state of almost unbroken stupor. When conscious, he was for ever wishing to return to Abbotsford. At last it was decided to gratify his desire, and on the 7th of July he was lifted into his carriage and conveyed to the steamboat. On this journey he had with him his two daughters, Cadell, Lockhart, and Dr. Thomas Watson, his medical adviser. On board the steamer he seemed, after being laid in bed, unconscious of the removal that had taken place. At Newhaven, which the vessel reached late on the 9th, he was taken on shore, lying prostrate in his carriage. Then he was conveyed, still apparently unconscious, to Douglas's hotel in St. Andrew Square. This was his last visit to Edinburgh.

Lockhart mentions that Mr. and Mrs. Douglas had made all preparations that could have been desired for his accommodation, but he does not seem even to have known that he was once more in 'his own romantic town.' The old charm of Edinburgh had long resigned its power in favour of that of Abbotsford. The tie of home was no longer connected with the city, and the rousing of his memory only came when the carriage had made two stages towards the Tweed.

And so he went on his way to Abbotsford, where he died, and to Dryburgh, where he was laid in his grave. And the great city which he had loved, died too, to him—on that summer morning when the sad little party drove away from its gates. Some of the last lines he penned—the motto of

Chapter XIV. of *Castle Dangerous*—are fraught with the spirit of his noble life—courage, truth, and steadfastness to endure—

'The way is long, my children, long and rough—
The moors are dreary, and the woods are dark;
But he that creeps from cradle on to grave
Unskilled save in the velvet course of fortune,
Hath miss'd the discipline of noble hearts.'

Printed by T. and A. CONSTABLE, Printers to His Majesty
at the Edinburgh University Press

*** END OF THIS PROJECT GUTENBERG EBOOK EDINBURGH
UNDER SIR WALTER SCOTT ***

*** END OF THE PROJECT GUTENBERG EBOOK EDINBURGH
UNDER SIR WALTER SCOTT ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See

paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no

representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with

the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of

obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO

REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.